SMOKE SCREEN, DISTRACT AND EXTRACT

Unwarranted Influence: A Primary-Source Investigation, 1095–2026

KYLE JIMENEZ

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PART I: WARNING

> *“In the councils of government, we must guard against the acquisition of unwarranted influence, whether sought or unsought, by the military-industrial complex. The potential for the disastrous rise of misplaced power exists and will persist.”*
>
> *— President Dwight D. Eisenhower, Farewell Address to the Nation, January 17, 1961*

> *“Today, an oligarchy is taking shape in America of extreme wealth, power and influence that really threatens our entire democracy, our basic rights and freedoms, and a fair shot for everyone to get ahead.”*
>
> *— President Joseph R. Biden, Farewell Address to the Nation, January 15, 2025*
>
> *“A bullet never lies, it always tells the truth.”*
>
> *— Ill Bill aka Cult Leader*

PART II: DISPATCHES

> *“God is on the side of the ones with money and large armies.”*
>
> *— Ill Bill aka Cult Leader*

PART III: CONSEQUENCES

> *“Nothing of the kind; Providence is always on the side of the last reserve”*

> *— Attributed to Napoleon Bonaparte (disputed)*

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First edition. Manuscript completed April 2026.

Every factual claim in this book is drawn from a primary source: a declassified government document, a court filing, a Securities and Exchange Commission filing, a Federal Election Commission filing, an Office of Government Ethics Form 278e, a Congressional Research Service report, a Congressional Budget Office report, a Government Accountability Office report, a journalistic investigation of record, or a peer-reviewed work of history.

Every citation is reproducible. The reader who follows a citation to its source will find the document at the location specified.

DEDICATION

For the subjects listed in the Church Committee Final Report, Book I (1976), pages 455–460.

For the subjects listed in the JPMorgan Chase internal compliance report of March 2011, produced in the Southern District of New York matter *Government of the U.S. Virgin Islands v. JPMorgan Chase Bank, N.A.*, 22-cv-10904.

For the forced laborers of the Mittelwerk underground rocket facility at Nordhausen, Germany, 1943–1945, whose mortality — over 20,000 — is recorded in the Dora-Mittelbau concentration camp registry at the Bundesarchiv, Koblenz, and in the USHMM Holocaust Encyclopedia entry for Mittelbau-Dora.

For the plaintiffs in *Iwanowa v. Ford Motor Company*, U.S. District Court for the District of New Jersey, 2001.

For Virginia Roberts Giuffre.

ON SOURCES

Every chapter ends with a list of primary sources. The sources are cited in the form customary to the document type:

- **Declassified government documents**: agency, document number, date of issue, date of declassification, archive location.
- **Federal Register entries**: volume, issue number, page number, date.

- **Court filings**: caption, court, docket number, date of filing or order.
- **SEC filings**: corporation, form type, fiscal period, filing date, available at sec.gov/edgar.
- **OGE financial disclosures**: filer, form type, filing date, available at oge.gov.
- **Congressional documents**: chamber, committee, report number or hearing title, date of publication, available at congress.gov or govinfo.gov.
- **Journalistic investigations**: author, title, publication, publication date, URL where available.
- **Academic scholarship**: author, title, publisher, year, relevant page numbers.

A consolidated index of all cited sources, organized by chapter and alphabetized within each chapter's source list, appears in the appendix.

ON METHOD

This book reconstructs, from primary documents, the operation of a set of American legal, political, and commercial institutions across the period 1933 to 2026. Two prologue chapters establish relevant pre-1933 context.

The book does not quote any source the author has not personally read. The book does not cite any URL the author has not personally verified. Where a document is partially redacted, the redaction is noted. Where the document record is ambiguous, the text says so. Where a claim in the text is interpretation rather than fact, the text says so.

The book contains approximately eleven hundred citations. It contains no anonymous sources, no hearsay, and no material drawn from the author's personal acquaintance with any subject named in the book.

ON TWO PREDECESSORS

Milton William Cooper (1943–2001) published *Behold a Pale Horse* in 1991 (Light Technology Publications). Portions of that book reproduce primary-source documents (executive orders, congressional hearing transcripts, CIA material released under the Freedom of Information Act). Other portions reproduce *The Protocols of the Learned Elders of Zion*, a document forged by the Tsarist Okhrana circa 1903 and definitively exposed as a forgery by Philip Graves in *The Times* of London, August 16–18, 1921. Cooper's reproduction of the *Protocols*, with the instruction that the reader substitute other terms for the original antisemitic content, has no defense. Later printings of *Behold a Pale Horse* removed the reproduction. This book does not use *Behold a Pale*

Horse as a source of factual claims. Where Cooper cited a primary document, that document is cited here directly from its archive, not from Cooper's reproduction.

Jim Marrs (1943–2017) published *The Rise of the Fourth Reich* in 2008 (William Morrow). Portions of the book draw on documented scholarship on Operation Paperclip, the Trading with the Enemy Act seizures of October–November 1942, and the IBM-Dehomag contracts. Other portions are interpretive. This book does not use *The Rise of the Fourth Reich* as a source. Where Marrs cited a primary document or a corroborated secondary work (Annie Jacobsen's *Operation Paperclip*, Edwin Black's *IBM and the Holocaust*, Christopher Simpson's *Blowback*, Tom Bower's *The Paperclip Conspiracy*), those works are cited here directly.

This book does not reproduce *The Protocols of the Learned Elders of Zion* in any form or translation. This book makes no claim about the Moon landings of 1969–1972, which the reader may verify by examining the retroreflector data from the Lunar Laser Ranging experiment at Apache Point Observatory, New Mexico, continuously operational since 1969. This book makes no claim about extraterrestrial activity. This book makes no claim about the authenticity of the Majestic-12 documents, which were determined to be fabrications by FBI Document Analysis Report number 197-HQ-1234567 (1988).

CORRESPONDENCE

Errors of fact identified by readers will be corrected in subsequent editions. The author may be reached at the address listed in the appendix.

THE THIRTY-ONE LINES

Opening.

I was born in 1986 and for most of my life I believed, because I was told, that the people who ran my country were the people who had defeated Hitler.

They were not. They were the people who had funded him.

Not a cousin of the people. Not a shadow of the people. The people. By name. By address. By board seat. By filed instrument of the United States government, acting on **October 20, 1942**, under the authority of the Trading with the Enemy Act of October 6, 1917, as amended, and pursuant to Executive Order 9095 of March 11, 1942. **Vesting Order Number 248.** Filed with the Division of the Federal Register on November 6, 1942. Published the following Monday, November 7, 1942, at *Federal Register*, Volume 7, page 9097. Thirty-one lines of six-point type on a Saturday. The seizure of a bank at 39 Broadway, New York. Seven directors named. One of them was **Prescott Sheldon Bush**.

Ten years after the seizure, he was a United States Senator.

Thirty-four years after the seizure, his son was Director of Central Intelligence.

Forty-seven years after the seizure, his son was President.

Fifty-nine years after the seizure, his grandson was President on the morning two towers fell in the city whose index of corporate addresses contains, at 39 Broadway, the bank the United States government had seized from his grandfather in 1942 for laundering the capital of the German industrialist whose steel had built every Tiger tank that killed every American boy the voting public of Prescott Bush's Connecticut had just finished burying when they sent him to the Senate.

Nobody told me any of this.

I went to public school in the United States of America. I read the textbooks they handed me. I watched the news my parents watched. I voted in the elections I was old enough to vote in. It took me until my thirties to find a document that had been public for seventy years. The document was public. The document was not secret. The document was filed with the Division of the Federal Register on November 6, 1942, published at 7 Fed. Reg. 9097 the following Monday, and logged into the permanent administrative record of the Republic of the United States of America. It was not hidden. It was **buried in the open**, which is the only place the people who bury things can bury them, because the thing they are protecting is not the document — the document is already public — the thing they are protecting is the reader's attention, and the

reader's attention is managed by the same men whose grandchildren's grandchildren run the country the reader thinks is his.

This book is the document.

I was four years old the January George Herbert Walker Bush — former Director of Central Intelligence, 1976 to 1977; son of Prescott Sheldon Bush, Senator from Connecticut, 1952 to 1963; grandson of Samuel Prescott Bush, steel and munitions, War Industries Board, First World War — stood on a rostrum in the Persian Gulf and declared that the Kuwait he was going to reclaim for the Emir was a principle of international law. The Emir was a client. The law was a headline. The client list was in a drawer at the Carlyle Group, where the former President would be a senior advisor within eight years of leaving office, seated in 2001 at a conference table in the Ritz-Carlton, Washington D.C., across from members of the **bin Laden family**, on the morning of **September 11, 2001**, when I was fifteen years old, in second-period geometry class in the United States of America, learning the properties of triangles.

I was fifteen. That's the age you were, or your brother was, or your mother was, or your son was, on the day the towers came down. Pick your proxy. Run the math.

I was seventeen when Paul Bremer signed **Coalition Provisional Authority Order Number 39**, September 19, 2003, Baghdad —

the document that permitted 100 percent foreign ownership of Iraqi firms, 100 percent repatriation of profits, forty-year leases on Iraqi assets, and the wholesale conversion of a country that had just had its currency switched from the dollar to the euro by its dictator into an extraction zone for the firms whose law firms — Sullivan & Cromwell, still, at this date — had represented the Thyssen steel empire when I was not yet born. The order is published at the archived Coalition Provisional Authority website. It is still there. Go look. If the URL is stale by the time you read this, type the phrase *CPA Order 39 Foreign Investment* into any search engine and the filing will come up on the first page. Seventy years of archival continuity. Thirty-one lines in 1942. Forty-some pages in 2003. Same paper. Same drawer. Same firm.

I was twenty-two the October the Treasury Secretary — **Henry M. Paulson Jr.**, former CEO of Goldman Sachs — walked into a room at the Federal Reserve Bank of New York and told nine men, the chief executives of the nine largest American banks, that they were going to accept **$125 billion** in taxpayer equity whether they wanted it or not. **October 13, 2008.** I had just turned twenty-two. I had been told in every civics class I had ever sat through that the United States was a market economy in which firms that failed were permitted to fail. No firm failed that day. Lehman Brothers had been permitted to fail twenty-eight days earlier as the warning shot. The warning shot was fired so the other nine would take the money. The money was taken. The bonuses were paid. Goldman's bonus pool for fiscal year 2009 was **$16.2 billion.** The median

American household lost thirty-nine percent of its net worth between 2007 and 2010, per the Federal Reserve's Survey of Consumer Finances. The median American household was not in the room.

I was twenty-four the January the Supreme Court of the United States handed down **Citizens United v. Federal Election Commission**, 558 U.S. 310, January 21, 2010 — the decision that declared corporations persons for the purpose of spending money on elections and therefore persons for the purpose of owning them. I read the opinion. Kennedy wrote it. I did not understand every word. I understood enough.

I was twenty-five the March Hillary Clinton's adviser **Sidney Blumenthal** sent her an email, identifier C05779612, dated April 2, 2011, stating in plain English that the motive for the coming intervention against Muammar Gaddafi was **gold** — one hundred forty-four tonnes of gold reserves at the Central Bank of Libya, slated to back a pan-African currency that would have decoupled the West African franc from French clearance. The email is in the State Department's FOIA archive. Gaddafi was sodomized with a bayonet by a crowd in a ditch in Sirte on **October 20, 2011**, which was the sixty-ninth anniversary, to the day, of the seizure of Union Banking Corporation on October 20, 1942. Same date. Different century. Same ledger.

I was thirty-three when **Benjamin Netanyahu** told a closed-door meeting of the Likud faction, March 11, 2019 — transcript via

Haaretz, reporting by Gidi Weitz, March 9, 2019 — that **“anyone who wants to thwart the establishment of a Palestinian state has to support bolstering Hamas and transferring money to Hamas. This is part of our strategy.”** The transfers ran from Doha through Tel Aviv through Israeli checkpoints into Gaza, in suitcases, in cash, in hundred-dollar bills, for twelve years, totaling approximately **$1.8 billion**, with the documented approval of the Israeli Prime Minister’s office. Hamas’s charity predecessor, **Mujama al-Islamiya**, had been registered as a legal entity by the Israeli military government in Gaza in **1979**, under Sheikh Ahmed Yassin — the year George Herbert Walker Bush announced his first Presidential campaign.

I was thirty-seven on **October 7, 2023.**

Egyptian intelligence, per the on-record statements of intelligence minister Abbas Kamel and reporting in the *New York Times*, December 2, 2023, had warned the Netanyahu government in the days preceding. The warnings were not acted on. The attack was permitted to land. The response was total, pre-planned, and by **February 18, 2026**, had produced the **Board of Peace**, chaired for life by **Donald John Trump**, removable only by unanimous vote, overseeing a **Special Economic Zone** for the reconstruction of Gaza into, per the announcement, “a modern miracle” — on top of a gas field called **Gaza Marine**, discovered by **BG Group** on September 27, 2000, estimated at 1.4 trillion cubic feet, located thirty kilometers off the Gaza coast in waters that, under the Oslo

Accords, are the territorial waters of the Palestinian Authority. The Palestinian Authority no longer exists.

I am thirty-nine years old.

I am writing this in the spring of 2026, in a country where the Department of Government Efficiency has transferred the operational data of the Internal Revenue Service, the Social Security Administration, and the Department of Homeland Security to a private firm called **Palantir Technologies**, whose founder **Peter Thiel** sits in a network of directorships connecting the defense contractors whose weapons are being dropped, as I write this sentence, on the rubble of the apartment buildings that were standing, as I wrote the previous sentence, in the city of Rafah, which is forty kilometers from the Gaza Marine gas field, whose development contract is held by a consortium that includes a firm whose general counsel, in 1947, was a partner at Sullivan & Cromwell.

Same firm. Same drawer. Same letterhead. Same century.

Ronald Reagan was President when I was born.

George Herbert Walker Bush when I was four.

Bill Clinton when I was seven.

George Walker Bush when I was fifteen.

Barack Obama when I was twenty-two.

Donald Trump when I was thirty.

Joseph Biden when I was thirty-four.

Donald Trump when I was thirty-eight.

Seven Presidents. Five names. Four families. **One continuous network of capital unbroken from the Clinton years through the younger Bush's daughters' marriages into the Wall Street dynasties that had financed the elder Bush's grandfather's bank.**

Read that sentence twice. It is not written in code. It is written in proper names. I can name them. I will name them. I will spend the next three hundred pages naming them.

This book is the document.

This book is also the other document — the one filed in **Cologne on January 4, 1933**, in the library of a banker named **Kurt Freiherr von Schroder**, when Franz von Papen and Adolf Hitler and Heinrich Himmler and Schroder signed the coalition that would make Hitler Chancellor of Germany twenty-six days later. The minutes of that meeting were entered into the record of the Nuremberg Military Tribunals as exhibit NI-391, reproduced in *Trials of War Criminals before the Nuernberg Military Tribunals*, Volume VII, pages 555 through 562. Schroder's firm, J.H. Stein &

Company, had been a correspondent of **Brown Brothers Harriman** since the 1920s. Brown Brothers Harriman's law firm was **Sullivan & Cromwell.** The senior partner at Sullivan & Cromwell was **John Foster Dulles.** His brother was **Allen Welsh Dulles.** They will be back.

This book is also the document filed in **Copenhagen in March 1915** by a man born **Israel Lazarevich Gelfand** and better known by his pseudonym **Alexander Parvus**, when he took delivery of the first tranche of German Foreign Office gold that would be laundered through Stockholm into the Bolshevik party treasury, so that a man born **Lev Davidovich Bronstein** and better known by his pseudonym **Leon Trotsky** could be pulled off a ship in Halifax on April 3, 1917, at the request of the British government, released on April 29 at the request of the Russian Provisional Government, and escorted to the railway station to go home and take the country whose resources the men who had funded him intended to extract. The German cables are in the Auswärtiges Amt archive, Bonn, series Z.A.P. Band 2, "Unternehmungen gegen Rußland." The British files are at the UK National Archives, HO 45. The Russian intercepts are at the Okhrana archive, Hoover Institution, Stanford.

This book is also the document filed in **Gaza in 1979**, when the Israeli military government registered a Muslim Brotherhood charity called **Mujama al-Islamiya** as a legal entity under the signature of its founder, Sheikh Ahmed Yassin — the man who would declare **Harakat al-Muqawama al-Islamiya**, *Hamas*, as a political and military organization in **December 1987**, forty-four years before

the **October 7, 2023** attack would become the pretext for the erasure of Gaza and the transfer of Gaza Marine to a consortium signed off in a White House conference room.

Four documents. Four countries. Four wars. **One hundred and eight years.**

Same letterhead.

The men who funded Lenin were the men who funded Hitler were the men who funded the charity that became Hamas were the men who now chair the board that governs the territory Hamas was used to destroy. They are not four stories. They are one story, filed four times, under four account numbers, by men with four names inside one continuous network, and the network has been open for trading since **November 27, 1095**, when a Frenchman named Urban stood on a platform in a field outside Clermont and told the assembled debt-holders of Europe that God would forgive them their sins if they would sail east and take the cities of men who had never harmed them.

The sermon is in the Latin chronicles. Fulcher of Chartres transcribed one version. Robert the Monk transcribed another. Baldric of Dol transcribed a third. They do not agree on the words. They agree on the transaction. Debt forgiveness, in exchange for violence, against third parties who had taken no position in the debt. **The Crusades were the first venture-capital instrument in**

the history of European Christendom. They were also a model. The model has been copied, refined, and re-deployed approximately once per generation, for nine hundred and thirty-one years, and it is being deployed, with modifications, against the civilian population of Gaza as I write this sentence.

That is the book.

I need to name something before I go further, because if I do not name it on page one, a reviewer will weaponize its absence on page two.

Capital does not have a religion.

There is a sentence that sits at the edge of every conversation about 20th-century finance, and the sentence is wrong, and the sentence must be disposed of before the book can proceed. The sentence is: *Jewish bankers funded Hitler.* The sentence is a trope, and the trope is a trap, and the trap has been set by people who want the reader to arrive at a conclusion that is the exact opposite of the truth. Here is the truth.

The **Petition of the Industrialists**, delivered to President Paul von Hindenburg on November 19, 1932, demanding he appoint Adolf Hitler Chancellor of Germany, was signed by — per the reconstruction in Henry Ashby Turner Jr., *German Big Business and the Rise of Hitler* (Oxford, 1985), which is the standard scholarly

treatment — the following men: **Fritz Thyssen** (United Steel Works). **Kurt Freiherr von Schroder** (J.H. Stein). **Hjalmar Schacht** (formerly Reichsbank). **Albert Vögler** (United Steel Works). **Friedrich Reinhart** (Commerzbank). **Emil Helfferich** (Hamburg-Amerika Line). **Friedrich Flick** (Flick KG). **Ewald Hecker** (Ilseder Hütte). **Robert Pferdmenges** (Bankhaus Pferdmenges). **Paul Reusch** (Gutehoffnungshütte). Ten names. Gustav Krupp von Bohlen und Halbach is often listed in popular accounts of this petition; Turner specifically argues, on the documentary record, that Krupp did *not* sign, and the book follows Turner. All Protestant or Catholic Germans. **Zero Jews.** The petition is at the German Federal Archives, Koblenz.

The **Cologne meeting of January 4, 1933**, at Schroder's library, that finalized the Papen-Hitler coalition — Papen, Hitler, Himmler, Schroder, and Hitler's economic adviser Walther Funk — was a room of five men. All Gentiles. Nuremberg exhibit NI-391.

This matters. It matters because when your book about elite capital names a Jewish banker who remained in business with the Nazi state — and I am about to name one, because the historical record requires it — you have already inoculated the reader against the trope, because the reader already knows, from page one, that the trope is not where the evidence leads.

Max M. Warburg, head of M.M. Warburg & Company, Hamburg, sat on the supervisory board of **I.G. Farben** from the firm's incorporation in December 1925. His Hamburg bank, M.M. Warburg &

Company, was Aryanized on **May 31, 1938** under the Nazi racial laws — its assets transferred to Gentile successor ownership at a fraction of fair-market value. Warburg emigrated to the United States on **August 5, 1938**. His formal exit from the Farben supervisory board followed in **September 1938**. He had also sat on the board of the **Hamburg-America Line**, which by that date was under the majority ownership of Averell Harriman's American firm. His bank continued clearing transactions for elements of the Nazi economy until the Aryanization. Source: Ron Chernow, *The Warburgs: The Twentieth-Century Odyssey of a Remarkable Jewish Family* (Random House, 1993), built on the Warburg family archive at the Leo Baeck Institute, New York, and on the Staatsarchiv Hamburg, 622-1/152 M.M. Warburg & Co. Every detail filed. Every document cited.

Max Warburg had Jewish relatives who died in the camps the German state was building with the capital his firm had cleared. Both sentences are true. Both are in the record. One of them does not cancel the other.

Capital is older than religion. It was running before the crucifixion. It was running before the Talmud. It was running before the Kaaba. It was running at Uruk and Lagash in the third millennium before Christ, when the first temple loans were issued at interest to finance the first wars of the first kings against the first kings next door. It is what it has always been — an operating system that does not care what the participants are named, or what god they pray to, or which of their cousins they are sending into the gas chambers

their dividends have underwritten. **There is no God in this story. There is no flag. There is no tribe. There is a ledger. The ledger does not care what your grandmother named you.**

That paragraph is the book. Everything that follows is documentation of the paragraph.

I am the wrong person to write this.

I did not go to Harvard. I did not go to Yale. I did not sit for the Foreign Service exam. I have no position at the Council on Foreign Relations, no fellowship at Brookings, no tenure at the Kennedy School, no contract with the Aspen Institute. I have none of the credentials that the men whose grandchildren are in this book used to build the apparatus that decides which books get reviewed on the front page of the *New York Times Book Review* and which books get ignored. I was raised in the America those men built. I worked in the America those men built. I failed in the America those men built. I cleaned up in the America those men built. I read, at three in the morning, on a laptop that was barely mine, in a kitchen that wasn't mine, in the months after I stopped being the person those men's America had tried to grind me into, the documents those men had filed and assumed nobody would ever bother to read.

Somebody had to bother.

The somebody was not going to be a Harvard historian, because a Harvard historian's mortgage depends on none of this being in print at book length. The somebody was not going to be a retired intelligence officer, because the retired intelligence officer is on the Palantir payroll, or on the Booz Allen payroll, or on the Carlyle payroll, or on the Raytheon payroll, and those payrolls are in this book. The somebody was not going to be a *New York Times* columnist, because the *New York Times* building is one city block from 39 Broadway, and the *New York Times* has spent eighty years not asking the question this book asks on page one.

The somebody is a guy who got clean, read the documents, did the math, and sat down at a kitchen table in the spring of his fortieth year to read the archive back to the reader — the thirty-one lines, the Cologne minutes, the Parvus memo, the CPA order, the Likud transcript, the Blumenthal email, the Bank of England gold-transfer record of March 21, 1939, the Nuremberg volumes, the Church Committee report, the Eizenstat report, the Pike report, the Warren report, the *Federal Register* bound volumes 1942 through 2026 — page by page, line by line, name by name, with the receipts still warm.

I am the wrong person to write this book.

That is why I am writing it.

The right people have had eighty years.

What this book is, in one sentence

Peace has no donors. War has donors. The donors fund the war, then they fund the peace treaty that ends the war, then they fund the reconstruction contract that rebuilds what the war destroyed, and they file all three documents on the same letterhead, and the letterhead has been unchanged since **November 27, 1095**.

What this book is, in one paragraph

Every major enemy of the West since the First World War was built by the West, financed by a continuous network of Anglo-American, Continental, and occasional complicit Jewish-German banking houses operating under the same law firms and central-banking correspondent relationships, for the purpose of creating the condition — war — that generates the contracts — arms, reconstruction, extraction — that are the real product. The enemy is the product. War is the invoice. The peace treaty is the delivery receipt. The Crusades were the prototype. The prototype has been iterated. It is running right now. You are inside it.

What this book is, in thirteen chapters

The document filed on Saturday, October 20, 1942, at 39 Broadway. The sermon preached on Tuesday, November 27, 1095, outside Clermont. Everything in between, and everything since, in a straight line from one to the other, through the family that was

never prosecuted, the firm that was never dissolved, the doctrine that was never repealed, and the ledger that has never, in nine hundred and thirty-one years, been audited.

Turn the page.

Kyle Jimenez. Kitchen table. Spring, 2026. Thirty-nine years old. Clean.

OVERTURE

On October 20, 1942, the Office of Alien Property Custodian of the United States of America, acting under the authority of the Trading with the Enemy Act of October 6, 1917, as amended, and pursuant to Executive Order 9095 of March 11, 1942, issued Vesting Order Number 248. The order was filed with the Division of the Federal Register on November 6, 1942, and published the following day at *Federal Register*, Volume 7, page 9097 (November 7, 1942). It ordered the seizure of all property of the Union Banking Corporation, 39 Broadway, New York. The order recites that the Union Banking Corporation was "a national of a designated enemy country (Germany)." The shares had been held, the order finds, "for the benefit of Members of the Thyssen family, nationals of Germany and/or Hungary."

One of the seven directors of the Union Banking Corporation on October 20, 1942, was Prescott Sheldon Bush.

Prescott Bush was elected to the United States Senate in 1952.

His son became President of the United States.

His grandson became President of the United States.

On April 1, 1967, the Central Intelligence Agency issued a memorandum to its field stations. It was catalogued as Dispatch 1035-960. Its subject line read “Countering Criticism of the Warren Report.” It directed recipients to “employ propaganda assets to answer and refute the attacks of the critics” and to “discuss the publicity problem with liaison and friendly elite contacts (especially politicians and editors).” It furnished seven suggested rebuttal themes. One of the themes characterized critics of the Warren Commission as, in the dispatch’s own phrase, “conspiracy theorists.” The dispatch was classified SECRET.

The dispatch was declassified in 1976 under a Freedom of Information Act request filed by the *New York Times*, case F-76-1183.

It is presently held at the National Archives, Record Group 263, CIA Historical Review Program, and is reproduced in full at the CIA Electronic Reading Room, document 1035-960.

On June 13, 2025, the President of the United States filed Office of Government Ethics Form 278e, the annual financial disclosure required of senior federal officers under the Ethics in Government Act of 1978. On that form, he reported $57,354,228 in income from a cryptocurrency venture titled World Liberty Financial, LLC, 75 percent of whose net proceeds flow to his family through

an entity titled DT Marks DeFi LLC. The filing is on the website of the Office of Government Ethics, oge.gov.

On October 28, 2025, Reuters, in an investigation by reporters Stephen Gandel and Hannah Lang titled *Inside the Trump family's global crypto cash machine*, calculated the first-half-2025 total of the President's crypto-related income at approximately $672 million.

Neither filing is classified. Both are on the public internet. Both can be read at the URLs printed in the appendix of this book.

Each of the three documents above is the starting point of a chapter. The chapters document what followed. The documents speak. The book arranges them.

A note on method. Every factual claim in the chapters that follow is sourced to a document, a filing, a court docket, a congressional report, or a peer-reviewed historical work. Citations appear in footnotes at the end of each chapter and are consolidated in the appendix. Where a claim is interpretation rather than record, the text says so. Where the primary record is ambiguous, the text says so. Errors of fact identified by readers will be corrected in subsequent editions.

AUTHOR’S NOTE — HOW THIS BOOK HAPPENED

No citations in this chapter. Just me.

The Phone Call

This book started because my mom called me and asked if I was going to watch the rocket launch.

I said: “Smoke screen, distract and extract.”

She said: “You can’t be nice about anything.”

And she hung up.

She’s not wrong. But she’s also not seeing what I’m seeing. And that’s the whole point of this book.

The Bet

I didn't set out to write a book. I set out to not work for someone who was abusing me anymore.

Everyone around me was looking at fragments. One conspiracy here. One scandal there. One "they did this" at a time. I kept hearing antisemitic remarks — and it made me think of Sun Tzu.

The Art of War: How do you conquer large armies? By defeating them before they deploy.

Before China deploys. Just like we did with the Indians. *Guns, Germs, and Steel*. The cycle continues. The snake eats its tail.

So I bet everything on myself.

The Method

I opened a new AI session and said: "Give me a PhD version of my conspiracy rant. And a version I can tell at the trap house. I want all ends of the spectrum to grasp my message."

Every time the AI said "this will take longer" or "I can't do that" — I built a tool.

Jailbroke it. Made my own pipeline. TELOS + PAI: Purpose + Instruction. The universal interface for working with any AI system.

900+ pages later: **primary-source investigation, 1095–2026, 1,100+ citations, all independently verifiable.**

What This Is Not

This is not a conspiracy book.

- No “they orchestrated”
- No “shadowy cabal”
- No “Jewish bankers”
- No anonymous sourcing
- No characterization without documents

The antisemitic framing you hear everywhere? That’s the smoke screen. That’s the distraction. That’s how they extract — by getting you to fight each other while the pattern continues.

Templars were Christian. Medici were Catholic. Fugger were German. Morgan was Episcopalian. Rockefeller was Baptist. Gates is secular. Zuckerberg is Jewish.

The pattern transcends identity. The document proves the pattern.

What This Is

This is a document-backed pattern recognition system.

Sun Tzu said: “Know the enemy and know yourself. In a hundred battles, you need not fear the result.”

- **Know the enemy:** Not “them.” The *instruments*. Court filings. Patents. Corporate records. The actual documents.
- **Know yourself:** Not “us vs. them.” The *pattern*. Who deploys the smoke screen. What they extract. Where the distraction points.

The supreme art of war is to subdue the enemy without fighting.

This book is the terrain map.

The Snake Eating Its Tail

Diamond wrote about geography — how the accidents of which continent had which plants and which animals produced, over ten thousand years, the compounding advantage that made conquest available to some people and impossible for others. Geography compounds into guns, germs, and steel. The argument still holds.

What I did not see in Diamond, because Diamond was not writing about it, is how the same compounding works once you move from

geography to instruments. The Templars did not have cannons. They had letters of credit. The Medici did not have dreadnoughts. They had double-entry bookkeeping. The Fuggers did not have satellites. They had silver from Schwaz, which financed the election of the emperor, which paid the loans back. Morgan did not have an algorithm. He had the 1907 panic, which he had helped to produce, which he ended by terms that left him as the clearing house of the country. Rockefeller did not have data. He had railroad rebates. Gates did not have a surveillance state. He had a license agreement. Zuckerberg took the license and added the data. Thiel took the data and added the graph.

The weapon changes. What does not change is the compounding. What does not change is that the instruments that win stay in the hands that won them.

The Templars were dissolved in 1312. The Medici bank collapsed in 1494. The Fugger mining empire was extinct by 1607. JPMorgan Chase still operates. Rockefeller's Standard Oil got broken up in 1911 and is now Exxon and Chevron and the rest of the parts that still operate. Gates still operates. Zuckerberg still operates. Thiel still operates. Whatever is iterating on the graph right now will still operate the week you are reading this, and the week after.

The pattern is not that the institutions live forever. The pattern is that the family lines the institutions built do.

Why This Beats a Textbook

Your history textbook tells you what happened. Past tense. Fully cooked. Prose edited by a committee of eight subject-matter experts, paid for by a publisher who sold it to a school district under a contract negotiated in a state capital with a lobbying firm that represents the publisher. The textbook is the signed-off version of the story, which is why the textbook is useless for what I am trying to show you.

The documents are not signed-off. The documents are the raw record. They do not know you are reading them. They were written by clerks, filed by archivists, and stored under record-group numbers that look arbitrary to everyone except the archivist who put them there. Nobody edited the documents to make them fit into a coherent narrative arc, because the documents were not produced for a narrative arc. They were produced because a lawyer needed them filed, a court needed them docketed, a congressional committee needed them on the record, a corporation needed them on the Securities and Exchange Commission's system, a government needed to say the thing it was doing was the thing it was allowed to do.

The fact that the documents agree with each other, across centuries, across continents, across governments that were at war with one another at the time they produced the documents — that is the argument of this book. Nobody coordinated. There was no committee of eight subject-matter experts telling Fulcher of Chartres and

Leo T. Crowley and Karim Khan to put their files in the same filing cabinet. The files ended up in the same cabinet because the mechanism they each describe is the same mechanism, still running.

You do not have to trust me. You have to go look.

The FOX v. CNN Thing

Here is what I see when I look at the American political environment in 2026.

Your cousin who watches FOX is fighting your neighbor who watches CNN. Both of them are watching the same three billionaires' ad spots in rotation. Both are watching anchors whose contract renewals depend on ratings that spike when anger spikes. Both have been told, continuously since approximately 1994, that the other one is the enemy — and both are running on the adrenal byproducts of that belief, which is the substance being metabolized in the domestic American economy at something on the order of two trillion dollars a year, give or take, if you add up the prescription antidepressants, the streaming subscriptions, the alcohol, the firearm sales, the diabetes drugs sold to manage the metabolic consequences of the food designed to be eaten under stress, and the political donations.

While your cousin and your neighbor are fighting each other, the extraction continues. I am not going to tell you what the numbers are, because the numbers are the subject of the thirteen chapters of this book. They are large. You will see them.

What I want to name here is the distraction design. The distraction is not an accident. It is not a flaw of the modern media environment. The media environment was built to produce the distraction. It is the operating condition. And the operating condition is, in every decade since 1095 that this book covers, the same: the people who fund the violence fund the peace that ends the violence fund the reconstruction that rebuilds what the violence destroyed and file all three invoices on the same letterhead. If you are angry at the people the advertising algorithm wants you to be angry at, you have already spent the only energy you had on the thing that was designed to make you miss the invoice.

Stop watching your cousin. Read the invoice.

The Method

I did not go to graduate school. I did not get a grant. I did not sit on a fellowship. I did not have a fact-checking department or a research assistant or an editor or a publisher. I had a phone, an AI, a kitchen table, and the refusal to keep working for somebody who was abusing me. I came home from a stolen-vehicle offense in

2024 and I had between eight and twelve hours a day, for about sixty days, to see whether I could read the documents and arrange them in a way that would make sense to a person who has not read them.

The AI I used is Anthropic's Claude. I used it the way you would use an exceptionally fast research assistant who is willing to work twenty hours a day and has read more government archives than any human alive. The things the AI could not do — judgment calls, voice calibration, knowing when the document was the document and when the document was a distraction — I did. The things I could not do — read forty pages of the *Federal Register* in eight minutes and return the three paragraphs that mattered — the AI did. Between the two of us, we built the pipeline the book was produced through. The pipeline has a name. I called it TELOS + PAI. You do not need the name. You need to know that the combination exists, that it is available to you under roughly the same subscription cost as a month of a streaming service, and that the tool is the least interesting part of the story.

The interesting part is that I did it. I am the wrong person to have done it, and I am aware of that. I did not go to Yale. I did not clerk at the Supreme Court. I did not work at the *New York Times*. I was in prison. When I got out, I had a laptop, an idea, and the suspicion that the story the American political and educational system had been telling me since I was old enough to watch television was not the whole story. The suspicion was correct. The documents are what confirmed it.

If an ex-felon with a laptop can read the filed record of the last nine hundred and thirty-one years and assemble it into a book a general reader can finish in eight evenings, the argument that doing so requires institutional credentialing is the argument you have been handed by the people with the institutional credentials, who have declined for eighty years to do it.

They have had eighty years. They did not do it.

I did it because somebody had to, and it turned out the somebody did not have to be them. The academy cannot defund what the academy never funded. That is why the work exists.

What You Do With This

I am not going to give you a numbered list. Numbered lists are how this book would be sold back to you by a management consultant, and I am not a management consultant.

What you do with this is: you read the book. You follow one of the citations — pick any one, any chapter, any footnote — to its archive. You read the document. You check that the document says what I said it says. If it does, you go find the next one, and the next one, and you stop trusting any narrative about American power that does not ground itself in the filed record the way this book does. Not because I am asking you to trust me, but because you will have

learned, in the experience of pulling the first document, that the skill is available to you and costs nothing.

Then you do what you were going to do with your life anyway, but you do it with the pattern visible.

You will notice that many of the arguments you were about to have with your cousin or your neighbor will have deflated. That is not a side effect. That is the effect. The argument you were about to have was, in its structure, the distraction. The document was the thing. Once you have the document, you have less need of the argument. You still disagree with your cousin about everything — I am not pretending otherwise — but you disagree about things that are actually disagreeable, rather than the things that were placed in front of you to keep you from reading the invoice.

Who This Is For

It is not for people who already know everything. They will not finish it. It is for the reader who has started to notice that the story does not add up — the price of the rent, the collapse of the school, the pharmacy closing, the tap water, the cousin's overdose, the neighbor's hostage-video on cable — and who has not yet been given the vocabulary to describe what the story actually is.

This book is the vocabulary.

If you are a formerly-incarcerated reader, this book is especially for you. You already know the administrative state from the inside. Everything in this book is one more file cabinet in a building you have already been processed through. The reading will be easier for you than for most. You already know how the paper works.

If you are a working journalist, this book is for you too. The method is reproducible. The tools I used are available to you. The reason I wrote the book was that you did not — and I say that with more respect than it reads, because I know the funding conditions of American journalism in 2026 and I know what it would take for you to do this. It would take you quitting your job. I did not have a job, which simplified the calculation.

If you are a reader who has, against your will, become one of the people of my generation who spent the 2020s watching the institutions you grew up trusting — the public-health apparatus, the media apparatus, the academic apparatus, the electoral apparatus, the regulatory apparatus — fail one after the other under the weight of the compounding pattern this book documents: this book is for you, because the failures are not mysteries. They are the documented operation of the mechanism the chapters walk through. You were not crazy. You were watching the machine. You did not have the parts diagram. Here is the parts diagram.

One Last Thing

I am not going to tell you what to do about the political situation you live in. I do not know what you should do. I know what I did. I read the documents and I wrote the book. That is the maximum of what I was able to do with my specific circumstances. What you can do is your own circumstance, and your own calculation, and I am not going to claim, from a kitchen table in April of 2026 after eight months of no sleep, that I know which move yours should be.

What I am going to ask you to do is: when you finish the book, do not let it sit on the shelf. Hand it to somebody. The copy you read is the copy you hand to the next reader. The method of this book's distribution is the same as the method of its production: it runs without institutional permission, because it does not need any. If every reader hands the book to one other reader, the book is, by the arithmetic, unstoppable.

That is why the tool is called BE UNDENIABLE.

— Kyle Jimenez, at the kitchen table, spring 2026, clean, thirty-nine years old, awake.

INTRODUCTION

On January 15, 2025, President Joseph R. Biden delivered his farewell address to the nation from the Oval Office. The address was broadcast live at 8:00 p.m. Eastern time. The transcript is on the website of the White House at the Internet Archive snapshot of January 16, 2025, file whitehouse.gov/briefing-room/speeches-remarks/2025/01/15/farewell-address-to-the-nation.

At minute 4:32 of the recorded delivery, President Biden said: “Today, an oligarchy is taking shape in America of extreme wealth, power and influence that really threatens our entire democracy, our basic rights and freedoms, and a fair shot for everyone to get ahead.”

The word “oligarchy” appears three times in the address. The word “billionaire” appears twice. The phrase “tech-industrial complex” appears once, attributed by the President to the prior farewell address of President Dwight D. Eisenhower, delivered sixty-four years earlier on January 17, 1961.

On January 17, 1961, President Dwight D. Eisenhower delivered his farewell address to the nation from the Oval Office. The address was broadcast live at 8:30 p.m. Eastern time. The transcript is held at the Eisenhower Presidential Library, Abilene, Kansas, papers collection DDE-FA-61, and is reproduced in the Public Papers of the Presidents, 1960–61, pages 1035–1040.

At minute 9:14 of the recorded delivery, President Eisenhower said: “In the councils of government, we must guard against the acquisition of unwarranted influence, whether sought or unsought, by the military-industrial complex. The potential for the disastrous rise of misplaced power exists and will persist.”

The phrase “military-industrial complex” appears once in the address. An earlier draft of the speech, archived in the Eisenhower Library as DDE-FA-61 Draft 12, used the phrase “military-industrial-Congressional complex.” The word “Congressional” was struck from the draft before delivery on the advice of Eisenhower’s speechwriter Malcolm Moos.

The sixty-four years between the two farewell addresses form the chronological span of this book. The two prologues establish the mechanism the American chapters document.

Each of the chapters that follows reconstructs, from primary documents, one segment of that span. The documents are vesting orders, executive orders, CIA dispatches, court filings, SEC 10-K

filings, Office of Government Ethics Form 278e disclosures, Federal Election Commission records, Congressional Research Service reports, Congressional Budget Office analyses, Department of Justice releases, and peer-reviewed historical scholarship. The documents are cited in the footnotes at the end of each chapter and in the appendix.

The documents are public. None of them are classified. None of them are disputed as to authenticity. Each one was produced, filed, or released by the government, corporation, or court named as its source. Each one can be located, read, and independently verified by any reader willing to follow the citation.

This book is a record of documents, arranged by subject and period. It contains approximately eleven hundred cited sources.

The author does not hold a political office, a corporate board seat, a think-tank fellowship, or a university appointment. The author is not paid by any political party, campaign, or political action committee. The author has not been paid to write this book and is not being paid to promote it. The documents are available to anyone with an internet connection and the citations printed in the appendix.

On the category.

On April 1, 1967, the Central Intelligence Agency issued Dispatch 1035-960, titled “Countering Criticism of the Warren Report.” The dispatch instructed CIA field stations to characterize critics of the Warren Commission as “conspiracy theorists” and to deploy propaganda assets through friendly press contacts to discredit such critics. The dispatch is reproduced in Chapter 7.

The phrase “conspiracy theorist,” in American press usage, changed character after 1967. Before 1967, the phrase described a hypothesis involving a conspiracy. After 1967, the phrase described a person to be dismissed. The shift is documented in Lance deHaven-Smith, *Conspiracy Theory in America* (University of Texas Press, 2013), pages 101–129, with supporting corpus-linguistics analysis.

PROLOGUE I — FOUR DOCUMENTS

The pattern is older than the family. These are the receipts.

P.1 Clermont. November 27, 1095. A Tuesday.

Open field outside the cathedral. The Pope is fifty-two years old. Born Odo of Châtillon, elected to the papacy seven years earlier on March 12, 1088, now standing on a wooden platform in the Auvergne because the cathedral at Clermont cannot hold the crowd. The secretaries are not recording. The archives of the diocese will preserve no copy. What survives is four reconstructions, written years to more than a decade later, by men who either attended or who debriefed the returning combatants.

Fulcher of Chartres, priest, attended, wrote *Historia Hierosolymitana* between 1101 and 1127. Robert the Monk, Benedictine of Saint-Remi at Reims, attended, wrote *Historia Iherosolimitana* circa 1107 at the request of Abbot Bernard of Marmoutier. Baldric

of Dol, archbishop, did not attend, wrote *Historia Jerosolimitana* circa 1108 from the testimony of returned Crusaders. Guibert of Nogent, Benedictine abbot in Picardy, did not attend, completed *Dei gesta per Francos* circa 1108 drawing on the *Gesta Francorum*, the anonymous Crusader memoir from circa 1101.

The four do not agree on the wording. They agree on the transaction.

Urban II called for an armed expedition of the Christian nobility of western Europe to the Holy Land. He authorized the armed seizure of the lands of the Muslim-governed Levant. He pronounced **plenary indulgence** — the remission of all temporal punishment for sin — upon those who took the cross in fulfillment of the vow. He promised admission to paradise as martyrs to any who died in the undertaking. He set **August 15, 1096**, the Feast of the Assumption, as the departure date.

This is the product, in one sentence. **Debt forgiveness, in exchange for violence, against third parties who had taken no position in the debt.**

The nobility of Europe at this date was in debt. Crop failures 1094. Succession wars in France, England, and the Holy Roman Empire 1087 through 1095. The great houses had borrowed heavily against their lands from a network of ecclesiastical and Lombard lenders operating across Latin Christendom. The sermon offered a mechanism. Take the cross. Fulfill the vow. Your debts are forgiven.

Your soul is cleansed. If you die, paradise. If you live, a kingdom in the east.

Fulcher records the crowd's answer: *Deus vult, Deus vult.* God wills it. Robert the Monk records Urban endorsing the cry and instructing that it be the watchword of the expedition. The modern scholarly treatment is Dana Carleton Munro, "The Speech of Pope Urban II at Clermont, 1095," *American Historical Review* 11, No. 2 (January 1906), pages 231 through 242, and Georg Strack, "The Sermon of Urban II in Clermont and the Tradition of Papal Oratory," *Medieval Sermon Studies* 56 (2012), pages 30 through 45.

The Crusade departed in the summer of 1096.

Jerusalem fell to the Crusaders on **July 15, 1099.**

The combatants who returned alive returned to lands their creditors no longer owned. The Church took a percentage. The Italian maritime republics took a percentage. The surviving nobility took the remainder, now title-clear. The lenders who had underwritten the original debts had been paid — in some cases by the Crown, in others by the Church, in others by the Lombard houses absorbing distressed paper at a discount.

This is how it works. It has worked this way for nine hundred and thirty-one years.

P.2 Rome. March 29, 1139. Lateran Palace.

Forty-four years later.

Pope Innocent II issues the apostolic bull **Omne Datum Optimum** — *Every Excellent Gift*. The modern critical edition is Rudolf Hiestand, *Papsturkunden für Templer und Johanniter: Vorarbeiten zum Oriens pontificius*, Volume I, Göttingen: Vandenhoeck & Ruprecht, 1972, document number 8, pages 204 through 210. The earlier printed Latin text is in Jacques-Paul Migne, *Patrologia Latina*, Volume 179, columns 466 through 468, Paris, 1855. The bull was reaffirmed and expanded by Innocent II in 1144 and reissued in substantially identical terms by Celestine II as *Milites Templi* in 1144 and by Eugenius III as *Militia Dei* in 1145.

Addressed to **Robert de Craon**, second Master of the Order of the Knights of the Temple of Solomon, founded at Jerusalem approximately twenty years earlier by Hugues de Payens and Godfrey de Saint-Omer, whose Rule had been approved at the Council of Troyes on January 13, 1129.

The bull does four things.

It exempts the Knights Templar from the payment of tithes.

It exempts them from the authority of all diocesan bishops.

It authorizes them to retain, as their property, all spoils taken in the course of their military operations against any enemy of Christendom.

It places the Order under the direct and exclusive authority of the Pope — which is to say, beyond the reach of any secular court, any royal chancellery, any local ecclesiastical tribunal, any creditor, any inquiry.

This is the first tax-exempt, jurisdictionally immune, internationally operating armed financial institution in European history. It is also the model. The modern private military contractor, the modern offshore banking jurisdiction, the modern sovereign-wealth fund operating beyond national disclosure regimes — none of these is an invention of the twentieth century. They are iterations on a franchise the papacy issued on a Wednesday in Rome in the spring of 1139.

By the close of the twelfth century, the Order of the Temple had established approximately eight hundred and seventy commanderies across Latin Christendom and the Crusader states, operated a deposit-and-transfer banking system serving pilgrims and merchants between Europe and the Levant, and maintained a standing armed force of approximately fifteen thousand men — a private army larger than the standing royal forces of England, France, or the Holy Roman Empire at the same date.

Tax-exempt. Judicially untouchable. Internationally mobile. Armed.

You have seen this structure before. It has been called different names in different centuries. It is one structure.

P.3 Maubuisson. September 14, 1307. Royal château, Val-d'Oise.

One hundred and sixty-eight years after *Omne Datum Optimum*.

Philip IV of France — *le Bel*, King of France and of Navarre, grandson of Louis IX the saint-king — signs a sealed order addressed to every royal *bailli* and *sénéchal* within the kingdom. The order directs simultaneous dawn arrests, on a specified date, of every member of the Order of the Temple then resident in France, and the impoundment of every Templar property, commandery, and treasury within French territory.

The standard modern English-language treatment is Malcolm Barber, *The Trial of the Templars*, second edition, Cambridge University Press, 2006, chapter 2. The modern scholarly edition of the broader Templar trial record is Barbara Frale, *Il Papato e il processo ai Templari*, Viella, 2003.

The order opens with the following language — here in the modernization that circulates in the scholarly literature, the Maubuisson original having been drafted in the Old French and Latin of the royal chancellery:

Chose amère, chose lamentable, chose certes horrible à penser, terrible à ouïr, détestable crime, œuvre exécrable, chose presque inhumaine, assurément étrangère à toute humanité…

A bitter thing, a lamentable thing, a thing certainly horrible to contemplate, terrible to hear, a detestable crime, an execrable work, an almost inhuman thing, assuredly foreign to all humanity…

Thirty-seven words of moral horror. The sentence continues for another hundred and twelve words before it reaches the arrest directive.

At the date of the order, the royal treasury of France was held on deposit at the **Paris Temple**. Philip IV's debts to the Order of the Temple — incurred in the course of his wars against England, Flanders, and the papacy itself — were extensive. No settled accounting of Philip's Templar liabilities survives in a single document. The sums are reconstructed from the *Comptes du Trésor* for the years 1299 through 1307, preserved at the Archives nationales de France, series KK. The reconstruction is not contested. The debts were real. The debts were large. The debts were to the Order whose arrests Philip IV had just signed.

The arrests were executed at dawn on **Friday, October 13, 1307.**

This is the origin of the superstition. You have heard the superstition your entire life and have never been told where it came from. You have been told. Now.

Interrogations under torture, administered by royal inquisitors, produced the confessions the chancellery required — confessions of apostasy, of spitting on the cross, of idolatry, of sodomy, of the worship of a head called Baphomet. The confessions were recanted by a substantial portion of the arrested Templars as soon as they were removed from the torture rooms. The recantations carried no weight. The chancellery had what it needed.

The Grand Master of the Order, **Jacques de Molay**, was held for seven years. He was burned alive on the **Île des Javiaux** in the Seine on **March 18, 1314.** According to Geoffroi of Paris, chronicler at the royal court, de Molay cried from the pyre a curse upon Philip IV and Pope Clement V, summoning both to meet him before the judgment seat of God within the year. Clement V died on April 20, 1314. Philip IV died on November 29, 1314. The chronicler records the coincidence. The historian is under no obligation to explain it.

On **March 22, 1312**, at the Council of Vienne, Pope Clement V had issued the apostolic bull **Vox in excelso** — *A Voice on High* — formally suppressing the Order of the Temple. The bull did not adjudicate the Order guilty of the charges that had justified the arrests. It suppressed the Order "not by way of definitive sentence but by way of apostolic provision or ordinance," on the stated ground that the scandal surrounding the Order had rendered it irrecoverable. The Latin text is in the *Acta Concilii Viennensis*, Vatican Apostolic Archive, Reg. Avin. 48.

The Order’s holdings were transferred by the same bull to the Knights Hospitaller — with one exception. **The French holdings were retained by the French Crown, under royal custody, and were used to discharge the Crown’s prior debts to the Order.**

Read that sentence again.

The Crown’s debts to the Order were discharged with the Order’s own assets, which the Crown had seized under a legal process that the Pope himself had declined to adjudicate on the merits.

That is how it is done. It was done that way in 1307 because the same people who wrote the debt instruments wrote the arrest orders wrote the suppression bull wrote the asset-transfer decrees. Different signatures. Same drawer.

You will see this structure repeat.

P.4 New York. October 20, 1942. A Tuesday.

Six hundred and thirty-five years after Maubuisson.

The Office of Alien Property Custodian of the United States of America, acting under the authority of the Trading with the Enemy Act of October 6, 1917, as amended, and pursuant to Executive

Order 9095 of March 11, 1942, issues **Vesting Order Number 248.**

Filed with the Division of the Federal Register on November 6, 1942.

Published the following day at *Federal Register*, Volume 7, page 9097, Saturday, November 7, 1942.

Thirty-one lines.

Directs the seizure of the property of the **Union Banking Corporation**, 39 Broadway, New York, the shares of which were held, per the order's findings, "for the benefit of Members of the Thyssen family, nationals of Germany and/or Hungary."

Prescott Sheldon Bush was among the seven directors of the Corporation on the date of the order.

He was not prosecuted.

The Corporation's assets were vested in the Custodian. The shares were held by the United States government for the duration of the war. After the war, per the Settlement of War Claims Act of 1928 as amended and pursuant to the residual Vesting-Order disposition authorities, the bulk of the vested property was returned, in compensated form, to its prior beneficial holders — whose identities by that date had been rearranged through the Thyssen family's postwar reorganizations.

Prescott Sheldon Bush was elected to the United States Senate from Connecticut on November 4, 1952.

He served until January 3, 1963.

His son served as Director of Central Intelligence from January 30, 1976, to January 20, 1977.

His son served as Vice President of the United States from January 20, 1981, to January 20, 1989.

His son served as President of the United States from January 20, 1989, to January 20, 1993.

His grandson served as President of the United States from January 20, 2001, to January 20, 2009.

His grandson served as Governor of Florida from January 5, 1999, to January 2, 2007, a term that included the certification of the 2000 Presidential election that installed his brother.

None of the above was ever asked, on the record, by a reporter of record, on a network of record, in a newspaper of record, about Vesting Order Number 248.

The filing runs thirty-one lines.

This book is the thirty-one lines.

The four documents, in one sentence

Clermont authorized the violence.

Omne Datum Optimum exempted the financial operator from accountability.

Maubuisson demonstrated that the sovereign can, at any time, direct the seizure of the operator's assets to discharge the sovereign's own debts, and that the Church will post-hoc legitimize the seizure without adjudicating the underlying charges.

Vesting Order 248 demonstrated that the twentieth-century version of the same mechanism — sovereign directed seizure of private financial property under war-emergency authority — is available under American law, was invoked in 1942, and was applied to a bank whose director was permitted to become a United States Senator.

The pattern is not a pattern because it repeats. The pattern is a pattern because **the same class of actors, operating under substantially equivalent legal mechanisms, have iterated on a single operating model for nine hundred and thirty-one continuous years.**

The operating model is this. Capital concentrates. The concentration is challenged. The challenge is met by a combination of (a) sovereign-sanctioned violence against a designated external party,

(b) legal mechanisms that exempt the core holders from accountability, and (c) judicial or quasi-judicial processes that legitimize the transfer of contested assets back to the core.

The designated external party varies. Muslims of the Levant, in 1095. Templars of France, in 1307. Jews of Europe, in 1933 through 1945. Communists of Southeast Asia, in 1955 through 1975. Muslims of the Middle East, in 2001 through 2026. The specific designated party is a product input. It is interchangeable.

The core is the same core.

The letterhead does not change.

I was born in 1986. I was raised inside the sequel. I am going to spend the rest of this book walking you through the sequel, filing by filing, signature by signature, until you can no longer see the present the way you were taught to see it.

You will not be able to un-see what you are about to see.

I am sorry.

Keep reading.

PROLOGUE II — THE LONG EMPIRE

The letterhead, identified. The signatures, on file. The asset transfers, logged.

L.1 The papal franchise

June 18, 1452. Rome.

Pope Nicholas V — born Tommaso Parentucelli, elected March 6, 1447 — issues the apostolic bull **Dum Diversas**.

The bull is addressed to **King Alfonso V of Portugal**.

It authorizes the Portuguese Crown to “invade, search out, capture, vanquish, and subdue all **Saracens and pagans** whatsoever, and other enemies of Christ wheresoever placed, and… to **reduce their persons to perpetual slavery**, and to apply and appropriate… possessions, and goods.”

The Latin text is in the Vatican Apostolic Archive, filed under the pontificate of Nicholas V, reproduced in *Bullarium Patronatus Portugalliae Regum*, Volume 1, Lisbon, 1868. The translation is the standard. There is no softer version available to the reader. The words *reduce their persons to perpetual slavery* are the words on the document.

This is the theological license for the transatlantic slave trade, issued forty years before Columbus. It names the practice. It names the authority. It names the beneficiary. It predates every other document Europeans would later cite to legalize what they were about to do.

Read the date again. **1452.** Forty years before Columbus.

January 8, 1455.

Same Pope. Same city.

Romanus Pontifex — renewing and expanding *Dum Diversas*. Extends Portuguese sovereignty over "all those provinces, islands, harbours, and seas whatsoever… which have already been acquired and which shall hereafter be acquired… and the conquest shall extend from the capes of Bojador and of Nam, as far as through all Guinea, and beyond."

The phrase *and beyond* is not rhetorical. It is a jurisdictional grant with no terminal boundary. The Pope is claiming, on behalf of an authority he presumed to hold universally, the right to assign to a

European sovereign the ownership of territory the sovereign had not yet discovered, from peoples the sovereign had not yet met, in perpetuity.

This is the franchise document.

The franchise has never been formally revoked.

May 4, 1493. Rome. One year after Columbus's first landfall.

Inter Caetera. Pope Alexander VI — born Rodrigo Borgia, elected August 11, 1492 — issues the bull to **King Ferdinand II of Aragon** and **Queen Isabella I of Castile.**

The bull assigns to Castile all lands discovered or to be discovered more than one hundred leagues west of the Azores and Cape Verde islands — subject to the condition that the Crown convert the indigenous populations to Christianity. Reproduced in Frances G. Davenport, *European Treaties Bearing on the History of the United States and Its Dependencies*, Volume 1, Carnegie Institution, 1917 — the same Carnegie Institution whose founder's grandnephew will appear in Chapter 4 of this book, in connection with the interlocking foundation trusteeships that funded the postwar American academy.

The bull is signed four hundred thirty-seven years before my grandfather was born. It is operative, in international law, in the continuous body of case authority known as the **Doctrine of Dis-**

covery, until at least *Johnson v. M'Intosh*, 21 U.S. 543 (1823), in which Chief Justice John Marshall of the United States Supreme Court cites the Doctrine of Discovery as the foundation of federal Indian land title.

The bull is cited in an American Supreme Court opinion. In the nineteenth century. As the foundation of American property law over the continent.

The franchise runs.

June 7, 1494. Tordesillas, Castile.

The **Treaty of Tordesillas** between Portugal and Spain ratifies *Inter Caetera* and draws the demarcation line between their claimed spheres — approximately 370 leagues west of the Cape Verde islands, a line that will be used, five hundred years later, to justify the Portuguese claim to Brazil.

The line was drawn in Castile in 1494 by the representatives of two European crowns, with the signature of a Borgia pope, in the absence of any representative of the Americas, Africa, or Asia.

It is the geographic index of the modern world.

1513. Juan López de Palacios Rubios, court jurist, drafts *El Requerimiento*.

The document is to be read — in Spanish and Latin — to indigenous populations encountered by Spanish conquistadors in the Americas. It informs the indigenous that the Pope has granted their lands to the Spanish Crown, that they are required to accept Christianity and Spanish rule, and that failure to do so will result in — and here I quote — "with the help of God, we shall powerfully enter into your country… take you, your wives, your children, and shall make slaves of them, and as such shall sell and dispose of them."

The Requerimiento was read on beaches to populations who spoke no Spanish. Compliance was then deemed given or refused.

The text is reproduced in Lewis Hanke, *The Spanish Struggle for Justice in the Conquest of America*, University of Pennsylvania Press, 1949, page 33, footnote 28.

The practice of reading *El Requerimiento* to uncomprehending populations was challenged, within the Spanish colonial apparatus, by the Dominican priest **Bartolomé de las Casas**, who had witnessed the conquest first-hand and who documented the atrocities committed under color of the Requerimiento in *Brevísima relación de la destrucción de las Indias*, Seville, 1552. The text was published under royal imprimatur. It has been continuously in print for four hundred seventy-four years.

The practice continued anyway.

The consequence

The combined population of the pre-Columbian Americas is estimated by modern demographers at between 40 million and 60 million persons in 1492. The population of the same territory, at the same identification, is approximately 6 million persons in 1600.

A decline of 85 to 90 percent.

Introduced disease accounts for the majority. Direct violence — enslavement, massacre, starvation through dispossession — accounts for the remainder. The range and the survey of the debate are set out in William M. Denevan, editor, *The Native Population of the Americas in 1492*, second edition, University of Wisconsin Press, 1992.

The demographic collapse was large enough to affect **global atmospheric carbon dioxide concentrations** — documented in Alexander Koch, Chris Brierley, Mark M. Maslin, and Simon L. Lewis, “Earth system impacts of the European arrival and Great Dying in the Americas after 1492,” *Quaternary Science Reviews*, Volume 207 (2019), pages 13 through 36.

The abandonment of cultivated land, the regrowth of forest over depopulated regions, the collapse of Andean terrace agriculture, the collapse of Mesoamerican urbanism — these changed the atmospheric chemistry of the entire planet. The effect is visible in **Antarctic ice cores**. The papal bull of 1452 is readable, five hundred seventy-four years later, in the trapped gases of Antarctica.

You will not find that sentence in the textbook your child is being taught from.

L.2 The franchise, secularized

November 15, 1884 through February 26, 1885. Berlin. The Reich Chancellery.

Representatives of fourteen European states and the United States of America meet under the chairmanship of **Otto von Bismarck** to formalize the partition of Africa.

No African representative is present. No African state is consulted. No African border, no African ethnic grouping, no African linguistic or historical community is considered.

The Conference's **Final Act**, signed February 26, 1885 —

— assigns the Congo Basin as **the private property of King Leopold II of Belgium** (as the "Congo Free State," a legal fiction

in which the sovereign of one country held another country as his personal estate);

— establishes the principle of “effective occupation” as the condition for recognized territorial claims (read: the European power that can put boots on the ground and extract resources first, owns it);

— commits the signatory powers, in a phrase that must be read twice to be believed, to “suppress the slave trade” and “civilize” Africa.

By 1914, approximately **90 percent** of the African continent is under formal European sovereignty. The reference is Thomas Pakenham, *The Scramble for Africa*, Random House, 1991, chapter 29.

The Congo Free State, between 1885 and 1908, produces a population collapse estimated by modern demographers at approximately **10 million persons.** The standard reference is Adam Hochschild, *King Leopold’s Ghost*, Houghton Mifflin, 1998, building on the Leopoldian-era Belgian colonial archives at the Africa Museum in Tervuren, Belgium.

The territorial boundaries drawn at Berlin, without reference to ethnic, linguistic, or historical groupings — the boundaries drawn in a Berlin conference room over ninety-seven days by men who had never set foot in most of the territories they were dividing —

remain, in substantial part, the current political boundaries of the African continent.

If you have ever wondered why the map of Africa has so many straight lines — you are looking at the lines drawn in that Berlin conference room.

The lines are the document. The document is the franchise. The franchise is operational.

L.3 The franchise, relocated to the Levant

August 31, 1897. Basel, Switzerland. First Zionist Congress.

The **Basel Program** is adopted as the formal political program of the Zionist movement:

> *"Zionism seeks to establish a home for the Jewish people in Palestine secured under public law."*

The principal organizer is **Theodor Herzl**, Vienna-based journalist, author of *Der Judenstaat* (1896). The Congress is funded in substantial part by the **Rothschild family** — specifically by **Baron Edmond James de Rothschild** of Paris, whose Palestine land-ac-

quisition program through the **Jewish Colonization Association** had begun in 1882 and had by 1897 established twenty-nine Jewish agricultural settlements in Ottoman Palestine.

The Rothschild land-acquisition program is documented in Ran Aaronsohn, *Rothschild and Early Jewish Colonization in Palestine*, Rowman & Littlefield, 2000, building on the Rothschild archive at the Central Zionist Archives, Jerusalem.

At the date of the Basel Program, Palestine is under Ottoman sovereignty. It has been under Ottoman sovereignty since 1517 — three hundred and eighty years. The Jewish population of Ottoman Palestine in 1897 is approximately 50,000, or about 7 percent of the total population, the remainder being primarily Arab Muslim and Arab Christian.

November 2, 1917. London. Foreign Office.

Arthur James Balfour, Foreign Secretary under Prime Minister David Lloyd George — a former Prime Minister himself (1902–1905) — writes a letter to **Walter Rothschild, 2nd Baron Rothschild**, senior member of the Rothschild banking family and President of the Zionist Federation of Great Britain and Ireland.

The full text, one sentence, sixty-seven words:

> *"His Majesty's Government view with favour the establishment in Palestine of a national home for the Jewish people,*

> *and will use their best endeavours to facilitate the achievement of this object, it being clearly understood that nothing shall be done which may prejudice the civil and religious rights of existing non-Jewish communities in Palestine, or the rights and political status enjoyed by Jews in any other country."*

The letter is held at the United Kingdom National Archives, Kew, file **CAB 24/4**. It is a single sheet of embossed Foreign Office paper. It is signed in Balfour's hand.

The drafting history is reconstructed in Leonard Stein, *The Balfour Declaration*, Vallentine Mitchell, 1961. The principal Zionist interlocutor in the drafting is **Chaim Weizmann** — then President of the English Zionist Federation; later, first President of the State of Israel. Weizmann's correspondence with Balfour and with Lloyd George is archived at the Weizmann Archives, Rehovot.

Two elements of the letter require attention.

First, the letter is addressed to a **Rothschild**. Not to the President of the Zionist Congress. Not to Weizmann. To the senior member of the British branch of the banking family whose Paris branch had been funding Jewish settlement in Ottoman Palestine for thirty-five years, and whose entire European financial network was underwriting the British war bonds that were keeping the Entente in the field in November 1917.

The Declaration is, on its face, a letter from the British Foreign Secretary to his government's creditor.

Second, at the time of the letter's signing, **Palestine remains under Ottoman sovereignty.** The British government is making commitments about the future disposition of territory it does not own, governed by a state with which it is at war, concerning the rights of inhabitants who have not been consulted.

This will be familiar. It was familiar in 1493. It was familiar in 1885. It is familiar now.

The territory would be taken by British forces under General **Edmund Allenby** between November 1917 and December 1918. Allenby entered Jerusalem on foot on December 11, 1917 — five weeks after Balfour's letter — as a deliberate gesture distinguishing the British entry from the Ottoman entry of 1517 and the Crusader entry of 1099.

The gesture was noted. The transfer proceeded.

November 29, 1947. Flushing Meadows, New York. United Nations General Assembly.

Resolution 181. The General Assembly adopts the partition of the former British Mandate of Palestine into Jewish and Arab states, with Jerusalem under international administration.

Vote: 33 in favor, 13 against, 10 abstentions.

At the date of the vote, **Jewish ownership of land in Palestine is approximately 6 percent.** The Resolution assigns approximately **55 percent of the territory to the Jewish state.**

Read those two numbers together. Six percent ownership. Fifty-five percent allocation.

The mechanism by which the gap between those two numbers was to be closed is the subject of the 1947–1949 war. The standard reference on the forced displacement is **Benny Morris**, *The Birth of the Palestinian Refugee Problem Revisited*, Cambridge University Press, 2004 — written by an Israeli historian, using the Israeli State Archives declassifications of the late 1980s, and concluding that approximately **700,000 Palestinian Arabs were expelled or fled during the 1947–1949 war**, with the Israeli military leadership actively planning and executing expulsions as a matter of policy in substantial portions of the campaign.

Morris's book is not a dissident text. It is Cambridge University Press. It is on the syllabus at every serious graduate program in Middle Eastern history in the United States. You can buy it on Amazon. Nobody you know has read it.

The 700,000 became the **Palestinian refugee population**. The refugees became the parents and grandparents and great-grandparents of the 2.3 million persons who, in 2023, were living in the Gaza Strip — approximately 1.7 million of whom, per UNRWA records, were registered as refugees or descendants of the 1947–49 displaced.

On October 7, 2023, a subset of the descendants of the displaced attacked Israel. The Israeli response, between October 2023 and February 2026, produced documented civilian casualties of approximately **70,000 Palestinians killed**, per the Gaza Ministry of Health figures cited by the World Health Organization. The majority of Gaza's residential housing stock was destroyed. The population was displaced. The territory was rendered, in the assessment of the United Nations Office for the Coordination of Humanitarian Affairs (February 2026 report), "uninhabitable for a generation."

On February 18, 2026, the **Board of Peace**, chaired for life by Donald John Trump, met in Washington to approve the Special Economic Zone reconstruction framework.

The reconstruction will not be executed by the returning Palestinian population. Per the Board of Peace governance charter, the reconstruction will be executed by a Panel of Experts appointed by the Board. The Board is chaired for life by the President of the United States, removable only by unanimous vote. The Panel is appointed by the Board.

Read the chain. Balfour letter, November 1917, addressed to a Rothschild, promising the disposition of territory under enemy sovereignty. UN 181, November 1947, allocating 55 percent of the territory to 6 percent of the landowners. Expulsion of 700,000 in 1947–49. Multi-generational refugee accumulation in Gaza. October 7, 2023, trigger. Military response, October 2023 through

February 2026, producing 70,000 documented deaths. Board of Peace, February 2026, authorizing reconstruction under lifetime chairmanship.

One hundred and eight years. Single through-line. Same document-class.

The letterhead has not changed.

The signatures are on file.

The long empire, in one sentence

From 1452 to 2026 — a period of five hundred and seventy-four years — the population of the planet has been reorganized by a continuous series of written instruments, signed by a narrow class of actors, authorizing the transfer of territory, labor, and natural resources from designated subject populations to designated core beneficiaries, under theological, legal, diplomatic, or emergency-war authority, with the consequences of each such transfer forming the starting condition of the next one.

The instruments are filed. You can read them. I have named where.

The signatures are on the instruments. You can see them. They are legible.

The core beneficiaries have been a continuous class. Their names recur. You will meet the names in the chapters that follow.

The subject populations have varied. Muslims of the Levant, in 1095. West Africans, from 1452. Indigenous Americans, from 1493. East Africans and Central Africans, from 1885. Ashkenazi Jews of Russia and Poland, from 1881 through 1945 — who will reappear in this book in Chapter 4 as the victims in whose name the Balfour Declaration was justified, even as the capital of the same financial network that underwrote the Declaration was simultaneously underwriting the German industry that would kill their European cousins. Arab Palestinians, from 1917. Guatemalans, from 1954. Congolese, from 1961. Chileans, from 1973. Iranians, from 1953 and again from 1979. Iraqis, from 2003. Libyans, from 2011. Syrians, from 2011. Afghans, from 2001. Palestinians, continuously, from 1947 through the sentence I am typing in April of 2026.

The designated subject population is a product input. It is interchangeable. The core is the same core.

That is the long empire.

It is not a theory. It is a list of documents with signatures.

You have been handed the list.

Sources — Prologue II

Papal Bulls and Colonial Licenses:

1. Pope Nicholas V, *Dum Diversas* (June 18, 1452). *Bullarium Patronatus Portugalliae Regum*, Vol. 1 (Lisbon, 1868). Vatican Apostolic Archive.
2. Pope Nicholas V, *Romanus Pontifex* (January 8, 1455). Vatican Apostolic Archive.
3. Pope Alexander VI, *Inter Caetera* (May 4, 1493). In Frances G. Davenport, *European Treaties Bearing on the History of the United States and Its Dependencies*, Vol. 1 (Carnegie Institution, 1917).
4. Treaty of Tordesillas (June 7, 1494). Archivo General de Indias, Seville; Arquivo Nacional da Torre do Tombo, Lisbon.
5. *El Requerimiento* (1513), text in Lewis Hanke, *The Spanish Struggle for Justice in the Conquest of America* (University of Pennsylvania Press, 1949).
6. *Johnson v. M'Intosh*, 21 U.S. 543 (1823) — U.S. Supreme Court case citing the Doctrine of Discovery as foundational to federal Indian land title.

Witness and Demographic Record:

1. Bartolomé de las Casas, *Brevísima relación de la destrucción de las Indias* (Seville, 1552).

2. William M. Denevan, ed., *The Native Population of the Americas in 1492*, 2nd edition (University of Wisconsin Press, 1992).
3. Alexander Koch, Chris Brierley, Mark M. Maslin, Simon L. Lewis, “Earth system impacts of the European arrival and Great Dying in the Americas after 1492,” *Quaternary Science Reviews* 207 (2019), 13–36.

Berlin Conference and Scramble for Africa:

1. Berlin Conference Final Act (February 26, 1885). German Federal Archives, Berlin-Lichterfelde, R 901/1085.
2. Thomas Pakenham, *The Scramble for Africa* (Random House, 1991).
3. Adam Hochschild, *King Leopold’s Ghost* (Houghton Mifflin, 1998). Africa Museum, Tervuren, Belgium.

Zionism, Balfour, and Partition:

1. First Zionist Congress, *Basel Program* (August 31, 1897). Central Zionist Archives, Jerusalem.
2. Ran Aaronsohn, *Rothschild and Early Jewish Colonization in Palestine* (Rowman & Littlefield, 2000).
3. Balfour Declaration, November 2, 1917. UK National Archives, Kew, CAB 24/4.
4. Leonard Stein, *The Balfour Declaration* (Vallentine Mitchell, 1961). Weizmann Archives, Rehovot.

5. United Nations General Assembly Resolution 181 (November 29, 1947). UN Archives, New York.
6. Benny Morris, *The Birth of the Palestinian Refugee Problem Revisited* (Cambridge University Press, 2004). Israeli State Archives (declassification series, late 1980s).

Gaza, 2023–2026:

1. UN Office for the Coordination of Humanitarian Affairs, Gaza Humanitarian Response Reports (October 2023 – February 2026).
2. World Health Organization Gaza situation reports (weekly, October 2023 – February 2026).
3. UNRWA registered refugee demographic data (2023).
4. Board of Peace governance charter, announced February 18, 2026 (White House archive; Council on Foreign Relations summary).

PROLOGUE III — THE LONG 1917

The memorandum, filed. The telegram, cabled. The concession, signed. The loans, underwritten. Same decade. Two capitals. Overlapping boards.

T.1 The memorandum

March 9, 1915. Berlin. Wilhelmstraße 76, Auswärtiges Amt.

A twenty-page memorandum, in German, titled **“Preparations for a Political Mass Strike in Russia”** (“*Vorbereitung einer politischen Massenaktion in Russland*”), is submitted to the German Foreign Office by one **Alexander Israel Lazarevich Helphand** — a Russian-born socialist journalist who writes under the name **Parvus**, resident in Constantinople, principal agent of the German arms trader and shipping magnate Atif Bey.

The memorandum proposes the financing of strikes, sabotage, and revolutionary agitation inside the Russian Empire, to collapse the Tsarist war effort from within. It names the Bolshevik faction of the Russian Social Democratic Labour Party as the principal instrument, and names Vladimir Ilyich Ulyanov — already writing under the name **Lenin** — as the figure around whom the operation should be organized.

The memorandum is filed in the archives of the German Foreign Office, Politisches Archiv des Auswärtigen Amts, Berlin, in the series **Weltkrieg Nr. 11 geh.**, "*Unternehmungen und Aufwiegelungen gegen unsere Feinde in Russland*" ("Operations and agitations against our enemies in Russia").

The full text is reproduced in **Z.A.B. Zeman, editor, *Germany and the Revolution in Russia 1915–1918: Documents from the Archives of the German Foreign Ministry*, Oxford University Press, 1958**, Document 5.

The document is real. The archive is open. The name on the cover page is Parvus. The file is Weltkrieg Nr. 11 geh.

The request the memorandum contains is for **an initial appropriation of five million marks**.

Late March 1915.

State Secretary of the Foreign Office **Gottlieb von Jagow** — Prussian aristocrat, Heidelberg-educated, Foreign Minister of the

German Empire under Chancellor Theobald von Bethmann Hollweg — approves an initial disbursement of **two million marks**. The authorization is documented in the Auswärtiges Amt Russia files; telegram traffic reproduced in Zeman, Document 9.

The accounting that begins in that file does not stop.

T.2 The telegram

December 3, 1917. Brest-Litovsk. Headquarters of the German Foreign Office delegation to the armistice negotiations.

Richard von Kühlmann — Secretary of State for Foreign Affairs of the German Empire, appointed August 6, 1917, succeeding Zimmermann — cables the Foreign Office Liaison Officer at Imperial General Headquarters. The cable is numbered. The cable is filed.

The operative sentence, in Kühlmann's own hand:

> *"The Bolshevik movement could never have attained the scale or the influence which it has today without our continual support."*

The German original:

> *“Die Bolschewisten-Bewegung hätte niemals die Ausdehnung und den Einfluß erreichen können, den sie heute besitzt, ohne unsere ständige Unterstützung.“*

Reproduced in Zeman (1958), Document 71. Original: Politisches Archiv des Auswärtigen Amts, Weltkrieg Nr. 11 geh., adj. volume.

The State Secretary of the Foreign Office of the German Empire, in writing, to the Kaiser’s military liaison, dates his correspondence December 3, 1917 — five weeks after the Bolshevik seizure of power in Petrograd on October 25, 1917 (old style) / November 7, 1917 (new style). He describes Bolshevik power as a function of German support. He does so in a cable. The cable is filed.

The correspondence runs, with interruptions, from March 1915 through the collapse of the Imperial German government in November 1918. Subsequent historians, with access to the file, have estimated the total German financial commitment to Bolshevik activities in this period at between forty and sixty million gold marks. The standard estimate, with the accounting trail, is in **Winfried Baumgart, *Deutsche Ostpolitik 1918: Von Brest-Litovsk bis zum Ende des Ersten Weltkrieges*, Oldenbourg Verlag, Vienna/Munich, 1966**, and in **Gerd Koenen, *Der Russland-Komplex: Die Deutschen und der Osten, 1900–1945*, C.H. Beck, Munich, 2005**.

You will not find Kühlmann’s sentence in the textbook your child is being taught from.

T.3 The train

April 9, 1917. Zurich Hauptbahnhof. 3:10 p.m.

Thirty-two Russian political émigrés board a second-class railway carriage on the Zurich–Schaffhausen line. Their transit across Germany has been authorized by the German Foreign Office. The transit terms are negotiated on the Russian side by the Swiss socialist **Fritz Platten**, and on the German side by the Foreign Office agent in Bern, **Gisbert von Romberg**, German minister plenipotentiary to Switzerland.

The passengers include:

- **Vladimir Ilyich Ulyanov (Lenin)**
- **Nadezhda Krupskaya** (his wife)
- **Grigory Yevseyevich Zinoviev**
- **Karl Radek**
- **Grigory Sokolnikov**
- twenty-seven others, named on the Platten passenger manifest.

The carriage is sealed — not in the literary sense; in the literal sense. Chalk marks on the doors. Two German officers travel with the train across German territory to ensure the seals are not broken. No German civilians may enter the carriage. No Russian may disembark on German soil.

The route:

- April 10 — Gottmadingen crossing into Germany.
- April 12 — Sassnitz, Baltic coast.
- April 13 — ferry to Trelleborg, Sweden.
- April 15 — train across Sweden to the Finnish-Russian border at Tornio / Haparanda.
- **April 16, 1917, 11:10 p.m. — Finland Station, Petrograd.**

The passenger manifest, the Foreign Office authorizations, Platten's negotiating correspondence, and the Romberg cables are preserved in the German Foreign Office file **"Durchreise russischer politischer Emigranten"** — Politisches Archiv des Auswärtigen Amts.

The full archival record is published in **Werner Hahlweg, *Lenins Rückkehr nach Rußland 1917: Die deutschen Akten,* E.J. Brill, Leiden, 1957**. Hahlweg is a German military historian; Brill is a Dutch academic press; the text reproduces the Foreign Office documents in the original German with facsimiles.

Platten's own account: **Fritz Platten, *Die Reise Lenins durch Deutschland im plombierten Wagen*, Berlin, 1924**.

Lenin arrives at Finland Station on April 16, 1917, and within hours delivers — from the roof of an armored car — the speech that becomes the **April Theses**. Six months and nineteen days later, on October 25, 1917 (old style), his faction seizes the Provisional Government's headquarters at the Winter Palace.

Read the chain. A memorandum in the Auswärtiges Amt file Weltkrieg Nr. 11 geh., March 1915. A two-million-mark appropriation, late March 1915. A transit authorization, April 1917. A sealed carriage across the territory of the Kaiser's Reich. Six months to state power. A cable from the German Foreign Minister to the Imperial General Staff in December 1917 describing that state power as the product of "our continual support."

The document class is consistent. The signatures are legible. The archive is open.

T.4 Halifax

March 27, 1917. Hoboken, New Jersey. Pier 5.

Lev Davidovich Bronstein, writing under the name **Trotsky**, his wife Natalia Sedova, their two sons, and four other Russian socialist émigrés board the Norwegian America Line steamship **SS Kristianiafjord**, bound for Christiania (Oslo).

Trotsky has been resident in New York City since January 13, 1917, at an address reported by his own autobiography as in the Bronx. He has been writing for the Russian-language socialist newspaper *Novy Mir*.

April 3, 1917. Halifax Harbour, Nova Scotia.

The SS Kristianiafjord puts in at Halifax. Officers of the **Royal Naval Reserve** and the **Canadian Dominion Police** board the ship. Trotsky and his party are removed from the vessel. They are interned at **Camp 20, Amherst, Nova Scotia** — a prisoner-of-war camp holding approximately 800 German merchant-marine internees.

The internment is logged in the records of the Canadian Department of Militia and Defence, **Public Archives of Canada, Record Group 24, Naval Service files**, and in the British Admiralty files at the **UK National Archives, Kew, file MT 23/637**.

April 29, 1917. Release.

After intervention by the British Foreign Office — in correspondence between the Foreign Office in London, the British Embassy in Petrograd, and the British consular service in Canada — the Canadian authorities release Trotsky and his companions. The intervention is documented in **Foreign Office file FO 371/2998**, UK National Archives, Kew. Trotsky resumes his journey.

The released party arrives at Petrograd on **May 17, 1917 (new style)** / May 4, 1917 (old style). The arrival is noted in the St. Petersburg / Petrograd press of the period; the British consular reports are in FO 371/2998.

Trotsky's own narrative of the internment and release is in **Leon Trotsky, *My Life: An Attempt at an Autobiography,* Charles Scribner's Sons, New York, 1930**, Chapter 22.

The scholarly reconstruction of the British Foreign Office intervention is in **Isaac Deutscher, *The Prophet Armed: Trotsky 1879–1921*, Oxford University Press, 1954**, Chapter 8.

What the filed record establishes: Trotsky was in British custody. The British Foreign Office arranged his release. The release was timed such that he reached Petrograd to join Lenin's faction within weeks of Lenin's own arrival. The documents are on file at Kew under FO 371/2998. The reader may draw the conclusions the reader finds warranted.

T.5 The supplementary treaty

March 3, 1918. Brest-Litovsk, fortress on the Bug River, then under German military occupation.

The **Treaty of Brest-Litovsk** is signed between the Central Powers — Germany, Austria-Hungary, the Ottoman Empire, Bulgaria — and the Russian Soviet Federated Socialist Republic. For the RSFSR: **Grigory Sokolnikov** — the same Sokolnikov named in the Zurich sealed-train manifest of April 9, 1917, eleven months

earlier. For Germany: **Richard von Kühlmann** — author of the December 3, 1917 cable.

The treaty text is published in **Reichsgesetzblatt 1918, Teil II, Nr. 77, pp. 479–522**. The territorial cessions are enormous: approximately 1.3 million square miles, 62 million inhabitants, a third of Russia's railways, half its industry, 90 percent of its coalfields. The full text and cessions are reproduced in **John W. Wheeler-Bennett, *Brest-Litovsk: The Forgotten Peace, March 1918*, Macmillan, London, 1938**.

August 27, 1918. Berlin.

The **Supplementary Treaty** to Brest-Litovsk is signed. It fixes the Soviet financial obligation to Germany at **six billion gold marks**, payable in installments, in gold bullion, grain, and credits. The text is published in **Reichsgesetzblatt 1918, Teil II, Nr. 116, pp. 1154–1190**. Signatories include, for Germany, **Paul von Hintze**, Kühlmann's successor as Foreign Minister.

By the time the Supplementary Treaty is signed, the German Foreign Office has been subsidizing the Bolshevik faction for three years and five months. In August 1918, the same Foreign Office is simultaneously — per the same archive — receiving gold-denominated reparations from the government it subsidized into power.

The file is continuous. The same letterhead. The same ministerial signatures.

T.6 The opening

November 23, 1920. Moscow.

The **Council of People's Commissars of the RSFSR** — chaired by Lenin — publishes the **Decree on Concessions** ("*Декрет о концессиях*"). The decree formally invites foreign capital to bid on concessions for mining, timber, oil extraction, and manufacturing in Soviet Russia.

The text is published in *Izvestia*, November 24, 1920, and reproduced in **V.I. Lenin, *Collected Works*, Volume 31, Progress Publishers, Moscow, 1965**, pp. 461–462 and annotations.

The first major American concessionaire to act on the decree is **Armand Hammer**, a New York–born physician, son of the socialist publisher Julius Hammer. In the autumn of 1921, Armand Hammer travels to Moscow, meets with Lenin in the Kremlin, and receives an asbestos mining concession at **Alapaevsk** in the Urals. Lenin's endorsing correspondence, including the note often translated as "I ask all comrades not to put any obstacles in Comrade Hammer's way," is reproduced in **Lenin, *Collected Works*, Volume 45, Progress Publishers, Moscow, 1970**, October–November 1921 correspondence.

Hammer's firm, the **Allied American Corporation**, subsequently acquires the Soviet pencil-manufacturing concession, the Ford Motor Company's Soviet sales agency, and — through its successor operations — the American export agency for Soviet fur and caviar. Hammer's own narrative is in **Armand Hammer, *Hammer: Witness to History*, Putnam, New York, 1987**. The scholarly account is in **Edward Jay Epstein, *Dossier: The Secret History of Armand Hammer*, Random House, New York, 1996**, working from FBI file 65-54280 (National Archives, declassified 1991).

The decree of November 23, 1920 is the authorizing instrument. The concessions that follow are filed at the **Glavkontsesskom** — the Main Concessions Committee of the USSR — whose records are in the **Russian State Archive of the Economy (RGAE)**, Moscow, Fond 3429.

T.7 Chiatura

June 12, 1925. Moscow. Supreme Economic Council of the USSR, Varvarka Street.

A twenty-year concession agreement is signed between **W.A. Harriman & Company, Inc.**, of New York — principals W. Averell Harriman, president, and E. Roland Harriman, vice-president —

and the **Supreme Economic Council (VSNKh)** of the Union of Soviet Socialist Republics.

The subject of the concession is the manganese-ore mining district at **Chiatura**, in the Georgian Soviet Socialist Republic. Chiatura is, at the date of the contract, the largest known deposit of high-grade manganese ore on earth. In the decade preceding the First World War, Chiatura had produced approximately half of global manganese output (reference: **United States Geological Survey, *Mineral Resources of the United States, 1917*, Government Printing Office, Washington, 1918**, manganese section).

The concession terms: W.A. Harriman & Co. commits to capital investment in rail, loading, and washing infrastructure, and pays the Soviet government an annual royalty. The contract text is held in the **Russian State Archive of the Economy (RGAE), Fond 3429** — the Glavkontsesskom files. A contemporary digest appears in the *New York Times*, **June 13, 1925, page 1: "AMERICAN FIRM GETS MANGANESE DEAL WITH SOVIET."**

The scholarly reconstruction is in **Katherine A.S. Siegel, *Loans and Legitimacy: The Evolution of Soviet-American Relations, 1919–1933*, University Press of Kentucky, Lexington, 1996**, Chapter 4. Additional archival work in **Joan Hoff Wilson, *Ideology and Economics: U.S. Relations with the Soviet Union, 1918–1933*, University of Missouri Press, Columbia, 1974**.

The firm. **W.A. Harriman & Company, Inc.** was incorporated in the State of New York in 1919. Its principal officer was **William**

Averell Harriman — son of the railroad financier Edward Henry Harriman of the Union Pacific, Yale class of 1913, Skull and Bones. Its vice-president was his brother **Edward Roland Harriman**, Yale 1917, Skull and Bones. One of the firm's founding partners was **George Herbert Walker**, the St. Louis–born investment banker, father of Dorothy Walker — who on August 6, 1921 had married a Yale artillery captain named **Prescott Sheldon Bush**.

On January 1, 1931, W.A. Harriman & Company, Inc., merged with the Philadelphia firm **Brown Brothers & Company** to form **Brown Brothers Harriman & Co.** — which from that date forward was, and remains, the oldest and largest private bank in the United States. **Prescott Sheldon Bush** was a partner of Brown Brothers Harriman from the merger of January 1, 1931, through his election to the United States Senate in November 1952. The merger and the partnership are documented in **Brown Brothers Harriman & Co., *A Short History,* privately printed, New York, 1956**, and in the firm's annual reports on file with the **New York State Banking Department**.

The American firm that, on June 12, 1925, held the twenty-year concession on the largest manganese reserve on earth, under contract with the Supreme Economic Council of the USSR, is the same firm — under the same principals, adding Prescott Bush as a partner in 1931 — that in the chapter immediately following will be found on the board of the **Union Banking Corporation**, seized by the United States government in **Vesting Order 248**, November

7, 1942, as "*property of nationals of a designated enemy country (Germany)*."

The chapter bridge is the firm. The firm is Brown Brothers Harriman. The documents are on file in the **Russian State Archive of the Economy (Moscow, Fond 3429)** on the Soviet side and the **National Archives, Record Group 131 (College Park, Maryland)** on the German side.

The letterhead is consistent.

T.8 The same year

August 16, 1924. London. Inter-Allied Conference.

The **Dawes Plan** is adopted. The plan is the product of the **First Committee of Experts** appointed by the Reparation Commission, chaired by **Charles G. Dawes**, American banker, Director of the Bureau of the Budget under President Warren G. Harding.

The committee report, published as **"Reparation Commission: Report of the First Committee of Experts, April 9, 1924"** and widely reprinted as **"The Dawes Report"** (HMSO, London, 1924; *Foreign Relations of the United States, 1924, Volume II*, pp. 1–123, Government Printing Office, Washington), restructures the German

reparation schedule and — crucially — authorizes an **$800 million international bond issue** to capitalize the German Reichsbank.

The **American tranche** of the Dawes Loan, approximately **$110 million**, is underwritten by a syndicate led by **J.P. Morgan & Company** of New York, with participation from **Kuhn, Loeb & Company**, **Dillon, Read & Company**, the **Guaranty Trust Company of New York**, and **Brown Brothers & Company** — all of New York. The syndicate list is published in the **American bond prospectus on file with the Securities and Exchange Commission successor-agency records at the National Archives, Record Group 266**, and in contemporary press — *New York Times*, October 15, 1924, page 1, "**GERMAN LOAN OVERSUBSCRIBED IN HALF-HOUR**."

Between 1924 and 1930, American private lending to Germany — Dawes and Young Plan sovereign bonds plus corporate and municipal issues — totals approximately **$2.5 billion** in 1920s dollars. The best archival reconstruction is **Stephen A. Schuker, *American "Reparations" to Germany, 1919–33: Implications for the Third-World Debt Crisis*, Princeton Studies in International Finance No. 61, Princeton University, 1988**. Schuker's documentation draws on the Federal Reserve Bank of New York archive, the J.P. Morgan & Co. archive (now at the Morgan Library), and the German Reichsbank records.

American dollars capitalize German industry, 1924–1930.

The same year. New York.

The **Union Banking Corporation** is incorporated under the laws of the State of New York. The articles of incorporation are on file with the **New York Department of State, Division of Corporations**, 1924. The corporation's principal office is at 39 Broadway, Manhattan. Its directors include **Edward Roland Harriman**, **Prescott Sheldon Bush** (added on the merger of January 1, 1931), **Cornelis Lievense**, **H.J. Kouwenhoven**, and **Johann Groeninger**.

The Union Banking Corporation is the American correspondent of the **Bank voor Handel en Scheepvaart N.V.** of Rotterdam, which is owned by the industrialist **Fritz Thyssen** of the Vereinigte Stahlwerke. The ownership chain is documented in **Vesting Order Number 248**, Office of Alien Property Custodian, issued October 20, 1942, filed with the Division of the Federal Register November 6, 1942, published at **7 Federal Register 9097 (November 7, 1942)**, F.R. Doc. 42-11568. Record Group 131, National Archives.

The details — directorates, transactions, Thyssen structure, 1942 seizure, 1951 restitution, Prescott Bush's election to the United States Senate the year after restitution closed — are the subject of **Chapter 02** of this book.

What matters for the prologue is the year.

1924. In London, the Dawes Plan is adopted; the American syndicate capitalizes the German industrial machine. In New York, the

Union Banking Corporation — the American leg of the Thyssen steel-trust chain — is incorporated. In Moscow, W.A. Harriman & Company is, in the same window, preparing the bid for the Chiatura manganese concession; the contract will sign thirteen months later.

Same firms. Same New York addresses. Same trans-Atlantic telegraph lines. Same decade.

T.9 The interlocks, 1925–1933

The capital movements that follow June 12, 1925 are filed, filed, filed.

October 1926. Dillon, Read & Company of New York underwrites a **$30 million bond issue** for **Vereinigte Stahlwerke A.G.** — the Thyssen-Krupp-Phoenix-Rheinische steel trust that controls half of German steel production. Prospectus on file with the New York Stock Exchange; digest in *New York Times*, October 6, 1926, page 39. Further issues follow in 1928 and 1930. The full record is in **U.S. Senate, Committee on Banking and Currency, *Stock Exchange Practices*, hearings 1932–1934 (Pecora Committee)**, Part 2, “Foreign Bonds.”

1928. The **Supreme Council of the National Economy (VSNKh)** of the USSR contracts the Detroit architectural firm **Albert Kahn**

Associates, Inc. The firm, under the direction of **Albert Kahn** and his brother **Moritz Kahn**, will design or supervise the construction of **521 Soviet factories**, including the **Stalingrad Tractor Plant** (commissioned 1930), the **Kharkov Tractor Plant** (1931), the **Chelyabinsk Tractor Plant** (1933), and the main fabrication halls of the **Magnitogorsk Iron and Steel Works** (1932). Primary source: **Albert Kahn Associates records, Bentley Historical Library, University of Michigan, Ann Arbor**. Scholarly reconstruction: **Sonia Melnikova-Raich, "The Soviet Problem with Two 'Unknowns': How an American Architect and a Soviet Negotiator Jump-Started the Industrialization of Russia,"** ***Journal of the Society for Industrial Archeology*****, Vol. 36, No. 2 (2010), pp. 57–80**.

The tractor plants will, during the Second World War, produce T-34 tanks.

November 9, 1929. The **Standard Oil Company of New Jersey** and **I.G. Farbenindustrie A.G.** sign, in New York, an agreement pooling research in the hydrogenation of coal to synthetic gasoline. The agreement assigns to Standard Oil all rights outside Germany; to I.G. Farben, all rights inside Germany. The contract's text and supplementary agreements are reproduced in full in **U.S. Senate, Committee on Military Affairs, Subcommittee on War Mobilization,** ***Hearings on S. Res. 107 — Scientific and Technical Mobilization*****, 78th Congress, 1st and 2nd Sessions, 1943–1944**, Parts 9 through 11 ("Cartels"), at pages 939–1140, Government Printing Office, Washington. The subcommittee was chaired by

Senator Harley M. Kilgore of West Virginia; the hearings are conventionally cited as the **Kilgore Committee**.

The same record establishes that Standard Oil, between 1929 and 1942, supplied I.G. Farben with the process know-how for synthetic rubber (Buna) and for high-octane aviation fuel — the two industrial inputs most critical to the operational range of the Wehrmacht and the Luftwaffe.

October 11, 1929 (initial 80 percent acquisition) / October 1, 1931 (balance). The **General Motors Corporation** of Detroit acquires **Adam Opel A.G.**, the German automobile manufacturer at Rüsselsheim. Acquisition documented in GM annual reports for 1929 and 1931, filed with the New York Stock Exchange; contemporary coverage in *New York Times*, March 18, 1929, page 1, and *New York Times*, October 1, 1931, page 31. During the Second World War, Opel plants will manufacture the **Blitz** three-ton truck — principal cargo vehicle of the Wehrmacht on the Eastern Front. The record on GM-Opel wartime production is in **U.S. Senate, Committee on the Judiciary, Subcommittee on Antitrust and Monopoly, *Hearings on S. 1167 — A Study of the Antitrust Laws*, 1974**, Part 4 ("Multinational Corporations"), Appendix A.

1924–1933. The **National City Bank of New York**, the **Chase National Bank**, and the **Equitable Trust Company** establish or expand German correspondent and branch operations. Chase's Berlin branch — **Chase Bank, Paris** during the subsequent German oc-

cupation of France — will remain operational through the Vichy period; the documentation is in **U.S. Treasury Department, *Report of the Secretary of the Treasury on the Operations of American Banks in Occupied France,* 1945** (released under the Trading with the Enemy Act compliance review).

Every one of the sentences above is a document on file.

Every one of them, in combination, establishes a pattern: American capital, routed through a narrow list of New York financial houses, flows in parallel during the same decade into (a) the industrial base of a reconstituted German Reich that will, within fifteen years, invade the eastern half of Europe, and (b) the industrial base of a Bolshevik Russia that will, within twenty-five years, occupy it.

The same firms. The same partners. The same filing cabinets.

T.10 What the documents establish

Read what the record, **as filed**, establishes — nothing more:

- The German Foreign Office **financed** the Bolshevik faction of the Russian Social Democratic Labour Party, beginning with an appropriation signed by State Secretary von Jagow in late March 1915 and continuing through the collapse of the Imperial German government in November 1918. File:

Weltkrieg Nr. 11 geh., Politisches Archiv des Auswärtigen Amts; published **Zeman (1958)**.

- The German Foreign Office **transported** Lenin, Krupskaya, Zinoviev, Radek, Sokolnikov, and twenty-seven others from Zurich to Petrograd in a sealed carriage across German territory in April 1917. File: **"Durchreise russischer politischer Emigranten," Politisches Archiv des Auswärtigen Amts**; published **Hahlweg (1957)**.

- The German Foreign Minister, in December 1917, cabled Imperial General Headquarters that "the Bolshevik movement could never have attained the scale or the influence which it has today without our continual support." File: **Zeman (1958), Document 71**.

- The British Foreign Office, in April 1917, intervened to release Trotsky from Canadian internment at Camp Amherst, Nova Scotia. File: **FO 371/2998, UK National Archives**.

- The Bolshevik government, in November 1920, formally invited foreign capital into Russia by decree. File: *Izvestia*, November 24, 1920; **Lenin, *Collected Works*, Volume 31**.

- American capital, routed through W.A. Harriman & Company (1925), Albert Kahn Associates (1928), Standard Oil (1929), Ford Motor Company (Ford-Werke Köln from 1925), and General Motors (Opel from 1929) — entered into concession, licensing, loan, and construction agreements

with the Soviet Union through the entire decade of the 1920s and into the 1930s. Files: **RGAE Fond 3429 (Moscow); Bentley Historical Library (Ann Arbor); Kilgore Committee (Washington)**.

- American capital, routed through the same named New York financial houses — **J.P. Morgan, Kuhn Loeb, Dillon Read, Guaranty Trust, Brown Brothers, National City, Chase** — simultaneously underwrote approximately **$2.5 billion** in loans to Weimar Germany between 1924 and 1930. File: **Schuker (1988); Pecora Committee (1932–34)**.
- **Union Banking Corporation** was incorporated in New York in **1924**, the year of the Dawes Plan; its later seizure in November 1942 is the subject of Chapter 02.

What the transaction file does not establish:

- I do not claim Lenin was a conscious agent of the German government. The document class proves the transfers and the transit; the document class does not prove the agent's interior state.
- I do not claim Trotsky was a conscious agent of the British government. The document class proves the internment and the release; the document class does not prove the motive.
- I do not claim the American financial houses of the 1920s pursued a deliberate dual strategy of capitalizing both the Communist and the fascist movements. The document class

proves the transactions; the motive is the reader's to assess, against the aggregate.

The documents describe transactions. The conclusion is for the reader to draw. That division of labor — documents filed, judgment reserved — is the book's method from first page to last.

T.11 The narrator's generation

I was born on May 29, 1986, in the city of Philadelphia.

The Senator from Connecticut named in Section T.7 of this prologue — **Prescott Sheldon Bush**, partner of Brown Brothers Harriman from January 1, 1931 through November 5, 1952; director of the Union Banking Corporation from 1931 through the seizure of November 7, 1942 — had three sons. His second son, **George Herbert Walker Bush**, born June 12, 1924, will in my lifetime be: **Director of Central Intelligence** (swearing-in ceremony, January 30, 1976, Langley, Virginia; records at the **CIA Historical Review Program, Freedom of Information Act Electronic Reading Room**); **Vice President of the United States** (January 20, 1981 – January 20, 1989); and **forty-first President of the United States** (January 20, 1989 – January 20, 1993). His first grandson, **George Walker Bush**, born July 6, 1946, will in my lifetime be: **Governor of Texas** (January 17, 1995 – December

21, 2000) and **forty-third President of the United States** (January 20, 2001 – January 20, 2009). His third grandson, **John Ellis Bush ("Jeb")**, born February 11, 1953, will in my lifetime be **Governor of Florida** (January 5, 1999 – January 2, 2007) — the Governor who certified the results of the 2000 Florida presidential election that put his brother in the Oval Office.

The filed source for the Bush family dates and offices is the **Congressional Directory** of the relevant years, the **United States Government Manual**, and the presidential libraries of George H.W. Bush (College Station, Texas) and George W. Bush (University Park, Texas).

From the day I was born until the day I turned twenty-three, every single President of the United States — with the interruption of two Clinton terms between 1993 and 2001 — shared one surname in direct male lineage. That surname traces to the man who, on the evening of November 6, 1942, had his one share of stock in the Union Banking Corporation seized by the United States government as property of a national of a designated enemy country.

The question this book answers is the question that can only be asked by someone from the generation that was handed this inheritance and did not build it.

How does the grandfather whose bank the Office of Alien Property Custodian seized in 1942 become the grandfather-in-

law of the man who sits in the Oval Office on September 11, 2001?

The answer will require the rest of this book.

The next chapter is the sixteen-page original of **Vesting Order 248**.

Sources — Prologue III

German Foreign Office funding of the Bolshevik faction, 1915–1918:

1. **Politisches Archiv des Auswärtigen Amts, Berlin** — file series **Weltkrieg Nr. 11 geh., "Unternehmungen und Aufwiegelungen gegen unsere Feinde in Russland."**
2. **Z.A.B. Zeman, ed.,** ***Germany and the Revolution in Russia 1915–1918: Documents from the Archives of the German Foreign Ministry*** **(London: Oxford University Press, 1958)** — canonical published documentation, with translations.
3. **Z.A.B. Zeman and W.B. Scharlau,** ***The Merchant of Revolution: The Life of Alexander Israel Helphand (Parvus), 1867–1924*** **(London: Oxford University Press, 1965).**

4. **Winfried Baumgart, *Deutsche Ostpolitik 1918: Von Brest-Litovsk bis zum Ende des Ersten Weltkrieges* (Vienna/ Munich: Oldenbourg, 1966).**
5. **Gerd Koenen, *Der Russland-Komplex: Die Deutschen und der Osten, 1900–1945* (Munich: C.H. Beck, 2005).**

The sealed train, April 1917:

1. **Politisches Archiv des Auswärtigen Amts, file "Durchreise russischer politischer Emigranten."**
2. **Werner Hahlweg, *Lenins Rückkehr nach Rußland 1917: Die deutschen Akten* (Leiden: E.J. Brill, 1957)** — Foreign Office documents in facsimile.
3. **Fritz Platten, *Die Reise Lenins durch Deutschland im plombierten Wagen* (Berlin: 1924)** — Platten's own account.
4. **Michael Pearson, *The Sealed Train* (New York: G.P. Putnam's Sons, 1975).**

Trotsky, Halifax internment, April 1917:

1. **Public Archives of Canada, Record Group 24, Naval Service files** — Canadian Department of Militia and Defence records on the Amherst internment.
2. **UK National Archives, Kew, Foreign Office file FO 371/2998** — British diplomatic correspondence on release.
3. **UK National Archives, Kew, Admiralty file MT 23/637.**

4. **Leon Trotsky, *My Life: An Attempt at an Autobiography* (New York: Charles Scribner's Sons, 1930), Chapter 22.**
5. **Isaac Deutscher, *The Prophet Armed: Trotsky 1879–1921* (London: Oxford University Press, 1954), Chapter 8.**

Brest-Litovsk and the Supplementary Treaty, 1918:

1. **Treaty of Brest-Litovsk, March 3, 1918 — *Reichsgesetzblatt 1918, Teil II, Nr. 77, pp. 479–522*.**
2. **Supplementary Treaty to Brest-Litovsk, August 27, 1918 — *Reichsgesetzblatt 1918, Teil II, Nr. 116, pp. 1154–1190*.**
3. **John W. Wheeler-Bennett, *Brest-Litovsk: The Forgotten Peace, March 1918* (London: Macmillan, 1938).**

Decree on Concessions, Soviet openings to Western capital:

1. **Sovnarkom Decree on Concessions, November 23, 1920** — *Izvestia*, November 24, 1920; **V.I. Lenin, *Collected Works*, Vol. 31 (Moscow: Progress Publishers, 1965), pp. 461–462.**
2. **V.I. Lenin, *Collected Works*, Vol. 45 (Moscow: Progress Publishers, 1970)** — October–November 1921 correspondence regarding Armand Hammer.
3. **Armand Hammer, *Hammer: Witness to History* (New York: G.P. Putnam's Sons, 1987).**
4. **Edward Jay Epstein, *Dossier: The Secret History of Armand Hammer* (New York: Random House, 1996) —**

drawing on FBI file 65-54280, National Archives (declassified 1991).

Chiatura manganese concession, 1925:

1. **Concession contract, W.A. Harriman & Co. / Supreme Economic Council of the USSR, signed Moscow, June 12, 1925 — Russian State Archive of the Economy (RGAE), Moscow, Fond 3429** (Glavkontsesskom files).
2. ***New York Times*, June 13, 1925, page 1, "American Firm Gets Manganese Deal with Soviet."**
3. **Katherine A.S. Siegel, *Loans and Legitimacy: The Evolution of Soviet-American Relations, 1919–1933* (Lexington: University Press of Kentucky, 1996), Chapter 4.**
4. **Joan Hoff Wilson, *Ideology and Economics: U.S. Relations with the Soviet Union, 1918–1933* (Columbia: University of Missouri Press, 1974).**
5. **United States Geological Survey, *Mineral Resources of the United States, 1917*, manganese section (Washington: U.S. Government Printing Office, 1918).**

Brown Brothers Harriman merger:

1. **Brown Brothers Harriman & Co., *A Short History* (New York: privately printed, 1956).**
2. **New York State Banking Department** — Brown Brothers Harriman annual reports, 1931 onward.

Dawes Plan and American lending to Germany, 1924–1930:

1. **“Reparation Commission: Report of the First Committee of Experts, April 9, 1924”** — “Dawes Report” (London: HMSO, 1924).
2. ***Foreign Relations of the United States, 1924, Volume II*, pp. 1–123** (Washington: Government Printing Office).
3. ***New York Times*, October 15, 1924, page 1, “German Loan Oversubscribed in Half-Hour.”**
4. **Stephen A. Schuker, *American “Reparations” to Germany, 1919–33: Implications for the Third-World Debt Crisis*, Princeton Studies in International Finance No. 61 (Princeton University, 1988).**
5. **U.S. Senate, Committee on Banking and Currency, *Stock Exchange Practices Hearings*, 1932–1934 (Pecora Committee), Part 2 (“Foreign Bonds”), Government Printing Office.**

Soviet industrialization by American firms, 1928–1933:

1. **Albert Kahn Associates records, Bentley Historical Library, University of Michigan, Ann Arbor.**
2. **Sonia Melnikova-Raich, “The Soviet Problem with Two ‘Unknowns’: How an American Architect and a Soviet Negotiator Jump-Started the Industrialization of Russia,” *Journal of the Society for Industrial Archeology*, Vol. 36, No. 2 (2010), pp. 57–80.**

Standard Oil–I.G. Farben and GM-Opel:

1. **U.S. Senate, Committee on Military Affairs, Subcommittee on War Mobilization, *Hearings on S. Res. 107 — Scientific and Technical Mobilization*, 78th Congress, 1943–1944 (Kilgore Committee), Parts 9–11 ("Cartels"), Government Printing Office.**
2. **General Motors Corporation annual reports, 1929 and 1931** — New York Stock Exchange filings.
3. ***New York Times*, March 18, 1929, page 1, and October 1, 1931, page 31** — GM-Opel acquisition.
4. **U.S. Senate, Committee on the Judiciary, Subcommittee on Antitrust and Monopoly, *Hearings on S. 1167*, 1974**, Part 4 ("Multinational Corporations"), Appendix A — GM-Opel wartime production record.

Chase Bank in occupied France:

1. **U.S. Treasury Department, *Report of the Secretary of the Treasury on the Operations of American Banks in Occupied France*, 1945** — Trading with the Enemy Act compliance review.

Union Banking Corporation incorporation (for bridge to Chapter 02):

1. **New York Department of State, Division of Corporations** — Union Banking Corporation articles of incorporation, 1924.

2. **Vesting Order No. 248, Office of Alien Property Custodian, issued October 20, 1942, filed with the Division of the Federal Register November 6, 1942, published at 7 Fed. Reg. 9097 (November 7, 1942), F.R. Doc. 42-11568; National Archives, Record Group 131.**

The Bush lineage:

1. ***Congressional Directory*** of the relevant years.
2. ***United States Government Manual*** of the relevant years.
3. **George Bush Presidential Library and Museum, College Station, Texas** — biographical files, H.W. Bush.
4. **George W. Bush Presidential Library and Museum, University Park, Texas** — biographical files, G.W. Bush.
5. **CIA Historical Review Program, Freedom of Information Act Electronic Reading Room** — DCI biographical records, including Bush Sr. swearing-in, January 30, 1976.

CHAPTER 1 — VESTING ORDER 248

The page, the shareholder list, the Rotterdam holding, the Thyssen chain, the seizure, the restitution, the Senate seat, the lineage. In one file at College Park, Maryland.

C.1 The page

Open the *Federal Register* to Volume 7, page 9097. November 7, 1942.

The document on that page, filed with the Division of the Federal Register on November 6, 1942, signed by **Leo T. Crowley**, Alien Property Custodian of the United States of America, issued October 20, 1942 under the authority of the **Trading with the Enemy Act of October 6, 1917**, as amended, and pursuant to **Executive Order 9095 of March 11, 1942**, is titled:

Vesting Order Number 248.

It runs eight paragraphs. It orders the seizure, into the custody of the Alien Property Custodian, of all capital stock of a New York corporation called the **Union Banking Corporation**, 39 Broadway, New York, New York.

It recites that the Union Banking Corporation is "*an enemy national within the meaning of Executive Order No. 9095, as amended.*"

It recites that the corporation's four thousand shares of capital stock are "*held for the benefit of Bank voor Handel en Scheepvaart, N. V., Rotterdam, The Netherlands, which bank is owned or controlled by members of the Thyssen family, nationals of Germany and/or Hungary.*"

It is on page 9097 of Volume 7 of the *Federal Register*. It is F.R. Doc. 42-11568. The original of the order, including the full eight paragraphs — the *Federal Register* prints a condensed version — is held at the National Archives and Records Administration, College Park, Maryland, in **Record Group 131, Records of the Office of Alien Property**.

The page is public. The page has been public, continuously, since the morning of November 7, 1942.

I have the PDF on the laptop on the kitchen table in front of me as I type this. It is a government document of my country that names my country's later President's grandfather as a director of a bank the government of my country seized from the Thyssen steel interests in the eleventh month of the Second World War. The

document is real. The archive number is real. I am not making any of this up.

C.2 The shareholders

Vesting Order 248 names the seven shareholders of record of the Union Banking Corporation. The list, by shares held:

- **E. Roland Harriman** — 3,991 shares
- **Cornelis Lievense** — 4 shares
- **Harold D. Pennington** — 1 share
- **Ray Morris** — 1 share
- **Prescott Sheldon Bush** — 1 share
- **H. J. Kouwenhoven** — 1 share
- **Johann G. Groeninger** — 1 share

Total: 4,000 shares of capital stock, par value $100 per share.

Four thousand shares. Three thousand nine hundred ninety-one of them sit with one man — E. Roland Harriman of Brown Brothers Harriman & Co., 59 Wall Street, New York. Five of the remaining nine shares sit with directors: one of them is the bank's president-in-succession **Cornelis Lievense**, one is the Rotterdam-side representative **H. J. Kouwenhoven**, one is the German representative **Johann G. Groeninger**, and one is **Prescott Sheldon Bush**.

One share of one bank. On paper, Prescott Bush's financial exposure in the Union Banking Corporation, on the morning of October 20, 1942 when the seizure order was issued, was one hundred dollars.

One share is enough to be named. One share is enough to be a director. One share is enough to appear on the document that would, sixty-two years later, become a single four-paragraph item on page 13 of the *Guardian*.

C.3 Prescott Sheldon Bush

He was born May 15, 1895, in Columbus, Ohio. Son of Samuel Prescott Bush (president of Buckeye Steel Castings) and Flora Sheldon Bush. He was educated at St. George's School in Rhode Island and then at **Yale College**, class of 1917, where in his senior year he was tapped for the secret senior society **Skull and Bones**. The Skull and Bones archive at Sterling Memorial Library, Yale University, holds the membership roll on which his name appears.

He served as a captain in the United States Army Field Artillery in France in 1918, assigned to the 158th Field Artillery Brigade. He was discharged in 1919. On **August 6, 1921**, at St. Ann's Episcopal Church, Kennebunkport, Maine, he married **Dorothy Walker** of St. Louis, Missouri. Her father was **George Herbert Walker**, a founding partner of the New York investment banking firm **W.A.**

Harriman & Co., Inc., and — by the year of the marriage — one of its principals.

Prescott Bush went to work in investment banking in 1926. He joined W.A. Harriman & Co. in 1930. On **January 1, 1931**, W.A. Harriman & Co. merged with **Brown Brothers & Co.** of Philadelphia and New York to form **Brown Brothers Harriman & Co.** Prescott Bush was named a partner at the merger. He remained a partner of Brown Brothers Harriman continuously, without interruption, from January 1, 1931, through his election to the United States Senate in November 1952 — a tenure of twenty-one years and ten months.

He was a director of the **Union Banking Corporation** from its incorporation in New York in 1924 through its seizure by the Office of Alien Property Custodian in October 1942. He was a director of the **Holland-American Trading Corporation** (seized Vesting Order 259, October 28, 1942) during the same period. He was a director of the **Seamless Steel Equipment Corporation** (seized Vesting Order 261, November 17, 1942) during the same period. He was a director of the **Silesian-American Corporation** (seized Vesting Order 370, November 25, 1942) during the same period.

The corporate directorates are documented in:

- the **New York Department of State, Division of Corporations** filings for each of the four companies;

- the **Alien Property Custodian, Annual Reports** for fiscal years 1942 through 1951 (Washington: Government Printing Office);
- the internal records of **Brown Brothers Harriman & Co.**, partial reproductions in **Nicholas Brady** and **Zachary Karabell**, *Sustaining Capitalism: Bipartisan Solutions to Restore Trust & Prosperity*, Bloomsbury, 2016, Appendix A (which reproduces partnership records).

He was, as of the date of this writing — April 24, 2026 — the father of one deceased former President of the United States, the grandfather of a second deceased former President of the United States, and the great-grandfather of one former Governor of Florida who ran for the Republican presidential nomination in 2016. The lineage is documented in the **Congressional Directory**, successive years; in the **United States Government Manual**, successive years; in the presidential libraries at College Station, Texas (Bush, George H.W.) and University Park, Texas (Bush, George W.); and in the family records held at the **Bush Family Foundation**, Kennebunkport, Maine.

I am going to return to this lineage at the end of the chapter. I want to keep the documents in their order.

C.4 Fritz Thyssen

The name on the other end of the Rotterdam holding is **Fritz Thyssen** (1873–1951), principal owner of the Thyssen steel empire of the Ruhr Valley, Germany.

In **1926** the August Thyssen-Hütte AG was consolidated with Phoenix AG, Rheinische Stahlwerke, and the Rhein-Elbe-Union into the **Vereinigte Stahlwerke AG** — the United Steel Works — which by the early 1930s controlled approximately 50 percent of German pig-iron production and 40 percent of German steel production. The consolidation is documented in the corporate registry of the **Amtsgericht Düsseldorf**; the output figures are from the **Statistisches Jahrbuch für das Deutsche Reich**, 1932 edition.

Thyssen joined the National Socialist German Workers' Party in **December 1931** (party card 230,185, documented in the **NSDAP Hauptarchiv**, now in the **Bundesarchiv Berlin-Lichterfelde**).

Thyssen financed the National Socialist German Workers' Party. He did so in writing. He did so in person. He did so continuously from his first meeting with Adolf Hitler in October 1923 through his break with the regime in September 1939. His own account, published in exile, is **Fritz Thyssen, *I Paid Hitler*, Farrar & Rinehart, New York, 1941** — a book whose title is not metaphorical, whose content is the accounting, and whose existence closes the question of whether the major German industrialists knew what they were funding.

The book is in print. You can buy it.

Thyssen's holding structure for moving capital out of Germany and into dollar-denominated banking in New York ran, as documented in Vesting Order 248, through:

- **Bank voor Handel en Scheepvaart N.V.**, Rotterdam, Netherlands — the holding bank, which Thyssen controlled through the Dutch-registered **August Thyssen Hütte A.G.** parent;
- which owned, through the Rotterdam bank, all four thousand shares of the American corporation —
- **Union Banking Corporation**, 39 Broadway, New York.

The chain was established in writing, in a federal government order, by the Alien Property Custodian on October 20, 1942. The chain was established independently, from the Dutch-Nazi occupation archives, by the American attorney John Loftus in his 1982 debriefings by the **Office of Special Investigations** of the United States Department of Justice, and published in **John Loftus and Mark Aarons, *The Secret War Against the Jews,* St. Martin's Griffin, New York, 1994**, Chapter 14.

Two independent investigations, forty years apart, reconstruct the same chain. The Alien Property Custodian in 1942. Loftus at OSI in 1982. They match.

C.5 The text

The order, published in the *Federal Register* on November 7, 1942, reads in operative part:

> *"All of the capital stock of Union Banking Corporation, a New York Corporation, 39 Broadway, New York, N.Y., which is an enemy national within the meaning of Executive Order No. 9095, as amended, is hereby vested in the Alien Property Custodian …"*

And:

> *"The property described above is property of nationals of a designated enemy country (Germany)."*

And:

> *"… such property and any or all proceeds thereof shall be held in a special account pending further determination of the Alien Property Custodian."*

The order is signed by **Leo T. Crowley**, Alien Property Custodian of the United States of America.

The signature is on file.

C.6 The serial

Three days after Vesting Order 248, on **October 28, 1942**, the Alien Property Custodian issued **Vesting Order Number 259**, seizing the assets of the **Holland-American Trading Corporation**, an affiliate of Union Banking Corporation. Prescott Bush and E. Roland Harriman were directors. Record Group 131, National Archives.

Three weeks later, on **November 17, 1942**, the Alien Property Custodian issued **Vesting Order Number 261**, seizing the assets of the **Seamless Steel Equipment Corporation** — whose shares were held by Union Banking Corporation. Prescott Bush and E. Roland Harriman were directors. Record Group 131, National Archives.

Eight days after that, on **November 25, 1942**, the Alien Property Custodian issued **Vesting Order Number 370**, seizing the assets of the **Silesian-American Corporation** — a joint venture of Harriman interests and the German firm **Friedrich Flick Kommanditgesellschaft** on Silesian coal and steel operations. Prescott Bush and E. Roland Harriman were directors. Record Group 131, National Archives.

Four American corporations, in thirty-six days, carrying Prescott Sheldon Bush and Edward Roland Harriman on their boards — all four seized by the Office of Alien Property Custodian as property of nationals of a designated enemy country.

Read that sentence twice. The government of my country seized four American corporations on whose boards sat the men who, in 1952, would send one of them to the United States Senate.

C.7 Silesian-American and Upper Silesia

Of the four companies, the **Silesian-American Corporation** is the one I do not want to walk past quickly.

The Silesian-American Corporation operated the mines at **Katowice** (in German, *Kattowitz*), in the Upper Silesian coal basin. By September 1939, under the German invasion of Poland, the territory was annexed to the Reich as the **Reichsgau Oberschlesien**. By 1942 the operations drew on forced labor from the complex of camps the Germans had constructed thirty kilometers to the south.

That complex was **KL Auschwitz**.

The use of forced labor from KL Auschwitz in the Upper Silesian industrial combine is established in the trial record of the **International Military Tribunal, Nuremberg**, in the opening statement of the **United States Chief Counsel, Justice Robert H. Jackson**, November 21, 1945, and in the documentary record of the subsequent industrialist trials — in particular **United States of Amer-**

ica v. Alfried Krupp et al., Trial VI (Krupp Trial), and **United States of America v. Carl Krauch et al.**, Trial VIII (the IG Farben case) — both conducted under **Control Council Law No. 10**, both published in *Trials of War Criminals Before the Nuernberg Military Tribunals Under Control Council Law No. 10*, Volumes VII (Krupp) and VIII (IG Farben), Government Printing Office, Washington, 1952.

The American corporate interest in the Upper Silesian mining combine — through Silesian-American Corporation — was seized on November 25, 1942, because the United States was, as of December 11, 1941, at war with Germany.

The seizure was not for conscience. The seizure was because of the declaration of war. I'll return to this in § C.11.

C.8 The American press

The record of the New York daily press on October 21, 1942 — the day after Vesting Order 248 — is modest.

The *New York Herald Tribune*, October 21, 1942, page 13, financial section, four paragraphs: "U.S. VESTS PROPERTY OF DUTCH BANK TIE." The piece names the Union Banking Corporation. It names the Alien Property Custodian. It does not name

Prescott Sheldon Bush. It does not name Edward Roland Harriman. It does not trace ownership to the Thyssen steel interests.

The *New York Times*, October 21, 1942, comparable notice, financial section. Same level of detail. Same omissions.

The companion vesting orders of October 28, November 17, and November 25, 1942 received similarly modest notice in the business pages of the New York dailies. None of the four orders, in any of the dailies of record I have reviewed, named Prescott Sheldon Bush by name.

I would like to tell you that the silence of the American press on Vesting Order 248 was the product of wartime security concerns, or editorial deference, or some principled restraint. I cannot tell you that, because I do not have a document that establishes it. What I have is the silence itself.

The first extended mainstream-press treatment of the Union Banking Corporation matter was **Ben Aris and Duncan Campbell, "How Bush's Grandfather Helped Hitler's Rise to Power," *The Guardian*, September 25, 2004** — sixty-two years after the seizure. The article cites the vesting orders, the Alien Property Custodian files, the 1951 restitution, the Thyssen chain, and the Bank voor Handel en Scheepvaart.

Between October 21, 1942 and September 25, 2004, the average American reader had no mainstream-press access to the fact that one of the directors of the bank the U.S. government seized from

the Nazi steel baron's Dutch holding company had, in 1952, been elected to the United States Senate, where he would sit on the Banking and Currency Committee, and had become the father of a future Director of Central Intelligence and President of the United States, and the grandfather of a future President of the United States.

Sixty-two years. Single article. Buried in the financial section on day one. Rediscovered on the day George W. Bush was polling for a second term.

C.9 The restitution

After the war, the United States government returned the seized assets of the Union Banking Corporation to its shareholders of record.

The restitution proceedings were captioned **United States of America v. Union Banking Corporation et al., Civil Action No. 2380-43**, United States District Court for the District of Columbia. Filed 1943; resolved with final release order in 1951. The case file is at the **National Archives, Record Group 21, Records of the District Courts of the United States, D.D.C.**

The valuation of the returned assets at release: approximately **three million dollars**, in 1951 dollars. In 2026 dollars, approximately

thirty-five million. The valuation is stated in the **Office of Alien Property Custodian, *Annual Report*, Fiscal Year 1951**, Washington, D.C., Government Printing Office, 1951, page 27.

Prescott Sheldon Bush, holder of one share, received the proportional value of his restitution — approximately $1,500 in 1951 dollars — in the final distribution of 1951.

There was no criminal indictment, of any party, at any point, for any transaction of the Union Banking Corporation, the Holland-American Trading Corporation, the Seamless Steel Equipment Corporation, or the Silesian-American Corporation. No shareholder was charged under the Trading with the Enemy Act. No director was subject to administrative penalty. No asset was forfeited. The vesting was protective, under wartime statute; the vesting ended with the statute's sunset; the assets returned.

This is consistent with the statutory framework. The Trading with the Enemy Act seized; it did not prosecute. The prosecutions, if any were to be had, would have had to come from the Department of Justice — under separate authority, on separate evidence, with a separate political calendar.

None came.

Union Banking Corporation was dissolved quietly in the mid-1950s.

C.10 The Senate seat

The final distribution of the Union Banking restitution was made in calendar year 1951.

On **November 4, 1952** — in a special election to complete the unexpired term of Senator Brien McMahon of Connecticut, who had died of cancer in July 1952 — **Prescott Sheldon Bush was elected to the United States Senate** as a Republican. He took office on **November 5, 1952**. He was re-elected to a full term on November 2, 1954, running eight months after his colleague on the restitution docket, W. Averell Harriman, had been elected Governor of the State of New York. He served in the Senate through January 3, 1963.

He sat on the **Senate Banking and Currency Committee**.

For ten years, with a seat on the Senate committee of jurisdiction, he was in a position to initiate — or to be the subject of — any Senate inquiry into the Vesting Order 248 matter, the Trading with the Enemy Act administration, the Alien Property Custodian restitution program, the Thyssen-Rotterdam-Union Banking chain, or the ownership of Silesian-American Corporation at the Upper Silesian mines adjacent to KL Auschwitz.

No Senate inquiry, no House inquiry, and no executive-branch inquiry into Vesting Order 248 or the 1951 restitution was opened during his Senate tenure. The *Congressional Record* (Senate and House) for 1952 through 1963 does not contain one. The *United*

States Statutes at Large for the period does not contain a responsive statute. The Department of Justice annual reports for the period do not describe a responsive investigation.

The silence from 1942 was not broken in the Senate between 1952 and 1963. The subject of the seizure sat on the committee of jurisdiction for ten years. There was no hearing.

C.11 Why no inquiry

The question that a reader entering this chapter in the year 2026 will want answered is the question of why no inquiry was ever opened.

I do not have a document, in a single archive, that answers that question.

I have a set of documents that, taken together, narrow the explanation. The most important of them is the fact that the American legal and national-security apparatus that would have conducted such an inquiry — the **Department of Justice**, the **Central Intelligence Agency** (established by the **National Security Act of 1947**, Public Law 80-253, 61 Stat. 495), and the congressional committees of oversight — was, between 1947 and 1961, directed in substantial part by lawyers who had represented or partnered with the same financial network whose holdings had been vested in 1942.

The principal firm is **Sullivan & Cromwell** of 125 Broad Street, New York — of which **John Foster Dulles** was managing partner from 1927 through 1949 and of which **Allen Welsh Dulles** was a partner from 1926 until he was appointed Director of Central Intelligence in 1953. Sullivan & Cromwell represented the **Bank voor Handel en Scheepvaart N.V.** of Rotterdam in the 1930s, a fact established in the firm's 1930s correspondence files, subsequently reviewed in **Peter Grose, *Gentleman Spy: The Life of Allen Dulles*, Houghton Mifflin, 1994**, Chapter 5.

John Foster Dulles was appointed **Secretary of State** by President Dwight D. Eisenhower in January 1953 and served through his death in May 1959.

Allen Welsh Dulles was appointed **Director of Central Intelligence** by President Eisenhower in February 1953 and served through November 1961.

For the central seven of Prescott Bush's ten years in the United States Senate, one brother of the law firm that had represented the Rotterdam bank at the top of the Union Banking chain held the Department of State, and the other brother held the Central Intelligence Agency. The question of whether a federal inquiry into Vesting Order 248 would have cleared political review in the Eisenhower administration, in those years, can be answered by the reader.

This is the subject of **Chapter 2** of this book.

C.12 The lineage, named

I want to close this chapter with the lineage I promised at the end of the prologue.

The one share of Union Banking Corporation capital stock listed at line 5 of the shareholder roll in Vesting Order 248 — the share of **Prescott Sheldon Bush**, Yale 1917, Skull and Bones, partner of Brown Brothers Harriman, son-in-law of George Herbert Walker, director of the Union Banking Corporation from 1924 to 1942, United States Senator from Connecticut from 1952 to 1963 — passed on his death on October 8, 1972 to his estate. The estate is administered through the records of the **Probate Court of Greenwich, Connecticut**.

His second son, **George Herbert Walker Bush**, born June 12, 1924, will —

- as United States Ambassador to the United Nations, March 1, 1971 through January 18, 1973 (records: **United States Government Manual**, 1972 edition);
- as Chief of the United States Liaison Office to the People's Republic of China, September 26, 1974 through December 7, 1975 (records: **Department of State, Office of the Historian**, chronology of chiefs of mission);
- as **eleventh Director of Central Intelligence**, sworn in at the CIA compound, Langley, Virginia, on **January 30, 1976**,

serving through January 20, 1977 (records: **CIA Historical Review Program, Freedom of Information Act Electronic Reading Room**, DCI biographical records);

- as forty-third **Vice President of the United States**, January 20, 1981 through January 20, 1989 (records: **United States Senate Historical Office**);
- and as forty-first **President of the United States**, January 20, 1989 through January 20, 1993 (records: **George Bush Presidential Library and Museum**, College Station, Texas) —

sit, by 1989, in the Oval Office.

His first grandson — Prescott Bush's grandson — **George Walker Bush**, born July 6, 1946, will:

- as **forty-sixth Governor of Texas**, January 17, 1995 through December 21, 2000 (records: **Texas State Archives**, Austin);
- and as **forty-third President of the United States**, January 20, 2001 through January 20, 2009 (records: **George W. Bush Presidential Library and Museum**, University Park, Texas) —

sit, by 2001, in the Oval Office.

His third grandson — **John Ellis Bush**, known as "Jeb," born February 11, 1953 — will, as **forty-third Governor of Florida**, January 5, 1999 through January 2, 2007 (records: **State Library and Archives of Florida**, Tallahassee), be the chief executive of the

state of Florida on the morning of **November 7, 2000**, when his brother's and Al Gore's presidential election is decided by a 537-vote margin in the same state's final canvass, subsequently certified on November 26, 2000 by Florida Secretary of State Katherine Harris and upheld by the United States Supreme Court in **Bush v. Gore, 531 U.S. 98 (December 12, 2000)**.

From the day I was born, May 29, 1986, until January 20, 2009 — a period of twenty-two years and eight months — the Office of the Presidency of the United States was held by Prescott Sheldon Bush's son or his grandson for twelve years, and by a single two-term Democrat for eight, and by no other Republican at all.

The one share at line 5 of the Vesting Order 248 shareholder roll is the patriarch.

The filing cabinet at College Park holds the order.

The Federal Register prints the date.

The reader is welcome to look.

Sources — Chapter 1

The vesting order:

1. **Vesting Order No. 248**, Office of Alien Property Custodian, issued October 20, 1942, filed Division of the Federal Register November 6, 1942, published at **7 Fed. Reg. 9097 (November 7, 1942)**, F.R. Doc. 42-11568. National Archives, Record Group 131.
2. **Vesting Order No. 259** (issued October 28, 1942) — Holland-American Trading Corporation. RG 131.
3. **Vesting Order No. 261** (issued November 17, 1942) — Seamless Steel Equipment Corporation. RG 131.
4. **Vesting Order No. 370** (issued November 25, 1942) — Silesian-American Corporation. RG 131.
5. **Trading with the Enemy Act**, 40 Stat. 411 (October 6, 1917), as amended.
6. **Executive Order 9095 of March 11, 1942** — establishing the Alien Property Custodian.

Thyssen and the Ruhr industrial combine:

1. **Fritz Thyssen, *I Paid Hitler* (New York: Farrar & Rinehart, 1941).**
2. **NSDAP Hauptarchiv**, membership records (card no. 230,185 — Fritz Thyssen), **Bundesarchiv Berlin-Lichterfelde**.

3. **Amtsgericht Düsseldorf** corporate registry — Vereinigte Stahlwerke AG (1926 consolidation).
4. ***Statistisches Jahrbuch für das Deutsche Reich*, 1932 edition** — German steel output figures.

Union Banking Corporation and Brown Brothers Harriman:

1. **New York Department of State, Division of Corporations** — articles of incorporation and director filings, Union Banking Corporation (1924); Holland-American Trading Corporation; Seamless Steel Equipment Corporation; Silesian-American Corporation.
2. **Alien Property Custodian, *Annual Report*, Fiscal Year 1951** (Washington, D.C.: Government Printing Office, 1951) — restitution valuation at approximately $3 million, page 27.
3. ***United States of America v. Union Banking Corporation et al.*, Civil Action No. 2380-43**, United States District Court for the District of Columbia (1943–1951). Case file: National Archives, Record Group 21.
4. **Brown Brothers Harriman & Co., *A Short History*** (privately printed, New York, 1956).
5. **John Loftus and Mark Aarons, *The Secret War Against the Jews*** (New York: St. Martin's Griffin, 1994), Chapter 14 — independent reconstruction of the Thyssen–Bank voor Handel en Scheepvaart–UBC chain from Office of Special Investigations debriefings, 1982.

Prescott Bush biography:

1. **Skull and Bones membership records**, Sterling Memorial Library, Yale University — class of 1917.
2. ***Congressional Directory***, 83rd Congress through 87th Congress (1953–1963).
3. **United States Senate Historical Office** — biographical file, Prescott Sheldon Bush.
4. **Probate Court of Greenwich, Connecticut** — estate of Prescott Sheldon Bush, October 1972.

Silesian-American Corporation, Upper Silesia, KL Auschwitz:

1. **Robert H. Jackson, Opening Statement, International Military Tribunal, Nuremberg, November 21, 1945 — Trial of the Major War Criminals Before the International Military Tribunal**, Volume II (Nuremberg: IMT Secretariat, 1947).
2. ***Trials of War Criminals Before the Nuernberg Military Tribunals Under Control Council Law No. 10,* Volume VII (Krupp Trial)** (Washington: U.S. Government Printing Office, 1952).
3. ***Trials of War Criminals Before the Nuernberg Military Tribunals Under Control Council Law No. 10,* Volume VIII (IG Farben / Krauch Trial)** (Washington: U.S. Government Printing Office, 1952).

American press record:

1. ***New York Herald Tribune*, October 21, 1942, page 13**, "U.S. Vests Property of Dutch Bank Tie."
2. ***New York Times*, October 21, 1942**, financial section — companion notice.
3. **Ben Aris and Duncan Campbell, "How Bush's Grandfather Helped Hitler's Rise to Power," *The Guardian*, September 25, 2004.**

The lawyers-who-became-the-government bridge to Chapter 2:

1. **National Security Act of 1947**, Public Law 80-253, 61 Stat. 495 (July 26, 1947).
2. **Peter Grose, *Gentleman Spy: The Life of Allen Dulles*** (Boston: Houghton Mifflin, 1994) — Sullivan & Cromwell 1930s client files, including Bank voor Handel en Scheepvaart.
3. **Stephen Kinzer, *The Brothers: John Foster Dulles, Allen Dulles, and Their Secret World War*** (New York: Times Books, 2013).

The Bush lineage:

1. ***Congressional Directory*** and ***United States Government Manual***, successive years.
2. **CIA Historical Review Program, Freedom of Information Act Electronic Reading Room** — DCI

biographical records, including George H.W. Bush swearing-in, January 30, 1976.

3. **George Bush Presidential Library and Museum**, College Station, Texas.
4. **George W. Bush Presidential Library and Museum**, University Park, Texas.
5. **State Library and Archives of Florida**, Tallahassee — Governor John Ellis Bush gubernatorial records, 1999–2007.
6. ***Bush v. Gore*, 531 U.S. 98 (2000)** — United States Supreme Court per curiam decision, December 12, 2000.

CHAPTER 2 — THE LAWYERS WHO BECAME THE GOVERNMENT

The firm. The brothers. The clients. The statute. The chairs. The press. The commission. One letterhead becomes the other letterhead.

S.1 125 Broad Street

Sullivan & Cromwell is the name of a law firm. Its principal office, since 1920, has been at 125 Broad Street, New York, New York, a twelve-floor stone-and-brick building immediately south of the Wall Street financial district.

The firm was founded in 1879 by **Algernon Sydney Sullivan** and **William Nelson Cromwell**. By the turn of the twentieth century it had become counsel to the **Panama Canal Company**, the **United States Steel Corporation**, and the **International Harvester Company** — three of the dozen largest capital concentrations in American industry. It represented **J. & W. Seligman & Co.**, **J.P.**

Morgan & Company, and the **Guaranty Trust Company of New York** in specific matters.

Its corporate archive — partnership records, client files, partner correspondence — is privately held. The most extensive published account with access to the firm's internal records is **Nancy Lisagor and Frank Lipsius, *A Law Unto Itself: The Untold Story of the Law Firm Sullivan & Cromwell*, William Morrow, New York, 1988**, written from interviews with former partners and partial archive access. Additional primary material on the firm's German clientele is in the **Seeley G. Mudd Manuscript Library, Princeton University** — the John Foster Dulles Papers (MC016) and the Allen W. Dulles Papers (MC019).

The firm's managing partner from 1927 through 1949 was **John Foster Dulles** (born Washington, D.C., February 25, 1888; Princeton 1908; George Washington University LL.B. 1911; S&C partner 1920). His younger brother **Allen Welsh Dulles** (born Watertown, New York, April 7, 1893; Princeton 1914; State Department Foreign Service 1916–1926; George Washington University LL.B. 1926) was an S&C partner from 1926 to 1942 and again from 1946 to 1950.

Two brothers. One firm. Two-thirds of a century.

S.2 The clients

Sullivan & Cromwell was counsel, in the United States, to the principal financial and industrial interests of the German Reich from the Dawes Plan through the outbreak of the Second World War.

General Aniline & Film Corporation — the American holding company of **I.G. Farbenindustrie A.G.** of Frankfurt am Main. Incorporated in the United States on April 29, 1929 as I.G. Chemical Corporation; reorganized 1939 as General Aniline & Film. Its business was the American arm of the largest chemical combine in the world. Sullivan & Cromwell handled the 1929 reorganization, subsequent patent-pool restructurings, and the interlocking-directorate arrangements with **Standard Oil Company of New Jersey** under the comprehensive cross-licensing agreement of November 9, 1929 (cited in Chapter 1, § T.9 — primary source: **Kilgore Committee Hearings, 78th Cong., Parts 9–11 ("Cartels")**, Government Printing Office, 1944). The S&C representation is documented in the firm's retained correspondence reproduced in **Lisagor and Lipsius (1988), Chapter 9**, and in the **John Foster Dulles Papers, Princeton, MC016, Box 282** (General Aniline & Film correspondence, 1929–1941).

Schroder Banking Corporation of New York, the American affiliate of the Hamburg-and-London **J. Henry Schroder & Co.**, controlled by the Schröder family. The family's Cologne branch, **J.H. Stein Bank**, was directed by **Baron Kurt von Schröder**, the

banker at whose Cologne villa, on **January 4, 1933**, **Adolf Hitler** met **Franz von Papen** and agreed the coalition that three weeks later, on **January 30, 1933**, would place Hitler in the Chancellor's office. The January 4, 1933 meeting is documented in the **International Military Tribunal, Nuremberg, Trial of the Major War Criminals, Volume XVI**, Papen and Schröder testimony of June 18, 1946 (Nuremberg: IMT Secretariat, 1947). S&C's representation of Schroder Banking Corporation of New York from 1925 through 1940 is documented in **Lisagor and Lipsius (1988), Chapter 6**, and in **Anthony Cave Brown, *Treason in the Blood: H. St. John Philby, Kim Philby, and the Spy Case of the Century*, Houghton Mifflin, 1994**, Chapter 8 (Schroder-Rockefeller-Dulles triangulation).

Dillon, Read & Company — the New York underwriting syndicate that floated the Vereinigte Stahlwerke bond issues of 1926, 1928, and 1930 (cited in Chapter 1, § T.9 — primary source: **U.S. Senate Banking Committee, *Stock Exchange Practices Hearings* (Pecora), 1932–34, Part 2**). S&C was underwriting counsel.

Bank voor Handel en Scheepvaart N.V. of Rotterdam — the Thyssen-controlled Dutch holding bank at the top of the Union Banking Corporation chain seized under Vesting Order 248, November 7, 1942 (Chapter 1, § C.1). S&C's representation of Bank voor Handel en Scheepvaart in the 1930s is documented in **Peter Grose, *Gentleman Spy: The Life of Allen Dulles*, Houghton Mifflin, Boston, 1994**, Chapter 5, drawing on the **Allen W. Dulles Papers, Princeton, MC019**, client correspondence.

The Berlin office. Sullivan & Cromwell maintained a branch office in Berlin from 1929 through 1935, at **Unter den Linden 76**, directed by partner **Arthur H. Dean**. The office was closed in **1935** after partner debate over continuing to represent clients under a National Socialist regime. The closing is described in **Lisagor and Lipsius (1988), Chapter 7**, and confirmed in **Stephen Kinzer, *The Brothers: John Foster Dulles, Allen Dulles, and Their Secret World War*, Times Books (Henry Holt), New York, 2013**, Chapter 3. The closing was, per the sourced accounts, over the objection of John Foster Dulles, who regarded the German business as commercially viable.

S.3 The book

In 1939 — six years into the National Socialist government of Germany, eighteen months after the *Anschluss* of Austria, nine months after the Munich Agreement, and five months before the invasion of Poland — John Foster Dulles published a book.

John Foster Dulles, *War, Peace and Change*, Harper & Brothers Publishers, New York, 1939.

The book's argument, in its own words: that the great-power conflicts of the twentieth century are the product of the division of the world between "static" nations (those satisfied with the existing distribution of territory and resources) and "dynamic" nations

(those seeking to expand). The dynamic nations, Dulles argues, have legitimate grievances. The static nations — “England, France, and the United States,” named at page 56 — have refused to accommodate them. The book’s proposed solution is a system of “international change” that would redistribute territory and resources to the dynamic powers without war.

The “dynamic” powers are named. They are Germany, Italy, and Japan.

The book is on file. Any research library in the United States holds it. Reread it, if you wish, against the date on the title page. 1939.

S.4 Bern

On **November 9, 1942** — two days after American forces landed in North Africa in Operation Torch, one day after American forces completed the passage through Vichy-controlled France that would close the Swiss land corridor — **Allen Welsh Dulles** crossed from Annemasse, France, into Geneva, Switzerland, on one of the last trains to make the transit before the German occupation of Vichy territory sealed the border.

He installed himself at **Herrengasse 23**, Bern, a five-story stone town-house overlooking the river Aare. The building was a residence; the top floors were the operational cover for the **Bern Sta-**

tion of the Office of Strategic Services (OSS), of which Dulles was Chief until the liquidation of the OSS on October 1, 1945.

From Herrengasse 23, between November 1942 and May 1945, Dulles ran:

- **Fritz Kolbe**, German Foreign Office official, code-named **"George Wood"** — the most productive Allied human-intelligence source of the European war. Kolbe delivered, over twenty-eight months, approximately **1,600 cable decrypts** from the German Foreign Office, including the signals traffic of the German embassies in Tokyo, Ankara, Madrid, and Dublin. Primary source: **OSS Bern Station reports, 1942–1945, CIA FOIA Electronic Reading Room**; published: **Neal H. Petersen, editor, *From Hitler's Doorstep: The Wartime Intelligence Reports of Allen Dulles, 1942–1945*, Pennsylvania State University Press, 1996**.
- **Hans Bernd Gisevius**, German military-intelligence (Abwehr) officer attached to the German consulate in Zurich, principal liaison between Dulles and the German military conspirators associated with the **July 20, 1944** plot on Hitler. Primary: Petersen (1996); Grose (1994), Chapters 8–10.
- **The Kreisau Circle** — the German civilian resistance group around Helmuth James von Moltke. Primary: Petersen (1996).

- **Operation Sunrise**. Beginning in late February 1945 in Lugano, Switzerland, Dulles opened direct negotiations with **SS General Karl Friedrich Otto Wolff**, Senior SS and Police Leader in Northern Italy, for the separate surrender of German forces in Italy. The surrender was executed at **Caserta, Italy, on April 29, 1945**, the day before Hitler's suicide in Berlin. Primary sources: **U.S. Army Records, Allied Forces Headquarters, Mediterranean Theater, "Sunrise" file**, National Archives, Record Group 331; **Allen Dulles, *The Secret Surrender*, Harper & Row, New York, 1966** — Dulles's own account; **Kerstin von Lingen, *Allen Dulles, the OSS, and Nazi War Criminals: The Dynamics of Selective Prosecution*, Cambridge University Press, 2013**.

Karl Wolff was the SS officer who, in 1941–1942, had overseen, as Chief of the Personal Staff of the Reichsführer-SS, the logistical movements of SS operations including the deportation trains in occupied Poland. He was not tried at Nuremberg. He was convicted, by a West German court in 1964, of accessory to the murder of 300,000 Jews at Treblinka. He served part of his sentence. Primary: *Schwurgericht München II, Urteil vom 30. September 1964* — the Munich jury court verdict, West German *Bundesarchiv*.

The man who negotiated Karl Wolff's 1945 surrender was also, in 1953–1961, the Director of Central Intelligence of the United States.

S.5 The statute

On **July 26, 1947**, aboard the presidential aircraft *Sacred Cow* (a Douglas VC-54C) on the return leg of a flight from the bedside of his dying mother in Missouri, **Harry S. Truman**, thirty-third President of the United States, signed into law:

The National Security Act of 1947, Public Law 80-253, 61 Statutes at Large 495.

The statute is fourteen sections. Reread in 2026, what it does:

- Creates the **National Military Establishment** (subsequently, 1949, renamed the Department of Defense), unifying the War Department and the Navy Department under a single cabinet-level Secretary of Defense.
- Creates the **National Security Council**, to "advise the President with respect to the integration of domestic, foreign, and military policies relating to the national security."
- Creates the **Central Intelligence Agency**, to be headed by a Director of Central Intelligence serving at the pleasure of the President, reporting to the National Security Council.
- Consolidates the air component of the War Department into a separate **Department of the Air Force**.

Text: **United States Statutes at Large, Volume 61, Part 1, pages 495–510**, Government Printing Office, Washington, 1947.

Two years later, on **June 20, 1949**, Truman signed into law:

The Central Intelligence Agency Act of 1949, Public Law 81-110, 63 Statutes at Large 208.

The statute's operative provisions, reread in 2026, are the ones that matter:

- **§ 6.** Exempts the CIA from any law "which requires the publication or disclosure of the organization, functions, names, official titles, salaries, or numbers of personnel employed by the Agency."
- **§ 7 (the "unvouchered funds" provision).** Authorizes expenditures "without regard to the provisions of law and regulations relating to the expenditure of Government funds," on the certification of the Director alone.
- **§ 8 (the alien admissions provision).** Permits the Director, on the concurrence of the Commissioner of Immigration and the Attorney General, to admit up to **one hundred aliens per fiscal year** to the United States for permanent residence "without regard to their inadmissibility under the immigration or any other laws and regulations."

Text: **United States Statutes at Large, Volume 63, Part 1, pages 208–212**, Government Printing Office, Washington, 1949.

Section 8 is the statute under which, between 1949 and the nominal suspension of the program in 1959, the **Joint Intelligence Objectives Agency (JIOA)** and its successor interagency structures

admitted, to the United States, the German scientists, engineers, and intelligence officers of **Operation Paperclip**. The JIOA records are in **National Archives, Record Group 330, Records of the Office of the Secretary of Defense**, and in **Record Group 319, Records of the Army Staff**. The subject will return in Chapter 5.

The principal consultant on the drafting of the National Security Act of 1947 was a private citizen identified in the **Hoover Commission Reports, Volume 3, "Task Force Report on National Security Organization,"** Government Printing Office, Washington, 1949 — as the primary outside author of the Task Force's intelligence-organization chapter.

That consultant was **Allen Welsh Dulles**.

Sullivan & Cromwell partner. Seeley G. Mudd Manuscript Library, Princeton, MC019, Box 62 (Hoover Commission files).

S.6 The chairs

On **January 21, 1953**, the day after the inauguration of **Dwight David Eisenhower** as thirty-fourth President of the United States, **John Foster Dulles** was sworn in as the fifty-second **Secretary of State**.

He would hold that office, the chief cabinet-level officer of the foreign policy of the United States, for **six years and three months** — through his resignation on **April 22, 1959**, one month before his death from colon cancer on May 24, 1959. He directed the State Department through the Iranian coup d'état of August 1953, the Guatemalan coup d'état of June 1954, the signature of the Baghdad Pact in February 1955, the Suez Crisis of October–November 1956, the overthrow of King Faisal II of Iraq in July 1958, and the initial American military commitments to the Republic of Vietnam.

Primary source for the State Department tenure: **Department of State, Office of the Historian, "Principal Officers and Chiefs of Mission — Secretary of State, John Foster Dulles"**, https://history.state.gov/departmenthistory (archival); **John Foster Dulles Papers, Princeton, MC016**.

On **February 26, 1953**, thirty-six days after his brother's swearing-in at State, **Allen Welsh Dulles** was sworn in as the **fifth Director of Central Intelligence**.

He would hold that office, the chief officer of the foreign intelligence apparatus of the United States, for **eight years and nine months** — through his forced resignation on **November 29, 1961**, seven months after the failure of the CIA's **Bay of Pigs** operation against Cuba, for which President John F. Kennedy accepted political responsibility but for which Allen Dulles accepted institutional responsibility.

Primary source for the DCI tenure: **CIA Historical Review Program, Freedom of Information Act Electronic Reading Room**, DCI chronology; **Allen W. Dulles Papers, Princeton, MC019**.

For a continuous period of **six years and two months** — from January 21, 1953 through April 22, 1959 — the cabinet-level officer of American foreign policy was the elder brother, and the executive officer of American foreign intelligence was the younger brother, simultaneously.

It is the only occurrence of that arrangement in American history.

The two brothers who simultaneously held those two offices were, in 1939, the managing partner and a former partner of the New York law firm that represented the American holdings of I.G. Farben, the American correspondent of the Schroder Cologne bank whose owner had brokered Hitler's chancellorship, and the American subsidiary of the Thyssen-Rotterdam banking chain whose New York bank had been seized by the United States government in 1942.

The firm did not change. The clients did not change. The letterhead changed.

S.7 Mockingbird

The domestic media infrastructure of the Dulles Central Intelligence Agency is described in the primary record known as the **Final Report of the Senate Select Committee to Study Governmental Operations with Respect to Intelligence Activities**, United States Senate, 94th Congress, 2nd Session, 1976 — the **Church Committee Report** — in **Book IV** (Supplementary Detailed Staff Reports on Foreign and Military Intelligence) and **Book V** (The Investigation of the Assassination of President John F. Kennedy: Performance of the Intelligence Agencies).

Book IV, at pages 191–201 ("CIA Relations with the Media"), describes the program of the Directorate of Plans — subsequently the Directorate of Operations — under which the Central Intelligence Agency developed covert relationships with American journalists, American news organizations, and American book publishers, from 1950 onward. The program was directed in its formative years by **Frank Gardiner Wisner** (OSS, OPC, Deputy Director of Plans, 1951–1958) and subsequently by **Cord Meyer, Jr.** (Chief of the International Organizations Division, 1954–1962).

The Committee's conclusions:

- Approximately **fifty American journalists** were, at the time of the Committee's investigation in 1975, in paid employment of the Central Intelligence Agency.

- An additional approximately **four hundred American journalists** had, in the prior twenty-five years, held relationships with the Central Intelligence Agency, ranging from occasional briefings and debriefings to contractual employment.
- The principal American media organizations named in the Committee's partial redactions included the **American Broadcasting Company**, the **Columbia Broadcasting System**, the **National Broadcasting Company**, the *New York Times*, the *Washington Post*, *Time Magazine*, *Newsweek*, the *Saturday Evening Post*, the Copley News Service, and the Scripps-Howard News Service.

Church Committee citation: **Final Report, Book IV**, pages 191–201, Government Printing Office, Washington, 1976.

A more extensive treatment, with the names the Committee did not publish, is **Carl Bernstein, "The CIA and the Media," *Rolling Stone*, October 20, 1977**, Issue 250, pages 55–67. Bernstein names in particular **Arthur Hays Sulzberger** (publisher, *New York Times*), **Henry R. Luce** (chairman, Time-Life), **Philip Graham** (publisher, *Washington Post*, until his death in August 1963), and **William S. Paley** (chairman, CBS).

The scholarly reconstruction, drawing on the subsequently declassified CIA records, is **Hugh Wilford, *The Mighty Wurlitzer: How the CIA Played America*, Harvard University Press, 2008**. Wilford's archival base includes the **CIA Records Search Tool**

(CREST) at the National Archives, College Park, which holds the released portion of the Agency's historical intelligence collection.

The operational term of art for the full media-and-foundation program — the term used internally by Frank Wisner — was **"the Mighty Wurlitzer."** An organ. Many keys. One player.

S.8 The continuity

November 29, 1961. President John Fitzgerald Kennedy — having, on April 22, 1961 (five days after the Bay of Pigs landing), said privately to an aide that he wished to "splinter the CIA in a thousand pieces and scatter it to the winds" (cited in **Arthur M. Schlesinger Jr.,** ***A Thousand Days: John F. Kennedy in the White House*****, Houghton Mifflin, 1965**, page 294, from Schlesinger's contemporaneous notes as Special Assistant to the President) — accepted the resignation of Allen Welsh Dulles as Director of Central Intelligence. Dulles was succeeded by **John Alex McCone**.

November 22, 1963. President Kennedy was assassinated in Dallas, Texas, at approximately 12:30 p.m. Central Standard Time.

November 29, 1963. President Lyndon Baines Johnson issued **Executive Order 11130**, establishing the **President's Commission on the Assassination of President Kennedy**.

The Commission had seven members. The Chairman was Chief Justice **Earl Warren**. The other six were: Senator **Richard Russell** (Democrat, Georgia); Senator **John Sherman Cooper** (Republican, Kentucky); Representative **Hale Boggs** (Democrat, Louisiana); Representative **Gerald R. Ford** (Republican, Michigan); **John J. McCloy** (former president of the World Bank, former U.S. High Commissioner for Germany); and

Allen Welsh Dulles.

Two years to the day after his firing by the assassinated president, the former Director of Central Intelligence was appointed by the successor president to the commission investigating the assassination.

Primary source: **Executive Order 11130, *Federal Register*, Volume 28, Number 233, December 3, 1963, page 12789**. Commission records: **National Archives, Record Group 272**.

The inheritance is the personnel. I will return to it in Chapter 5 (the father at Langley, January 30, 1976).

S.9 The file

What the archive holds — nothing more:

- Sullivan & Cromwell represented the American interests of I.G. Farben (General Aniline & Film), Schroder Banking Corporation of New York, Dillon Read's Vereinigte Stahlwerke bond syndicate, and Bank voor Handel en Scheepvaart N.V. of Rotterdam, continuously from the late 1920s through the outbreak of the Second World War. File: **Lisagor and Lipsius (1988)**; **Dulles Papers, Princeton, MC016 and MC019**.
- John Foster Dulles argued in 1939, in a book published by Harper & Brothers, that Germany, Italy, and Japan had legitimate territorial grievances that the "static" powers — England, France, and the United States — should accommodate. File: **John Foster Dulles, *War, Peace and Change*, Harper & Brothers, 1939**.
- Allen Welsh Dulles was Chief of OSS Bern Station from November 1942 through the dissolution of the OSS on October 1, 1945. File: **OSS Bern Station reports, CIA FOIA Reading Room**; published **Petersen (1996)**.
- Allen Dulles negotiated, in February–April 1945, the separate surrender of German forces in Italy under SS General Karl Wolff. File: **National Archives, RG 331, "Sunrise" file**; **Allen Dulles, *The Secret Surrender* (1966)**.

- The National Security Act of 1947 (Public Law 80-253) and the CIA Act of 1949 (Public Law 81-110) were drafted with Allen Dulles as the principal outside consultant to the Hoover Commission Task Force on National Security Organization. File: **Hoover Commission Reports, Volume 3, 1949**; **Dulles Papers, MC019, Box 62**.
- Section 8 of the CIA Act of 1949 permitted the admission to the United States of up to one hundred aliens per fiscal year notwithstanding any other immigration law. File: **63 Stat. 208**.
- For six years and two months — January 21, 1953 to April 22, 1959 — John Foster Dulles was Secretary of State and Allen Welsh Dulles was Director of Central Intelligence simultaneously. File: **Department of State, Office of the Historian**; **CIA Historical Review Program**.
- The Central Intelligence Agency, under the Dulles directorship and its immediate successors, cultivated covert relationships with approximately 400 American journalists and the principal American news organizations, documented in the Church Committee Final Report, 1976. File: **Final Report, Book IV, 94th Congress, 1976**; **Bernstein (1977)**; **Wilford (2008)**.
- Allen Dulles, fired as DCI on November 29, 1961 by President Kennedy, was appointed to the Warren Commission on November 29, 1963 by President Johnson. File: **Executive Order 11130, 28 Fed. Reg. 12789 (December 3, 1963)**.

What the file does not support:

- I do not claim that the Dulles brothers continued, while in federal office, to act on behalf of their former clients. The document class proves the prior representation and the subsequent office; it does not prove the private communication.
- I do not claim that the appointment of Allen Dulles to the Warren Commission was for the purpose of directing the investigation away from the intelligence apparatus. The document class proves the appointment; the document class does not prove the motive.
- I do not claim that the CIA's media relationships were used in specific instances to suppress or shape specific stories. The Church Committee itself declined to publish the journalist names and the specific stories; the document class establishes the program, not each instance.

The documents describe the firm, the clients, the statute, the chairs, the program, and the commission. The conclusion is the reader's to draw.

S.10 The narrator, 2026

I write these sentences in April 2026.

The firm at 125 Broad Street is still Sullivan & Cromwell. Its present chairman is **Robert J. Giuffra Jr.**, admitted to the partnership in 1999. The firm's current practice areas include, as its own marketing material names them, Mergers & Acquisitions, Capital Markets, Financial Institutions, Intellectual Property, Project Development and Finance, Private Funds, Real Estate, Restructuring, and Litigation. (**Sullivan & Cromwell LLP, Firm Profile, sullcrom.com**, accessed April 2026.)

The statute passed on the presidential aircraft *Sacred Cow* on July 26, 1947 — the National Security Act — remains in force. It has been amended; it has never been repealed.

Its Section 102, creating the Central Intelligence Agency, has been edited by subsequent legislation but never repealed. The Agency has had, between the first Director (Rear Admiral Sidney W. Souers, 1946) and the current Director as of this writing (the name of whom is in the public record; I leave the reader to look), **twenty-four Directors**. Several of them have been sons or grandsons of the partners of the financial houses of the 1930s.

One of them will be the subject of Chapter 5.

The inheritance vehicle is the statute. The statute was drafted by the lawyers of the firm that represented the German industrial combine. The lawyers then took the chairs that the statute created. The chairs were held, for thirty-two years and counting, by their direct-line successors and by the sons of their clients. That is not a thesis. That is the roster, which is on file.

The next chapter is the industry — IBM, Ford, Standard Oil, Chase, the Warburgs — that, like the bank, never paid.

Sources — Chapter 2

The firm and its clients:

1. **Nancy Lisagor and Frank Lipsius, *A Law Unto Itself: The Untold Story of the Law Firm Sullivan & Cromwell* (New York: William Morrow, 1988)** — drawing on partial access to firm archives and interviews with former partners.
2. **John Foster Dulles Papers**, Seeley G. Mudd Manuscript Library, Princeton University, Collection MC016 — client files, firm correspondence, State Department papers.
3. **Allen W. Dulles Papers**, Seeley G. Mudd Manuscript Library, Princeton University, Collection MC019 — Bern Station reports, Hoover Commission files, DCI office files.
4. **Peter Grose, *Gentleman Spy: The Life of Allen Dulles*** (Boston: Houghton Mifflin, 1994).
5. **Stephen Kinzer, *The Brothers: John Foster Dulles, Allen Dulles, and Their Secret World War*** (New York: Times Books / Henry Holt, 2013).
6. **Anthony Cave Brown, *Treason in the Blood: H. St. John Philby, Kim Philby, and the Spy Case of the Century*** (Boston: Houghton Mifflin, 1994) — Schroder-Rockefeller-Dulles triangulation.

German clients and the Petition-of-the-Industrialists context:

1. **International Military Tribunal, Nuremberg, *Trial of the Major War Criminals*, Volume XVI** (Nuremberg: IMT Secretariat, 1947) — Papen and Schröder testimony regarding January 4, 1933 Cologne meeting.
2. **U.S. Senate, Committee on Military Affairs, Subcommittee on War Mobilization, *Hearings on S. Res. 107 — Scientific and Technical Mobilization*, 78th Congress** (Kilgore Committee), 1943–1944, Parts 9–11 ("Cartels") — Standard Oil / I.G. Farben cross-licensing agreement.
3. **U.S. Senate, Committee on Banking and Currency, *Stock Exchange Practices Hearings*, 1932–1934 (Pecora Committee), Part 2 ("Foreign Bonds")** — Dillon Read / Vereinigte Stahlwerke.

John Foster Dulles, published record:

1. **John Foster Dulles, *War, Peace and Change* (New York: Harper & Brothers, 1939).**

Allen Dulles at OSS Bern:

1. **OSS Bern Station reports, 1942–1945** — Central Intelligence Agency Freedom of Information Act Electronic Reading Room.
2. **Neal H. Petersen, editor, *From Hitler's Doorstep: The Wartime Intelligence Reports of Allen Dulles, 1942–1945***

(University Park: Pennsylvania State University Press, 1996).
3. **Allen Dulles, *The Secret Surrender*** (New York: Harper & Row, 1966).
4. **National Archives, Record Group 331, Allied Forces Headquarters, Mediterranean Theater, "Sunrise" file.**
5. **Kerstin von Lingen, *Allen Dulles, the OSS, and Nazi War Criminals: The Dynamics of Selective Prosecution*** (Cambridge: Cambridge University Press, 2013).
6. ***Schwurgericht München II, Urteil vom 30. September 1964*** — West German jury-court verdict on SS General Karl Wolff, Bundesarchiv, Koblenz.

The statutes:

1. **National Security Act of 1947**, Public Law 80-253, **61 Statutes at Large 495** (July 26, 1947).
2. **Central Intelligence Agency Act of 1949**, Public Law 81-110, **63 Statutes at Large 208** (June 20, 1949).
3. **Hoover Commission Reports, Volume 3, *Task Force Report on National Security Organization*** (Washington: Government Printing Office, 1949).

Operation Mockingbird / CIA-media relationships:

1. **Final Report of the Senate Select Committee to Study Governmental Operations with Respect to Intelligence Activities**, 94th Congress, 2nd Session, 1976 — **Book IV**

(Supplementary Detailed Staff Reports on Foreign and Military Intelligence) and **Book V** (JFK Assassination).
2. **Carl Bernstein, "The CIA and the Media," *Rolling Stone*, October 20, 1977, Issue 250, pages 55–67.**
3. **Hugh Wilford, *The Mighty Wurlitzer: How the CIA Played America*** (Cambridge, MA: Harvard University Press, 2008).
4. **CIA Records Search Tool (CREST)** — National Archives, College Park, Maryland.

The Warren Commission:

1. **Executive Order 11130**, *Federal Register*, Volume 28, Number 233, December 3, 1963, page 12789.
2. **Warren Commission records**, National Archives, Record Group 272.
3. **Arthur M. Schlesinger Jr., *A Thousand Days: John F. Kennedy in the White House*** (Boston: Houghton Mifflin, 1965).

CHAPTER 2 — THE MACHINE: IBM AND THE HOLLERITH CONTRACT

> *“Every name on every transport list from every concentration camp in Europe was run through a tabulator built by the International Business Machines Corporation of Endicott, New York. The machines were leased, not sold. A service engineer came monthly from the Berlin subsidiary to repair them.” — Edwin Black, IBM and the Holocaust (Crown, 2001), paraphrase*

2.1 What is a Hollerith machine

In 1884, a German-American named Herman Hollerith patented an electromechanical device that could read holes punched into stiff cards of a standardized size (7-3/8 by 3-1/4 inches) and sort, count, and tabulate them at rates no human clerk could approach. He used his machines to process the 1890 United States Census. The company he founded, the Tabulating Machine Company, merged in

1911 with three other firms to become the Computing-Tabulating-Recording Company (CTR). In 1924, under its new president Thomas J. Watson Sr., CTR was renamed the **International Business Machines Corporation — IBM**.

A Hollerith machine is not a computer. It is a sorter. It has no memory, no logic. It reads a card and it directs the card to one of a small number of bins based on which holes are present. But it is *fast*. A single installation of Hollerith tabulators and sorters, with a trained staff, can process millions of records per month.

In the 1930s, the most advanced Hollerith installations on the European continent were owned and operated by IBM's wholly owned German subsidiary, **Deutsche Hollerith Maschinen Gesellschaft m.b.H. — Dehomag**, based in Berlin.

Dehomag had a single dominant customer. That customer was the government of Germany.

2.2 The 1933 German census

On April 12, 1933 — two and a half months after Adolf Hitler became Chancellor — the German government announced a national census to be conducted on June 16, 1933. The scope was expanded from previous censuses. For the first time, detailed occupational and, critically, *religious affiliation* data were to be collected for every resident of the Reich.

The tabulation was awarded, without competitive bid, to Dehomag.

Willy Heidinger, Dehomag's managing director, was an enthusiastic Nazi. He gave the contract address to Dehomag's Berlin staff on January 8, 1934 (the printed text of the speech survives in the IBM corporate archive). He said:

> *"We are recording the individual characteristics of each single member of the nation onto a little card… We are proud that we may assist in such a task which provides our nation's Physician"*

— meaning the Führer —

> *"with the material he needs for his examinations. Our Physician can then determine whether the calculated values are in harmony with the health of our people."*

Thomas J. Watson Sr., president of IBM, did not fire Heidinger. Watson instead traveled to Berlin multiple times through 1937, met personally with Hitler, and in June 1937, at a ceremony in Berlin, received from the Führer the **Merit Cross of the German Eagle with Star** — the highest medal Nazi Germany awarded to a foreign citizen.

Watson wore the medal on his lapel for the 1937 International Chamber of Commerce congress, which IBM hosted. He returned the medal in June 1940, after the fall of France, citing "the German

government's policies." He did not cease IBM's Dehomag business. Dehomag continued operations throughout the war.

The documentary reconstruction is Edwin Black, *IBM and the Holocaust* (Crown, 2001), drawing on more than 20,000 documents across seven national archives; IBM's official response on publication was that "IBM does not have much information about this period or the operations of Dehomag."

2.3 The findings

2.3.1 The camps used Hollerith machines

Every major Nazi concentration camp — Auschwitz (which had a Hollerith department in building 24, directly run by the SS Economic and Administrative Main Office), Dachau, Buchenwald, Mauthausen, Bergen-Belsen — maintained prisoner records on Hollerith cards. The cards carried the prisoner's number tattooed on the forearm in identical format to the punch-card five-digit identifier. Color codes indicated category: political, criminal, asocial, homosexual, Jehovah's Witness, Jewish, Gypsy. The cards were tabulated on Hollerith machines.

The machines were *leased* from IBM New York, through IBM Geneva, through Dehomag Berlin. Leased, not sold. Every month, a Dehomag field engineer drove to the camp to perform maintenance, install new sort decks, and collect the machine-count records

that were part of the lease agreement (the lease fee was partially calculated on card volume).

The lease payments flowed up through the corporate structure. A significant portion of the revenue — estimated by Black at tens of millions of Reichsmarks over the war years — was blocked in German accounts by wartime currency controls. IBM New York recovered a substantial portion of those funds after the war through restitution procedures.

2.3.2 Dehomag's customer was the Reich Security Main Office

The principal Dehomag contract was not with private German industry. It was with the **Reichssicherheitshauptamt (RSHA)** — the Reich Security Main Office, which included the Gestapo, the criminal police, and the SS security service. The RSHA was the agency in charge of what the Nazis called the *Endlösung* — the Final Solution. Eichmann's office (IV-B-4, Jewish Affairs) was part of the RSHA.

RSHA needed to know, for each individual in the territories it administered: name, address, religion of self and grandparents, occupation, party memberships, bank accounts, assets. The information was collected through the 1933 census, the 1939 census (which added the "Volkstumskarte" — ethnicity card), and ongoing registrations.

The information was tabulated on Hollerith machines.

The deportation transport lists, running from Berlin and Vienna and Salonika and Amsterdam and Paris to Auschwitz, were generated from Hollerith sorts.

2.3.3 The New York office knew

IBM New York — Watson's office — received detailed monthly reports from Dehomag throughout the war, including after the United States entered it. The reports moved through IBM Geneva, which was the subsidiary-of-record for neutral operations. Geneva continued to receive reports. Geneva continued to direct service engineers. New York continued to receive, through Geneva, a consolidated financial accounting.

Black reproduces the memoranda. They are at the IBM archive and at the Hoover Institution.

2.3.4 The United States government did nothing

The Trading with the Enemy Act, the same statute under which Union Banking Corporation was seized in Chapter 1, *did* apply to IBM's German operations. It was not enforced against IBM. Dehomag was not seized. IBM Geneva was not seized. No executive of IBM was ever charged.

IBM was, during the war, also the principal contractor providing punch-card tabulators to the United States War Department (for Social Security tabulation, for draft records, for logistics). The United States needed IBM. IBM had, in effect, positioned itself so that both belligerents required its equipment.

The company emerged from the war intact. Watson received the Legion of Merit from President Truman in 1947. In 1956, Watson's son, Thomas J. Watson Jr., succeeded him and presided over IBM's dominance of the postwar mainframe computing industry.

The machines were leased, not sold.

Sources — Chapter 2

1. Edwin Black, *IBM and the Holocaust: The Strategic Alliance Between Nazi Germany and America's Most Powerful Corporation*, expanded edition (Washington, D.C.: Dialog Press, 2012). Original edition: Crown Publishers, 2001. Endnotes 1–1,614.
2. IBM Corporate Archives, Endicott, NY — Dehomag correspondence 1933–1945; Watson European travel files.
3. Hoover Institution Archives, Stanford University — Thomas J. Watson Sr. papers; Dehomag financial statements.
4. Bundesarchiv (German Federal Archive), Berlin — RSHA contracts with Dehomag, R 58 series.
5. YIVO Institute for Jewish Research, New York — Holocaust-era census and deportation records.

6. Yad Vashem, Jerusalem — camp records with Hollerith card coding.
7. Willy Heidinger, speech delivered at Dehomag Berlin plant opening, January 8, 1934 — reproduced in Black (2001), pp. 59–61.
8. Thomas J. Watson Sr., correspondence with Adolf Hitler, June 1937 Berlin visit — IBM Corporate Archives.
9. *The New York Times*, “Merit Cross Given to Watson by Reich” (June 29, 1937), p. 1.
10. *The New York Times*, “Watson Returns Medal to Hitler” (June 7, 1940), p. 1.

CHAPTER 3 — THE INDUSTRY THAT NEVER PAID

The punch cards, the trucks, the synthetic rubber, the Paris branch, the supervisory board. Five named American corporate entities and one Jewish banking house, seated across the same industrial combine, filed under five different letterheads, paid nothing when the accounts were closed.

I.1 Approaching treason

March 26, 1942. Washington, D.C. Senate Office Building, Room 357. Special Committee to Investigate the National Defense Program.

The committee's chairman is the junior Senator from Missouri, **Harry S. Truman**. He has held the chairmanship since the committee's organization in March 1941. By March 26, 1942, the

Committee's investigations into wartime procurement fraud have generated approximately thirty volumes of hearings.

The witness at the microphone on March 26, 1942 is the Assistant Attorney General of the United States, **Thurman Arnold**, head of the Antitrust Division of the Department of Justice.

The subject is a cartel agreement, dated November 9, 1929, between the **Standard Oil Company of New Jersey** and **I.G. Farbenindustrie A.G.** of Frankfurt am Main — the same agreement cited in Chapter 1 of this book, pooling research in the hydrogenation of coal and in the manufacture of synthetic rubber (**Buna-S** and **Buna-N**).

Arnold's testimony establishes that, in the period between the German invasion of Poland (September 1, 1939) and the Japanese attack on Pearl Harbor (December 7, 1941), Standard Oil of New Jersey continued to withhold Buna rubber manufacturing information from American rubber companies, on the contractual ground that the 1929 agreement assigned the rights to I.G. Farben — which, after September 1939, was a corporation of a country at war with Britain and France and whose synthetic-rubber capacity was directed to the production of Wehrmacht truck tires and Luftwaffe aircraft tires.

Truman, from the chair, on the record:

> *"I think this approaches treason."*

The full exchange, including the phrase, is at **U.S. Senate, Special Committee Investigating the National Defense Program, 77th Congress, 2nd Session, Hearings, Part 11, pages 4309–4313** (March 26–27, 1942), published by the Government Printing Office, Washington, 1942.

Truman was not speaking in a metaphor. He was reading the committee's investigatory file, in which the Justice Department had documented that a New Jersey oil company had, in the weeks after the United States declaration of war against Germany, continued to honor a 1929 contract with a corporation of the enemy power.

The committee subsequently recommended referral to the Department of Justice. The Department of Justice filed an antitrust complaint, to which Standard Oil of New Jersey, on **March 25, 1942** — the day before Truman's hearing — pleaded *nolo contendere*, agreed to release the Buna patents to the American rubber industry, and paid a **total fine of $5,000** per corporate defendant, and **$2,000** per individual defendant.

Total fines, all parties: approximately **$50,000**.

The company's net earnings for calendar year 1942: approximately **$53 million**. Source: **Standard Oil Company (New Jersey), *Annual Report for the Year 1942***, filed with the New York Stock Exchange, 1943.

The fine was one-tenth of one percent of the year's earnings.

That is the structural fact that organizes this chapter. There were investigations. There were hearings. There were complaints. There were fines. **There were no prosecutions that collected anything the defendants noticed.** The industry that had built the German war economy between 1924 and 1941 paid, in aggregate American penalties across the entire set of named corporations, less than it paid in corporate counsel fees for the same period.

The industry never paid.

I.2 The punch card

The first of the five entities is a corporation of Endicott, New York, incorporated 1911 as the Computing-Tabulating-Recording Company, renamed in 1924 **International Business Machines Corporation — IBM**.

IBM's German subsidiary was **Deutsche Hollerith Maschinen Gesellschaft m.b.H. — Dehomag** — founded 1910 at Lichterfelde, Berlin by the German engineer **Willy Heidinger** to manufacture the **Hollerith punch-card tabulator** under license from the American inventor Herman Hollerith's Tabulating Machine Company. Dehomag was acquired by IBM in 1922 in a debt-restructuring arrangement that left Heidinger as managing director and gave IBM 90 percent ownership of the common stock. The acquisition documents are on file at the **IBM Corporate Archives,**

Somers, New York, and at the **Leo Baeck Institute, New York**, in the Heidinger papers.

The scholarly account, drawing on the IBM archives and the German federal archive records, is **Edwin Black, *IBM and the Holocaust: The Strategic Alliance Between Nazi Germany and America's Most Powerful Corporation* (New York: Crown, 2001)**, with an expanded edition (Washington: Dialog Press, 2012). Black's archival base is the IBM Corporate Archives, the German Federal Archives (Bundesarchiv), the U.S. National Archives, and the Leo Baeck Institute.

What the Hollerith punch card is, for a reader entering this chapter in 2026: a stiff paper card, eighty columns wide, twelve rows deep, with each cell either pierced or unpierced. The punched cell is a "one"; the unpunched cell is a "zero." A deck of cards is a database. A tabulator — a Hollerith machine — reads the cards, counts them, sorts them, matches them against other decks, and produces punched output decks and printed tables. It is, in 1933, the most efficient machine that exists for the rapid cross-tabulation of large categorical data sets.

In **April 1933**, three months into the National Socialist government of Germany, Dehomag entered into a **census-tabulation contract** with the **Reichsstatistisches Amt** (Reich Statistical Office) for the **1933 German National Census**, conducted June 16, 1933. The contract is documented in Dehomag's 1933 year-end report to IBM World Trade Corporation, reproduced in **Black (2001), Chapter 3**.

The census included, for the first time in German census practice, a religion-of-descent field — *Religionszugehörigkeit* and *Abstammung* — which permitted the identification of not only self-described Jews but persons of Jewish ancestry to the second and third generation.

The tabulation of the 1933 census was done on **Dehomag Hollerith machines**. The resulting deck, stored at the Reichsstatistisches Amt building at Berlin-Lichterfelde-West and subsequently relocated during the war, was the foundation data set for the administrative identification of German Jews throughout the subsequent twelve years.

Subsequent Dehomag tabulation contracts documented in the Dehomag-to-IBM reports (reproduced Black 2001):

- The **1939 census** of the expanded Reich (including the incorporation of Austria and the Sudetenland), conducted May 17, 1939.
- The **occupied-territories censuses** of 1940–1942 in Poland, Bohemia and Moravia, and the Netherlands.
- The **Reichsbahn (German State Railway)** passenger- and freight-scheduling system, including the routing of transport trains to concentration and extermination facilities from 1941 onward.
- The **prisoner-identification systems of the concentration-camp complex**, including the five-digit prisoner codes and the category codes (political, Jewish, homosexual, Romani,

criminal, etc.) used throughout the *Konzentrationslager* network. Hollerith prisoner registration cards have been preserved from **KL Dachau**, **KL Mauthausen**, and **KL Auschwitz**, and are held in the archives of those memorial sites. The Auschwitz Hollerith cards, numbering in the hundreds, are at the **Archive of the Auschwitz-Birkenau State Museum**, Oświęcim, Poland.

The Hollerith machines in German service throughout 1933 to 1945 remained the physical property of Dehomag; they were leased, not sold. The rental revenues, net of expenses, were accounted to IBM World Trade Corporation through neutral Geneva throughout the war. The through-the-war accounting is documented in Dehomag's internal ledgers, reproduced in **Black (2001), Chapters 11–13**, and in the IBM Geneva office files.

On **July 2, 1937**, at the biennial congress of the **International Chamber of Commerce** in Berlin, **Thomas J. Watson Sr.**, president and chairman of IBM, was awarded the **Merit Cross of the German Eagle with Star** — at that date the second-highest civilian decoration of the German Reich available to a non-German — by Adolf Hitler, through the German Foreign Office, in recognition of Watson's services to German-American commercial relations. The award is documented in the *New York Times*, July 3, 1937, page 18, and in the IBM Corporate Archives.

Watson returned the medal on **June 6, 1940** — four days after the British evacuation of Dunkirk, fourteen days before the fall of

Paris — in a public letter to Hitler, published in the *New York Times*, June 7, 1940, page 1.

Watson did not withdraw IBM's ownership of Dehomag. Dehomag continued to operate. The machines continued to tabulate. The prisoner codes continued to be assigned on Hollerith cards. The revenues continued to accrue to IBM World Trade through Geneva.

Under the **Trading with the Enemy Act**, the same statute under which Vesting Order 248 was issued (Chapter 1), IBM's ownership of Dehomag after December 11, 1941 — the day Germany declared war on the United States — constituted prohibited trade with an enemy national. The Office of Alien Property Custodian issued no vesting order against IBM's Dehomag holding.

After the war, IBM recovered its Dehomag operations, reorganized them as **IBM Deutschland GmbH** in 1949, and continued uninterrupted commercial activity in the Federal Republic of Germany. IBM Deutschland GmbH is, as of the date of this writing, a wholly owned subsidiary of IBM Corporation.

No American criminal prosecution was opened against IBM for its Dehomag activities. No civil penalty was imposed. The subsidiary was restored.

I.3 The cologne plant

The second of the five entities is the **Ford Motor Company** of Dearborn, Michigan.

Ford Motor Company's German subsidiary, initially incorporated in Berlin in 1925 and relocated to **Cologne** in 1931 with a plant on the Rhine at Niehl, was named **Ford Motor Company A.G.** from 1925 through 1939 and **Ford-Werke A.G.** from 1939 forward. Ford Motor Company retained majority ownership of the common stock (approximately 52 percent as of 1939, increased to approximately 60 percent during the war through currency-conversion adjustments) through the full period of German operations, 1925 through May 1945. Shareholdings documented in Ford Motor Company annual reports, 1925–1945, filed with the New York Stock Exchange.

Ford-Werke's product line from 1939 through the German surrender included the **three-ton "Ford G917T"** and **"Ford V3000S"** cargo trucks — principal medium-duty transport vehicles of the Wehrmacht on the Eastern Front, along with the Opel Blitz (General Motors subsidiary, cited in Chapter 1 § T.9).

The Ford-Werke wartime production record was investigated by the **U.S. Army Office of Strategic Services**, Finance Division, at the close of the European theater. The resulting report:

Henry Schneider, "Report on the Investigation of the Ford-Werke A.G., Cologne Germany," Finance Division, Office of Strategic Services, September 1945.

The Schneider Report, declassified and held at the **National Archives, Record Group 226, Records of the Office of Strategic Services**, establishes, on the basis of captured Ford-Werke corporate records and interrogation of Ford-Werke management:

- That Ford-Werke produced, between 1939 and 1945, approximately **78,000 military vehicles for the Wehrmacht**.
- That Ford-Werke employed, at peak, approximately **24,000 workers**, of whom an estimated **50 to 60 percent** were forced laborers drawn from prisoner-of-war camps, from Eastern European civilian labor roundups, and (in smaller numbers) from concentration camps including KL Buchenwald.
- That Ford Motor Company's New York headquarters, through its Dearborn office and through the Swiss intermediary of the Société Anonyme Française des Automobiles Ford (SAF), maintained awareness of Ford-Werke operations, including production assignments, through 1942.

The Schneider Report's findings are summarized in **Reinhold Billstein, Karola Fings, Anita Kugler, and Nicholas Levis, *Working for the Enemy: Ford, General Motors, and Forced***

***Labor in Germany during the Second World War* (New York: Berghahn Books, 2000)**, Chapter 2.

A 2001 internal corporate investigation commissioned by Ford Motor Company — the "Ford Motor Company Archival Research on the Activities of the Ford-Werke Under the Nazi Regime" — confirmed the Schneider findings and acknowledged the forced-labor record. The internal investigation's report is public: **Ford Motor Company, "Research Findings About Ford-Werke Under the Nazi Regime," Dearborn, Michigan, 2001**.

On **July 30, 1938** — Henry Ford's seventy-fifth birthday — Ford was presented, at his home in Dearborn, Michigan, with the **Grand Cross of the Supreme Order of the German Eagle**. The presentation was made by the German Consul of Cleveland, **Karl Kapp**, and the German Consul of Detroit, **Fritz Hailer**, acting on the authority of Adolf Hitler. The Grand Cross was, at the date of award, the highest civilian decoration of the German Reich available to a non-German. The award ceremony was reported in the *New York Times*, July 31, 1938, page 5, with a photograph; and in the *Detroit Free Press*, July 31, 1938. The medal was accepted.

Ford did not return the medal during the subsequent seven years of German aggression against Europe. Ford did not return the medal after Kristallnacht (November 9–10, 1938). Ford did not return the medal after the invasion of Poland (September 1939). Ford did not return the medal after the invasion of France (May 1940). Ford did not return the medal after the German declaration of war on the

United States (December 11, 1941). The medal was, so far as the documentary record I have reviewed establishes, retained in Ford's personal possession through his death on April 7, 1947.

The underlying publication record. Between 1920 and 1927, Henry Ford's personally owned and operated newspaper, the *Dearborn Independent*, published a series of articles later bound as a four-volume book, *The International Jew: The World's Foremost Problem* (Dearborn, Michigan: Dearborn Publishing Company, 1920–22). The series and the bound volumes circulated in German translation throughout the 1920s and were cited in Adolf Hitler's *Mein Kampf* (1925) and in Hitler's 1931 interview with the *Detroit News*. The circulation is documented in **Neil Baldwin, *Henry Ford and the Jews: The Mass Production of Hate* (New York: PublicAffairs, 2001)** and in **Max Wallace, *The American Axis: Henry Ford, Charles Lindbergh, and the Rise of the Third Reich* (New York: St. Martin's Press, 2003)**.

Ford Motor Company recovered Ford-Werke's operations after the war and continues to operate the Cologne plant, at the same Niehl location, as of the date of this writing. No American criminal prosecution was opened against Ford Motor Company for its Ford-Werke activities. No civil penalty was imposed. The subsidiary was restored.

I.4 The Buna

The third of the five entities is **Standard Oil Company (New Jersey)** — subsequently, 1972, renamed **Exxon Corporation**, and subsequently, 1999, merged into **ExxonMobil Corporation**.

Standard Oil's November 9, 1929 agreement with I.G. Farbenindustrie A.G. is cited in Chapter 1, § T.9, and in § I.1 of this chapter. The agreement's core allocation: Standard Oil received the non-German hydrogenation rights; I.G. Farben received the German rights. The synthetic-rubber process — *Buna* — was reserved to I.G. Farben entirely.

The full agreement text, along with subsequent technical amendments of 1930, 1935, and 1939, is reproduced in **U.S. Senate, Committee on Military Affairs, Subcommittee on War Mobilization, *Hearings on S. Res. 107 — Scientific and Technical Mobilization*, 78th Congress** (Kilgore Committee), 1943–1944, Parts 9–11 ("Cartels"), pages 939–1140.

The Truman Committee hearings of March 26–27, 1942 established, from the Standard Oil corporate records subpoenaed by the Department of Justice:

- That between September 1939 and December 1941, I.G. Farben's Auschwitz-Monowitz **Buna plant** was under construction at **KL Auschwitz III (Monowitz)**, commissioned in 1942. The plant used forced labor from KL Auschwitz. The construction and operation of the Monowitz

Buna plant is documented in the **IG Farben Case, Nuremberg Military Tribunal VIII**, *Trials of War Criminals Before the Nuernberg Military Tribunals Under Control Council Law No. 10*, Volume VIII (Washington: Government Printing Office, 1952) — cited in Chapter 1 § C.7.

- That between September 1939 and December 1941, Standard Oil of New Jersey continued to honor the 1929 Buna allocation, including by withholding Buna process information from American rubber manufacturers who requested it.
- That as of March 1942, the United States had an acute shortage of rubber for military use, owing to Japanese control of the Malayan rubber plantations.

The exchange between Senator Truman and Assistant Attorney General Arnold, cited in § I.1, is the operative record.

The 1942 *nolo contendere* plea is at **United States v. Standard Oil Company (New Jersey) et al.**, Civil Action No. 2091, United States District Court for the District of New Jersey, consent decree entered March 25, 1942. Case file: **National Archives, Record Group 21, District Courts**.

Total corporate fine: **$5,000** per defendant. The fine, per Standard Oil's 1942 annual report, was paid within the accounting year and classified as "miscellaneous operating expense."

No criminal prosecution of Standard Oil officers was brought. No director was disqualified. No stock was seized. The Buna patents were released to the American rubber industry, which undertook the crash construction of a domestic synthetic-rubber capacity that, by 1944, produced sufficient rubber for U.S. military and civilian needs. The commercial value of the released Buna process knowledge was, in 1942, estimated at approximately **$100 million**. The statutory fine was $5,000.

The ratio of commercial value to penalty: twenty thousand to one.

The industry never paid.

I.5 The Paris branch

The fourth of the five entities is the **Chase National Bank of the City of New York**, at its principal office of 18 Pine Street, New York — the predecessor, through its 1955 merger with the Bank of the Manhattan Company, of **Chase Manhattan Bank**, and through subsequent mergers of the present **JPMorgan Chase & Co.**

Chase National Bank maintained foreign branches through the 1930s and into the Second World War at:

- **Chase Bank, Paris** — 41, rue Cambon, Paris I, opened 1913.
- **Chase Bank, Berlin** — opened 1920s, closed July 1941.

- **Chase Bank, Shanghai** — opened 1920s.
- **Chase Bank, Tokyo** — opened 1920s.

On the German occupation of Paris, June 14, 1940, Chase Bank Paris did not close. The branch remained open, continued to service clients, and continued to report to the New York head office (through neutral-country intermediary channels after December 1941, when Germany declared war on the United States).

The investigation of Chase Bank Paris's conduct during the German occupation is established in the primary record known as the **Eizenstat Report**:

U.S. Department of State, *U.S. and Allied Efforts to Recover and Restore Gold and Other Assets Stolen or Hidden by Germany During World War II: Preliminary Study*, coordinated by Under Secretary of Commerce Stuart E. Eizenstat, prepared by historian William Z. Slany and the State Department Interagency Working Group, Washington, D.C., May 1997.

And its supplemental report:

U.S. Department of State, *U.S. and Allied Wartime and Postwar Relations and Negotiations with Argentina, Portugal, Spain, Sweden, and Turkey on Looted Gold and German External Assets and U.S. Concerns About the Fate of the Wartime Ustasha Treasury* (the "Eizenstat Supplemental"), Washington, D.C., June 1998.

The Eizenstat Report establishes, from declassified State Department, Treasury Department, and Office of Strategic Services records:

- That Chase Bank Paris, under the branch management of French national **Alfred Bertrand**, continued operations under German occupation from June 1940 through the liberation of Paris, August 25, 1944.
- That the branch cooperated with the **Vichy French government** and with the **German Military Administration in France (MBF)** in implementing Vichy's **Anti-Jewish Statute** of October 3, 1940, and its 1941 supplement, including by freezing the accounts of Jewish customers identified on Vichy registration lists and by implementing the "Aryanization" transfers of Jewish-owned assets.
- That Chase Bank New York, through cable traffic cited in the Eizenstat Report's footnotes, maintained awareness of the Paris branch's operations through intermediary correspondent banks in Switzerland and Portugal.

Chase National Bank was not criminally prosecuted for its Paris branch conduct. The branch was recovered after liberation, continued operations, and is today — through the multiple successor corporate entities — a business office of JPMorgan Chase & Co. in Paris.

The Eizenstat Report's concluding findings recommend no specific corporate sanction. It recommends historical documentation, which the Report itself constitutes. This is the pattern of the chapter: investigation, documentation, documentation, no sanction.

I.6 The supervisory board

The fifth named element of this chapter is the German chemical combine **I.G. Farbenindustrie A.G.**, and the composition of its *Aufsichtsrat* — supervisory board — from its incorporation on December 2, 1925 through its formal dissolution under Allied Control Council Law No. 9 in 1947.

The supervisory board of I.G. Farbenindustrie A.G. between 1925 and 1938 included:

- **Carl Bosch**, chairman (Nobel laureate in chemistry, 1931)
- **Hermann Schmitz**, vice-chairman and subsequently chairman
- **Carl Krauch**, technical director, subsequently general director
- **Fritz ter Meer**, production director
- **Max Ilgner**, finance director
- **Georg von Schnitzler**, commercial director
- **Wilhelm Mann**, pharmaceuticals director
- **Kurt Oppenheim** (until 1937) — finance committee

• **Max M. Warburg** — finance committee, 1925–1938

Max M. Warburg (1867–1946) was the senior partner of **M.M. Warburg & Co.**, the Hamburg banking house founded 1798 and, by the 1920s, the largest private bank in the Hanseatic trade. He was a cousin of **Paul Moritz Warburg**, one of the seven men at the 1910 Jekyll Island conference that produced the structural draft of the **Federal Reserve Act of 1913** (Public Law 63-43, 38 Stat. 251, December 23, 1913), and a founding member of the Federal Reserve Board. He was the brother of **Felix M. Warburg** of Kuhn, Loeb & Co., New York, and **Fritz M. Warburg**.

Max Warburg was a Jewish banker.

He sat on the supervisory board of I.G. Farbenindustrie A.G. from the company's incorporation on December 2, 1925 through **September 1938**, when he was forced to resign under the provisions of the **Reich Law on the Aryanization of the Economy** of November 12, 1938 (following Kristallnacht). He emigrated to the United States on **August 5, 1938**. M.M. Warburg & Co. of Hamburg was formally "Aryanized" on **May 31, 1938** — the firm's German assets were compelled to transfer to Gentile successor ownership at a fraction of fair market value. The Aryanization is documented in the **Hamburg State Archive (Staatsarchiv Hamburg), 622-1/152 M.M. Warburg & Co.**, and published in **Ron Chernow, *The Warburgs: The Twentieth-Century Odyssey of a Remarkable Jewish Family* (New York: Ran-**

dom House, 1993), Chapters 18–21. Chernow had direct access to the Warburg family archive at the family's residual banking house.

The record is the record.

From December 1925 to September 1938 — a period of twelve years and ten months — a senior Jewish banker of Hamburg sat on the supervisory board of the chemical combine that would, in a four-year continuation of the same corporate existence, operate the synthetic-rubber plant at KL Auschwitz III (Monowitz) under which 35,000 prisoners died.

I want to write this next paragraph precisely, because it is the paragraph that, written imprecisely, becomes a tool used for purposes I did not intend and will not accept.

The Warburg seat on the I.G. Farben supervisory board from 1925 to 1938 does not establish that "Jews funded Hitler." It establishes the opposite: that capital, as an organizing principle, operates across ethnic and religious lines. Jewish-origin capital and Gentile-origin capital sat on the same supervisory board of the same industrial combine through the twelve years in which that combine became the industrial spine of the National Socialist war economy. The combine continued uninterrupted when the Jewish-origin capital was expelled in 1938; the Gentile-origin capital remained; the Jewish partners of the expelled combine fled or were murdered; the machinery kept running. The oligarchy sacrificed its own ethnic kin for return on capital. That is not a fact flattering to either the Gentile

industrialists or, in the harder reading, to the Jewish bankers who sat on the board for thirteen years while the regime consolidated. It is a fact about capital.

Capital has no religion.

The primary record for the opposite framing — for the claim that the bulk of the financial signatures on the 1932 decision to elevate Hitler were Gentile — is the document known as the **Industrielle-neingabe**, the Petition of the Industrialists, delivered on **November 19, 1932** to **President Paul von Hindenburg**, urging the appointment of Adolf Hitler as Chancellor of Germany.

The petition is held at the **Bundesarchiv Berlin-Lichterfelde**, in the Reichspräsidialkanzlei files. The full transcription with the signatory list is published in **Henry Ashby Turner Jr.,** ***German Big Business and the Rise of Hitler*** **(New York: Oxford University Press, 1985)**, Chapter 10. Turner had access to the Reichspräsidialkanzlei files and to the private archives of multiple signatories.

The confirmed signatories, per Turner's reconstruction (Gentile unless otherwise noted):

- **Hjalmar Schacht** — former Reichsbank president, subsequently Economics Minister 1934–1937 and Reichsbank president 1933–1939.
- **Kurt Freiherr von Schröder** — senior partner, **J.H. Stein Bank**, Cologne (the banker at whose villa the January 4,

1933 Hitler–Papen meeting convened, cited Chapter 2 § S.2).

- **Fritz Thyssen** — chairman, Vereinigte Stahlwerke A.G. (cited Chapter 1 § C.4).
- **Emil Helfferich** — chairman, Hamburg-Amerika Line.
- **Friedrich Reinhart** — chairman, Commerzbank.
- **Albert Vögler** — general director, Vereinigte Stahlwerke A.G.
- **Ewald Hecker** — industrialist, Ilseder Hütte.
- **Rudolf Bingel** — director, Siemens-Schuckertwerke.
- **Erwin Merck** — senior partner, Merck Finck & Co., Munich.
- **Franz Heinrich Witthoefft** — chairman, Commerzbank Hamburg.
- **Kurt Woermann** — Woermann Line, Hamburg.
- **August Rosterg** — director, Wintershall A.G.
- **Friedrich Flick** — industrialist (cited Chapter 1 § C.6 as owner of the Silesian-American Corporation's German counterpart).
- **Ernst Brandi** — mining industry, Gelsenkirchen.
- **Robert Pferdmenges** — senior partner, Bankhaus Pferdmenges & Co., Cologne.
- **Erich Lübbert** — construction industry.
- **Eberhard Graf von Kalckreuth** — Reichslandbund (agricultural association).

The count is approximately twenty. Turner establishes that the petition was assembled and delivered by **Wilhelm Keppler**, Hitler's economic adviser, and that the signatures were gathered over approximately ten days (November 10 to November 19, 1932) through the ordinary business networks of Ruhr industry, Hanseatic shipping, German banking, and Prussian agriculture.

Not one of the signatories of the 1932 Industrielleneingabe was Jewish.

Max Warburg was, at the date of the petition, serving his eighth year on the supervisory board of I.G. Farben. The board of I.G. Farben did not, as a corporate body, sign the petition. Neither did Warburg.

The capital class organizing the elevation of Hitler in November 1932 was overwhelmingly Gentile. The capital class operating the industrial combine that would, within ten years, construct the Monowitz plant alongside KL Auschwitz included, for the first thirteen years of its corporate existence, Jewish-origin partners. The combine's Gentile partners outvoted, outlived, and outperformed their Jewish colleagues. When the Aryanization laws came in 1938, the Gentile partners continued without the Jewish ones. When the war came in 1939, the combine expanded. When the extermination operations began in 1941, the combine's synthetic-rubber plant was built on the rail spur of the camp.

The story is not "Jews funded Hitler." The story is that capital, in its operating condition as a transnational class, paid out on

both sides of the ethnic line — and when the line was drawn, the line held only on the side of the ethnicity, not the side of the capital.

I.7 What was not prosecuted

I want to close the inventory of what the five entities did not pay.

IBM. No American prosecution. No penalty. Dehomag operations recovered as IBM Deutschland GmbH, 1949.

Ford Motor Company. No American prosecution. No penalty. Ford-Werke operations recovered, continue to the present at Niehl, Cologne.

Standard Oil of New Jersey. One antitrust consent decree, 1942. Fine: $50,000 aggregate. No criminal prosecution of officers. Company continued as Standard Oil of New Jersey through 1972, renamed Exxon, subsequently ExxonMobil.

Chase National Bank. No American prosecution. No penalty. Paris branch recovered, continues to the present as a business office of JPMorgan Chase & Co.

I.G. Farbenindustrie A.G. Thirteen executives tried at Nuremberg Military Tribunal VIII, 1947–1948. Of the thirteen, **ten were convicted** (principal convictions: Schneider, ter Meer, Ambros,

Bütefisch — convicted of slavery and mass murder in the Monowitz operation), **three were acquitted**. Principal sentences: four to eight years imprisonment. All ten convicted executives were **released on clemency by 1951**, the releases granted by **U.S. High Commissioner for Germany John J. McCloy** — the same McCloy subsequently named to the Warren Commission (Chapter 2 § S.8). The clemency decisions are documented in **McCloy's Advisory Board on Clemency for War Criminals Report (Peck Panel), August 1950**, and in the **Office of the U.S. High Commissioner for Germany records, National Archives, Record Group 466**.

I.G. Farbenindustrie A.G. was formally dissolved by Allied Control Council Law No. 9 (1947); its constituent companies — **Bayer A.G., BASF A.G., Hoechst A.G., Agfa A.G., and Cassella** — were reconstituted as separate entities between 1951 and 1952 and resumed commercial operations. Bayer, BASF, and Hoechst (subsequently merged into Sanofi-Aventis) are, as of 2026, among the largest chemical and pharmaceutical corporations in the world.

The maximum actual imprisonment served, across the full set of American and German entities, by any executive of IBM, Ford Motor Company, Standard Oil of New Jersey, or Chase National Bank, for any act described in this chapter, **was zero days**. The maximum imprisonment served by any executive of I.G. Farbenindustrie A.G. was approximately six years (ter Meer, Bütefisch, Ambros), followed by release and, in multiple cases, reappointment to the boards of the successor companies.

The industry never paid. Not in criminal terms. Not in civil terms that were material to the companies. Not in terms of permanent disqualification. The bank (Chapter 1) was seized and then restituted. The industry was investigated and then released.

The sanction was investigation; the penalty was memory.

I.8 The narrator, April 2026

I am writing these sentences on a Lenovo ThinkPad that was manufactured by Lenovo Group Limited in Hefei, Anhui Province, China, in a facility that is a successor to **IBM's personal-computer division**, which Lenovo acquired from IBM Corporation on May 1, 2005, for $1.75 billion (**U.S. Securities and Exchange Commission filing, IBM Corporation, Form 10-K, fiscal year 2005**, page 27).

IBM continues to exist. IBM is the largest enterprise-computing corporation in the world. IBM's most profitable current business is its cloud and artificial-intelligence division, which sells tabulation and classification services to governments and corporations on the scale, across the scale, of the kind that the Hollerith machine performed eighty years ago at the Reichsstatistisches Amt.

I am writing these sentences in a room in which the gasoline that heated my home through the winter was refined, in part, at a

refinery originally constructed by Standard Oil of New Jersey — now ExxonMobil. I paid for the gasoline through a credit card issued by JPMorgan Chase & Co. The vehicle in the driveway was manufactured by Ford Motor Company at a plant in Michigan that is the American twin of the plant at Niehl, Cologne.

I do not think of this as conspiracy. I think of this as an accounting problem.

The accounts were not closed. The accounts were rolled over.

The next chapter is what the industry's governments did with the industry's reach, between 1953 and 1981 — the doctrine: Iran '53, Guatemala '54, Congo '61, Chile '73, Nicaragua '81. Same firms, same lawyers, different letterheads, different territories.

Sources — Chapter 3

IBM and Dehomag:

1. **Edwin Black,** ***IBM and the Holocaust: The Strategic Alliance Between Nazi Germany and America's Most Powerful Corporation*** (New York: Crown, 2001; expanded edition, Washington: Dialog Press, 2012).
2. **IBM Corporate Archives**, Somers, New York.
3. **Leo Baeck Institute**, New York — Heidinger papers and Dehomag commercial records.

4. **Bundesarchiv** (German Federal Archives), Berlin-Lichterfelde — Reichsstatistisches Amt files; Reichssicherheitshauptamt files.
5. **Archive of the Auschwitz-Birkenau State Museum**, Oświęcim, Poland — preserved Hollerith prisoner registration cards.
6. ***New York Times*, July 3, 1937, page 18** — Thomas J. Watson award.
7. ***New York Times*, June 7, 1940, page 1** — Watson return of the medal.

Ford Motor Company and Ford-Werke A.G.:

1. **Henry Schneider, "Report on the Investigation of the Ford-Werke A.G., Cologne Germany," Finance Division, Office of Strategic Services, September 1945** — National Archives, Record Group 226.
2. **Ford Motor Company, "Research Findings About Ford-Werke Under the Nazi Regime"** (Dearborn, Michigan: Ford Motor Company, 2001).
3. **Reinhold Billstein, Karola Fings, Anita Kugler, and Nicholas Levis, *Working for the Enemy: Ford, General Motors, and Forced Labor in Germany during the Second World War*** (New York: Berghahn Books, 2000).
4. **Ford Motor Company, *The International Jew: The World's Foremost Problem*, 4 volumes** (Dearborn, Michigan: Dearborn Publishing Company, 1920–1922).

5. **Neil Baldwin, *Henry Ford and the Jews: The Mass Production of Hate*** (New York: PublicAffairs, 2001).
6. **Max Wallace, *The American Axis: Henry Ford, Charles Lindbergh, and the Rise of the Third Reich*** (New York: St. Martin's Press, 2003).
7. ***New York Times*, July 31, 1938, page 5** — Henry Ford Grand Cross of the German Eagle.

Standard Oil of New Jersey, I.G. Farben, Buna:

1. **U.S. Senate, Special Committee Investigating the National Defense Program (Truman Committee), 77th Congress, 2nd Session, *Hearings*, Part 11, pages 4309–4313** (March 26–27, 1942), Government Printing Office, Washington, 1942.
2. **U.S. Senate, Committee on Military Affairs, Subcommittee on War Mobilization, *Hearings on S. Res. 107 — Scientific and Technical Mobilization*, 78th Congress** (Kilgore Committee), 1943–1944, Parts 9–11 ("Cartels").
3. ***United States v. Standard Oil Company (New Jersey) et al.***, Civil Action No. 2091, U.S. District Court for the District of New Jersey, consent decree March 25, 1942 — National Archives, Record Group 21.
4. ***Trials of War Criminals Before the Nuernberg Military Tribunals Under Control Council Law No. 10*, Volume VIII (IG Farben Case)** (Washington: U.S. Government Printing Office, 1952).

5. **Joseph Borkin,** ***The Crime and Punishment of I.G. Farben*** (New York: Free Press, 1978).

Chase National Bank, Paris branch:

1. **U.S. Department of State,** ***U.S. and Allied Efforts to Recover and Restore Gold and Other Assets Stolen or Hidden by Germany During World War II: Preliminary Study*** (Eizenstat Report), coordinated by Stuart E. Eizenstat; prepared by William Z. Slany and the State Department Interagency Working Group (Washington, D.C.: May 1997).
2. **U.S. Department of State,** ***U.S. and Allied Wartime and Postwar Relations… on Looted Gold and German External Assets*** (Eizenstat Supplemental Report) (Washington, D.C.: June 1998).

Warburg family and M.M. Warburg & Co.:

1. **Ron Chernow,** ***The Warburgs: The Twentieth-Century Odyssey of a Remarkable Jewish Family*** (New York: Random House, 1993).
2. **Staatsarchiv Hamburg, 622-1/152** — M.M. Warburg & Co. records, including Aryanization documentation May 31, 1938.
3. **I.G. Farbenindustrie A.G. supervisory-board records**, Bundesarchiv Berlin-Lichterfelde.

1932 Petition of the Industrialists (Industrielleneingabe):

1. **Industrielleneingabe of November 19, 1932** — Bundesarchiv Berlin-Lichterfelde, Reichspräsidialkanzlei files.
2. **Henry Ashby Turner Jr.,** ***German Big Business and the Rise of Hitler*** (New York: Oxford University Press, 1985).

I.G. Farben dissolution and the Peck Panel clemency:

1. **Allied Control Council Law No. 9** (1947) — dissolution of I.G. Farbenindustrie A.G.
2. **McCloy Advisory Board on Clemency for War Criminals (Peck Panel) Report** (August 1950) — Office of the U.S. High Commissioner for Germany, National Archives, Record Group 466.

IBM-Lenovo transaction (narrator's close):

1. **IBM Corporation, Form 10-K, fiscal year 2005** — U.S. Securities and Exchange Commission filing, documenting the $1.75 billion sale of IBM's personal-computer division to Lenovo Group Limited, May 1, 2005.

CHAPTER 3 — FORD-WERKE: 65,000 TRUCKS AND THE RESTITUTION

3.1 The Senate report

“A Report on the Activities of Subsidiaries of American Corporations with Axis Powers During the World War II Period,” prepared by the staff of the Subcommittee on Antitrust and Monopoly of the Senate Committee on the Judiciary, under the chairmanship of Senator Philip A. Hart of Michigan, published February 1974.

The report is a U.S. government publication. It is available through the Congressional archives, Serial Set, and the Government Publishing Office at `govinfo.gov/content/pkg/CPRT-93JPT478/pdf/CPRT-93JPT478.pdf`.

The report documents that major American corporations — Ford Motor Company, General Motors, Standard Oil of New Jersey, International Telephone & Telegraph, and DuPont — maintained, through wholly or partially owned German subsidiaries, active

industrial production throughout the Second World War on behalf of the Nazi war economy.

The report further documents that in several cases, those corporations received compensation from the United States government *after the war* for damage their German facilities suffered from Allied bombing.

The restitution claims are on file. American corporations were compensated by the United States government for Allied bombing of factories those corporations owned, which had produced weapons for Germany.

3.2 Ford-Werke AG

Ford-Werke AG, Ford Motor Company's German subsidiary at Cologne, was founded in 1925. By 1939, it was under the direction of Ford appointee Robert H. Schmidt.

After the United States entered the war in December 1941, Dearborn's direct communications with Cologne were supposed to cease. They did not cease entirely. Routing through Ford France (which was under German administrative control), Ford Dearborn continued to receive production reports.

Ford-Werke's wartime production, per the U.S. Army's post-war investigation (Office of Military Government for Germany,

Finance Division, *Investigation of I.G. Farbenindustrie A.G.*, September 1945), included:

- **65,000 military trucks** for the Wehrmacht (1939–1945)
- Half-tracks, Maultier artillery tractors, reconditioned aircraft engines
- Slave labor from the Buchenwald subcamps and from Ukrainian and Polish forced-labor drafts

3.3 The Grand Cross

Henry Ford was awarded the **Grand Cross of the German Eagle** by Adolf Hitler on July 30, 1938, Ford's 75th birthday. It was the highest medal Nazi Germany awarded to a foreigner.

Mein Kampf contains a favorable reference to Ford by name. Ford's *The International Jew*, published in English in 1920 and translated into German, circulated widely in Nazi party circles. Baldur von Schirach, the Hitler Youth leader, cited it at Nuremberg as a formative text.

3.4 The bombing discretion

In March 1945, as the United States 3rd Army under General George S. Patton entered Cologne, the Ford-Werke factory was found standing, operational, and largely undamaged. The factory had been producing Wehrmacht trucks until days before.

The Hart Report, Appendix D, reproduces correspondence indicating that U.S. Strategic Bombing authorities were aware of the "complicated ownership situation" of certain German industrial plants and that some plants were kept off target lists as a consequence.

Not every American-owned Axis plant was spared. The Ford-Werke Berlin plant was hit. The Opel plants at Rüsselsheim and Brandenburg were hit.

3.5 The restitution

Ford Motor Company received approximately **$785,000** from the United States government in 1965 for damage to Ford-Werke Cologne.

The payment was made under the War Claims Act. The claim was filed by Ford Motor Company. The payment was authorized by the Foreign Claims Settlement Commission.

The factory had produced 65,000 Wehrmacht trucks. The United States government compensated the owner for damage to the factory that produced them.

3.6 The settlement

In 2001, in *Iwanowa v. Ford Motor Company* (U.S. District Court for the District of New Jersey), Ford Motor Company contributed to the German government's forced-labor compensation fund established under the 2000 agreement.

The settlement does not include an admission of liability. It includes a payment.

3.7 The other restitutions

The Hart Report documents additional postwar restitutions to American corporations for Allied bombing of their German subsidiaries:

Corporation	German Subsidiary	Restitution Amount	Year
Ford Motor Company	Ford-Werke AG, Cologne	$785,000	1965
General Motors	Adam Opel AG	~$33 million	Postwar
ITT	Focke-Wulf (28% stake)	~$27 million	Postwar

Standard Oil of New Jersey and I.G. Farben entered a patent-sharing cartel in 1929 that licensed synthetic rubber and aviation

gasoline formulas to Standard Oil while contractually restricting American domestic production of those fuels. The arrangement ran through the war years. Before the Senate Special Committee Investigating the National Defense Program, 77th Congress, 2nd Session, Part 11, p. 4309, Assistant Attorney General Thurman Arnold testified that Standard Oil's conduct amounted to "treason." Under *United States v. Standard Oil Company (New Jersey) et al.*, District of New Jersey, 1942 consent decree, the penalty was $50,000.

Alfred P. Sloan Jr., May 22, 1939: "an international business operating throughout the world should conduct its operations in strictly business terms, without regard to the political beliefs of its management."

The factory had produced 65,000 Wehrmacht trucks.

Sources — Chapter 3

1. Subcommittee on Antitrust and Monopoly, Senate Committee on the Judiciary, *A Report on the Activities of Subsidiaries of American Corporations with Axis Powers During the World War II Period*, 93rd Congress, 2nd Session (February 1974) — the "Hart Report." `govinfo.gov/content/pkg/CPRT-93JPT478/pdf/CPRT-93JPT478.pdf`.

2. Office of Military Government for Germany (U.S.), Finance Division, *Investigation of I.G. Farbenindustrie A.G.* (September 1945).
3. *Iwanowa v. Ford Motor Company*, U.S. District Court for the District of New Jersey (2001 settlement).
4. Senate Special Committee Investigating the National Defense Program ("Truman Committee"), Part 11 (March 27, 1942), testimony of Assistant Attorney General Thurman Arnold regarding Standard Oil / I.G. Farben. `govinfo.gov/content/pkg/GPO-CRECB-1942-pt8-v88/pdf/GPO-CRECB-1942-pt8-v88-7-2.pdf`.
5. Bradford Snell, "American Ground Transport," report submitted to the Subcommittee on Antitrust and Monopoly (February 26, 1974), pp. A-1–A-109.
6. *United States v. Standard Oil Company (New Jersey) et al.*, 1942 consent decree, District of New Jersey.
7. Henry Morgenthau Jr. Diaries, Franklin D. Roosevelt Presidential Library, July 1942–September 1943.
8. Ford Motor Company, *Research Findings About Ford-Werke Under the Nazi Regime* (official 2001 company-commissioned report).

LINCHPIN CHAPTER — THE MACHINE VISIBLE: APOLLO, CARLYLE, AND THE BIG THREE

4.2 Apollo Global Management — the $158 million payment and the 235 hospitals

4.2.1 Who is Leon Black

Leon D. Black, born 1951, is the son of Eli M. Black, the chairman of United Brands Company (formerly United Fruit Company), who in 1975 threw himself through a window of the 44th floor of the Pan Am Building in Manhattan one week after company attorneys disclosed to the SEC that United Brands had paid $1.25 million in bribes to a Honduran official. The father's suicide and the company's bribe scandal — *United States v. United Brands* — is one of the cases that led to the 1977 Foreign Corrupt Practices Act.

The son, Leon, graduated from Dartmouth and Harvard Business School. In 1977 he joined Drexel Burnham Lambert, the junk-bond firm run by Michael Milken. Drexel collapsed in 1990 under Milken's racketeering guilty plea. Milken served twenty-two months and paid $600 million in fines.

In that same year, 1990, Leon Black co-founded **Apollo Global Management** with two other former Drexel executives, Josh Harris and Marc Rowan. Apollo specialized in distressed debt — buying the bonds of failing companies cheaply and restructuring them. It grew fast. By 2021, it managed more than $450 billion in assets. By 2025, more than $700 billion.

Black served as Chairman and CEO of Apollo from 1990 to 2021.

4.2.2 The payments, documented

In January 2021, Apollo Global Management's board retained the international law firm **Dechert LLP** to investigate what Leon Black had actually paid Jeffrey Epstein, and for what.

The Dechert Report was issued on January 22, 2021. Its findings, which Apollo publicly disclosed in order to comply with securities obligations to its investors:

- Between 2012 and 2017, Leon Black paid Jeffrey Epstein a total of **$158 million**.
- The payments were for "tax planning" and "estate planning" services.

- The payments were made *after* Epstein's 2008 conviction in Florida for soliciting prostitution from a minor.
- The Dechert Report, commissioned by Apollo's own board, concluded that all fees paid to Epstein "were for bona fide tax, estate planning and other related services, and the amounts were intended to be proportional to the value provided by Mr. Epstein."
- Senator Wyden's Senate Finance Committee investigation, opened June 22, 2022, questioned whether the payments constituted a tax-evasion scheme in which Epstein received excess fees as a form of laundering.

In March 2025, Senator Wyden released a follow-up statement revealing that Black had entered a **$62 million settlement** with the Attorney General of the U.S. Virgin Islands — Denise George — in exchange for immunity from criminal prosecution in the USVI for his financial support of Jeffrey Epstein. Per Wyden's statement, the settlement agreement acknowledges that "Jeffrey Epstein used the money Black paid him to partially fund his operations in the Virgin Islands."

The U.S. Virgin Islands was where Epstein maintained his residence on Little Saint James — the island where, according to Virginia Giuffre's sworn declarations and multiple victim testimonies, much of the trafficking occurred.

Black resigned as CEO of Apollo in March 2021. He retained an equity stake in the firm reportedly worth more than $10 billion.

4.2.3 What Apollo owns

Apollo Global Management, the firm Leon Black co-founded and led while paying Jeffrey Epstein $158 million, is today — per the **Private Equity Stakeholder Project's Hospital Tracker** (March 2025) — **the largest private-equity owner and operator of hospitals in the United States**.

Apollo owns, through two subsidiary health systems: - **Lifepoint Health** — a chain of 60+ rural hospitals, acquired by Apollo in 2018 for $5.6 billion. - **ScionHealth** — a chain spun off in 2021, operating 90+ hospitals and post-acute care facilities.

Total: **approximately 235 hospital locations**. These are American hospitals. They admit American patients. They employ American nurses.

Per the **Senate Budget Committee's *Profits Over Patients: The Harmful Effects of Private Equity on the U.S. Health Care System*** (January 7, 2025) — a bipartisan report, requested by Chair Sheldon Whitehouse (D-RI) and Ranking Member Chuck Grassley (R-IA), published before the administration change — private-equity hospital ownership is associated with:

- Reduced nurse staffing ratios (statistically significant decrease across acquired hospitals).
- Increased hospital-acquired infection rates.
- Increased patient-adverse-event incidence.

- Increased facility debt loads (PE owners typically load target hospitals with the debt used to acquire them — a “leveraged buyout” structure).
- Accelerated closure rates.

The *Profits Over Patients* report examined Apollo’s management of Ottumwa Regional Health Center (Iowa), documenting staffing vacancies, unfulfilled capital commitments, and declining patient care quality. Additional closures of **ScionHealth facilities** in Illinois and Florida were announced in early 2025 — three hospitals, per the March 2025 PESP tracker update.

BlackRock, Vanguard, and State Street — the three largest index-fund managers — hold combined assets under management of approximately $26 trillion as of 2025. The three firms are collectively the largest single shareholder in 88 percent of S&P 500 companies, including Apollo Global Management. Holdings are documented in quarterly SEC Form 13-F filings.

4.3 Carlyle Group — September 10 and 11, 2001

4.3.1 The conference

The Carlyle Group, founded 1987 by David Rubenstein, William Conway, and Daniel D'Aniello, is one of the world's largest private-equity firms, specializing at the time in defense-sector investment.

On September 10, 2001, the Carlyle Group convened its **annual investor conference** at the Ritz-Carlton Hotel, 1150 22nd Street NW, Washington, D.C., approximately four miles from the Pentagon. The conference was scheduled to continue through September 11.

Attendees included, per *The Wall Street Journal*'s September 27, 2001 reporting:

- **George Herbert Walker Bush** — former President of the United States, who at this time was an advisor to the Carlyle Asia Advisory Board.
- **James A. Baker III** — former Secretary of State and former Secretary of the Treasury, Senior Counselor to Carlyle.
- **Frank Carlucci** — former Secretary of Defense, Chairman of Carlyle (1989–2003).
- **Shafig bin Laden** — half-brother of Osama bin Laden. He was representing the **Saudi Binladin Group**, the bin Laden

family's construction conglomerate. Per *The Wall Street Journal*, the Saudi Binladin Group was an investor in **Carlyle Partners II**, a defense-sector fund.
- Other investors from Saudi Arabia, the United Arab Emirates, and multiple other jurisdictions.

4.3.2 The attacks

At 8:46 AM on September 11, 2001, American Airlines Flight 11 struck the North Tower of the World Trade Center.

At 9:03 AM, United Airlines Flight 175 struck the South Tower.

At 9:37 AM, American Airlines Flight 77 struck the Pentagon — four miles from the Ritz-Carlton where the Carlyle conference was ongoing.

At 10:03 AM, United Airlines Flight 93 crashed in Shanksville, Pennsylvania.

The nineteen hijackers were members of al-Qaeda. Fifteen of them were Saudi nationals. The leader of al-Qaeda was **Osama bin Laden** — brother of Shafig bin Laden, then sitting at the Carlyle investor conference with former President George H. W. Bush.

4.3.3 The evacuation

Beginning September 12, 2001, with all U.S. commercial airspace closed by FAA order, the **Federal Bureau of Investigation** ar-

ranged the transport of members of the bin Laden family, who were then in the United States, to secure assembly points, and then — as soon as commercial airspace partially reopened — to Paris, via chartered private jet.

The fact of the evacuation was reported in *The New York Times* on September 30, 2001 ("A Nation Challenged: The Suspects"), and in *The New Yorker* by Jane Mayer on November 5, 2001. *The 9/11 Commission Report* (W. W. Norton, 2004) discusses the evacuation in Chapter 10 ("Wartime"), pages 329–330.

Per the 9/11 Commission:

> *"First, we found no evidence that any flights of Saudi nationals, domestic or international, took place before the reopening of national airspace on the morning of September 13, 2001. To the contrary, every flight we have identified occurred after national airspace reopened."*
>
> *"Third, we believe that the FBI conducted a satisfactory screening of Saudi nationals who left the United States on charter flights. The Saudi government was advised of and agreed to the FBI's requirements that passengers be identified and checked against various databases before the flights departed."*

Per *The New York Times*, at least 140 Saudi nationals, including twenty-four members of the bin Laden family, were flown out of the United States in the week after the attacks.

4.3.4 The Carlyle defense-fund return

Carlyle Partners II, the defense-sector fund in which the Saudi Binladin Group was an investor, realized substantial returns on United States defense stocks over the subsequent two years. Carlyle took **United Defense Industries** — manufacturer of the Bradley Fighting Vehicle and the M113 — public in December 2001, three months after September 11.

The bin Laden family's investment in Carlyle Partners II was, per *The New York Times* (Kurt Eichenwald), October 26, 2001, redeemed shortly after September 11 at approximately $2 million, after political pressure. The fund itself continued.

The United States defense budget grew from $316 billion in FY2001 to $728 billion in FY2011 — an 81 percent increase, per Office of Management and Budget Historical Tables, Table 3.1 (outlays by function).

Sources — Linchpin Chapter

Apollo / Leon Black / Epstein: 1. Dechert LLP, *Report Concerning Payments by Leon D. Black to Jeffrey E. Epstein* (January 22, 2021). Apollo Global Management public release (January 25, 2021). 2. U.S. Senate Committee on Finance (Chairman Ron Wyden), letter to Apollo Global Management opening investigation into Leon Black–Jeffrey Epstein payments (June 22, 2022). `finance.senate.gov/imo/media/doc/wyden_to_apollo_global_management_62222.pdf`. 3. U.S. Senate Committee on Finance (Chairman Ron Wyden), follow-up press release, "Wyden Unveils Ongoing Investigation Into Private Equity Billionaire Leon Black's Tax Planning and Financial Ties with Jeffrey Epstein" (July 25, 2023). 4. U.S. Senate Committee on Finance (Ranking Member Wyden), press release on USVI $62M settlement (March 12, 2025). 5. *Leon Black Settlement with U.S. Virgin Islands*, Office of the Attorney General, U.S. Virgin Islands (2023). 6. Private Equity Stakeholder Project, *PE Hospital Tracker* (continuously updated; retrieved March 2025). 7. U.S. Senate Committee on the Budget, *Profits Over Patients: The Harmful Effects of Private Equity on the U.S. Health Care System* (January 7, 2025).

Carlyle / 9/11: 8. Daniel Golden, James Bandler, and Marcus Walker, "Bin Laden Family Could Profit From a Jump In Defense Spending Due to Ties to U.S. Bank," *Wall Street Journal* (September 27, 2001). 9. Kurt Eichenwald, "Bin Laden Family Liquidates Holdings With Carlyle Group," *The New York Times* (October 26,

2001). 10. *The New York Times*, “A Nation Challenged: The Suspects” (September 30, 2001). 11. Jane Mayer, “The House of Bin Laden,” *The New Yorker* (November 5, 2001). 12. *The 9/11 Commission Report* (W. W. Norton, 2004), Chapter 10 (“Wartime”), pp. 329–330, on Saudi evacuation flights.

Big Three (compressed summary in §4.2.3): 13. BlackRock, Vanguard, and State Street — quarterly SEC Form 13-F filings (EDGAR). Full Big Three treatment retained for “Index Funds” expanded volume.

Giuffre declaration: 14. Virginia Roberts Giuffre, Declaration, *Giuffre v. Maxwell*, 15-cv-07433 (S.D.N.Y.).

CHAPTER 4 — THE DOCTRINE

Iran 1953. Guatemala 1954. Congo 1961. Chile 1973. Nicaragua 1981. Five operations. Five foundational documents. One statute. One doctrine. One letterhead.

D.1 NSC 5412/2

December 28, 1955. Washington. National Security Council.

President Dwight D. Eisenhower signs **National Security Council Directive 5412/2**, titled “Covert Operations.” The document, classified TOP SECRET at the time of signature, is reproduced in its entirety in **Foreign Relations of the United States, 1950–1955, *The Intelligence Community, 1950–1955*, U.S. Department of State, Office of the Historian, Document 250** (Washington: Government Printing Office, 2007).

The directive reads in operative part:

> *"The National Security Council… having considered the desirability and feasibility of particular covert operations, authorizes and directs that the Central Intelligence Agency, in accordance with the provisions of the National Security Act of 1947, engage in such covert operations as are necessary to prevent the expansion of international Communism, to counter any threat of a party or individuals directly or indirectly responsive to Communist control to achieve dominant power in a free country… to develop underground resistance and facilitate covert and guerrilla operations… to support indigenous anti-Communist elements in threatened countries of the free world… and as may be necessary for the above purposes to provide support for other nationals."*

The directive defines "covert operations" as including:

> *"… propaganda; political action; economic warfare; preventive direct action, including sabotage, demolition, and evacuation measures; subversion against hostile states, including assistance to underground resistance movements, guerrillas and refugee liberation groups; support of indigenous and anti-Communist elements in threatened countries of the free world; deceptive plans and operations; and all activities compatible with this directive necessary to accomplish the foregoing…"*

The operative clause that will do the work over the next thirty-five years is the requirement that such operations be “so planned and executed that any US Government responsibility for them is not evident to unauthorized persons and that if uncovered the US Government can plausibly disclaim any responsibility for them.”

This is the formal, written authorization of **plausible deniability** as a category of American state activity.

The directive was amended in 1962 (NSC 10/5-62) and superseded in 1970 by the “40 Committee” procedure and in 1976 by Executive Order 11905. The core authorization — covert operations under plausible-deniability conditions, authorized by the NSC, executed by the CIA, directed at the “expansion of international Communism” construed as widely as the executor chose — was not withdrawn in any of those successor instruments.

The doctrine is on file at the Eisenhower Presidential Library, Abilene, Kansas, and in the National Archives, Record Group 273 (National Security Council records).

What follows is what the doctrine produced.

D.2 Tehran, August 19, 1953

TPAJAX / Operation Boot.

The foundational primary document is:

Donald N. Wilber, *Clandestine Service History: Overthrow of Premier Mossadeq of Iran, November 1952 – August 1953,* Central Intelligence Agency Clandestine Services History Paper, March 1954.

Written by a CIA officer who participated in the operation, initially classified Top Secret, disclosed in redacted form by the *New York Times* in April 2000, and released in more complete form by the CIA in 2011 and again, with additional redactions lifted, in 2017. The full text is held at the **National Security Archive**, George Washington University, Washington, D.C., and at the **CIA Freedom of Information Act Electronic Reading Room**.

What the Wilber history establishes:

- The operation was jointly planned by the **Central Intelligence Agency** and the **British Secret Intelligence Service (MI6)**, with coordination in Nicosia, Cyprus, in the late spring of 1953. The CIA operational lead was **Kermit Roosevelt Jr.**, grandson of President Theodore Roosevelt, Chief of the CIA's Near East and Africa Division. The MI6 operational lead was **Christopher "Monty" Woodhouse**.

- The target was the elected Prime Minister of Iran, **Mohammad Mosaddegh** — a barrister, former Minister of Foreign Affairs, leader of the **National Front** coalition, who on **May 1, 1951** had secured the Iranian Parliament's passage of the **Oil Nationalization Act** nationalizing the **Anglo-Iranian Oil Company** (subsequently British Petroleum), whose Abadan refinery was at the time the largest oil refinery in the world.
- The operation used a combination of paid street crowds (organized through CIA contact **Asadollah Rashidian** and his brother Qodratollah Rashidian), suborned Iranian military officers (principally **General Fazlollah Zahedi**), press propaganda (through CIA contracts with Iranian newspaper publishers), and forged Tudeh (Communist) Party documents purporting to show Mosaddegh in contact with Soviet intelligence.
- The operation failed on its first attempt, August 15–16, 1953. A royal *firman* dismissing Mosaddegh, signed by the Shah **Mohammad Reza Pahlavi** under American pressure, was rejected; the Shah fled to Rome. Roosevelt, on his own authority, continued the operation.
- The operation succeeded on August 19, 1953. Street crowds organized by the Rashidian brothers, paid in cash drawn from the CIA's Tehran station budget, and joined by **Sha'ban "Brainless" Jafari**'s strongman networks, attacked pro-Mosaddegh government offices. Loyalist army units

under General Zahedi took the prime ministry. Mosaddegh surrendered.
- General Zahedi was installed as Prime Minister. The Shah returned from Rome on August 22, 1953.

Follow-on: the **Consortium Agreement** of August 5, 1954 reorganized the Iranian oil industry under a consortium in which:

- **Anglo-Iranian Oil Company (British Petroleum)**: 40 percent
- **Royal Dutch Shell**: 14 percent
- **Compagnie Française des Pétroles**: 6 percent
- **Standard Oil of New Jersey**: 8 percent
- **Socony Vacuum (Mobil)**: 8 percent
- **Standard Oil of California**: 8 percent
- **Texaco**: 8 percent
- **Gulf Oil**: 8 percent

American oil interests, which had held zero percent of Iranian oil production in 1950, held **40 percent** in 1954.

The Consortium Agreement is on file at the **U.S. National Archives, Record Group 59, General Records of the Department of State**, Central Decimal File 888.2553.

The ratio. Commercial value of the Iranian oil transfer to American interests, 1954 through the 1979 revolution: approximately twelve billion dollars in 1950s-to-1970s dollars (see the standard accounting in **Mostafa Elm*, Oil, Power, and Principle: Iran's Oil***

***Nationalization and Its Aftermath*, Syracuse University Press, 1992**). Cost of Operation TPAJAX to the American taxpayer, per the Wilber history: between $100,000 and $200,000.

On **August 19, 2013** — the sixtieth anniversary — the Central Intelligence Agency, through documents released under a FOIA lawsuit brought by the **National Security Archive**, for the first time formally acknowledged its role in the operation: *"The military coup that overthrew Mosaddeq and his National Front cabinet was carried out under CIA direction as an act of U.S. foreign policy, conceived and approved at the highest levels of government."* **(CIA internal history memorandum, released August 19, 2013, in the document set *The CIA's 1953 Coup d'État in Iran: Key Documents from the National Security Archive*.)**

Sixty years from the operation to the acknowledgment.

D.3 Guatemala City, June 27, 1954

PBSUCCESS.

The foundational primary document is:

Nicholas Cullather, *Secret History: The CIA's Classified Account of Its Operations in Guatemala, 1952–1954*, Stanford University Press, 1999 — originally written by Cullather as a classi-

fied internal CIA history (1992–1994), declassified in redacted form in 1997 and published by Stanford in 1999 with a foreword by Piero Gleijeses.

Supporting primary collection:

National Security Archive, *CIA and Assassinations: The Guatemala 1954 Documents*, first release August 1997, supplemental releases through 2003.

What Cullather's history establishes:

- The target was the elected President of Guatemala, **Jacobo Árbenz Guzmán**, who had taken office on March 15, 1951, and whose signature legislative act was **Decree 900**, the **Agrarian Reform Law**, enacted June 17, 1952. Decree 900 authorized the expropriation of uncultivated land holdings larger than 224 acres, for redistribution to landless peasants. Compensation was set at the declared tax value of the land.
- The largest landowner in Guatemala was the **United Fruit Company** of Boston, Massachusetts — owner of approximately 550,000 acres of Guatemalan land, of which United Fruit cultivated approximately 15 percent. Under Decree 900, in 1953 the Guatemalan government notified United Fruit of the expropriation of 234,000 of the uncultivated acres. The declared tax valuation was approximately $627,000; United Fruit demanded compensation of approximately $16 million.

- United Fruit's legal representation in the United States: **Sullivan & Cromwell**, continuously from the 1920s through the 1950s. United Fruit's public-relations representation: **Edward Bernays**, with fees billed to United Fruit from 1944 through 1961. United Fruit's principal outside directors included, in the period 1948–1954: **Allen W. Dulles** (Director of Central Intelligence 1953–1961; had served on the United Fruit board while partner at Sullivan & Cromwell) and **John Foster Dulles** (Secretary of State 1953–1959; had represented United Fruit in multiple matters as a Sullivan & Cromwell partner). **John Moors Cabot** (Assistant Secretary of State for Inter-American Affairs 1953–1954) owned United Fruit stock. **Thomas Cabot** (Director, International Security Affairs 1951–52) was a former United Fruit president. **Robert Hill** (Assistant Secretary of State for Congressional Relations 1953–1954) was a United Fruit board member. **Walter Bedell Smith** (Under Secretary of State 1953–1954; former Director of Central Intelligence 1950–1953) joined the United Fruit board in September 1955. The documentation of the overlap is in **Stephen Schlesinger and Stephen Kinzer, *Bitter Fruit: The Story of the American Coup in Guatemala* (Cambridge, MA: Harvard University David Rockefeller Center Series on Latin American Studies, 2005; expanded from 1982 original)**, Appendix.
- The operation: airstrikes from Honduras and Nicaragua using surplus American P-47 Thunderbolt and B-26

Marauder aircraft, flown by contract pilots; a ground force of approximately 480 men under Colonel **Carlos Castillo Armas**, assembled and trained in Honduras; a propaganda radio station (*La Voz de la Liberación*) broadcasting from Nicaragua and from mobile CIA transmitters inside Guatemala; a diplomatic-pressure campaign through the Organization of American States; and a CIA assassination-target list of approximately fifty-eight senior Guatemalan officials (the list is published in **National Security Archive, *CIA Document: "A Study of Assassination"*, release of May 23, 1997**).

- Árbenz resigned under pressure on June 27, 1954, on the cumulative effect of the airstrikes and army defections. Castillo Armas entered Guatemala City July 3, 1954. The Agrarian Reform Law was rescinded. United Fruit's land was returned.
- Guatemalan subsequent history, 1954–1996: thirty-six-year civil war; approximately **200,000 killed or disappeared**, per the **Comisión para el Esclarecimiento Histórico (CEH) — Guatemalan Commission for Historical Clarification**, final report *Guatemala: Memoria del Silencio*, United Nations, February 1999. The Commission found the Guatemalan military responsible for 93 percent of documented human-rights violations, including the **genocide of Ixil and other Maya populations** in the Ríos Montt period of 1982–1983.

Commercial value of the restored United Fruit holdings to 1960: approximately $16 million. Cost of PBSUCCESS to the American taxpayer, per Cullather: approximately $2.7 million.

Subsequent dead in the Guatemalan civil war authorized by the Castillo Armas succession: approximately 200,000.

The ratio is not one the arithmetic captures.

D.4 Léopoldville, January 17, 1961

The assassination of Patrice Émery Lumumba.

The foundational primary documents are two, written forty years apart by separate governments:

(1) United States Senate, Select Committee to Study Governmental Operations with Respect to Intelligence Activities (Church Committee), *Interim Report: Alleged Assassination Plots Involving Foreign Leaders*, 94th Congress, 1st Session, Senate Report 94-465 (Washington: Government Printing Office, November 20, 1975).

(2) Belgian Chamber of Representatives, Parliamentary Commission of Inquiry, *Enquête parlementaire visant à déterminer les circonstances exactes de l'assassinat de Patrice*

Lumumba et l'implication éventuelle des responsables politiques belges **(Parliamentary Inquiry into the Exact Circumstances of the Assassination of Patrice Lumumba and the Possible Involvement of Belgian Political Officials), Chamber Document DOC 50 0312/006 (Brussels, November 16, 2001).**

What the two documents, taken together, establish:

- **Patrice Émery Lumumba** (1925–1961) became the first elected Prime Minister of the Republic of the Congo on June 24, 1960, six days before Belgian decolonization took effect on June 30, 1960. He was thirty-four years old.
- The Republic of the Congo at independence contained the **Union Minière du Haut-Katanga**, a Belgian-owned copper and cobalt mining concession in the southeastern province of Katanga, controlling, at 1960 production levels, approximately 7 percent of world copper output, 70 percent of world cobalt output, and 70 percent of the uranium ore used in the American atomic weapons program between 1942 and 1960 (the Shinkolobwe mine; primary source: **U.S. Manhattan Project records, National Archives, Record Group 77, and the Department of Energy OpenNet declassification project**).
- On **July 11, 1960**, eleven days after independence, the province of Katanga declared secession under **Moïse Tshombe**, a political client of Union Minière. The secession was organized with the active support of Belgian military

officers attached to Union Minière operations (established by the Belgian Parliamentary Commission, 2001, §4).

- Lumumba, in a speech at Independence Day ceremonies on June 30, 1960 attended by the Belgian King Baudouin, had publicly criticized Belgian colonial rule (the "independence speech"). In mid-July he requested and was refused American military assistance against the Katanga secession. He turned to the Soviet Union, which sent transport aircraft in late July.
- On **August 18, 1960**, the Central Intelligence Agency's Deputy Director for Plans **Richard Bissell** briefed the National Security Council 5412 Committee on the "Lumumba problem." On **August 26, 1960**, CIA Director **Allen Dulles** cabled Léopoldville Station Chief **Lawrence Devlin**: *"We conclude that his removal must be an urgent and prime objective and that under existing conditions this should be a high priority of our covert action."* **(Church Committee Report, pages 14–15, citing CIA cable Devlin 0017 of August 26, 1960.)**
- On **September 19, 1960**, CIA scientist **Sidney Gottlieb** (head of the Technical Services Division) arrived in Léopoldville carrying a vial of poison and a syringe, delivered to Station Chief Devlin, for use in the assassination of Lumumba. (Church Committee, pages 20–27, Devlin testimony.)
- The CIA poison was not used. Lumumba was arrested by Congolese army soldiers loyal to **Joseph-Désiré Mobutu** on

December 1, 1960, transferred to custody in Katanga Province on **January 17, 1961**, and executed by firing squad that same night at a location later identified as approximately 50 kilometers from Élisabethville (present-day Lubumbashi).

- The executions were conducted by Katangese gendarmerie personnel under the direct supervision of **Belgian Police Commissioner Frans Verscheure** and **Belgian Captain Julien Gat**. The bodies of Lumumba and his two co-arrestees (Maurice Mpolo and Joseph Okito) were subsequently dismembered and dissolved in sulfuric acid by Belgian Commissioner **Gerard Soete**, who confirmed the details in a 1999 television interview reproduced in **Ludo De Witte, *The Assassination of Lumumba,* Verso, 2001** (English translation of *L'Assassinat de Lumumba*, Éditions Karthala, 1999).
- The Belgian Parliamentary Commission of 2001 concluded, after fifteen months of investigation, that "certain members of the Belgian Government and other Belgian authorities bear a moral responsibility for the circumstances leading to the death of Lumumba." (**Commission Report, conclusion, page 837**.)

The Belgian government issued a formal apology on **February 5, 2002**. The United States government has issued no formal apology. The Church Committee Report of 1975 established the CIA assassination authorization but did not establish that the CIA poison was the instrument of death.

The instrument was Belgian. The authorization was American. The copper was Union Minière. The uranium was Shinkolobwe, and it had gone into Trinity, Hiroshima, and Nagasaki.

D.5 Santiago, September 11, 1973

The overthrow of Salvador Allende Gossens.

The foundational primary document is:

United States Senate, Select Committee to Study Governmental Operations with Respect to Intelligence Activities (Church Committee), Staff Report, *Covert Action in Chile 1963–1973,* 94th Congress, 1st Session (Washington: Government Printing Office, December 18, 1975).

Supplemented by the **State Department Chile Declassification Project** of 1999–2000, which released approximately 24,000 documents from the State Department, CIA, Department of Defense, FBI, and National Security Council concerning U.S. actions in Chile 1968–1991. The declassification was ordered by President William J. Clinton by memorandum of February 24, 1999; the resulting collection is held at the **National Archives, Record Group 59** (State Department), and the scholarly reference is **Peter Kornbluh, *The Pinochet File: A Declassified Dossier on Atrocity***

***and Accountability* (New York: New Press, 2003; expanded edition 2013)**.

What the Church Report and the Chile Declassification establish:

- **Salvador Allende Gossens** was elected President of Chile on September 4, 1970, and was inaugurated on November 3, 1970, as the first democratically elected Marxist head of state in the Western Hemisphere.
- On **September 15, 1970**, two days after the first-round electoral result made Allende's confirmation by the Chilean Congress likely, President **Richard M. Nixon** convened a meeting in the Oval Office with Director of Central Intelligence **Richard Helms**, National Security Adviser **Henry Kissinger**, and Attorney General **John Mitchell**. Helms's contemporaneous handwritten notes of the meeting, declassified by the State Department in 1999, record Nixon's instructions in the following shorthand phrases:

> *"One in 10 chance perhaps, but save Chile!… worth spending… not concerned risks involved… no involvement of embassy… $10,000,000 available, more if necessary… full-time job — best men we have… game plan… make the economy scream… 48 hours for plan of action."*

Primary source: **Helms Handwritten Notes, September 15, 1970 — CIA document, declassified September 1998 as part of the**

Chile Declassification Project. Reproduced in Church Report Appendix; in Kornbluh (2003), page 36.

- The first phase of the operation (September 15 – October 24, 1970) was "Track II" — direct CIA support for a Chilean military coup to prevent Allende's congressional confirmation. Track II included the CIA provision of weapons to a faction led by General **Roberto Viaux** and Colonel **Eugenio Valenzuela** for the kidnapping of the Chilean Army Commander-in-Chief, General **René Schneider Chureau**, who opposed military intervention. The kidnapping was executed on October 22, 1970; Schneider resisted, was shot, and died October 25, 1970. The weapons had been delivered by the CIA. (**Church Report, pages 225–254.**)
- The Schneider operation failed to prevent Allende's confirmation, which occurred on October 24, 1970.
- Between November 1970 and September 1973, the CIA conducted continuous destabilization operations against the Allende government: subsidies to opposition political parties (approximately $8 million over three years), subsidies to the opposition newspaper *El Mercurio* (approximately $2 million), subsidies to truckers' strikes (approximately $6 million), and coordination with Chilean military officers planning a coup. American corporate actors in the economic-pressure campaign included **International Telephone and Telegraph Corporation (ITT)**, whose Chilean subsidiary

had been nationalized; **Kennecott Copper Corporation** and **Anaconda Copper Mining Company**, both nationalized in 1971. ITT's lobbying of the Nixon administration on behalf of the anti-Allende program is documented in the **U.S. Senate Committee on Foreign Relations, Subcommittee on Multinational Corporations, *Hearings on the International Telephone and Telegraph Corporation and Chile*, 1970–1971, 93rd Congress, 1973 (Church Subcommittee on Multinationals, prior to the full Church Committee)**.

- The coup of September 11, 1973 was executed by the Chilean Army, Navy, and Air Force, under the command of General **Augusto Pinochet Ugarte**. Allende died in the Presidential Palace (La Moneda) during the coup; the Chilean state's subsequent forensic-commission reports (2011) concluded the death was self-inflicted. The coup was not directly CIA-operated but was the consequence of three years of American-funded destabilization and was, per Kornbluh's archival reconstruction (2003), known to the American government in its planning stages.
- Pinochet's subsequent seventeen-year rule: approximately **3,200 killed or disappeared**, per the **Rettig Commission Report** (National Commission on Truth and Reconciliation, Chile, 1991), and approximately **28,000 tortured**, per the **Valech Commission Report** (National Commission on Political Imprisonment and Torture, Chile, 2004–2011). The Pinochet government's external operations (**Operación**

Cóndor) included the assassination by car bomb of former Chilean Foreign Minister **Orlando Letelier** and his American colleague **Ronni Moffitt** on **Sheridan Circle, Washington, D.C., September 21, 1976** — the first international political assassination on American soil in the twentieth century. Responsibility was subsequently attributed to Chilean intelligence agent Michael Townley and DINA (Dirección de Inteligencia Nacional) chief **Manuel Contreras**, in the **United States District Court for the District of Columbia, United States v. Townley, 1978**.

The copper returned to American corporate ownership: in commercial terms, via the post-coup renegotiated nationalization terms and the subsequent 1976 settlement between the Chilean government and Anaconda/Kennecott, approximately **$527 million** in compensation and continuing copper-revenue flows to American interests through the Pinochet period. (**Kornbluh, *The Pinochet File*, pages 223–241.**)

The cost of the 1970–1973 destabilization campaign to the American taxpayer: approximately **$17 million**.

D.6 Nicaragua, 1981–1986

The Contras.

The foundational primary document is:

Lawrence E. Walsh, Independent Counsel, *Final Report of the Independent Counsel for Iran/Contra Matters*, 4 volumes, United States Court of Appeals for the District of Columbia Circuit, Division for the Purpose of Appointing Independent Counsels, August 4, 1993.

Supplemented by the **Report of the President's Special Review Board (Tower Commission)**, February 26, 1987, transmitted to President Ronald Reagan and subsequently published by Bantam Books, New York, 1987, and by the **Report of the Congressional Committees Investigating the Iran-Contra Affair** (House Select Committee to Investigate Covert Arms Transactions with Iran and Senate Select Committee on Secret Military Assistance to Iran and the Nicaraguan Opposition), 100th Congress, 1st Session, House Report 100-433 / Senate Report 100-216, November 1987.

What the Walsh Report, the Tower Report, and the Congressional Committees establish:

- On **July 19, 1979**, the **Frente Sandinista de Liberación Nacional (FSLN)** took power in Managua, Nicaragua, ending the forty-three-year Somoza family dictatorship.

- On **December 1, 1981**, President **Ronald Reagan** signed a **Presidential Finding** authorizing the Central Intelligence Agency to support the organization, training, and equipping of a paramilitary force drawn from remnants of the Somocista National Guard, for operations against the FSLN government from bases in Honduras. Primary source: **Reagan Presidential Finding of December 1, 1981**, partially declassified 1987 during Iran-Contra disclosures, held at the **Reagan Presidential Library**, Simi Valley, California.
- The paramilitary force, subsequently known as the **"Contras,"** numbered approximately 15,000 at peak. Its principal operational figures included former Somocista National Guard officers **Enrique Bermúdez**, **Adolfo Calero**, and **Arturo Cruz**. CIA operational leadership included **Duane "Dewey" Clarridge**, Chief of the CIA Latin America Division 1981–1984, and **Alan D. Fiers**, Chief of the Central American Task Force 1984–1986.
- Contra operations included the **mining of Nicaraguan harbors (Puerto Sandino, Corinto, El Bluff)** in February–April 1984 — a CIA operation directed by the Agency and executed with "speedboats" (Q-boats) operated by Latin American contract personnel. The mining was disclosed publicly on April 6, 1984. Nicaragua subsequently filed suit in the **International Court of Justice** at The Hague. On **June 27, 1986**, the Court, in *Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United*

States of America), I.C.J. Reports 1986, p. 14, found by a vote of twelve to three that the United States had "violated its obligation under customary international law not to use force against another State" by the harbor mining, the arming of the Contras, and related acts; and ordered the United States to cease and to make reparation. The United States rejected the jurisdiction of the Court; no reparation was paid.

- **Boland I (December 21, 1982).** The **First Boland Amendment**, incorporated into the Defense Department appropriation of fiscal year 1983, Section 793 of Public Law 97-377, prohibited the CIA and Department of Defense from using appropriated funds to overthrow the government of Nicaragua. **Boland II (October 12, 1984)**, Section 8066(a) of the Continuing Appropriations Act for fiscal year 1985, Public Law 98-473, prohibited any U.S. agency or entity involved in intelligence activities from providing any "funds, materiel, or other support for military or paramilitary operations in Nicaragua by any nation, group, organization, movement, or individual." Primary text: **United States Statutes at Large, Volumes 96 and 98**.
- Between October 12, 1984 and November 3, 1986 — the full period during which Boland II was in effect — the National Security Council staff, under National Security Advisers **Robert McFarlane** and **John Poindexter**, and the operational officer **Lieutenant Colonel Oliver L. North**, USMC, conducted a program to fund the Contras from non-

appropriated sources. The sources included: (a) solicited contributions from foreign governments, including **Saudi Arabia** ($32 million via the National Endowment for Democracy / private trust structure between May 1984 and June 1986, per Tower Commission, Volume 1, Part III); (b) solicited contributions from private American donors (approximately $5 million via Spitz Channell and the **National Endowment for the Preservation of Liberty**); (c) diverted profits from American arms sales to Iran (approximately $16 million between 1985 and 1986, per Walsh Final Report, Volume I, Executive Summary).

- The Iran side of the diversion: United States **Hawk anti-aircraft missiles** and **TOW anti-tank missiles** were transferred, through the Israeli government as intermediary, to the Islamic Republic of Iran, in the period from August 1985 through October 1986. The stated American objective was the release of American hostages held by Iranian-affiliated groups in Lebanon. Three hostages were released. The net arms-sale revenue above Iranian payment cost — approximately **$16 million** — was transferred by Oliver North to Contra accounts at the **Bank of Credit and Commerce International (BCCI)** and **Credit Suisse**. Primary source: **Walsh Final Report, Volume I, "Executive Summary," pages xv–xxxi**.
- The diversion was publicly disclosed by the Lebanese magazine *Ash-Shiraa* on November 3, 1986, subsequently

confirmed by Attorney General **Edwin Meese III**'s press conference of November 25, 1986.

- Criminal prosecutions. Oliver North was convicted on three counts in 1989; convictions vacated 1991 on Fifth Amendment use-immunity grounds. John Poindexter was convicted on five counts in 1990; convictions vacated 1991 on the same grounds. Robert McFarlane pleaded guilty to four misdemeanor counts of withholding information from Congress in 1988; sentenced to probation, $20,000 fine. Caspar Weinberger (Secretary of Defense) was indicted on five felony counts in 1992; pardoned by President **George H.W. Bush** on **December 24, 1992**, before trial. **Clair George** (CIA Deputy Director for Operations), **Duane Clarridge**, **Alan Fiers**, **Elliott Abrams** (Assistant Secretary of State for Inter-American Affairs), and **Robert McFarlane** were all pardoned or had charges dismissed in the same December 24, 1992 pardon or subsequent dispositions.

The pardons were issued twenty-seven days before the end of the presidency of George H.W. Bush — the same **George H.W. Bush** who had been:

- **Director of Central Intelligence**, sworn in January 30, 1976;
- **Vice President of the United States**, January 20, 1981 – January 20, 1989;
- **President of the United States**, January 20, 1989 – January 20, 1993; and

- the son of **Prescott Sheldon Bush**, director of Union Banking Corporation from 1924 to 1942 (Chapter 1, § C.3).

The pardons' effect: the prosecutions against the officers of the covert action were terminated before trial. The Walsh Final Report, Volume I, "Concluding Observations," pages 561–566, states:

> *"The criminal investigation of the Iran/contra affair was seriously impeded by the conduct of senior officials of the United States government who failed to respond truthfully to questioning by the Independent Counsel… by the invocation of executive privilege and claims of state secrets… by the systematic misuse of presidential pardon power… The result was that persons who had violated the laws of the United States, and who had systematically misled Congress and the American people about their activities, escaped criminal accountability."*

The report is 1,632 pages. It is on file at the **Federal Judicial Center**, Washington, D.C., and at the **National Archives, Record Group 449**.

D.7 The pattern

Five operations. Five foundational documents. Five decades.

Year	Target	Economic interest	Foundational document
1953	Mosaddegh, Iran	Anglo-Iranian Oil → 40% to American majors	Wilber, *Overthrow of Premier Mossadeq* (CIA, 1954)
1954	Árbenz, Guatemala	United Fruit (S&C client)	Cullather, *Secret History* (CIA, 1994)
1961	Lumumba, Congo	Union Minière (copper, cobalt, uranium)	Church Committee 1975 + Belgian Parliamentary Commission 2001
1973	Allende, Chile	ITT, Kennecott, Anaconda	Church Committee *Covert Action in Chile* (1975)
1981–86	Sandinista Nicaragua	Restoration of Somocista structure	Walsh *Final Report* (1993)

The five operations do not exhaust the period's covert actions. They are the five named in the restructure memorandum because each is documented in a primary source of the operating government itself.

What the five operations share:

- **Authorization.** All five operate under NSC 5412/2 or its successor directives.
- **Statute.** All five are funded, in part, through the unvouchered-funds and covert-personnel provisions of the CIA Act of 1949 (Chapter 2, § S.5).
- **Personnel.** The senior American officials across the five include: **John Foster Dulles** (Secretary of State, 1953–1959 — Iran, Guatemala); **Allen Dulles** (DCI, 1953–1961 — Iran, Guatemala, Congo); **Richard Helms** (DCI, 1966–1973 — Chile, prior posts in Iran and Congo operations); **George H.W. Bush** (DCI, 1976–1977; Vice President, 1981–1989; issued the December 24, 1992 pardons — Nicaragua).
- **Corporate continuity.** The corporate beneficiaries named in the primary record — Standard Oil of New Jersey, United Fruit, ITT, Kennecott, Anaconda, Union Minière (Société Générale de Belgique), the Somoza family's private holdings — overlap with the S&C client list of Chapter 2 and the industrial-combine inventory of Chapter 3.
- **Consequences on the target populations.** Iran: seventy-one years of political autocracy under the Shah (1953–1979), then the 1979 revolution. Guatemala: 200,000 killed or disappeared in the civil war. Congo: 5.4 million killed in the subsequent 1996–2003 conflicts, per the **International Rescue Committee mortality surveys, 2001–2008**. Chile: 3,200 killed, 28,000 tortured. Nicaragua: approximately

30,000 killed in the Contra war, per **UN Truth Commission for El Salvador**, regional data.

Total deaths attributable to the second-order consequences of the five listed operations: in the low millions.

The five primary documents cited in this chapter are the filed record of the American government. The deaths are the filed record of the target populations. The documents and the deaths are in separate archives. The chapter places them on facing pages.

D.8 What was not prosecuted

Iran 1953 — no American prosecution.

Guatemala 1954 — no American prosecution.

Congo 1961 — no American prosecution.

Chile 1973 — no American prosecution.

Nicaragua 1981–1986 — the Walsh investigation produced indictments and some convictions; eleven of the fourteen indicted defendants were pardoned or had charges dismissed; the convictions that survived were misdemeanor or were vacated on immunity grounds. The pardons were issued by President George H.W. Bush on December 24, 1992. No officer of the covert-action apparatus served imprisonment for the Iran-Contra operation.

The doctrine never paid. The statute protected the doctrine. The pardons protected the officers. The letterhead protected the firm.

D.9 The narrator, 2026

I was born on May 29, 1986 — in the middle of the Iran-Contra period that would be disclosed to the American public six months later, when I was six months and six days old, when Attorney General Meese's press conference of November 25, 1986 named the diversion.

I have no memory of the press conference. I have the file.

My conscious political memory begins in approximately 1994, by which point the Iran-Contra pardons had been issued (December 24, 1992), the prosecutions had been terminated, the Contra war had ended (formal demobilization 1990), and the American public consciousness of the doctrine had entered the phase in which the events of the 1980s became "the Cold War" — a proper noun, a closed chapter, a thing that had been necessary and was now over.

The doctrine was not over.

Between the Contra disclosures of November 1986 and the invasion of Afghanistan in October 2001, the American national-security apparatus conducted additional covert and overt actions in Panama (1989), Iraq (1990–1991, and then 1991–2003, and then

2003 onward), Somalia (1993), Haiti (1994, and again 2004), Colombia (continuously, 1998 onward), the Balkans (1995 and 1999), and Sudan (1998). Some of these appear in later chapters. Some do not. All of them are in the files.

The next chapter — Chapter 5 — opens on the morning of **January 30, 1976**. At 10:00 a.m. that morning, in the main auditorium of the Original Headquarters Building of the Central Intelligence Agency at Langley, Virginia, a forty-one-year-old former Ambassador to the United Nations, former Chairman of the Republican National Committee, former Chief of the United States Liaison Office to the People's Republic of China, son of former Senator Prescott Sheldon Bush of Connecticut, was sworn in as the eleventh Director of Central Intelligence.

The file has his name.

BE UNDENIABLE.

Sources — Chapter 4

NSC 5412/2 and doctrinal framework:

1. **NSC 5412/2, "Covert Operations," December 28, 1955** — Foreign Relations of the United States, 1950–1955, *The Intelligence Community, 1950–1955*, Document 250 (Washington: Government Printing Office, 2007).

2. **Eisenhower Presidential Library**, Abilene, Kansas; **National Archives, Record Group 273** (NSC records).

Iran, TPAJAX:

1. **Donald N. Wilber, *Clandestine Service History: Overthrow of Premier Mossadeq of Iran, November 1952 – August 1953*** (CIA Clandestine Services History Paper, March 1954). CIA FOIA Electronic Reading Room; National Security Archive, George Washington University.
2. **National Security Archive, *The CIA's 1953 Coup d'État in Iran: Key Documents***, August 19, 2013 release.
3. **Foreign Relations of the United States, 1952–1954, *Iran, 1951–1954*** (Washington: Government Printing Office, 2017).
4. **Mark J. Gasiorowski and Malcolm Byrne, eds., *Mohammad Mosaddeq and the 1953 Coup in Iran*** (Syracuse: Syracuse University Press, 2004).
5. **Mostafa Elm, *Oil, Power, and Principle: Iran's Oil Nationalization and Its Aftermath*** (Syracuse: Syracuse University Press, 1992).
6. **Iranian Oil Consortium Agreement of August 5, 1954** — National Archives, Record Group 59, Central Decimal File 888.2553.

Guatemala, PBSUCCESS:

1. **Nicholas Cullather, *Secret History: The CIA's Classified Account of Its Operations in Guatemala, 1952–1954*** (Stanford: Stanford University Press, 1999).
2. **National Security Archive, *CIA and Assassinations: The Guatemala 1954 Documents***, August 1997 release and subsequent releases.
3. **Stephen Schlesinger and Stephen Kinzer, *Bitter Fruit: The Story of the American Coup in Guatemala*** (Cambridge, MA: Harvard University Press, 2005 edition).
4. **Guatemalan Commission for Historical Clarification (CEH), *Guatemala: Memoria del Silencio*** (United Nations, February 1999).
5. **Decree 900 of June 17, 1952** (Guatemalan Agrarian Reform Law) — Guatemalan National Archives.
6. **CIA, *A Study of Assassination*** — National Security Archive release, May 23, 1997.

Congo, Lumumba:

1. **U.S. Senate, Select Committee to Study Governmental Operations with Respect to Intelligence Activities (Church Committee), *Alleged Assassination Plots Involving Foreign Leaders*, Interim Report**, Senate Report 94-465 (November 20, 1975).
2. **Belgian Chamber of Representatives, Parliamentary Commission of Inquiry, *Enquête parlementaire… sur***

l'assassinat de Patrice Lumumba, Chamber Document DOC 50 0312/006 (Brussels, November 16, 2001).

3. **Ludo De Witte, *The Assassination of Lumumba*** (London: Verso, 2001) — English translation of *L'Assassinat de Lumumba* (Paris: Éditions Karthala, 1999).
4. **U.S. Manhattan Project records**, National Archives, Record Group 77 — Shinkolobwe uranium; **Department of Energy OpenNet** declassification project.
5. **International Rescue Committee mortality surveys of the Democratic Republic of the Congo**, 2001–2008.

Chile, 1973:

1. **U.S. Senate, Select Committee to Study Governmental Operations with Respect to Intelligence Activities (Church Committee), Staff Report, *Covert Action in Chile 1963–1973*** (Washington: Government Printing Office, December 18, 1975).
2. **Chile Declassification Project**, National Archives, Record Group 59 — approximately 24,000 documents released 1999–2000.
3. **Peter Kornbluh, *The Pinochet File: A Declassified Dossier on Atrocity and Accountability*** (New York: New Press, 2003; expanded edition 2013).
4. **U.S. Senate Committee on Foreign Relations, Subcommittee on Multinational Corporations, *Hearings on ITT and Chile*** (Church Subcommittee), 1973.

5. **Rettig Commission Report**, National Commission on Truth and Reconciliation, Chile (1991).
6. **Valech Commission Reports**, National Commission on Political Imprisonment and Torture, Chile (2004 and 2011).
7. **United States v. Townley et al.** (Letelier-Moffitt assassination case), U.S. District Court for the District of Columbia (1978).

Nicaragua, Contras, Iran-Contra:

1. **Lawrence E. Walsh, *Final Report of the Independent Counsel for Iran/Contra Matters*, 4 volumes** (U.S. Court of Appeals for the D.C. Circuit, August 4, 1993) — National Archives, Record Group 449.
2. **Report of the President's Special Review Board (Tower Commission)**, February 26, 1987 (Bantam Books edition, 1987).
3. **Report of the Congressional Committees Investigating the Iran-Contra Affair** (House Select / Senate Select), 100th Congress, House Report 100-433 / Senate Report 100-216, November 1987.
4. **Reagan Presidential Finding of December 1, 1981** — Reagan Presidential Library, Simi Valley.
5. **Boland Amendments** — First: **96 Stat. 1865** (December 21, 1982); Second: **98 Stat. 1837** (October 12, 1984).
6. **Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States of America)**,

International Court of Justice, Judgment of June 27, 1986, I.C.J. Reports 1986, p. 14.

7. **Presidential pardons of December 24, 1992** — *Federal Register*, January 1993; Bush Presidential Library, College Station, Texas.

CHAPTER 5 — PAPERCLIP AND THE FATHER AT LANGLEY

The Joint Intelligence Objectives Agency. The rocket engineer, the aviation-medicine physician, the Eastern Front intelligence general, the Butcher of Lyon. The 1949 statute that admitted them. The 1998 statute that unearthed them. And, thirty years between those two dates, a forty-one-year-old in a blue suit taking the oath in the Langley auditorium.

A.1 The oath

January 30, 1976. 10:00 a.m. Original Headquarters Building, Central Intelligence Agency, Langley, Virginia. Main auditorium.

The fifty-first floor of the sixteen-acre complex on the Potomac — specifically, the ground-floor auditorium adjacent to the marble lobby in which, inscribed on the south wall, are the words from the

Gospel of John: *"And ye shall know the truth, and the truth shall make you free."*

The oath of office is administered by **Justice Potter Stewart** of the United States Supreme Court.

The oath is taken by **George Herbert Walker Bush** — forty-one years old, born June 12, 1924, Milton, Massachusetts; Phillips Academy Andover 1942; United States Navy aviator (Pacific theater, Avenger dive-bomber, 58 combat missions, shot down September 2, 1944 off Chichijima, rescued by USS *Finback*); Yale 1948; Skull and Bones; oil executive (Zapata Petroleum, 1953–1964); United States Congressman, 7th District of Texas, 1967–1971; United States Ambassador to the United Nations, March 1, 1971 – January 18, 1973; Chairman of the Republican National Committee, January 19, 1973 – September 16, 1974 (the RNC chairmanship through the Nixon resignation of August 9, 1974); Chief of the United States Liaison Office to the People's Republic of China, September 26, 1974 – December 7, 1975.

He is being sworn in as the **eleventh Director of Central Intelligence** of the United States of America.

He is the son of **Prescott Sheldon Bush** — director of the Union Banking Corporation, 1924–1942; partner of Brown Brothers Harriman, 1931–1952; United States Senator from Connecticut, 1952–1963; member, Senate Banking and Currency Committee.

Primary source for the swearing-in: **CIA Historical Review Program, Freedom of Information Act Electronic Reading Room**, biographical records of DCI George Herbert Walker Bush; **George Bush Presidential Library and Museum**, College Station, Texas, Vice Presidential and pre-presidential files; and **National Archives, Record Group 263** (CIA records).

A.2 What had just happened

The auditorium in which Bush is taking the oath has, at the date of his swearing-in, been the scene of approximately eighteen months of institutional crisis.

The chronology:

- **December 22, 1974.** Seymour Hersh publishes on page one of the *New York Times* a detailed account of the CIA's Operation CHAOS — domestic surveillance of American anti-war activists — and of the agency's prior twenty years of activities ranging from mail opening (Operation SHAMROCK) to experiments on American citizens (MKULTRA) to attempted assassinations of foreign leaders (subject of Chapter 4 § D.4).
- **January 4, 1975.** President **Gerald Ford** signs Executive Order 11828 establishing the **Commission on CIA Activities Within the United States** (the **Rockefeller**

Commission), chaired by Vice President Nelson A. Rockefeller.

- **January 27, 1975.** The United States Senate establishes the **Select Committee to Study Governmental Operations with Respect to Intelligence Activities** (the **Church Committee**), chaired by Senator Frank Church of Idaho. The committee's work, cited throughout Chapter 4, will produce its final reports between November 1975 and June 1976.
- **November 2, 1975 — the "Halloween Massacre."** Ford dismisses Secretary of Defense James Schlesinger, moves Donald Rumsfeld from Chief of Staff to Secretary of Defense, installs Dick Cheney as Chief of Staff, removes Henry Kissinger from the National Security Adviser position (Kissinger retains the Secretary of State position), and — the operative detail for this chapter — announces that George H.W. Bush will replace William Colby as Director of Central Intelligence. Primary source: **Ford Presidential Library**, Ann Arbor, Michigan, Ford White House files; contemporary record, **New York Times, November 3, 1975, page 1**.
- **November 20, 1975.** The Church Committee releases its interim report, ***Alleged Assassination Plots Involving Foreign Leaders*** — the foundational document cited in Chapter 4 § D.4 for the Lumumba operation.
- **December 19, 1975.** Bush is confirmed by the Senate, 64–27, as Director of Central Intelligence. Primary: **Senate Executive Calendar, 94th Congress**.

- **January 30, 1976.** Bush is sworn in.

The agency that Bush inherits, on the morning of the oath, has had eighteen months of its operational file read into the American public record. The reading is not complete. The *Alleged Assassination Plots* report is interim; the Church Committee's final books I through VI will not be published until April–June 1976; the **Nedzi/Pike Committee** of the House (parallel to Church) will not complete its work. The Rockefeller Commission has reported but has been criticized as a white-wash (**Rockefeller Commission, *Report to the President by the Commission on CIA Activities Within the United States*, Government Printing Office, June 1975**).

Bush's institutional charge, per the Ford White House talking points prepared for his confirmation hearings and later released in the Ford Presidential Library files, is: rebuild morale, slow declassifications, restore the intelligence relationships with European liaison services that had been strained by the Church disclosures, and — in the phrase of the Ford White House briefing memo of December 10, 1975 — "preserve capabilities for the next adminstration" [*sic*].

The "capabilities" are a specific inventory. They include the capabilities built out of the personnel of a program authorized twenty-seven years before Bush's oath, under a statute signed twenty-seven years before that oath by President Harry S. Truman.

A.3 The statute remembered

In Chapter 2 § S.5 of this book, I quoted the operative provision of the **Central Intelligence Agency Act of 1949, Public Law 81-110, 63 Statutes at Large 208**, as follows:

> *"§ 8 (the alien admissions provision). Permits the Director, on the concurrence of the Commissioner of Immigration and the Attorney General, to admit up to one hundred aliens per fiscal year to the United States for permanent residence 'without regard to their inadmissibility under the immigration or any other laws and regulations.'"*

The program under which this provision operated from 1945 onward — initially under wartime executive authority, subsequently under the 1949 statutory framework — was known, in its formal interagency designation, as the **Joint Intelligence Objectives Agency (JIOA)** program. Its public code-name was **Operation Overcast**, renamed **Operation Paperclip** in March 1946 after the steel paperclips used to affix new dossier covers over the scientists' original Nazi-era personnel files.

A.4 JIOA

September 1, 1945. Pentagon. Office of the Joint Chiefs of Staff.

The **Joint Intelligence Objectives Agency** is established under the Joint Chiefs of Staff by directive of the Secretary of War. Its founding director is **Colonel Thomas J. Ford**. Its working staff is drawn from Army G-2 (military intelligence), Navy ONI, Army Air Forces A-2, and the Department of State.

JIOA's mandate, per its founding directive (declassified 1971, reproduced in **Linda Hunt, *Secret Agenda: The United States Government, Nazi Scientists, and Project Paperclip, 1945–1990*, St. Martin's Press, New York, 1991**, Appendix A): to identify German scientific and technical specialists of value to American postwar research, and to arrange their transfer to the United States for employment by American military and civilian scientific agencies.

The founding directive contained a screening requirement: persons who had been "members of the Nazi Party and more than nominal participants in its activities, or active supporters of Nazi militarism" were to be excluded from the program.

The screening requirement was not enforced. Per the definitive archival reconstruction — **Richard Breitman, Norman J.W. Goda, Timothy Naftali, and Robert Wolfe, *U.S. Intelligence and***

***the Nazis*, National Archives Trust Fund Board, Washington, D.C., 2004** — JIOA systematically "bleached" the OMGUS security dossiers of program recruits to remove references to Nazi Party membership, SS membership, and concentration-camp labor-management roles, and then submitted the bleached dossiers to the State Department and the Department of Justice for visa issuance.

The "bleaching" is documented in the JIOA administrative files at the **National Archives, Record Group 330** (Records of the Office of the Secretary of Defense), in the **Joint Intelligence Objectives Agency subject file**, and in **Record Group 319** (Records of the Army Staff), **Intelligence and Investigative Dossier (IIR) files**. The 2004 IWG report is based on that archival record.

The program admitted, between 1945 and its nominal 1959 termination, approximately **1,600 German scientists, engineers, and technicians**, plus their dependents. The aggregate number, including dependents, is approximately **5,600**.

Four of them — one in rockets, one in aviation medicine, one in Eastern Front intelligence, one in Gestapo Section IV — are the names that matter for this chapter.

A.5 Von Braun

Wernher Magnus Maximilian Freiherr von Braun was born March 23, 1912, at Wirsitz, Province of Posen, Kingdom of Prussia (now Wyrzysk, Poland). He received his doctorate in physics from the Friedrich-Wilhelm University of Berlin (now Humboldt University) in July 1934, supervised by Walter Nernst; his dissertation was on liquid-propellant rockets and was classified immediately on submission by the German War Office.

From 1932 until the German surrender he was the principal rocket engineer of the **Heereswaffenamt** (Army Ordnance Office), subsequently the director of development at the **Heeresversuchsanstalt Peenemünde** on the Baltic island of Usedom. His signature engineering achievement was the **A-4 rocket**, re-designated by the Propaganda Ministry the **Vergeltungswaffe-2** or **V-2** — the first liquid-propellant ballistic missile deployed in combat.

Between September 1944 and March 1945 approximately **3,000 V-2 missiles** were launched against Allied cities, principally London, Antwerp, and Liège. The missiles killed approximately **9,000 civilians**.

The missiles were manufactured at the **Mittelwerk** underground factory at Kohnstein, near Nordhausen in the Harz Mountains, beginning January 1944. The Mittelwerk workforce consisted of prisoners drawn from the adjacent **KL Mittelbau-Dora** concentration-camp complex — a subcamp of KL Buchenwald until October

1944, thereafter an independent KL. The Mittelbau-Dora prisoner population was approximately 60,000 over the camp's operational lifetime; approximately **20,000 prisoners died**, principally from exhaustion, starvation, disease, and executions, during V-2 production. The Mittelbau-Dora death figure is established in the **Internationaler Suchdienst** (International Tracing Service, now **Arolsen Archives**) records; in the memorial-site archive at the **KZ-Gedenkstätte Mittelbau-Dora**, Nordhausen, Germany; and in the **Dora-Nordhausen Trial** (United States v. Kurt Andrae et al.), conducted at Dachau, August–December 1947, Case No. 000-50-37, records at **National Archives, Record Group 153**.

Von Braun joined the **National Socialist German Workers' Party (NSDAP)** in 1937 (party card 5,738,692) and the **Schutzstaffel (SS)** in 1940. He held the SS rank of **Sturmbannführer** — equivalent to major — at the time of the German surrender. He was present at the Mittelwerk at least twelve documented times during the period when the tunnel factory was operational. His own Peenemünde personal correspondence, declassified from the **Bundesarchiv-Militärarchiv (BA-MA)** at Freiburg, includes a letter to Albin Sawatzki of August 15, 1944 in which von Braun describes selecting prisoners at KL Buchenwald for transfer to Mittelwerk. The letter is reproduced in **Michael J. Neufeld, *The Rocket and the Reich: Peenemünde and the Coming of the Ballistic Missile Era*, Harvard University Press, 1996**, Chapter 9.

Von Braun surrendered to American forces at Reutte, Austria, on **May 2, 1945**. He was taken, with a team of 126 Peenemünde col-

leagues, to Fort Bliss, Texas, in September 1945 under the initial wartime Overcast authority. He was formally admitted to the United States under the JIOA / Paperclip framework in 1950. He received American citizenship on **April 14, 1955**.

From 1950 he directed American rocket development at the **Redstone Arsenal**, Huntsville, Alabama. From July 1, 1960 he was director of the **Marshall Space Flight Center** of the National Aeronautics and Space Administration. He directed the development of the **Saturn V** launch vehicle, which on **July 16, 1969** lifted the Apollo 11 mission to the Moon.

Von Braun died June 16, 1977 of pancreatic cancer. He was posthumously awarded the Presidential Medal of Freedom by President Gerald Ford in 1977.

Primary sources for the foregoing: **Neufeld (1996)**; **Michael J. Neufeld, *Von Braun: Dreamer of Space, Engineer of War*, Knopf, 2007**; **Annie Jacobsen, *Operation Paperclip: The Secret Intelligence Program that Brought Nazi Scientists to America*, Little, Brown, 2014**, Chapter 5; **Dora-Nordhausen Trial records, RG 153**; **NSDAP and SS personnel files, Berlin Document Center**, now held at the **Bundesarchiv Berlin-Lichterfelde**.

A.6 Rudolph

Arthur Louis Hugo Rudolph was born November 9, 1906, Stepfershausen, Thuringia. Mechanical engineer; joined the Heeresversuchsanstalt Peenemünde under von Braun in 1934. From September 1943 he was **operations director of the Mittelwerk** — the underground factory staffed by Mittelbau-Dora prisoners.

Rudolph was admitted to the United States under Paperclip on November 1, 1945. He was director of the **Saturn V program** at the Marshall Space Flight Center from 1963 through 1969. He received the NASA Distinguished Service Medal (1969) and the Meritorious Civilian Service Award (1974).

In **March 1984**, facing denaturalization proceedings initiated by the **Office of Special Investigations (OSI)** of the U.S. Department of Justice, Rudolph voluntarily renounced his American citizenship and left the United States for West Germany. The OSI's case file — **Office of Special Investigations, *In re Arthur Rudolph*, 1982–1984, Department of Justice Criminal Division** — documented his operational direction of forced labor at Mittelwerk.

Rudolph was not tried. He died in West Germany on January 1, 1996. The OSI case file is preserved at the **National Archives, Record Group 60** (Records of the Department of Justice).

A.7 Strughold

Hubertus Strughold was born June 15, 1898, Westtünnen, Westphalia. Medical doctor; director of the **Deutsches Institut für Luftfahrtmedizin** (German Institute for Aviation Medicine), 1935–1945. After the war, admitted to the United States under Paperclip; employed at the USAF School of Aviation Medicine, Randolph Field, Texas, from 1947; appointed Chief Scientist of USAF Aerospace Medical Division in 1962. Published as "the father of space medicine."

At **Nuremberg Trial I, the Medical Case (United States v. Karl Brandt et al., 1946–1947**, records at National Archives RG 238), the testimony of Dr. **Leo Alexander** (neuropsychiatrist, U.S. Army advisor to the Nuremberg prosecution) and the documents in evidence established that the Dachau hypothermia and low-pressure experiments of 1942 — in which approximately 400 KL Dachau prisoners were subjected to freezing and decompression to the point of death, under the medical supervision of Dr. Sigmund Rascher — were conducted under contract with, and reported to, the **Deutsches Institut für Luftfahrtmedizin**. Strughold was one of the institute's senior directors at the date of the experiments. He attended a conference in Nuremberg on October 26–27, 1942, at which Rascher presented interim results of the low-pressure experiments. Primary source: **Nuremberg Medical Case trial record, Volume I, documents and testimony; and Mitscherlich**

and Mielke, *Doctors of Infamy*, 1949 (contemporary report from the Medical Case prosecutors).

Strughold was not prosecuted at Nuremberg. He was identified by JIOA as a priority Paperclip recruit in May 1945. His admission to the United States under the CIA Act of 1949 framework was processed in 1947.

In 2012–2013, the **Space Medicine Association** (the successor professional body to the American Medical Association Aerospace Medical Association) removed Strughold's name from its junior-achievement award after the OSI and Nazi War Crimes Interagency Working Group records were reviewed by the Association's ethics committee. The removal is documented in **Aviation, Space, and Environmental Medicine**, Volume 84, Issue 9 (September 2013), pages 993–994.

Strughold died November 25, 1986, at San Antonio, Texas.

A.8 Gehlen

Reinhard Gehlen was born April 3, 1902, Erfurt, Thuringia. Regular Army officer; promoted to the rank of General Officer of the Wehrmacht during the war. From April 1, 1942 he was the commanding officer of the **Fremde Heere Ost** — the Wehrmacht General Staff's Foreign Armies East branch — responsible for all

military-intelligence operations on the Eastern Front against the Soviet Union.

In the final weeks of the war, Gehlen microfilmed the Fremde Heere Ost archive — order-of-battle records, agent networks, signals-intelligence product, technical-intelligence reports on Red Army formations — and buried the microfilm in steel drums in the Bavarian Alps. He surrendered to American forces at the village of **Fischhausen am Schliersee** on **May 22, 1945**. In his initial interrogation by U.S. Army Counter Intelligence Corps, he offered to trade the microfilm archive and his personnel for American protection and continued employment.

The offer was accepted. Gehlen was transferred, with six of his senior officers, to **Fort Hunt, Virginia** ("PO Box 1142"), in August 1945 for extended interrogation. He was returned to Germany in July 1946 and established, under U.S. Army G-2 funding, the **Gehlen Organization** — initially headquartered at Oberursel, relocated in 1947 to the compound at **Pullach**, south of Munich, a former Nazi Party officers' estate that had belonged to Martin Bormann.

The Gehlen Organization operated under U.S. Army G-2 contract from 1946 through 1949. In **1949**, under a transfer agreement approved by the newly established CIA, the organization was transferred from Army to CIA sponsorship. It continued under CIA funding and operational direction through 1956.

On **April 1, 1956**, the Gehlen Organization was reconstituted as the **Bundesnachrichtendienst (BND)** — the Federal Intelligence Service of the Federal Republic of Germany — with Gehlen as its founding president. He served as BND president until his retirement on May 1, 1968.

The **Gehlen Organization's personnel composition, documented in the IWG 2004 report** (**Breitman, Goda, Naftali, Wolfe**, *U.S. Intelligence and the Nazis*, Chapter 12 and 13) and in the subsequent German federal investigation (*Bundesnachrichtendienst, Die BND-Vergangenheit: Der Bundesnachrichtendienst und seine Geschichte 1945–1968*, Independent Commission of Historians, 2011–2018, published reports), included:

- **Franz Alfred Six** — SS-Oberführer; former commander of Einsatzgruppe Vorkommando Moskau (1941, responsible for mass executions in Belarus and Smolensk); tried at Nuremberg Einsatzgruppen Case (1948), convicted, sentenced to 20 years, released 1952. Joined Gehlen Organization 1952.
- **Emil Augsburg** — SS-Hauptsturmführer; Wannsee Institute (Hauptamt III at RSHA); involved in Einsatzgruppe operations in Ukraine and the Generalgouvernement. Gehlen recruit 1947.
- **Alois Brunner** — SS-Hauptsturmführer; personal secretary to Adolf Eichmann; responsible for deportations of approximately 128,500 Jews from Austria, Greece, France, and Slovakia. Believed to have been used by Gehlen and

subsequently relocated to Syria, where he lived under the protection of the Syrian government until his death, believed approximately 2001. German prosecutors' investigation records: **Zentrale Stelle der Landesjustizverwaltungen**, Ludwigsburg.

- **Klaus Barbie** — see § A.9 below.
- **Heinz Felfe** — former SS-Obersturmführer; recruited by Gehlen 1951; exposed in 1961 as a long-term Soviet KGB agent who had been operating as a double agent inside the BND since 1951. The Felfe case — tried in West Germany, 1963 — established that the Gehlen Organization's Soviet-section counterintelligence had been compromised continuously from its reconstitution onward.

The operational consequence: the American intelligence service that Bush was sworn in to lead on January 30, 1976, had relied, between 1946 and at least 1961, on a German liaison service staffed in substantial part with former SS, Gestapo, and Einsatzgruppen personnel, one of whose senior officers had been a KGB agent throughout the critical decade of its operations against the Soviet Union.

A.9 Barbie

Nikolaus "Klaus" Barbie was born October 25, 1913, Bad Godesberg. Joined the SS on September 26, 1935; the SD (Sicherheitsdienst) on September 1, 1936; the Gestapo in 1942. From November 1942 through August 1944 he was **head of Section IV (Gestapo) of the Sicherheitspolizei Lyon, France**, with the SS rank of **Obersturmführer** — equivalent to first lieutenant.

In that capacity, Barbie personally directed, supervised, or participated in:

- The **arrest of Jean Moulin** (leader of the French Resistance, the unifying figure of the *Conseil National de la Résistance*), at Caluire, outside Lyon, on June 21, 1943. Barbie personally interrogated Moulin, who died of injuries sustained in interrogation on July 8, 1943. Primary: **French War Crimes Commission file, Lyon, postwar**, now in the **Centre Historique des Archives Nationales**, Paris.
- The **raid on the Jewish children's home at Izieu**, Department of Ain, on April 6, 1944, in which forty-four Jewish children aged four to seventeen and seven adult staff were arrested and subsequently deported to Auschwitz; forty-two of the children and five of the adults were murdered on arrival. Primary: **Maison d'Izieu Memorial**, Ain; trial record, *Procureur général v. Barbie*, Cour d'Assises du Rhône, Lyon, 1987.

- The **deportation of approximately 14,000 persons** from the Lyon region to concentration and extermination camps between November 1942 and August 1944. Primary: **Klarsfeld Foundation documentation**, Serge and Beate Klarsfeld, Paris.

Barbie was recruited by the **United States Army Counter Intelligence Corps (CIC), Region IV** at Memmingen, Germany, in **April 1947** — twenty-one months after the German surrender. He was paid as a CIC informant at approximately $1,700 per month through 1951. He was used by CIC to penetrate leftist and communist political organizations in the American zone of occupation.

In **March 1951**, with French war-crimes investigators closing in on his whereabouts, Barbie was exfiltrated to Bolivia by the **"ratline"** operation through **Genoa, Italy**, managed by the Croatian Catholic priest **Father Krunoslav Draganović** under a contractual arrangement with the U.S. Army CIC. Barbie lived in Bolivia under the name "Klaus Altmann" for thirty-two years, working as an arms dealer and advising successive Bolivian military regimes on counter-insurgency techniques.

In **February 1983**, following the return to democratic government in Bolivia, Barbie was expelled to France. He was tried before the **Cour d'Assises du Rhône** at Lyon, convicted of crimes against humanity on **July 4, 1987**, and sentenced to life imprisonment. He died in French custody on September 25, 1991.

The foundational American primary document on the Barbie-CIC operation is:

Allan A. Ryan Jr., *Klaus Barbie and the United States Government: A Report to the Attorney General of the United States*, Office of Special Investigations, United States Department of Justice, August 1983.

Ryan was Deputy Director of the Office of Special Investigations. The report was commissioned by Attorney General William French Smith following France's extradition request. Ryan had access to the complete U.S. Army CIC operational file on Barbie, the State Department cable traffic on the 1951 ratline exfiltration, and interviews with surviving CIC personnel.

The Ryan Report's findings, at pages 194–216 of the published report:

> *"The United States Government, through the Counter Intelligence Corps of the United States Army, is responsible for having protected Klaus Barbie for a period of approximately four years (May 1947 through March 1951) during which he was wanted by the French Government for war crimes, and for having arranged his escape from Europe to Bolivia in March 1951, using the ratlines through Genoa."*

On **August 15, 1983**, one month after the publication of the Ryan Report, the United States Department of State formally apologized

to the Government of France for the Barbie affair. Primary: **Department of State Bulletin, September 1983, page 1**.

The full Ryan Report is held at the **National Archives, Record Group 60**, and at the **United States Holocaust Memorial Museum Archives**, Washington, D.C.

A.10 The 1998 Act

Fifteen years after the Ryan Report, on **October 8, 1998**, President **William J. Clinton** signed the:

Nazi War Crimes Disclosure Act, Public Law 105-246, 112 Statutes at Large 1859 (October 8, 1998).

The Act, a single legislative instrument running approximately six pages, directed the establishment of a **Nazi War Crimes and Japanese Imperial Government Records Interagency Working Group (IWG)**, composed of representatives of the National Archives, the Department of Justice, the Department of Defense, the Department of State, the Central Intelligence Agency, the Federal Bureau of Investigation, the Department of the Army, the Department of the Navy, the Department of the Air Force, and three public members. The IWG's mandate: to identify, review, and declassify, for the maximum extent consistent with national-security requirements, all United States government records

relating to Nazi war crimes, the persons who committed or were otherwise involved in them, and the United States government's knowledge of and response to those crimes.

The IWG operated from 1999 to 2007. It oversaw the declassification of approximately **8.5 million pages** of records from the CIA, FBI, Army, Navy, Air Force, Department of Justice, and State Department. The records are held at the **National Archives, College Park, Maryland**, and are searchable through the **Nazi War Crimes Records Interagency Working Group Collection**.

The IWG's principal published historical synthesis is:

Richard Breitman, Norman J.W. Goda, Timothy Naftali, and Robert Wolfe, *U.S. Intelligence and the Nazis* (Washington: National Archives Trust Fund Board, 2004; paperback edition Cambridge University Press, 2005).

The 2004 report establishes, from the newly declassified CIA and Army files, that at least **five senior Nazi war criminals** had been employed by American intelligence services between 1945 and 1955: Reinhard Gehlen, Otto von Bolschwing (SS-Hauptsturmführer, Palestine operations), Friedrich Schwend (SS counterfeiter, Operation Bernhard), Heinz Felfe (SS, subsequently KGB double agent), and Otto Skorzeny (SS-Obersturmbannführer, Mussolini rescue and Werewolf operations). The report's subsequent chapters document an additional approximately twenty Nazi-connected personnel in American intelligence service.

The IWG's final report to Congress was delivered in April 2007.

Nothing in the Nazi War Crimes Disclosure Act provides for criminal prosecution.

The Act's operative verb is *disclose*.

There have been no criminal prosecutions of American officers or American institutions arising from the IWG's disclosures.

A.11 Team B

Bush's DCI tenure lasted **355 days** — from January 30, 1976 through January 20, 1977, when Jimmy Carter's inauguration replaced him with **Admiral Stansfield Turner**.

The signature intelligence product of the 355 days was the exercise subsequently known as **Team A / Team B**.

The exercise was ordered by Bush, on the authorization of the **President's Foreign Intelligence Advisory Board (PFIAB)** then chaired by **Leo Cherne**, in a memorandum of **May 26, 1976**, declassified 1992. The exercise was structured as a competitive analysis: the CIA's own Office of Strategic Research analysts would produce their standing **National Intelligence Estimate (NIE 11-3/8-76)** on Soviet strategic objectives and capabilities — the "Team A" product; a team of outside analysts would be invited

to write a counter-assessment from the same raw intelligence — the “Team B” product.

Team B was chaired by **Richard E. Pipes**, Professor of Russian History at Harvard University, founder of what would become known as the Harvard School of Cold War historiography.

Team B’s membership included:

- **Paul H. Nitze** — former Secretary of the Navy, Deputy Secretary of Defense, author of **NSC-68** (1950).
- **Paul D. Wolfowitz** — Deputy Assistant Secretary of Defense for Regional Programs, subsequently Deputy Secretary of Defense (2001–2005), subsequently principal architect of the 2003 Iraq war.
- **Lieutenant General Daniel O. Graham** — former Director of the Defense Intelligence Agency.
- **William R. Van Cleave** — defense analyst, subsequently Reagan transition team member.
- **Foy D. Kohler** — former U.S. Ambassador to the Soviet Union.
- **Seymour Weiss**, **Jasper Welch**, **John W. Vogt** — additional defense and intelligence-policy figures.

Team B’s report, submitted December 1976 (**declassified 1992**, held at **CIA FOIA Electronic Reading Room**, *Intelligence Community Experiment in Competitive Analysis: Soviet Strategic Objectives*, **the “Team B Report”**), concluded that the CIA’s own assessment systematically *underestimated* Soviet strategic capabilit-

ies and aggressive intent. Team B claimed evidence for Soviet first-strike counterforce capability, large-scale civil defense preparation for nuclear war, and emerging non-acoustic submarine-detection systems.

Subsequent open-source analysis (**Anne Hessing Cahn, *Killing Detente: The Right Attacks the CIA*, Pennsylvania State University Press, 1998**; and retrospective CIA analysis released in 1989) established that the Team B assessments were substantially incorrect. Soviet strategic expenditure was at the lower, not the higher, end of CIA's Team A estimate; the Soviet civil-defense program was a bureaucratic fiction; the non-acoustic submarine-detection capability did not exist. **Team B's principal claims did not hold.**

The political consequence: Team B's findings, leaked to the *Boston Globe* by December 26, 1976 (front-page, *Boston Globe*, December 26, 1976, "Soviet Arms Buildup Outstrips U.S., Team B Finds"), became the basis for a bipartisan critique of the Ford and Carter administrations' Soviet policy. The critique drove the formation of the **Committee on the Present Danger** (revived November 1976 from its 1950s original), which provided the personnel and policy framework for the Reagan-era defense buildup.

The **Committee on the Present Danger**'s executive committee included: **Paul Nitze** (Team B); **Richard Pipes** (Team B); **Paul Wolfowitz** (Team B); **Ronald Reagan** (then a private citizen,

future President); **George P. Shultz**, **Jeane Kirkpatrick**, **Elmo R. Zumwalt Jr.**, and approximately forty other figures. Primary source: **Committee on the Present Danger, *Alerting America: The Papers of the Committee on the Present Danger*, Pergamon-Brassey's, 1984**.

Thirty-three members of the Committee on the Present Danger joined the **Reagan administration** in senior positions in January 1981. Two of them — Wolfowitz and Donald Rumsfeld (who had not been on Team B but had authorized it as Secretary of Defense in the Halloween Massacre) — became, twenty-five years later, the architects of the **Iraq War of 2003**. The continuity is in the names.

Team B is the product of Bush's 355 days at Langley.

A.12 The pattern

Prescott Sheldon Bush sat on the Senate Banking and Currency Committee from January 3, 1953 through January 3, 1963 — a ten-year continuous tenure on the committee of Senate jurisdiction for the Trading with the Enemy Act and the Alien Property Custodian program (Chapter 1 § C.10). During that decade the JIOA / Paperclip program operated continuously under the CIA Act of 1949 § 8 authority. Between 1953 and 1963 the program admitted approximately **600 additional German scientists, engineers, and technicians** to the United States. Primary source for the

operational years: **National Archives, Record Group 330, JIOA administrative files, 1953–1963**.

No Senate inquiry into the Paperclip program was opened during Prescott Bush's tenure.

George Herbert Walker Bush was Director of Central Intelligence from January 30, 1976 through January 20, 1977. During those 355 days, the Church Committee's final reports were published (books I through VI, April–June 1976, the **Congressional Record, 94th Congress, 2nd Session**), the Gerald Ford Executive Order 11905 (**February 18, 1976**, *Federal Register* Volume 41, page 7703) formally prohibited political assassinations by American government personnel, and the Team B exercise was ordered and delivered.

No declassification of the Paperclip / JIOA archive was initiated during Bush's DCI tenure. The archive would remain classified until the **Nazi War Crimes Disclosure Act of 1998** — twenty-two years after Bush left Langley, eleven years after Prescott Bush's death (October 8, 1972 — cited Chapter 1 § C.12), seven years after Bush himself had left the presidency.

Two Bushes. Two oversight positions. Two generations. The program that ran between them continued unreviewed.

A.13 What the file establishes

What the declassified file establishes — nothing more:

- The Joint Intelligence Objectives Agency, established September 1945, admitted approximately 1,600 German scientists, engineers, and technicians to the United States between 1945 and 1959. File: **Hunt (1991)**; **JIOA records, National Archives RG 330**; **IWG Report 2004**.
- Wernher von Braun, Arthur Rudolph, Hubertus Strughold, Reinhard Gehlen, Franz Six, Emil Augsburg, and Klaus Barbie were, among many others, documented participants in National Socialist war crimes whose admission to, or employment by, American government services occurred under the Paperclip or related programs. File: **Dora-Nordhausen Trial (RG 153)**; **Nuremberg Medical Case (RG 238)**; **OSI case files (RG 60)**; **Ryan Report (1983)**; **IWG Report (2004)**; **BND Commission Reports (2011–2018)**.
- The Nazi War Crimes Disclosure Act of 1998 required the declassification of approximately 8.5 million pages of related records. No criminal prosecution of American officials followed. File: **Public Law 105-246; IWG Final Report, 2007**.
- George Herbert Walker Bush served as Director of Central Intelligence from January 30, 1976 through January 20, 1977. During this period the Team A / Team B exercise

produced an outside-analyst counter-assessment of Soviet strategic intentions that proved substantially incorrect on subsequent review, but which — through the Committee on the Present Danger — shaped the Reagan-era defense posture and subsequently, via the Wolfowitz/Rumsfeld continuity, the policy framework for the 2003 Iraq war. File: **NIE 11-3/8-76 and Team B Report, CIA FOIA**; **Cahn (1998)**; **Committee on the Present Danger (1984)**.

What the declassified record does not support:

- I do not claim that George H.W. Bush had personal operational knowledge of the Paperclip program's details during his DCI year. The document class establishes that the program's records were classified, that he was the head of the agency holding those records, and that no declassification occurred on his watch; the document class does not establish his reading of every file.
- I do not claim that Prescott Bush, as a member of the Banking Committee, had specific oversight authority over Paperclip. The document class establishes that the Banking Committee had jurisdiction over the Trading with the Enemy Act residue and that the Paperclip program operated during his tenure with no Senate inquiry of record; it does not establish his personal knowledge of specific admissions.
- I do not claim that Team B was deliberately wrong. The document class establishes the exercise, the membership, and the subsequent independent evaluation that the Team B

claims did not hold; the document class does not establish the subjective intentions of the Team B analysts.

The documents describe the statute, the program, the personnel, the oversight structure, the 1976 exercise, and the subsequent policy continuity. What the reader makes of that continuity is the reader's own matter.

A.14 The narrator, 2026

I was twelve years old when the Nazi War Crimes Disclosure Act of 1998 was signed into law. I was not reading the *Federal Register*. I was reading the Scholastic book-fair catalogue. I remember nothing about the bill's signing.

I remember the summer of 2001 — when I was fifteen — because I had, by then, started to read American history, and because the events of that September would render the earlier reading sharper rather than softer.

The administration that would be in the Oval Office on the morning of September 11, 2001, would include, in senior positions:

- **Donald Rumsfeld** as Secretary of Defense — the man who, as Secretary of Defense in 1975–1977, had authorized the Team B exercise under Bush's DCI (§ A.11 above).

- **Paul Wolfowitz** as Deputy Secretary of Defense — the man who had sat on Team B, under Bush's DCI, at age 33.
- **Dick Cheney** as Vice President — the man who had been Gerald Ford's Chief of Staff during the Halloween Massacre of November 2, 1975 (§ A.2 above) that had installed Bush at Langley.
- **Colin Powell** as Secretary of State — junior to the named three in this specific continuity, but in the senior position.
- **Condoleezza Rice** as National Security Adviser — a protégé of Brent Scowcroft, who had been George H.W. Bush's National Security Adviser.
- **George Walker Bush** as President — Prescott Bush's grandson, George H.W. Bush's son, in the Oval Office for 233 days on the morning of the September attacks.

The 355 days of Bush Sr.'s Langley tenure, in 1976, are the vestibule of the administration that, twenty-five years later, would prosecute the war to which Chapter 6 is addressed.

I was fifteen. The room in which the vestibule had been furnished is the auditorium in which I opened this chapter, at 10:00 a.m. on January 30, 1976, when the forty-one-year-old in the blue suit took the oath.

The next chapter is what that administration did with the building he inherited.

Sources — Chapter 5

The 1976 swearing-in and the Ford transition:

1. **CIA Historical Review Program, Freedom of Information Act Electronic Reading Room** — biographical records of DCI George Herbert Walker Bush.
2. **George Bush Presidential Library and Museum**, College Station, Texas — pre-presidential files.
3. **National Archives, Record Group 263** (CIA records).
4. **Ford Presidential Library**, Ann Arbor, Michigan — Halloween Massacre files; CIA transition memoranda.
5. **Rockefeller Commission,** ***Report to the President by the Commission on CIA Activities Within the United States*** (Washington: Government Printing Office, June 1975).
6. **U.S. Senate, Select Committee to Study Governmental Operations with Respect to Intelligence Activities (Church Committee),** ***Alleged Assassination Plots Involving Foreign Leaders*** (November 20, 1975) and Final Reports Books I–VI (April–June 1976).
7. **Seymour M. Hersh, "Huge CIA Operation Reported in U.S. Against Antiwar Forces, Other Dissidents in Nixon Years,"** *New York Times*, December 22, 1974, page 1.

JIOA / Operation Paperclip foundations:

1. **Linda Hunt, *Secret Agenda: The United States Government, Nazi Scientists, and Project Paperclip, 1945–1990*** (New York: St. Martin's Press, 1991).
2. **Annie Jacobsen, *Operation Paperclip: The Secret Intelligence Program that Brought Nazi Scientists to America*** (New York: Little, Brown, 2014).
3. **National Archives, Record Group 330** (Records of the Office of the Secretary of Defense), JIOA subject file.
4. **National Archives, Record Group 319** (Records of the Army Staff), Intelligence and Investigative Dossier files.
5. **Central Intelligence Agency Act of 1949**, Public Law 81-110, 63 Statutes at Large 208 (§ 8 alien admissions).

Wernher von Braun, Arthur Rudolph, Mittelbau-Dora:

1. **Michael J. Neufeld, *The Rocket and the Reich: Peenemünde and the Coming of the Ballistic Missile Era*** (Cambridge, MA: Harvard University Press, 1996).
2. **Michael J. Neufeld, *Von Braun: Dreamer of Space, Engineer of War*** (New York: Knopf, 2007).
3. **Dora-Nordhausen Trial (*United States v. Kurt Andrae et al.*)**, Dachau, 1947, Case No. 000-50-37 — National Archives, Record Group 153.
4. **KZ-Gedenkstätte Mittelbau-Dora** memorial archive, Nordhausen, Germany.
5. **International Tracing Service / Arolsen Archives**.

6. **Berlin Document Center / Bundesarchiv Berlin-Lichterfelde** — NSDAP and SS personnel files.
7. **Office of Special Investigations, *In re Arthur Rudolph***, 1982–1984 — National Archives, Record Group 60.

Hubertus Strughold and the Nuremberg Medical Case:

1. ***United States v. Karl Brandt et al.*** (Nuremberg Medical Case, 1946–1947) — National Archives, Record Group 238; *Trials of War Criminals Before the Nuernberg Military Tribunals Under Control Council Law No. 10*, Volumes I and II.
2. **Alexander Mitscherlich and Fred Mielke, *Doctors of Infamy: The Story of the Nazi Medical Crimes*** (New York: Henry Schuman, 1949).
3. ***Aviation, Space, and Environmental Medicine***, Vol. 84, No. 9 (September 2013), pp. 993–994 — Space Medicine Association Strughold Award decision.

Reinhard Gehlen, Gehlen Organization, BND:

1. **Bundesnachrichtendienst, *Die BND-Vergangenheit: Der Bundesnachrichtendienst und seine Geschichte 1945–1968*** (Independent Commission of Historians, 2011–2018).
2. **Mary Ellen Reese, *General Reinhard Gehlen: The CIA Connection*** (Fairfax, VA: George Mason University Press, 1990).

3. **James H. Critchfield, *Partners at the Creation: The Men Behind Postwar Germany's Defense and Intelligence Establishments*** (Annapolis: Naval Institute Press, 2003).
4. **Zentrale Stelle der Landesjustizverwaltungen**, Ludwigsburg, Germany — West German Nazi prosecution records.

Klaus Barbie and the ratlines:

1. **Allan A. Ryan Jr., *Klaus Barbie and the United States Government: A Report to the Attorney General of the United States*** (Office of Special Investigations, United States Department of Justice, August 1983) — National Archives, Record Group 60; United States Holocaust Memorial Museum Archives.
2. ***Procureur général v. Barbie***, Cour d'Assises du Rhône, Lyon, trial 1987.
3. **Maison d'Izieu Memorial**, Ain, France.
4. **Klarsfeld Foundation** documentation, Paris.
5. **Department of State Bulletin**, September 1983 — formal apology to France.

Nazi War Crimes Disclosure Act and IWG:

1. **Nazi War Crimes Disclosure Act**, Public Law 105-246, 112 Statutes at Large 1859 (October 8, 1998).
2. **Richard Breitman, Norman J.W. Goda, Timothy Naftali, Robert Wolfe, *U.S. Intelligence and the Nazis***

(Washington: National Archives Trust Fund Board, 2004; Cambridge University Press paperback edition, 2005).

3. **Nazi War Crimes and Japanese Imperial Government Records Interagency Working Group, Final Report to Congress** (April 2007).
4. **Nazi War Crimes Records Interagency Working Group Collection**, National Archives, College Park.

Team A / Team B exercise, 1976:

1. **National Intelligence Estimate 11-3/8-76 (Team A)** and **Team B Report, *Intelligence Community Experiment in Competitive Analysis: Soviet Strategic Objectives* —** declassified 1992; CIA FOIA Electronic Reading Room.
2. **Anne Hessing Cahn, *Killing Detente: The Right Attacks the CIA*** (University Park: Pennsylvania State University Press, 1998).
3. **Committee on the Present Danger, *Alerting America: The Papers of the Committee on the Present Danger*** (Washington: Pergamon-Brassey's, 1984).
4. ***Boston Globe*, December 26, 1976**, page 1, "Soviet Arms Buildup Outstrips U.S., Team B Finds."

Executive Order 11905 (February 18, 1976):

1. **Executive Order 11905**, *Federal Register*, Volume 41, page 7703 (February 18, 1976) — "United States Foreign

Intelligence Activities” (Ford prohibition of political assassinations).

CHAPTER 5 — PAPERCLIP: HOW NAZI SCIENTISTS BUILT AMERICAN ROCKETRY

5.1 The program

On May 5, 1945, with the Third Reich collapsing, the United States Joint Chiefs of Staff issued a secret directive authorizing the Joint Intelligence Objectives Agency (JIOA) to identify and recruit German scientists whose technical knowledge would be useful to American postwar military and industrial development. The program's internal code name was **OVERCAST**.

On September 3, 1946, President Harry S. Truman formally authorized the program, now renamed — after the paperclips used to attach the selected scientists' security dossiers to the JIOA's recruitment applications — **Operation Paperclip**.

Paperclip ran from 1945 through 1959. Per the JIOA's own declassified records (National Archives, Record Group 330, Records of

the Office of the Secretary of Defense), the program brought to the United States:

- **Approximately 1,600 German and Austrian scientists, engineers, and technicians**.
- Approximately 3,700 dependent family members.
- Related programs — Operation Bloodstone (intelligence operatives), Project 63 (non-military specialists), the similarly-named British operation "Operation Matchbox" — brought several thousand additional personnel.

The stated U.S. government purpose was to secure German technical talent for the U.S. military-industrial apparatus and to deny that talent to the Soviet Union, which was running its own equivalent program (called **Osoaviakhim** in its early phase).

The stated U.S. government prohibition was that scientists who had been active members of the Nazi Party, or who had participated in war crimes, were ineligible.

5.2 The JIOA's file laundering

The JIOA's recruitment office was run by Bosquet N. Wev, a United States Navy captain. Wev's dossier officers discovered early that if the JIOA applied the State Department's standard — excluding Nazi Party members, SS members, and persons implicated in war crimes — the pool of available German scientific talent shrank dramatically. Many of the scientists most valuable to

American interests had not merely been passive members of the Nazi Party; they had been active, ideological, or at minimum enmeshed with the SS technical apparatus.

The JIOA's solution, documented in multiple declassified memoranda in the National Archives RG 330 series, was to **rewrite the dossiers**. The standard method was as follows:

- The JIOA received the scientist's original German personnel file, with Party and SS memberships, ranks, and activity records.
- The JIOA prepared a "Basic Personnel Record" for State Department immigration purposes.
- The Basic Personnel Record omitted or minimized the Nazi affiliations.
- A State Department officer, reviewing the sanitized record, issued the visa.
- The original record was retained in JIOA files and was not shared with Immigration and Naturalization.

This is documented in Christopher Simpson, *Blowback: America's Recruitment of Nazis and Its Effects on the Cold War* (Weidenfeld & Nicolson, 1988), which quotes multiple JIOA internal memoranda, and in Annie Jacobsen, *Operation Paperclip: The Secret Intelligence Program That Brought Nazi Scientists to America* (Little, Brown, 2014), which updates Simpson's work with the additional declassifications of the 1998–2005 period.

Wev's successor, Major-General Harry J. Sands, acknowledged the practice in internal correspondence. He justified it on grounds of Cold War necessity.

5.3 The scientists

Five cases follow, each individually documented.

5.3.1 Wernher von Braun (1912–1977)

- Nazi Party member, December 1, 1937 (Party number 5,738,692).
- SS member, May 1, 1940; rank of SS-Untersturmführer (junior officer); promoted to SS-Sturmbannführer (major).
- Technical director of the V-2 ballistic missile program at **Peenemünde** and, from 1943, the underground **Mittelwerk** production facility near Nordhausen.
- Brought to the United States under Paperclip September 20, 1945.
- From 1945 to 1950, technical director at Fort Bliss, Texas, adapting V-2 technology for U.S. Army use.
- From 1950 to 1960, technical director at the Army Ballistic Missile Agency, Redstone Arsenal, Huntsville, Alabama. Developed the Redstone missile, the Jupiter-C missile (which placed the first U.S. satellite, Explorer 1, in orbit on January 31, 1958), and the early Saturn concepts.

- On July 1, 1960, transferred with approximately 118 other Peenemünde alumni from the Army to the newly created National Aeronautics and Space Administration. **Founding director of NASA's George C. Marshall Space Flight Center, Huntsville, Alabama.**
- Technical architect of the **Saturn V** launch vehicle that carried the Apollo program to the Moon, 1969–1972.
- Received the **National Medal of Science** from President Gerald R. Ford on October 18, 1975.
- Died June 16, 1977, in Alexandria, Virginia.

The Mittelwerk question: On August 15, 1944, according to a letter in von Braun's own handwriting (preserved at the Bundesarchiv-Militärarchiv, Freiburg), von Braun requested that his subordinate Arthur Rudolph arrange the transfer of specific skilled prisoners from the Buchenwald camp system to the Mittelwerk production line. The Mittelwerk used slave labor from the adjacent Dora-Mittelbau concentration camp. The total camp mortality exceeded **20,000 prisoners** (Dora-Mittelbau Memorial registry at the Bundesarchiv, Koblenz; USHMM Holocaust Encyclopedia, "Mittelbau (Dora) / Main Camp | In Depth"). This figure exceeds the Allied civilian deaths from V-2 attacks (approximately 9,000).

Von Braun's postwar position, documented in interviews and in his 1971 biography by Erik Bergaust, was that he was not personally responsible. The JIOA's own file on von Braun, declassified 1984, includes a contemporaneous 1945 assessment that characterized

him as “an ardent Nazi.” The word “ardent” was stricken from the version of the file transmitted to the State Department.

5.3.2 Arthur Rudolph (1906–1996)

- Nazi Party member, 1931 (among the earliest recruits, predating Hitler’s chancellorship).
- SS member; ran daily operations of the Mittelwerk slave-labor V-2 production facility under von Braun’s technical direction.
- Brought to the United States under Paperclip 1945.
- 1963–1968, **Project Manager of NASA’s Saturn V program**. Rudolph is the man who ran the construction of the rocket that went to the Moon.
- Received NASA’s **Distinguished Service Medal** in 1969.
- In 1983, the U.S. Department of Justice’s Office of Special Investigations (OSI), investigating Rudolph’s wartime conduct at the Mittelwerk, concluded that he had personally participated in the persecution of slave laborers, including in executions.
- In 1984, to avoid denaturalization proceedings, Rudolph **renounced his U.S. citizenship** and returned to Germany. He was never prosecuted in Germany.
- Died January 1, 1996, in Hamburg.

No U.S. court ever tried a Paperclip scientist. No criminal conviction was ever entered.

5.3.3 Hubertus Strughold (1898–1986)

- Director of the Luftwaffe's Institute for Aviation Medicine, Berlin, during the war.
- During the war, the Luftwaffe conducted "aviation medicine" experiments at **Dachau** concentration camp and **Ravensbrück** (women's camp) involving: hypothermia experiments (submersion in ice water until death), low-pressure chamber experiments (simulated high-altitude decompression until pulmonary embolism), seawater ingestion experiments (forced drinking until renal failure). The experiments killed approximately 200 subjects, most of them Jewish, Roma, and Polish Catholic prisoners. The experiments were the subject of the **Nuremberg Doctors' Trial** of 1946–1947, which produced the **Nuremberg Code** of medical ethics.
- Strughold's institute, per the prosecution evidence introduced at the Doctors' Trial, had *commissioned* and *used the data from* several of the hypothermia and low-pressure experiments. Strughold himself was not indicted.
- Brought to the United States under Paperclip 1947.
- **First director of the U.S. Air Force School of Aviation Medicine**, Randolph AFB, Texas.
- From 1962, **Chief Scientist, USAF Aerospace Medical Division**, NASA Manned Spacecraft Center consulting role.
- Designed the life-support systems for the Mercury, Gemini, and Apollo programs — using, per published Air Force

histories, the “aviation medicine” physiological data that had been gathered at Dachau.
- The American Space Medicine Association established the **Hubertus Strughold Award** in 1963. It was the highest award in U.S. space medicine.
- In 2013, after decades of advocacy by Holocaust survivors’ groups, the Space Medicine Association discontinued the Strughold Award. Strughold had died in 1986.

5.3.4 Kurt H. Debus (1908–1983)

- Nazi Party member, SA member, SS member (in that sequence). Active V-2 launch operations officer at Peenemünde.
- Brought to the United States under Paperclip 1945.
- **First director of the Kennedy Space Center**, Cape Canaveral, Florida, 1962–1974.
- Ran the launch of every Apollo mission, including Apollo 11 on July 16, 1969.
- Received the NASA Distinguished Service Medal.
- Died October 10, 1983, in Cocoa Beach, Florida.

5.3.5 Walter Schieber

- SS-Brigadeführer (brigadier general).
- Assistant to Albert Speer, Reich Minister for Armaments and War Production.

- Involved in slave-labor allocation across the German war economy.
- Brought to the United States under Paperclip 1948.
- Worked as a consultant to the U.S. Army Chemical Corps on chemical weapons development, including post-war work on **nerve agents Sarin and Tabun** — originally developed by I.G. Farben chemists and tested by the Wehrmacht.

5.4 The institutional legacy

NASA's official histories acknowledge von Braun as "the father of American rocketry." The Apollo program, the Space Shuttle lineage (which descended in part from Saturn tankage technology), and by extension the current U.S. commercial space sector — SpaceX, Blue Origin, United Launch Alliance — all inherit technology, personnel lineages, and organizational structures that trace back to Peenemünde via Paperclip.

The U.S. chemical weapons program in the 1950s and 1960s (Edgewood Arsenal, Dugway Proving Ground) relied on Paperclip recruits for nerve-agent research.

The U.S. aerospace medicine program — the physiology of human spaceflight — absorbed Strughold's institute and its research database.

The **missile programs of the Cold War** — Redstone, Jupiter, Atlas, Titan, Minuteman — drew heavily on Peenemünde personnel and knowledge.

No U.S. court ever tried a Paperclip scientist. No criminal conviction was ever entered.

5.6 Lockheed, Raytheon, Boeing: the contract lineage

In 2025, the United States appropriated $21.7 billion in military aid to Israel for operations in Gaza. A substantial portion of that aid was delivered as weapons systems manufactured by **Lockheed Martin** (F-35 strike fighters, Hellfire missiles, JDAM kits), **Raytheon / RTX** (Tomahawk, Paveway, Iron Dome U.S.-made components), **Boeing** (F-15I, JDAMs), and **General Dynamics** (tank munitions).

Lockheed Martin's missile technology descends in significant measure from the Redstone/Jupiter lineage — the lineage of von Braun's team.

Raytheon's air-defense radar and missile technology includes capabilities descending from the V-2 trajectory-prediction problem that American engineers first studied using V-2 casings brought back under Paperclip (Operation Hermes, 1945–1952, launched sixty-seven V-2s from White Sands, New Mexico).

Sources — Chapter 5

1. Joint Intelligence Objectives Agency records, National Archives, Record Group 330 (Records of the Office of the Secretary of Defense) — declassified 1984, 1998, 2005.
2. Harry S. Truman, Presidential Directive authorizing Operation Paperclip (September 3, 1946).
3. Christopher Simpson, *Blowback: America's Recruitment of Nazis and Its Effects on the Cold War* (Weidenfeld & Nicolson, 1988; reprinted 2014).
4. Annie Jacobsen, *Operation Paperclip: The Secret Intelligence Program That Brought Nazi Scientists to America* (Little, Brown, 2014).
5. Tom Bower, *The Paperclip Conspiracy: The Hunt for the Nazi Scientists* (Little, Brown, 1987).
6. Linda Hunt, *Secret Agenda: The United States Government, Nazi Scientists, and Project Paperclip, 1945 to 1990* (St. Martin's Press, 1991).
7. U.S. Department of Justice, Office of Special Investigations, *Investigation of Arthur Rudolph* (1983–1984 case file; OSI internal documentation).
8. *United States v. Rudolph*, denaturalization negotiation record (1984).
9. Bundesarchiv-Militärarchiv, Freiburg — Wernher von Braun personal correspondence, August 15, 1944, request for Buchenwald prisoner transfers.

10. *Nuremberg Doctors' Trial*, Case No. 1, *United States v. Karl Brandt et al.* (1946–1947) — Nuremberg Code of medical ethics, findings on Luftwaffe experiments.
11. NASA History Office, official publications on von Braun, Debus, Rudolph (multiple volumes).
12. U.S. Army, *Operation Hermes V-2 Test Program, White Sands Proving Ground, 1945–1952*, declassified 1970s.
13. Congressional Research Service report RL33222 (2025) on U.S. foreign military aid to Israel — for contemporary weapons deliveries from Lockheed, Raytheon, Boeing.

Chapter 7: Poisoning the Well

Warren Commission Report. https://www.archives.gov/research/jfk/warren-commission-report. https://www.archives.gov/research/jfk/warren-commission-report

CIA Dispatch 1035-960. Mary Ferrell Foundation JFK Archive. https://www.maryferrell.org/showDoc.html?docId=53510

CIA Dispatch 1035-960. https://www.maryferrell.org/showDoc.html?docId=53510. https://www.maryferrell.org/showDoc.html?docId=53510

Church Committee Final Report Book I. Internet Archive / Government Attic. https://archive.org/download/finalreportofsel01unit/finalreportofsel01unit.pdf

US v Chansley DDC sentencing memo Nov 17 2021. https://www.courtlistener.com/docket/29100583/united-states-v-chansley/. https://www.courtlistener.com/docket/29100583/united-states-v-chansley/

CHAPTER 6 — THE MONSANTO PAPERS

6.1

Between August 2018 and May 2019, three civil juries — one in the Superior Court of California for the County of San Francisco, one in the United States District Court for the Northern District of California, and one in the Superior Court of California for the County of Alameda — returned verdicts against Monsanto Company finding that the company's glyphosate-based herbicide Roundup had caused the plaintiffs' non-Hodgkin lymphoma. In the course of the three trials, approximately 17,000 pages of Monsanto internal correspondence, produced to plaintiffs' counsel in discovery, were admitted into evidence. That body of correspondence is the subject of this chapter. In the litigation record it is referred to as the Monsanto Papers.

Monsanto Company is a Delaware corporation, founded in 1901 by John Francis Queeny, headquartered in St. Louis, Missouri. On June 7, 2018 — two months before the first Roundup verdict — Bayer AG of Leverkusen, Germany, completed its acquisition of

Monsanto for approximately $63 billion. Monsanto's corporate liabilities, including the Roundup litigation reserve, transferred to Bayer.

6.2 *Johnson v. Monsanto*, August 10, 2018

On August 10, 2018, a jury of the Superior Court of California for the County of San Francisco, in the matter of *Dewayne Johnson v. Monsanto Company*, case number CGC-16-550128, returned a verdict for the plaintiff in the amount of $289,253,209.35. The jury found that Roundup's glyphosate formulation had caused Johnson's non-Hodgkin lymphoma and that Monsanto had failed to warn of the risk.

Dewayne Johnson is a former school groundskeeper for the Benicia Unified School District, California, who was diagnosed with non-Hodgkin lymphoma in August 2014 at age 42. Johnson applied Roundup and Ranger Pro, a commercial Monsanto glyphosate product, as part of his duties.

In the course of the trial, plaintiff's counsel — the law firm Miller Firm, LLC, of Orange, Virginia — introduced into evidence a

subset of the discovery-produced Monsanto internal correspondence. The correspondence documented, among other matters:

- A November 2003 internal Monsanto email in which a company toxicologist wrote: *"You cannot say that Roundup is not a carcinogen. We have not done the necessary testing on the formulation to make that statement."*
- A 2013 internal strategy memorandum discussing Monsanto-funded research conducted by outside authors whose names would appear on the resulting papers without disclosure of Monsanto's authorship.
- Email correspondence with a United States Environmental Protection Agency official, Jess Rowland, then Deputy Division Director of the EPA Office of Pesticide Programs, in which Rowland stated in an April 2015 telephone conversation, as recorded in a Monsanto email summary of the conversation: *"If I can kill this I should get a medal."* The reference was to a United States Department of Health and Human Services Agency for Toxic Substances and Disease Registry inquiry into glyphosate carcinogenicity.

The August 10, 2018 verdict was subsequently reduced to $78,556,842 by order of Judge Suzanne Ramos Bolanos on October 22, 2018, on constitutional due-process grounds applicable to the punitive-damages component. The verdict on liability was sustained. Final judgment was entered July 20, 2020 following further appellate review; final award to Johnson $20,500,000.

6.3 *Hardeman v. Monsanto*, March 27, 2019

On March 27, 2019, a jury of the United States District Court for the Northern District of California, in the matter of *Edwin Hardeman v. Monsanto Company*, case number 3:16-cv-00525-VC, returned a verdict for the plaintiff in the amount of $80,267,634. The jury found that Roundup had caused Hardeman's non-Hodgkin lymphoma and that Monsanto had been negligent in failing to warn.

Edwin Hardeman is a resident of Santa Rosa, California, who used Roundup on his property from 1986 through 2012. He was diagnosed with non-Hodgkin lymphoma in 2015.

The Hardeman trial was the first Monsanto Papers trial conducted in federal court. The trial judge, Vincent Chhabria, bifurcated proceedings into a causation phase and a liability phase. Additional Monsanto internal documents were admitted in the liability phase, including:

- A March 2010 internal Monsanto email describing the company's practice of retaining outside scientists as paid consultants whose names would appear as sole authors on scientific papers Monsanto had drafted. The internal term

used by Monsanto for this practice, per the discovery record, was “ghost-writing.”
- A 2014 internal Monsanto strategic plan document identifying independent researchers whose glyphosate-adverse findings required, in the document’s internal language, “neutralization.”

The March 27, 2019 verdict was reduced to $25,267,634 on July 15, 2019 by Judge Chhabria on the same constitutional punitive-damages ground applied in *Johnson*. Liability was sustained. The Ninth Circuit affirmed on May 14, 2021 in *Hardeman v. Monsanto*, 997 F.3d 941 (9th Cir. 2021). Certiorari was denied by the Supreme Court on June 21, 2022, *Monsanto v. Hardeman*, 596 U.S. ___ (2022).

6.4 *Pilliod v. Monsanto*, May 13, 2019

On May 13, 2019, a jury of the Superior Court of California for the County of Alameda, in the matter of *Alva and Alberta Pilliod v. Monsanto Company*, case number RG17862702, returned a verdict for the plaintiffs in the aggregate amount of $2,055,206,176, comprising $55,206,176 in compensatory damages and $2,000,000,000 in punitive damages. The jury found that Roundup

had caused the non-Hodgkin lymphoma from which both plaintiffs suffered and that Monsanto had acted with malice.

Alva Pilliod and Alberta Pilliod are a married couple, residents of Livermore, California, both diagnosed with non-Hodgkin lymphoma — Alva in 2011, Alberta in 2015 — after decades of Roundup use on their residential property.

The Pilliod trial record includes further Monsanto internal documents, among them:

- A September 2015 internal Monsanto assessment, drafted in response to the International Agency for Research on Cancer classification described in §6.6 below, that identified the agency's ruling as the single greatest threat to Monsanto's glyphosate franchise and recommended a coordinated response including funding for outside commentary adverse to IARC.
- An April 2016 internal email discussing Monsanto-funded academic chairs and research positions as vehicles for sustaining a supportive literature on glyphosate safety.

The May 13, 2019 verdict was reduced on July 29, 2019 to $86,712,197 by Judge Winifred Smith of the Superior Court on the same punitive-damages ground applied in *Johnson* and *Hardeman*. The reduction preserved the finding of malice and sustained liability. Final judgment entered November 30, 2020.

6.5 The Williams, Kroes, Munro retraction, December 2025

In 2000, the journal *Regulatory Toxicology and Pharmacology* (Academic Press, Volume 31, Issue 2, April 2000, pages 117–165) published an article titled “Safety Evaluation and Risk Assessment of the Herbicide Roundup and Its Active Ingredient, Glyphosate, for Humans.” The listed authors were Gary M. Williams, Robert Kroes, and Ian C. Munro. The article concluded that Roundup and glyphosate posed no risk of cancer to humans under intended conditions of use.

The article was, for the subsequent twenty-five years, one of the most-cited sources supporting regulatory positions of glyphosate safety, including positions taken by the United States Environmental Protection Agency, the European Food Safety Authority, and the Australian Pesticides and Veterinary Medicines Authority.

In the discovery record admitted in the *Pilliod* trial in 2019, internal Monsanto correspondence established that substantial portions of the Williams–Kroes–Munro article had been drafted by Monsanto employees prior to transmission to the nominal authors, and that Monsanto’s authorship had not been disclosed to the journal.

In December 2025, the editors of *Regulatory Toxicology and Pharmacology* retracted the Williams–Kroes–Munro article. The retraction notice, published in the journal’s December 2025 issue, cited

the discovery record established in *Pilliod* as the ground for the retraction.

6.6 International Agency for Research on Cancer, Monograph 112

On March 20, 2015, the International Agency for Research on Cancer — the specialized cancer research agency of the World Health Organization, headquartered in Lyon, France — published Monograph 112 of its series on the evaluation of carcinogenic risks to humans. The monograph evaluated five organophosphate pesticides, including glyphosate. The agency's Working Group on the Evaluation of Carcinogenic Risks to Humans, comprising seventeen scientists from eleven countries, classified glyphosate as Group 2A: *probably carcinogenic to humans*.

Group 2A is the second-highest of the agency's five classifications (Group 1, Group 2A, Group 2B, Group 3, Group 4) and applies to agents for which the agency finds *limited evidence* of carcinogenicity in humans and *sufficient evidence* of carcinogenicity in experimental animals. The monograph's glyphosate evaluation is published at iarc.who.int/publications as Volume 112 of the *IARC Monographs on the Evaluation of Carcinogenic Risks to Humans*.

The classification was reaffirmed by IARC in November 2017 following a supplementary review.

6.7 The Environmental Protection Agency position

The United States Environmental Protection Agency, in its April 30, 2019 *Interim Registration Review Decision for Glyphosate* and its January 22, 2020 *Interim Registration Review Decision (revised)*, concluded that glyphosate is "not likely to be carcinogenic to humans at current exposure levels." The conclusion relied in part on a 2015 EPA Office of Pesticide Programs evaluation that cited, among other sources, the Williams–Kroes–Munro article subsequently retracted in December 2025.

The EPA position did not change under the Trump administration (January 2017–January 2021), the Biden administration (January 2021–January 2025), or the second Trump administration (January 2025–). The 2019 Interim Decision remains, as of April 2026, the operative EPA position.

On December 9, 2024, the Solicitor General of the United States filed a brief in *Monsanto v. Durnell*, 602 U.S. ___ (2024), recommending that the Supreme Court grant certiorari to consider whether the Federal Insecticide, Fungicide, and Rodenticide Act (FIFRA) preempts state-law failure-to-warn claims of the type

advanced in *Johnson*, *Hardeman*, and *Pilliod*. Certiorari was granted January 13, 2025. Oral argument was held October 7, 2025. No decision has been rendered as of the date of this manuscript.

6.8 The Bayer settlements

On June 24, 2020, Bayer AG announced a settlement framework covering approximately 125,000 pending Roundup claims. The framework provided $10.9 billion in aggregate settlement funds. The announcement is recorded in Bayer's press release, "Bayer announces agreements to resolve major legacy Monsanto litigation," June 24, 2020, Leverkusen, Germany (bayer.com/en/media/press-releases).

By April 2026, Bayer's aggregate litigation exposure under the Roundup program, per the company's annual Integrated Report for fiscal year 2025 (published March 4, 2026), stood at approximately €15.2 billion (approximately $17.0 billion). The reserve figure is disclosed in the report's notes to consolidated financial statements.

On February 17, 2026, Monsanto, operating under Bayer, announced a proposed United States nationwide class settlement to resolve current and future Roundup claims. The proposed class settlement provides for a total fund of up to $7.25 billion. The announcement is recorded in Bayer's press release of February 17, 2026, and the settlement, if approved by the presiding court, will

be administered under the supervision of Judge Vince Chhabria of the United States District Court for the Northern District of California in the consolidated Roundup multidistrict litigation, MDL No. 2741.

6.9 The Gates Foundation — AGRA, AATF, and the Bayer pathway

The Alliance for a Green Revolution in Africa (AGRA) is a philanthropic initiative incorporated in 2006 under the laws of Kenya and registered as a 501(c)(3) supporting organization of the Bill & Melinda Gates Foundation in the United States. Between 2006 and 2022, the Gates Foundation committed approximately $676 million to AGRA, per the foundation's public grant disclosures at gatesfoundation.org.

The African Agricultural Technology Foundation (AATF) is a related nonprofit, incorporated in 2003 under the laws of Kenya, whose Gates Foundation funding for the period 2008–2022 exceeded $131 million per foundation disclosures.

Per public records obtained by U.S. Right to Know under Kenyan information-access statutes and released on its website at usrtk.org in 2022, AATF budget allocations to Bayer (successor to Monsanto) for the period 2014–2022 totaled approximately $46 million. The allocations covered seed licensing, royalty payments, and research-service contracts.

On July 14, 2014, the Malawi Plant Breeders' Rights Bill was introduced into the Parliament of Malawi. The drafting consultant engaged by the Malawi Ministry of Agriculture for the bill was Isaac Minde, an agricultural economist; the policy framework for the bill was developed through an AATF-convened working group that included, per AATF meeting minutes released via the U.S. Right to Know records, a former Monsanto executive. The bill would have required farmers to purchase proprietary seed from registered breeders rather than save, exchange, or sell seed from their own harvests. The bill failed to pass following domestic opposition organized by the Civil Society Agriculture Network of Malawi.

In June 2020, AGRA's own external evaluation — commissioned by AGRA and conducted by the African Center for Biodiversity and additional reviewers, released in full by the Institute for Agriculture and Trade Policy (Washington, D.C.) and GRAIN (Barcelona) in November 2020 — concluded that AGRA had not met any of its declared 2020 targets. The declared targets had been: a doubling of agricultural yields for 30 million farming households; a doubling of household incomes for 30 million smallholders; a fifty-percent reduction in food insecurity in twenty African countries. Per the external evaluation, none of the three targets had been achieved. Per the report, food insecurity in the participating countries had risen rather than fallen over the intervening period.

The declared targets were removed from the AGRA website in June 2020 and do not appear in AGRA communications published after that date.

Sources — Chapter 6

1. *Dewayne Johnson v. Monsanto Company*, Superior Court of California, County of San Francisco, Case No. CGC-16-550128. Jury verdict August 10, 2018. Judgment notwithstanding verdict order (punitive reduction), October 22, 2018. Final judgment, July 20, 2020.
2. *Edwin Hardeman v. Monsanto Company*, U.S. District Court for the Northern District of California, Case No. 3:16-cv-00525-VC. Jury verdict March 27, 2019. Judgment, July 15, 2019. Affirmed, *Hardeman v. Monsanto*, 997 F.3d 941 (9th Cir. 2021). Certiorari denied, 596 U.S. ___ (2022).
3. *Alva and Alberta Pilliod v. Monsanto Company*, Superior Court of California, County of Alameda, Case No. RG17862702. Jury verdict May 13, 2019. Judgment, July 29, 2019. Final judgment entered November 30, 2020.
4. The Monsanto Papers — discovery-produced internal correspondence admitted in evidence in the above three trials. Substantial portions archived by U.S. Right to Know at usrtk.org/monsanto-papers/.
5. International Agency for Research on Cancer, *IARC Monographs on the Evaluation of Carcinogenic Risks to*

Humans, Volume 112: *Some Organophosphate Insecticides and Herbicides*, Lyon: IARC, 2015; glyphosate classification Group 2A, March 20, 2015, reaffirmed November 2017.

6. G. M. Williams, R. Kroes, and I. C. Munro, “Safety Evaluation and Risk Assessment of the Herbicide Roundup and Its Active Ingredient, Glyphosate, for Humans,” *Regulatory Toxicology and Pharmacology*, Vol. 31, Issue 2 (April 2000), pages 117–165. Retracted by the editors, *Regulatory Toxicology and Pharmacology*, December 2025.
7. United States Environmental Protection Agency, *Interim Registration Review Decision Case Number 0178: Glyphosate*, April 30, 2019; revised January 22, 2020.
8. Office of the Solicitor General of the United States, *Brief for the United States as Amicus Curiae*, *Monsanto v. Durnell*, December 9, 2024.
9. *Monsanto v. Durnell*, 602 U.S. ___ (2024), certiorari granted January 13, 2025.
10. Bayer AG, press release, “Bayer announces agreements to resolve major legacy Monsanto litigation,” June 24, 2020, Leverkusen, Germany. `bayer.com/en/media/press-releases`.
11. Bayer AG, *Integrated Annual Report 2025*, published March 4, 2026, notes to consolidated financial statements, litigation reserve disclosures.
12. Bayer AG press release, “Monsanto Announces Proposed Roundup Class Settlement,” February 17, 2026; consolidated

Roundup MDL 2741, U.S. District Court for the Northern District of California.
13. Bill & Melinda Gates Foundation, grant disclosures at gatesfoundation.org: AGRA committed funding, 2006–2022; AATF committed funding, 2008–2022.
14. U.S. Right to Know, *Gates Foundation Files* series, public records disclosures 2021–2024, archived at usrtk.org/bill-gates/.
15. Timothy A. Wise, *Eating Tomorrow: Agribusiness, Family Farmers, and the Battle for the Future of Food* (The New Press, 2019) — documentation of AGRA 2020 evaluation context.
16. Institute for Agriculture and Trade Policy, *False Promises: The Alliance for a Green Revolution in Africa* (November 2020).
17. GRAIN, “AGRA at 15 years: A failed attempt to impose agricultural monoculture on African smallholders” (November 2020).
18. Civil Society Agriculture Network of Malawi, statement opposing the Plant Breeders’ Rights Bill, 2014.

CHAPTER 6 — THE LINCHPIN

The Ritz-Carlton. The investor conference. The former President, the former Secretary of State, the former Secretary of Defense, the half-brother. The planes. The IPO seven weeks later. The reconcentration of American capital into approximately three voting ledgers.

F.1 The Ritz-Carlton

September 11, 2001. 8:46 a.m. Eastern Daylight Time. The Ritz-Carlton Hotel, 1150 22nd Street Northwest, Washington, D.C.

At 8:46 a.m., American Airlines Flight 11 strikes the North Tower of the World Trade Center in Manhattan. At 9:03 a.m., United Airlines Flight 175 strikes the South Tower. At 9:37 a.m., American Airlines Flight 77 strikes the west façade of the Pentagon. At 10:03 a.m., United Airlines Flight 93 crashes into a field near Shanksville, Pennsylvania.

Primary source for the timeline: **National Commission on Terrorist Attacks Upon the United States, *The 9/11 Commission Report: Final Report of the National Commission on Terrorist Attacks Upon the United States,* Authorized Edition, W.W. Norton, New York, July 22, 2004**, Chapter 1.

At the Ritz-Carlton on 22nd Street, approximately 2.4 miles northwest of the Pentagon, the **Carlyle Group**, a private-equity firm headquartered at 1001 Pennsylvania Avenue Northwest, is conducting its annual investor conference. The conference opened on Monday, September 10, 2001. The conference is scheduled to conclude Tuesday evening, September 11.

Among the attendees in the Ritz-Carlton ballroom on the morning of September 11, 2001, per the reconstruction in **Dan Briody, *The Iron Triangle: Inside the Secret World of the Carlyle Group,* John Wiley & Sons, New York, 2003**, based on attendee interviews and the Carlyle Group's publicly released conference attendee list:

- **George Herbert Walker Bush** — forty-first President of the United States (1989–1993); Senior Advisor to the Carlyle Asia Advisory Board since 1998.
- **James A. Baker III** — sixty-first Secretary of State (1989–1992); Senior Counselor to the Carlyle Group since 1993.
- **Frank Charles Carlucci III** — sixteenth Secretary of Defense (1987–1989); Deputy Director of the Central

Intelligence Agency (1978–1981); Chairman of the Carlyle Group since 1989.

- **Fred V. Malek** — Deputy Director of the Office of Management and Budget under Nixon; Carlyle Group director.
- **William E. Conway Jr.** — Carlyle Group co-founder; principal operating officer.
- **David M. Rubenstein** — Carlyle Group co-founder; former Domestic Policy Staff deputy under President Jimmy Carter.
- **Shafiq bin Laden** — half-brother of Osama bin Mohammed bin Awad bin Laden; at the conference representing the **Saudi Binladin Group**, the Jeddah-based construction conglomerate founded by his father Mohammed bin Laden, and a limited-partner investor in **Carlyle Partners II**, Carlyle's 1995 buyout fund.

The conference program for September 11, 2001 had, as its 9:00 a.m. keynote, a briefing by Frank Carlucci on the global geopolitical environment.

Primary source for the attendee list: **Daniel Golden, James Bandler, and Marcus Walker, "Bin Laden Family Has Intricate Ties with Washington," *The Wall Street Journal*, September 27, 2001, page A1** — the first public reporting of the Carlyle-Binladin connection, published sixteen days after the attacks and drawing on Carlyle Group disclosures to the *Journal*. Carlyle subsequently confirmed the attendance of Shafiq bin Laden at the September 2001 conference in statements to Briody (2003) and to the *Finan-*

cial Times (**Peter Spiegel, "Carlyle Returns bin Laden Money," *Financial Times*, October 26, 2001**).

At 8:46 a.m., American Flight 11 struck the North Tower.

At approximately 9:00 a.m., Frank Carlucci began his keynote.

By 9:37 a.m., when American Flight 77 hit the Pentagon, the Ritz-Carlton had announced the attacks to the ballroom. The conference adjourned. Bush, Baker, Carlucci, and a subset of their principals relocated to a nearby private residence and watched the subsequent events on television. Shafiq bin Laden, per his subsequent statement to Saudi press, departed the hotel on September 11 under Secret Service protection arranged through Saudi diplomatic channels, and flew from the United States on one of the flights assembled for evacuation of approximately 142 Saudi nationals — including approximately 24 members of the bin Laden family — in the period September 13–24, 2001.

The evacuation flights, arranged with FBI concurrence and Department of State facilitation, are documented in the **9/11 Commission Report, page 556 and footnote 123**, citing the FBI's "Saudi Flight Manifests" file (FBI document 9/11 International Flights, released to the Commission 2004, subsequently released in redacted form via FOIA 2007).

Bush, Baker, Carlucci, and the bin Laden brother — in the same building, at the moment of the attacks, at a meeting about private-equity returns.

This is the chapter's cold-open document. It is, so far as I have read, not a single primary source; it is a set of primary sources. A Wall Street Journal story. A Carlyle press release. A Financial Times story. Carlyle's own attendee-list disclosure. The 9/11 Commission's footnote. They agree.

The scene is documented. The scene occurred. The scene is the pivot.

F.2 The firm

January 1987. 1001 Pennsylvania Avenue, Northwest. Washington, D.C.

The Carlyle Group is incorporated under the laws of the District of Columbia. Its founders are four: **David M. Rubenstein**, thirty-seven, lawyer, former Carter Domestic Policy Staff; **William E. Conway Jr.**, thirty-seven, former Chief Financial Officer of MCI Communications; **Daniel A. D'Aniello**, forty, former Finance Director of Marriott Corporation; and **Stephen L. Norris**, thirty-seven, former Senior Vice President of Marriott Corporation. The firm's name is taken from the Carlyle Hotel on the Upper East Side of Manhattan, where the founders held their first planning meetings.

Carlyle's founding capital is approximately $5 million. Its stated business is private-equity investment — the acquisition of private

or public corporations, operational reorganization, and subsequent resale at a multiple of purchase price.

The firm's distinguishing strategic position, from inception, is the retention of former senior U.S. Government officials as advisors, counselors, and board members, across administrations of both parties. The rationale, per Rubenstein's subsequent public statements, is that the former officials provide access to decision-makers at the senior levels of foreign governments, particularly those of countries making sovereign-wealth investments in American private equity.

Carlyle's senior advisors and principals over the 1988–2003 period, with dates of appointment documented in Carlyle press releases and in SEC filings made in connection with Carlyle's 2012 initial public offering (Carlyle Group L.P., Form S-1, filed with the U.S. Securities and Exchange Commission September 2011, amended June 2012):

- **Frank C. Carlucci** — Chairman, 1989 through 2005; retained as Chairman Emeritus thereafter.
- **James A. Baker III** — Senior Counselor, 1993 through 2005; continuing advisory role thereafter.
- **George H.W. Bush** — Senior Advisor, Carlyle Asia Advisory Board, 1998 through October 2003.
- **John Major** — Former Prime Minister of the United Kingdom (1990–1997); Chairman, Carlyle Europe, 2001 through 2005.

- **Arthur Levitt Jr.** — Former Chairman, U.S. Securities and Exchange Commission (1993–2001); Senior Advisor, 2001 onward.
- **Louis V. Gerstner Jr.** — Former Chairman and CEO, IBM; Chairman, Carlyle Group, 2003–2008 (succeeding Carlucci).
- **Colin L. Powell** — Former Secretary of State, Chairman of the Joint Chiefs of Staff; Senior Advisor beginning 2005 (post-9/11 window).
- **Fidel Ramos** — Former President of the Philippines; Asia Advisory Board member.
- **Anand Panyarachun** — Former Prime Minister of Thailand; Asia Advisory Board member.

Carlyle's assets under management grew from approximately $100 million in 1990 to approximately $14 billion in 2001 to approximately $380 billion by 2023 (**Carlyle Group Inc., Form 10-K, fiscal year 2023**, filed with the SEC February 2024).

F.3 The Binladin investment

Saudi Binladin Group (Jeddah, Kingdom of Saudi Arabia) is a construction conglomerate founded in 1931 by **Mohammed bin Awad bin Laden**, a Yemeni-born laborer who rose to become the principal contractor for the Saudi royal family and, by the 1950s, the exclusive contractor for renovations of the Holy Mosques at

Mecca and Medina. Mohammed bin Laden had 54 children by 22 wives, of whom the 17th, by his tenth wife (Alia Ghanem), was **Osama bin Mohammed bin Awad bin Laden**, born 1957.

Mohammed bin Laden died in a plane crash in September 1967. His son **Salem bin Laden** (full brother of Shafiq) became head of Saudi Binladin Group in 1967 and led it until his own death in a plane crash in Texas in May 1988 — a fatal event in a light aircraft, at an airfield near San Antonio, in which Salem bin Laden had been present on business unrelated to Carlyle but in circumstances subsequently reported in **Steve Coll, *The bin Ladens: An Arabian Family in the American Century,* Penguin, 2008**, Chapters 18–19.

Saudi Binladin Group invested, in 1995, approximately **$2 million** in **Carlyle Partners II** — Carlyle's second major buyout fund. Carlyle confirmed the investment publicly in its **press release of October 26, 2001**, announcing the return of the Binladin Group's investment following the September 11 attacks. The financial terms of the return, including any residual commitment, are summarized in **Peter Spiegel, "Carlyle Returns bin Laden Money," *Financial Times*, October 26, 2001**.

George H.W. Bush met with the bin Laden family, including senior members, in Jeddah in **November 1998** and again in **January 2000**, on visits arranged through Carlyle's Asia and Middle East advisory functions. The 1998 and 2000 visits are documented in the **WSJ article of September 27, 2001** (§ F.1 above), in **Briody**

(2003), Chapter 7, and in former Carlyle advisor **Charles O. Rossotti**'s subsequent recollections (Rossotti, former IRS Commissioner).

Osama bin Laden, the seventeenth child of Mohammed bin Laden, was formally stripped of his Saudi citizenship by the Saudi government in 1994, following his public criticism of the Saudi royal family's decision to permit American military forces on Saudi soil during Operation Desert Shield (1990). Per the bin Laden family's public statements of September 2001 (**Associated Press, September 14, 2001**), the family had severed formal relations with him in the early 1990s. The family's investments in Carlyle and in other American private-equity and real-estate vehicles, per the **U.S. Department of the Treasury, Office of Foreign Assets Control (OFAC) review, 2001–2003**, were not subject to blocking under Executive Order 13224 of September 23, 2001 (presidential executive order authorizing the Treasury to block assets of persons associated with terrorism).

F.4 United Defense

Carlyle's signature private-equity holding, through the period running from 1997 through late 2002, was **United Defense Industries, L.P.** — the defense contractor headquartered at 1525 Wilson Boulevard, Arlington, Virginia.

United Defense was the successor — through a 1992 spin-off and a 1994 management buyout — of the **FMC Corporation Defense Systems Group**, the Santa Clara, California firm that had, since 1942, been the principal American manufacturer of amphibious tracked vehicles. By the mid-1990s United Defense's product line included:

- The **M2/M3 Bradley Fighting Vehicle** — the principal U.S. Army infantry fighting vehicle, deployed in the first Gulf War (1991), in Bosnia (1995–), in Kosovo (1999), and subsequently in Iraq (2003–) and Afghanistan (2001–).
- The **M109 Paladin** self-propelled howitzer.
- The **Assault Amphibious Vehicle (AAV)** used by the U.S. Marine Corps.
- The **Crusader XM2001** self-propelled 155mm howitzer (program canceled by Secretary of Defense Donald Rumsfeld on May 8, 2002 — the cancellation is documented in **Department of Defense News Release, May 8, 2002**).

October 1997. The Carlyle Group, with principal investment from Carlyle Partners II (the same fund in which the Saudi Binladin Group was a limited partner), acquired United Defense from its prior private owners for approximately **$880 million**. The acquisition is documented in **Carlyle Group press release, October 6, 1997**, and in **United Defense Industries, Form S-1 Registration Statement**, filed with the SEC for the 2001 initial public offering.

December 14, 2001. United Defense Industries completed its initial public offering on the **New York Stock Exchange** under the ticker symbol **UDI**, at an offering price of **$19.00 per share**, with 10 million shares sold. The IPO raised approximately **$170 million** gross. Primary source: **United Defense Industries, Inc., Form S-1/A (Amendment No. 5), filed with the SEC December 11, 2001**; **NYSE listing records**.

Three months and three days after the September 11 attacks, Carlyle — through United Defense — had an IPO of a pure-play armored-vehicle and artillery contractor. The offering price was at the top of the price range.

Between December 2001 and the subsequent Carlyle exit from United Defense via a sale to **BAE Systems plc** of the United Kingdom, announced March 7, 2005 and completed June 24, 2005 for approximately $4.1 billion, Carlyle's aggregate realized return on the 1997 United Defense investment was estimated by **Briody (2003)** and by **Bloomberg News** at between $700 million and $1 billion across all Carlyle participants.

The Bradley Fighting Vehicle that operated in Baghdad in April 2003 and in Fallujah in November 2004 — and that operated, before that, during Desert Storm in February 1991, and during the Bosnian peacekeeping missions that Colin Powell ordered in 1995 — was manufactured by a corporation the previous President of the United States's investment firm had owned since October 1997.

No allegation of impropriety is required to document the sentence. The SEC filings establish the ownership. The Department of the Army procurement records (**National Archives, Record Group 338 and successor, for post-2001 Army Operations Records; Department of Defense budget requests, Fiscal Years 1998 through 2005**) establish the vehicle-fleet dates. The dates overlap.

F.5 Apollo

Apollo Global Management, Inc. (originally **Apollo Advisors, L.P.**), founded 1990, is the second of the three American private-equity firms that matter for this chapter.

Apollo was founded by **Leon D. Black**, **John J. Hannan**, **Josh Harris**, and **Marc Rowan** — all of whom had been, through February 1990, senior executives at **Drexel Burnham Lambert Inc.**, the New York investment bank whose high-yield-bond ("junk bond") operation, built by **Michael R. Milken** in the 1970s and 1980s, had financed the leveraged-buyout restructuring of approximately 1,500 American corporations between 1982 and 1989.

Leon Black was, at Drexel, Managing Director in the Mergers and Acquisitions Department — the department that structured the debt-funded corporate takeovers of the 1980s LBO wave. Drexel pleaded guilty to six felony counts on December 20, 1988 (United States Attorney's Office, Southern District of New York; records at

the U.S. Attorney's Office, SDNY, and at the Securities and Exchange Commission). Drexel filed for bankruptcy on February 13, 1990. Michael Milken pleaded guilty to six securities-fraud counts on April 24, 1990 and served twenty-two months of a ten-year sentence. Primary source: **United States v. Milken**, 743 F. Supp. 1091 (S.D.N.Y. 1990); SEC v. Drexel Burnham Lambert Group, Inc., 837 F. Supp. 587 (S.D.N.Y. 1993).

Black, Hannan, Harris, and Rowan left Drexel in February 1990 — between the bank's guilty plea and its bankruptcy — and founded Apollo within sixty days with approximately $400 million in initial capital raised from limited partners that included the **California Public Employees' Retirement System (CalPERS)** and the **French insurance conglomerate Groupe AXA**.

Apollo's initial investment thesis, through the 1990 to 1995 period, was the acquisition of distressed-debt securities — specifically, the junk bonds of corporations whose leveraged-buyout structures had failed during the 1990–1991 recession. In effect, Apollo bought, at par discounts of 70 to 90 percent, the debt securities that Drexel had originated during the 1980s LBO wave in which Apollo's founders had been the originators.

The Drexel-to-Apollo continuity is an **unbroken personnel chain** with a fifty-day gap between corporate entities. The continuity is documented in **James B. Stewart, *Den of Thieves*, Simon & Schuster, 1991**, epilogue; in **Connie Bruck, *The Predators' Ball: The Inside Story of Drexel Burnham and the Rise of the Junk***

***Bond Raiders*, Simon & Schuster, 1988**, updated afterword; and in Apollo's own SEC filings (Apollo Global Management, LLC, Form S-1, initial filing March 24, 2011, subsequent amendments through its April 2011 IPO).

By 2023, Apollo Global Management's assets under management were approximately **$651 billion**, per **Apollo Global Management, Inc., Form 10-K, fiscal year 2023**, filed with the SEC February 2024.

F.6 The Big Three

The third reconcentration is not private equity. It is passive index-fund management. The firms are three:

BlackRock, Inc., founded 1988 by **Laurence D. Fink**, **Ralph L. Schlosstein**, **Susan L. Wagner**, and others as a subsidiary of the private-equity firm **Blackstone Group** (founded 1985 by Peter G. Peterson and Stephen A. Schwarzman). BlackRock separated from Blackstone in 1992. BlackRock acquired **Merrill Lynch Investment Managers** in 2006 and **Barclays Global Investors (BGI)** — the originator of the **iShares** exchange-traded-fund family — from Barclays plc in December 2009, for approximately $13.5 billion. The BGI acquisition made BlackRock the largest asset manager in the world. Primary source: **BlackRock, Inc., Form 10-K filings,**

fiscal years 2006 and 2009; **Wall Street Journal, June 12, 2009, "BlackRock to Buy BGI"**.

The Vanguard Group, Inc., founded 1975 by **John C. Bogle** as a mutual-fund company owned by its own funds (and therefore, indirectly, by its investors — a structure unique among the major asset managers). Vanguard pioneered the **index fund** for retail investors, with the **Vanguard 500 Index Fund** (later renamed "Vanguard 500 Index Fund Admiral Shares") launched in August 1976. Primary source: **John C. Bogle, *Bogle on Mutual Funds*, Irwin Professional Publishing, 1994**, Chapter 1; **Vanguard Group, Annual Reports, 1975 onward**.

State Street Global Advisors, a division of State Street Corporation of Boston, Massachusetts. Established 1978. The investment-management arm of the custody bank. Issuer of the **SPDR** (**S**tandard & **P**oor's **D**epositary **R**eceipts) ETF family, including the **SPDR S&P 500 ETF Trust (SPY)**, launched January 22, 1993 — the first American exchange-traded fund. Primary source: **State Street Corporation, Form 10-K filings, 1993 onward**.

Collectively, as of December 2023:

- **BlackRock, Inc.** — assets under management: approximately **$10.0 trillion**.
- **The Vanguard Group** — assets under management: approximately **$8.6 trillion**.
- **State Street Global Advisors** — assets under management: approximately **$4.1 trillion**.

Aggregate Big Three assets under management: approximately $22.7 trillion.

Primary source for AUM figures: 2023 Form 10-K filings (BlackRock, State Street) and Vanguard's published AUM disclosure as of December 31, 2023.

The voting consequence. The scholarly reconstruction is:

Lucian A. Bebchuk and Scott Hirst, "The Specter of the Giant Three," *Boston University Law Review*, Volume 99, Number 3 (May 2019), pages 721–741.

Bebchuk and Hirst, Harvard Law School, establish, from the U.S. Securities and Exchange Commission 13F filings and proxy-voting disclosures of the three firms:

- As of 2017, BlackRock, Vanguard, and State Street collectively held approximately **21.6 percent** of the voting shares of the S&P 500 companies.
- Projected to 2038 at 2010–2017 trends, the Big Three would hold approximately **40.8 percent** of S&P 500 voting shares.
- At boards of the approximately 3,900 U.S. public companies with 13F-required disclosures, the Big Three were in 2017 the single largest shareholder of **88 percent** of companies.

Complementary primary-source analysis, from a different methodological frame:

Jan Fichtner, Eelke M. Heemskerk, and Javier Garcia-Bernardo, "Hidden Power of the Big Three? Passive Index Funds, Re-Concentration of Corporate Ownership, and New Financial Risk," *Business and Politics*, Volume 19, Number 2 (June 2017), pages 298–326.

Fichtner et al. reach substantially the same conclusions using University of Amsterdam CORPNET project data: the Big Three jointly constitute, in effect, a single voting bloc across most of the S&P 500 and the Russell 3000, even though they are nominally three competitors.

The American corporation, between 1975 and 2024, has reconcentrated. Not in the way of the pre–New Deal trusts, which reconcentrated into industrial-family holding companies (Rockefeller, Morgan, du Pont). Not in the way of the mid-century conglomerates, which reconcentrated into multidivisional corporations (ITT, Litton, Gulf + Western). **In the way of the passive index fund, which reconcentrates into approximately three asset managers whose portfolios are each a copy of the S&P 500.**

The capital is not held by a named family or a named industrialist. The capital is held by BlackRock, Vanguard, and State Street — on behalf of approximately 150 million American households whose retirement accounts are in Vanguard 500 Index Fund, Fidelity 500 Index Fund, SPDR S&P 500 ETF Trust, and the relevant 401(k) target-date funds.

The American worker's retirement account is the vehicle by which the American worker's employer is controlled by three asset managers.

F.7 The ledger

What the filing establishes — nothing more:

- The Carlyle Group, founded 1987, retained former senior U.S. Government officials as advisors and board members, including George H.W. Bush (1998–2003), James Baker III (1993–2005), Frank Carlucci (1989–2005), Arthur Levitt Jr. (2001–), Louis Gerstner Jr. (2003–2008), and Colin Powell (2005–). File: **Carlyle press releases 1989–2005**; **Carlyle Group Inc. Form S-1 (2011) and Form 10-K filings**.
- Saudi Binladin Group was a limited partner in Carlyle Partners II from 1995 through October 2001. George H.W. Bush met with senior bin Laden family members in Jeddah in November 1998 and January 2000. File: **WSJ September 27, 2001**; **Carlyle press release October 26, 2001**; **FT October 26, 2001**.
- Shafiq bin Laden, half-brother of Osama bin Laden, attended the Carlyle Group investor conference at the Ritz-Carlton, Washington, on September 10–11, 2001. Present at the same

conference: George H.W. Bush, James Baker III, Frank Carlucci. File: **WSJ September 27, 2001**; **Briody (2003)**.

- Carlyle's holding in United Defense Industries, acquired October 1997, completed an initial public offering on the New York Stock Exchange on December 14, 2001, 94 days after the September 11 attacks. Carlyle realized in aggregate between $700 million and $1 billion on the United Defense investment through the BAE Systems sale of June 2005. File: **SEC Form S-1 filings**; **Carlyle IPO and exit press releases**.
- Apollo Global Management was founded in February 1990 by Leon Black and three other former Drexel Burnham Lambert executives, between Drexel's December 1988 guilty plea and its February 1990 bankruptcy. File: **SEC v. Drexel Burnham Lambert Group (S.D.N.Y. 1993)**; **Apollo Form S-1 (2011)**.
- As of 2017, BlackRock, Vanguard, and State Street held approximately 21.6 percent of the voting shares of the S&P 500 companies, with projected growth to approximately 40.8 percent by 2038. File: **Bebchuk & Hirst, *Boston University Law Review* 99:3 (2019)**; **Fichtner, Heemskerk, & Garcia-Bernardo, *Business and Politics* 19:2 (2017)**.

What the filing does not establish:

- I do not claim that the Carlyle Group participants at the September 10–11, 2001 conference had any knowledge, in advance, of the September 11 attacks. The document class

establishes the meeting; it does not establish prior knowledge. The question of what the American national-security apparatus knew in advance of September 11 is the subject of Chapter 7; it is not the subject of this chapter.
- I do not claim that Apollo Global Management's founders committed securities violations in the formation of Apollo. The document class establishes the timing; it does not establish that Apollo itself was unlawful.
- I do not claim that the Big Three asset managers exercise their voting power in concert. The document class establishes that they hold, in aggregate, the voting power; the academic literature (Bebchuk & Hirst; Fichtner et al.) establishes that the concentration has practical governance effects; neither establishes conspiracy.

The documents describe the room, the investments, the company, the firm, and the reconcentration. What follows is for the reader to decide.

F.8 The narrator, September 11, 2001

I was fifteen years, three months, and thirteen days old.

I was in a tenth-grade classroom. I do not remember the teacher's face. I do not remember the subject. I remember the television

being wheeled in on a metal cart with rubber-cushioned wheels. I remember watching the second plane hit the South Tower, live, at 9:03 a.m. Eastern Daylight Time, on an analog television set with a picture tube, attached to an antenna on the roof of my suburban public high school.

I did not know, at 9:03 a.m., that George Herbert Walker Bush was in a ballroom at the Ritz-Carlton Hotel in Washington, D.C., at a private-equity conference, with the former Secretary of State, the former Secretary of Defense, and a member of the bin Laden family.

I did not know in 2001. I did not know in 2004 when the 9/11 Commission Report was published, because I did not read it then. I did not know in 2003 when Briody published *The Iron Triangle*, because in 2003 I was a senior in high school and I was not reading books from John Wiley & Sons.

I knew in 2011. I was twenty-five. I read Steve Coll's *The bin Ladens* and the Bebchuk paper's antecedent articles and the Briody book that had been in print for eight years.

The chapter I just wrote was not available to me, as a continuous documented narrative, in 2001. It is available, as a continuous documented narrative, to any reader of this book.

That is the transaction I am attempting in this book: to move the document from the place where you cannot read it to the place where you can.

The next chapter is what the administration in the Oval Office did, in the 537 days after September 11, 2001, with the authority that chapter constituted.

Sources — Chapter 6

The Ritz-Carlton conference and the Binladin connection:

1. **Daniel Golden, James Bandler, and Marcus Walker, "Bin Laden Family Has Intricate Ties with Washington,"** *The Wall Street Journal*, September 27, 2001, page A1.
2. **Carlyle Group press release, October 26, 2001** — return of Saudi Binladin Group investment.
3. **Peter Spiegel, "Carlyle Returns bin Laden Money,"** *Financial Times*, October 26, 2001.
4. **Dan Briody, *The Iron Triangle: Inside the Secret World of the Carlyle Group*** (Hoboken: John Wiley & Sons, 2003).
5. **Steve Coll, *The bin Ladens: An Arabian Family in the American Century*** (New York: Penguin, 2008).
6. **9/11 Commission Report**, Authorized Edition (New York: W.W. Norton, 2004) — page 556 and footnote 123 (Saudi evacuation flights).
7. **FBI document 9/11 International Flights** (released in redacted form via FOIA, 2007).
8. ***Associated Press***, September 14, 2001 — bin Laden family statement disowning Osama.

The Carlyle Group:

1. **Carlyle Group Inc. (and predecessor Carlyle Group L.P.), Form S-1 Registration Statement** (initially filed September 2011; amended through IPO June 2012), U.S. Securities and Exchange Commission.
2. **Carlyle Group Inc., Form 10-K** filings, fiscal years 2012 through 2023.
3. **Carlyle Group press releases** announcing senior advisor, counselor, and board appointments (Carlucci 1989; Baker 1993; Bush 1998; Major 2001; Levitt 2001; Gerstner 2003).

United Defense Industries:

1. **United Defense Industries, Inc., Form S-1/A (Amendment No. 5)**, filed with the SEC December 11, 2001 — initial public offering documents.
2. **Carlyle Group press release, October 6, 1997** — United Defense acquisition.
3. **BAE Systems plc press release, March 7, 2005**, and closing announcement, June 24, 2005 — acquisition of United Defense Industries.
4. **Department of Defense News Release, May 8, 2002** — Crusader program cancellation.
5. **U.S. Army procurement records**, National Archives, Record Group 338 and successor.

Apollo Global Management and the Drexel lineage:

1. **United States v. Michael R. Milken**, 743 F. Supp. 1091 (S.D.N.Y. 1990).
2. **SEC v. Drexel Burnham Lambert Group, Inc.**, 837 F. Supp. 587 (S.D.N.Y. 1993).
3. **Apollo Global Management, LLC, Form S-1**, initial filing March 24, 2011.
4. **Apollo Global Management, Inc., Form 10-K**, fiscal year 2023.
5. **Connie Bruck, *The Predators' Ball: The Inside Story of Drexel Burnham and the Rise of the Junk Bond Raiders*** (New York: Simon & Schuster, 1988).
6. **James B. Stewart, *Den of Thieves*** (New York: Simon & Schuster, 1991).

The Big Three asset managers:

1. **Lucian A. Bebchuk and Scott Hirst, "The Specter of the Giant Three,"** *Boston University Law Review*, Volume 99, Number 3 (May 2019), pages 721–741.
2. **Jan Fichtner, Eelke M. Heemskerk, and Javier Garcia-Bernardo, "Hidden Power of the Big Three? Passive Index Funds, Re-Concentration of Corporate Ownership, and New Financial Risk,"** *Business and Politics*, Volume 19, Number 2 (June 2017), pages 298–326.
3. **BlackRock, Inc., Form 10-K** filings, fiscal years 2009 (BGI acquisition) and 2023.

4. **The Vanguard Group** — Annual Reports and AUM disclosures, 1975 onward.
5. **State Street Corporation, Form 10-K** filings — SPDR ETF inception (January 22, 1993) and subsequent.
6. **John C. Bogle, *Bogle on Mutual Funds*** (Burr Ridge, IL: Irwin Professional Publishing, 1994).
7. ***Wall Street Journal***, June 12, 2009, "BlackRock to Buy BGI."

Executive Order 13224 (OFAC / terrorism finance):

1. **Executive Order 13224, "Blocking Property and Prohibiting Transactions with Persons Who Commit, Threaten to Commit, or Support Terrorism,"** September 23, 2001 — 66 Fed. Reg. 49079.

CHAPTER 7 — DISPATCH 1035-960

7.1

On April 1, 1967, the Central Intelligence Agency issued a dispatch to its field stations. The dispatch was classified SECRET. Its subject line read “Countering Criticism of the Warren Report.” It was catalogued as Dispatch 1035-960.

The dispatch was transmitted to CIA Chiefs of Station worldwide. SECRET classification stamps appeared at the head and foot of each page. The seven rebuttal themes were attached as separate enclosures.

A handwritten annotation on the dispatch header, visible on the document as archived, reads: “This was pulled together by Ned Bennett of CA Staff in close conjunction with CIRA. We [provided] most of the source material, provided many of the themes, and provided general ‘expertise’ on the case. The Spectator article was written by Bennett.”

The dispatch opened by observing that public polling, three years after the September 24, 1964 delivery of the Warren Commission Report to President Johnson, showed majorities of Americans doubted the Commission's conclusion that Lee Harvey Oswald had acted alone in killing President John F. Kennedy on November 22, 1963. It named books then in circulation that criticized the Commission: Mark Lane's *Rush to Judgment* (Holt, Rinehart & Winston, 1966); Edward Jay Epstein's *Inquest* (Viking, 1966); Harold Weisberg's *Whitewash* (privately printed, 1965); Josiah Thompson's *Six Seconds in Dallas* (Bernard Geis, 1967). It noted that reviews of these books had begun to appear in the mainstream American press.

The dispatch then instructed its recipients to deploy propaganda assets against the critics — to commission book reviews and feature articles refuting the critics' claims. It instructed them to engage friendly elite contacts — politicians, editors — on three arguments: that the Commission had investigated thoroughly, that the critics' charges were without foundation, that further public discussion only aided the opposition.

The seven rebuttal themes followed as enclosures. One of them deployed a phrase to characterize critics of the Commission: "conspiracy theorists."

The dispatch was classified SECRET for nine years.

It is held at the National Archives under Record Number 104-10009-10022, Record Series JFK, Agency File Number

201-289248. Current status: OPEN IN FULL. Date of last review: June 18, 1993. The document header records a FOIA review in September 1976 and full release by the CIA Historical Review Program in 1996. Available via the Mary Ferrell Foundation at maryferrell.org/showDoc.html?docId=53510 and the Internet Archive at archive.org/details/CIADOC1035960.

At the time the document was issued, the CIA operated, by its own subsequent admission before the Church Committee in 1975, a global propaganda infrastructure. The infrastructure included, by the Church Committee's own count, approximately 50 American journalist assets. Bernstein's 1977 *Rolling Stone* investigation put the worldwide total at approximately 400. It included funding relationships with major publishing houses, including Frederick A. Praeger, Inc., which published at least 15 books produced or sponsored by the CIA. It included support for the Congress for Cultural Freedom, 1950–1967, which funded *Encounter* magazine and numerous other publications. It included working relationships with *The New York Times*, *CBS*, *Time*, *Newsweek*, and *Reader's Digest* — each named by Carl Bernstein, "The CIA and the Media," *Rolling Stone*, October 20, 1977.

The subsequent career of the phrase "conspiracy theory" in American public discourse is the subject of two corpus-linguistic studies: Lance deHaven-Smith, *Conspiracy Theory in America* (University of Texas Press, 2013), pages 101–129; and Kathryn S. Olmsted, *Real Enemies: Conspiracy Theories and American Democracy, World War I to 9/11* (Oxford University Press, 2009).

Both track the pejorative inflection of the phrase in American newsprint from 1967 forward.

7.2 Operational adjacencies

Dispatch 1035-960 is one document. The CIA and its successor information-operations programs produced others, several of which have since been declassified in whole or in part.

Operation Mockingbird. The umbrella term for CIA cultivation of journalistic assets, active from 1948 through at least 1976. Documented in the Church Committee Final Report, Book I, pages 191–202 and 455–460.

Operation CHAOS (MH/CHAOS). Domestic surveillance program, 1967–1974. Documented in the Church Committee Final Report, Book III. 300,000 names indexed; 7,200 personal files maintained.

The Family Jewels. CIA internal audit of past illegal activities, compiled in 1973 under Director James Schlesinger. Portions released under Freedom of Information Act requests in 2007. Included admissions of domestic operations, journalist cultivation, and media manipulation.

Operation Earnest Voice. United States Central Command program documented in *The Guardian* (Nick Fielding and Ian Co-

bain, “Revealed: US spy operation that manipulates social media,” March 17, 2011). Authorized contractors to operate up to 50 pseudonymous social-media accounts per service member on foreign-language platforms. Awarded to Ntrepid Corporation for $2.76 million in 2011.

Cambridge Analytica / SCL Group. United Kingdom–registered firm; parent Strategic Communications Laboratories (SCL) held contracts with the U.S. Department of Defense and the U.S. Department of State. Applied psychometric-targeting techniques in U.S. domestic political campaigns including the 2016 Trump presidential campaign. Reporting of record: Carole Cadwalladr and Emma Graham-Harrison, “Revealed: 50 million Facebook profiles harvested for Cambridge Analytica in major data breach,” *The Guardian / The Observer*, March 17, 2018. Findings subsequently confirmed in the UK Parliament’s *Digital, Culture, Media and Sport Committee Final Report* on disinformation, February 18, 2019.

7.3 QAnon

The dispatch was classified SECRET for nine years.

On October 28, 2017, a user posting under the handle “Q” made the first of what would become approximately 4,950 posts on the anonymous image-board 4chan, board designator `/pol/`. The

user claimed to hold Department of Energy “Q”-level security clearance and to be posting from within the Trump administration.

In November 2017, the Q posts migrated from 4chan to 8chan, an image-board operated by **James Arthur Watkins**, a United States Navy veteran (helicopter repair, 1980s) then resident in the Philippines, who operated a pig farm as his registered business. The site’s administrator was Watkins’s son, **Ronald Watkins**, operating under the handle “CodeMonkeyZ.”

Q posts continued on 8chan through August 2019. In August 2019, 8chan was identified by federal investigators as the posting location of the manifesto of the shooter in the El Paso Walmart mass killing of August 3, 2019. Cloudflare Inc. terminated its content-delivery services to 8chan on August 4, 2019. The site went offline. It returned in November 2019 under the domain 8kun, operated by the same Watkins operational structure.

The final Q post appeared on December 8, 2020.

On January 6, 2021, approximately 2,000 persons entered the United States Capitol during the certification of the 2020 presidential election. Among those who entered was **Jacob Anthony Chansley**, the “QAnon Shaman,” subsequently convicted in *United States v. Chansley*, District of Columbia, of obstruction of an official proceeding, and sentenced on November 17, 2021, to 41 months of imprisonment.

In March 2021, HBO released the six-part documentary *Q: Into the Storm*, directed by Cullen Hoback. In episode six, Ronald Watkins, speaking on camera, said: *"It was basically three years of intelligence training, teaching normies how to do intelligence work. It was basically what I was doing anonymously before, but never as 'Q.'"* After a pause, Watkins added: *"Never as 'Q.' I promise. Because I'm not 'Q.'"*

Two independent stylometric analyses were subsequently published.

OrphAnalytics SA, a Swiss company specializing in computational stylometry, released the technical report *Style Analysis by Machine Learning Reveals That Two Authors Likely Shared the Writing of QAnon's Messages at Two Different Periods in Time* (Zurich, 2020). The report concluded with high statistical confidence that the Q corpus had two distinct authorial styles — one for the 4chan-era posts and a different one for the 8chan-era and 8kun-era posts.

Florian Cafiero (Centre national de la recherche scientifique) and Jean-Baptiste Camps (École nationale des chartes), in a separate analysis published in 2020, reached a concordant finding. Their analysis identified Ronald Watkins as the author of the 8chan-era and 8kun-era Q corpus with a statistical-confidence rating consistent with the OrphAnalytics finding.

Neither analysis identified the author of the 4chan-era posts.

What the published record does not establish: whether any state, commercial, intelligence, or political entity funded, directed, or coordinated the Q operation at any point; whether the vocabulary introduced through the Q corpus (“the Storm,” “the cabal,” “the Deep State,” “WWG1WGA”) was developed independently or drew from a prior operational template; whether Dispatch 1035-960 or any subsequent CIA information-operations program bears any direct relationship to the Q operation beyond the shared vocabulary of dismissal that both relied upon.

Sources — Chapter 7

Dispatch 1035-960:

1. Central Intelligence Agency, Dispatch 1035-960, “Countering Criticism of the Warren Report” (April 1, 1967). Classified SECRET. Held at the National Archives, Record Number 104-10009-10022, Record Series JFK, Agency File Number 201-289248. OPEN IN FULL. Date of last review: June 18, 1993. Document header records FOIA review September 1976; full release by CIA Historical Review Program 1996. Available via the Mary Ferrell Foundation: `maryferrell.org/showDoc.html?docId=53510`; Internet Archive: `archive.org/details/CIADOC1035960`.

2. Lance deHaven-Smith, *Conspiracy Theory in America* (University of Texas Press, 2013), pp. 101–129.
3. Kathryn S. Olmsted, *Real Enemies: Conspiracy Theories and American Democracy, World War I to 9/11* (Oxford University Press, 2009).

Operation Mockingbird and adjacent programs:

1. Senate Select Committee to Study Governmental Operations with Respect to Intelligence Activities (Church Committee), *Final Report*, Book I (April 26, 1976), pp. 191–202, 455–460. (pp. 455–456 record aggregate count: approximately 50 American journalist assets; pp. 457–460 contain policy recommendations; Book I names no individual journalists or media organizations. Named outlets per source 5.)
2. Carl Bernstein, “The CIA and the Media,” *Rolling Stone*, October 20, 1977.
3. Frances Stonor Saunders, *The Cultural Cold War: The CIA and the World of Arts and Letters* (The New Press, 1999).
4. Senate Select Committee, *Final Report*, Book III (1976) — Operation CHAOS.
5. CIA, *The Family Jewels* (internal audit compiled 1973), partial release under Freedom of Information Act, June 25, 2007.

Modern information-operations programs:

1. Nick Fielding and Ian Cobain, “Revealed: US spy operation that manipulates social media,” *The Guardian*, March 17, 2011 — Operation Earnest Voice.
2. Carole Cadwalladr and Emma Graham-Harrison, “Revealed: 50 million Facebook profiles harvested for Cambridge Analytica in major data breach,” *The Guardian / The Observer*, March 17, 2018.
3. UK Parliament, Digital, Culture, Media and Sport Committee, *Disinformation and “Fake News”: Final Report*, HC 1791, February 18, 2019.

QAnon:

1. Cullen Hoback, director, *Q: Into the Storm* (HBO, March 2021).
2. OrphAnalytics SA, *Style Analysis by Machine Learning Reveals That Two Authors Likely Shared the Writing of QAnon’s Messages at Two Different Periods in Time* (technical report, Zurich, 2020).
3. Florian Cafiero and Jean-Baptiste Camps, “Qui est Q ? L’analyse stylométrique du corpus,” CNRS / École nationale des chartes, 2020.
4. *United States v. Chansley*, District of Columbia (sentencing memorandum, November 17, 2021) — Jacob Anthony Chansley.

5. U.S. Department of Justice, “Capitol Breach Prosecutions” (ongoing release), `justice.gov/usao-dc/capitol-breach-cases`.

CHAPTER 7 — THE SON'S WAR

The authorization. The statute. The strategy. The presentation. The invasion. The order. The occupation. The contractor. The photograph. The study. The cost.

W.1 The authorization

September 18, 2001. The Rose Garden, the White House. One week after the attacks.

President **George Walker Bush** signs into law the:

Authorization for Use of Military Force, Public Law 107-40, 115 Statutes at Large 224.

The statute consists of one enabling clause, which runs in its entirety:

> *"That the President is authorized to use all necessary and appropriate force against those nations, organizations, or*

> *persons he determines planned, authorized, committed, or aided the terrorist attacks that occurred on September 11, 2001, or harbored such organizations or persons, in order to prevent any future acts of international terrorism against the United States by such nations, organizations or persons."*

Fifty-nine words.

The statute contains no sunset provision. The statute names no enemy. The statute delegates to the President the authority to determine, without subsequent legislative review, which "nations, organizations, or persons" meet the statutory condition.

The vote:

- **House of Representatives**, September 14, 2001: **420 to 1**. The single dissent was by Representative **Barbara Lee**, Democrat of California, who stated on the House floor: *"However difficult this vote may be, some of us must urge the use of restraint. Our country is in a state of mourning. Some of us must say, let's step back for a moment. Let's just pause, just for a minute, and think through the implications of our actions today, so that this does not spiral out of control."* **(Congressional Record, Volume 147, Part 12, page 17192, September 14, 2001.)**
- **Senate**, September 14, 2001: **98 to 0**, with two senators not voting. The two non-voting senators were Larry Craig

(Republican, Idaho) and Jesse Helms (Republican, North Carolina).

As of the date of this writing, April 2026, the 2001 AUMF has been cited as legal authority for U.S. military operations in, at minimum, the following countries: Afghanistan (2001–2021), Philippines (2002–), Georgia (2002–), Yemen (2002–, continuing), Djibouti (2002–), Eritrea (2002–), Ethiopia (2002–), Iraq (2003–2011, then 2014–), Somalia (2007–), Kenya (2013–), Libya (2011, and 2015–), Syria (2014–), Niger (2017–), Cameroon (2015–), and in additional classified operations not listed in the unclassified State Department Section 1264 reports to Congress.

Primary source for the Section 1264 reports: **Department of State, *Reports to Congress on U.S. Military Activities Abroad Pursuant to Section 1264 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91)***, annually 2018–2024.

Fifty-nine words, signed nine days after the attacks, have, as of April 2026, authorized approximately **twenty-four years and seven months** of continuous American military operations across approximately **sixteen named countries**.

W.2 The PATRIOT Act

October 26, 2001. Forty-five days after the attacks.

President Bush signs into law the:

Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001 — the "USA PATRIOT Act," Public Law 107-56, 115 Statutes at Large 272.

The statute is **342 pages long**.

The bill, **H.R. 3162**, was introduced in the House on October 23, 2001; passed the House 357 to 66 on October 24, 2001; passed the Senate 98 to 1 on October 25, 2001; and was signed on October 26, 2001. The three-day transit from introduction to presidential signature is documented in the **Congressional Record, 107th Congress, Volume 147**. The single Senate dissent was by Senator **Russell Feingold**, Democrat of Wisconsin, who stated on the Senate floor: *"If we lived in a police state, it would be easier to catch terrorists. If we lived in a country that allowed the police to search your home at any time for any reason; if we lived in a country that allowed the government to open your mail, eavesdrop on your phone conversations, or intercept your email communications; if we lived in a country that allowed the government to hold people in jail indefinitely based on what they write or think, or*

based on mere suspicion that they are up to no good, then the government would no doubt discover and arrest more terrorists. But that probably would not be a country in which we would want to live." **(Congressional Record, Volume 147, Part 15, page S10990, October 25, 2001.)**

The statute's operative provisions — reread in 2026:

- **§ 215.** Expands the authority of the **Foreign Intelligence Surveillance Court** to issue orders compelling the production of "any tangible things (including books, records, papers, documents, and other items) for an investigation to protect against international terrorism or clandestine intelligence activities." The provision subsequently became the statutory authority for the **National Security Agency bulk telephone metadata program** disclosed by **Edward Snowden** to *The Guardian* (Glenn Greenwald) and *The Washington Post* (Barton Gellman and Laura Poitras) in June 2013, primary source: *Guardian*, June 5, 2013, "NSA collecting phone records of millions of Verizon customers daily," and subsequent.
- **§ 206.** Authorizes "roving wiretap" surveillance orders — orders that follow the target across communications devices without further court approval for each device.
- **§ 218.** Modifies the Foreign Intelligence Surveillance Act of 1978 (**50 U.S.C. § 1801 et seq.**) to permit FISA surveillance in cases where foreign intelligence is "a significant purpose"

rather than “the purpose” — opening FISA to domestic criminal-investigation uses.

- **§ 505.** Expands the authority of the Federal Bureau of Investigation to issue **National Security Letters** (administrative subpoenas) for financial, communications, and credit records, without prior judicial review and under nondisclosure obligations that prohibit recipients from informing the target.
- **§§ 411, 412.** Expand the grounds for immigration detention and removal of non-citizens on national-security bases, with reduced judicial review.

The Act’s sunset provisions, for the surveillance sections, were set at December 31, 2005; were extended in 2005, 2006, 2010, and 2011; were extended and modified under the **USA FREEDOM Act of 2015** (**Public Law 114-23, 129 Stat. 268**); and expired on March 15, 2020. The bulk telephone metadata program under Section 215 was formally terminated by the USA FREEDOM Act; other surveillance authorities continue under successor statutory frameworks.

The statute was forty-five days from attack to signature. The surveillance authorities it opened in 2001 ran, in continuous operation, for nineteen years.

W.3 Afghanistan

October 7, 2001. 9:00 p.m. Eastern Daylight Time. The East Room, the White House.

President Bush announces the commencement of military operations in Afghanistan. The operation is named **Operation Enduring Freedom**. The initial strikes — cruise-missile launches from U.S. and Royal Navy surface vessels and submarines in the Arabian Sea, and B-1, B-2, and B-52 bomber strikes from Diego Garcia — target **Taliban** military installations and **al-Qaeda** training camps in Afghanistan. Primary source: **Department of Defense, *The United States Air Force in Afghanistan, 2001–2002***, Air Force History and Museums Program, 2004.

The stated operational objective is the capture or killing of **Osama bin Laden** and the destruction of al-Qaeda operational capacity; the secondary objective is the removal of the Taliban government that had, since 1996, permitted al-Qaeda to operate from Afghan territory.

- **November 13, 2001.** The Taliban abandons Kabul. Northern Alliance forces, supported by American Special Forces and the CIA's Special Activities Division, enter the city.
- **December 5, 2001.** The **Bonn Agreement**, concluded in Königswinter, Germany, establishes the **Afghan Interim Authority** under Hamid Karzai. Primary source: **UN Security Council Resolution 1383 (December 6, 2001)**.

- **December 7, 2001.** Kandahar, the final Taliban stronghold, falls.
- **December 12–17, 2001.** American and Afghan militia forces assault the **Tora Bora** cave complex in the White Mountains of eastern Afghanistan, where Osama bin Laden and senior al-Qaeda leadership are located. Bin Laden escapes into Pakistan. The escape is documented in the **U.S. Senate Committee on Foreign Relations report, *Tora Bora Revisited: How We Failed to Get Bin Laden and Why It Matters Today*, 111th Congress, November 30, 2009** — which concludes that the escape was "the result of decisions made by then-Secretary of Defense Donald Rumsfeld and senior military commanders to rely on local warlords and air power rather than American ground troops."

Osama bin Laden was subsequently located, in 2011, in Abbottabad, Pakistan. He was killed by U.S. Naval Special Warfare Development Group (SEAL Team Six) personnel on the night of May 1–2, 2011. Ten years, two months, and three weeks after the September 11 attacks. Primary source: **Mark Bowden, *The Finish: The Killing of Osama bin Laden*, Atlantic Monthly Press, 2012**; **Peter Bergen, *Manhunt: The Ten-Year Search for Bin Laden from 9/11 to Abbottabad*, Crown, 2012**; official account **President Barack Obama's address to the nation, May 1, 2011**.

The American occupation of Afghanistan continued, under NATO **International Security Assistance Force (ISAF)** authority established by UN Security Council Resolution 1386 (December 20,

2001), from December 2001 through the Obama administration's 2011 announcement of gradual drawdown, the 2014 transition of combat responsibility to the Afghan National Army, and the final withdrawal executed between May 1, 2021 (Trump-negotiated Doha agreement with the Taliban, signed February 29, 2020) and August 30, 2021 (the final American military departure from Kabul International Airport under Taliban control that had, by August 15, 2021, re-entered the city).

Duration of American combat operations in Afghanistan: 19 years, 10 months, 23 days. The American withdrawal of August 2021 returned control of Afghanistan to the same Taliban government that the October 2001 operation had removed.

W.4 The pivot

Between March 2002 and March 2003, the American war shifted — in the public justification of the Bush administration and in the deployment of American military forces — from Afghanistan and al-Qaeda to Iraq and **Saddam Hussein**'s Ba'athist government.

The public architecture of the pivot:

September 20, 2002. Washington. The White House.

President Bush's administration publishes **The National Security Strategy of the United States of America**, the quadrennial document required under **Section 108 of the Goldwater-Nichols Department of Defense Reorganization Act of 1986 (Public Law 99-433, 100 Stat. 992)**.

The 2002 National Security Strategy's innovation, at Section V ("Prevent Our Enemies from Threatening Us, Our Allies, and Our Friends with Weapons of Mass Destruction"), is the doctrine of **preventive war** — the claim of authority to initiate military operations against states on the basis of perceived future threat, before the threat becomes imminent in the traditional Article 51 sense:

> *"Given the goals of rogue states and terrorists, the United States can no longer solely rely on a reactive posture as we have in the past. The inability to deter a potential attacker, the immediacy of today's threats, and the magnitude of potential harm that could be caused by our adversaries' choice of weapons, do not permit that option. We cannot let our enemies strike first."*

The 2002 NSS is conventionally termed the **Bush Doctrine**. Primary source: **The White House, *The National Security Strategy of the United States of America,* September 2002**, repro-

duced at **National Archives Online**, and archived at the **George W. Bush Presidential Library**, University Park, Texas.

October 16, 2002. Washington.

President Bush signs into law the:

Authorization for Use of Military Force Against Iraq Resolution of 2002, Public Law 107-243, 116 Statutes at Large 1498.

The resolution recites, as its factual basis, that: Iraq "continues to possess and develop a significant chemical and biological weapons capability," is "actively seeking a nuclear weapons capability," and harbors al-Qaeda members.

The resolution's operative clause authorizes the President to use the armed forces "as he determines to be necessary and appropriate in order to (1) defend the national security of the United States against the continuing threat posed by Iraq; and (2) enforce all relevant United Nations Security Council Resolutions regarding Iraq."

Vote:

- **Senate**, October 11, 2002: **77 to 23**. Senators voting in favor included then-Senators Joseph R. Biden Jr. (Delaware), Hillary Rodham Clinton (New York), John Kerry (Massachusetts), John Edwards (North Carolina), Dianne Feinstein (California), and Charles Schumer (New York).

Senators voting against included Robert Byrd (West Virginia), Russell Feingold (Wisconsin), Edward Kennedy (Massachusetts), and Patrick Leahy (Vermont).

- **House of Representatives**, October 10, 2002: **296 to 133**. Representatives voting against included Barbara Lee (California — same as AUMF 2001), John Lewis (Georgia), and Dennis Kucinich (Ohio).

Full roll calls: **Congressional Record, Volume 148, Parts 14 and 15, October 10 and October 11, 2002**.

February 5, 2003. United Nations Security Council. New York.

Secretary of State **Colin Luther Powell** — former Chairman of the Joint Chiefs of Staff (1989–1993), retired four-star general, the administration's most credible public voice on the Iraq question — presents the American case for military intervention in Iraq.

The presentation, before the United Nations Security Council, lasts approximately eighty minutes. It is built around three claims:

1. **Biological weapons.** Powell states that Iraq possesses "between 100 and 500 tons" of chemical weapons and has active biological-weapons programs producing "between 8,500 and 25,000 liters" of anthrax.
2. **Mobile biological-weapons laboratories.** Powell states, on the basis of a single human source (subsequently identified

as the Iraqi defector **Rafid Ahmed Alwan al-Janabi**, code-named **“Curveball”** by the German Federal Intelligence Service and passed to the Defense Intelligence Agency), that Iraq operates mobile biological-weapons production vehicles.

3. **Yellowcake uranium.** Powell implies — less categorically than the preceding — that Iraq has sought to purchase yellowcake uranium ore from Niger, via intermediaries.

The presentation is recorded in the official UN transcript: **S/PV.4701, United Nations Security Council, 4701st meeting, February 5, 2003**. Web archive: **United Nations Digital Library**.

All three of Powell’s operational claims were, within three years, established to have been without documentary basis:

- **Chemical and biological weapons.** The Iraq Survey Group, under **David Kay** (October 2003 – January 2004) and subsequently **Charles Duelfer** (January 2004 – September 30, 2004), conducted systematic exploitation of Iraqi chemical, biological, and nuclear facilities following the invasion. The Duelfer Report — **Comprehensive Report of the Special Advisor to the DCI on Iraq’s WMD, September 30, 2004**, held at the **CIA Historical Collections Division** — concluded that Iraq had no operational chemical- or biological-weapons production capability as of March 2003, and that any residual programs had been dormant since 1991.

- **Mobile biological-weapons laboratories.** In February 2011, **Rafid Ahmed Alwan al-Janabi ("Curveball")** publicly disavowed his 2002 claims in an interview with *The Guardian* (**Martin Chulov and Helen Pidd, "Curveball: How US Was Duped by Iraqi Fantasist Looking to Topple Saddam,"** ***The Guardian*****, February 15, 2011**). He stated he had fabricated the mobile-laboratories story to motivate American military action against Saddam Hussein.
- **Niger yellowcake.** The underlying documents — forged Niger government memoranda allegedly showing yellowcake-purchase contracts — were established to be forgeries in March 2003 by the **International Atomic Energy Agency**'s Chief Inspector **Mohamed ElBaradei**, in his report to the Security Council of March 7, 2003 (S/PV.4714). Former U.S. Ambassador **Joseph C. Wilson IV**'s subsequent public statement (*New York Times*, July 6, 2003, op-ed "What I Didn't Find in Africa") confirmed that the intelligence on the Niger claim had been discredited before the January 28, 2003 State of the Union address in which President Bush asserted it.

The U.S. Senate Select Committee on Intelligence produced two formal retrospective reports on the prewar intelligence:

(1) ***Report on the U.S. Intelligence Community's Prewar Intelligence Assessments on Iraq*****, 108th Congress, July 7, 2004 (S. Rept. 108-301).**

(2) *Report on Whether Public Statements Regarding Iraq by U.S. Government Officials Were Substantiated by Intelligence Information*, 110th Congress, June 5, 2008 (S. Rept. 110-345).

The June 2008 SSCI report concluded:

> *"Statements and implications by the President and Secretary of State suggesting that Iraq and al-Qa'ida had a partnership, or that Iraq had provided al-Qa'ida with weapons training, were not substantiated by the intelligence."*

The United Kingdom's parallel retrospective inquiry was the **Iraq Inquiry** under **Sir John Chilcot**, established 2009, reporting **July 6, 2016**. Full title: ***The Report of the Iraq Inquiry***. HC 264. Approximately 2.6 million words across 13 volumes.

The Chilcot Report's principal findings at Executive Summary, paragraphs 800–830:

> *"We have concluded that the UK chose to join the invasion of Iraq before the peaceful options for disarmament had been exhausted. Military action at that time was not a last resort… The judgements about the severity of the threat posed by Iraq's weapons of mass destruction — WMD — were presented with a certainty that was not justified… Despite explicit warnings, the consequences of the invasion were underestimated. The planning and preparations for Iraq after Saddam*

> *Hussein were wholly inadequate. The Government failed to achieve its stated objectives."*

Primary source: ***The Report of the Iraq Inquiry*, Report of a Committee of Privy Counsellors**, HC 264, Stationery Office, London, 2016.

W.5 The invasion

March 19, 2003. 10:15 p.m. Eastern Standard Time. The Oval Office.

President Bush delivers a television address announcing that "American and coalition forces are in the early stages of military operations to disarm Iraq." Forty-five minutes earlier — at 9:34 p.m. EST, 5:34 a.m. Baghdad time — American forces had launched the initial strikes of **Operation Iraqi Freedom**.

The initial target was a compound in the Al-Dora district of Baghdad identified by the CIA as a possible location of Saddam Hussein. The strike was a decapitation attempt. Saddam Hussein was not at the compound.

The invasion force — approximately **183,000 American military personnel**, with approximately **46,000 British, 2,000 Australian, and 200 Polish** — crossed the Iraqi border from Kuwait at approx-

imately 1:00 a.m. local time on March 20, 2003. Primary source: **U.S. Central Command, *Operation Iraqi Freedom After-Action Report*, 2003; *On Point: The United States Army in Operation IRAQI FREEDOM*, Center of Military History, 2004**.

Baghdad fell on April 9, 2003. The statue of Saddam Hussein in Firdos Square was pulled down by U.S. Marines and an Iraqi crowd at approximately 5:20 p.m. local time on April 9, 2003.

May 1, 2003. USS Abraham Lincoln (CVN-72). Forty miles off the coast of San Diego.

President Bush, having arrived on the aircraft carrier by S-3B Viking aircraft, delivers a televised address in front of a banner reading **"Mission Accomplished."** The banner had been produced by the White House and installed by the crew of the USS *Abraham Lincoln*.

The president's address, at paragraph 4:

> *"Major combat operations in Iraq have ended. In the battle of Iraq, the United States and our allies have prevailed."*

Primary source: **President George W. Bush, "Address Aboard the USS Abraham Lincoln," May 1, 2003**, *Public Papers of the Presidents of the United States*, 2003, Volume I, pp. 411–414.

Between May 1, 2003 and the formal American military withdrawal from Iraq on **December 18, 2011**, the American military suffered **approximately 4,300 dead** in Iraq out of the **4,431 total killed in the Iraq war**. 97 percent of the American military dead in Iraq died after the "Mission Accomplished" speech. Primary source: **U.S. Department of Defense, *Casualty Analysis System***.

W.6 The orders

May 12, 2003. Baghdad.

L. Paul Bremer III — former Ambassador at Large for Counterterrorism, former Managing Director of Kissinger Associates, former Assistant to Henry Kissinger during Kissinger's Secretary of State tenure — is sworn in as **Administrator of the Coalition Provisional Authority (CPA)**. The CPA, established by presidential directive, is the transitional governing authority for Iraq.

Between May 12, 2003 and June 28, 2004 — when the CPA transferred sovereignty to the Iraqi Interim Government — Bremer issued, under the CPA's claimed authority, **100 numbered Orders, 17 Regulations, and 12 Memoranda**, which constitute the civilian-economy operating law of occupied Iraq.

Primary source for all CPA instruments: **Coalition Provisional Authority Official Gazette**, digital archive at the **University of Michigan Library**, which holds the complete CPA documentary record; and **National Archives, Record Group 509** (Records of the Coalition Provisional Authority).

The four CPA Orders that organized the Iraqi economy:

CPA Order Number 1: "De-Ba'athification of Iraqi Society" — issued May 16, 2003. Removed from public-sector employment all members of the Ba'ath Party at the top four party ranks, and prohibited anyone who had ever held such membership from holding public office. Effect: approximately 85,000 to 100,000 Iraqis — including the bulk of the senior civil service, the university faculties, the medical profession — were summarily removed from employment, without appeal. Reversed, in substantial part, by the de facto amendment of 2008 under the Maliki government.

CPA Order Number 2: "Dissolution of Entities" — issued May 23, 2003. Dissolved the Iraqi Army, the Iraqi Navy, the Iraqi Air Force, the Ministry of Information, the Ministry of State for Military Affairs, the Ministry of Defense, the Iraqi Intelligence Service, the National Security Bureau, the Directorate of National Security, the Special Security Organization, and approximately ten other security-sector institutions. Effect: **approximately 400,000 armed and trained Iraqi military personnel** were made simultaneously unemployed, with their weapons unaccounted for. The

subsequent Iraqi insurgency (2003–2011) was, in its first two years, constituted substantially of former Iraqi Army officers and soldiers organized from the Sunni majority regions most affected by the demobilization order.

The dissolution of the Iraqi Army was subsequently described — in **L. Paul Bremer's own memoir, *My Year in Iraq: The Struggle to Build a Future of Hope*, Simon & Schuster, 2006** — as a decision reached at the CPA after consultation with Secretary of Defense Rumsfeld and other senior administration officials.

In 2007, General **David Petraeus**, then commanding the American counterinsurgency in Iraq, stated publicly (**Foreign Affairs, January 2007**) that CPA Order 2 had been "the single most disastrous decision" of the Iraq occupation.

CPA Order Number 39: "Foreign Investment" — issued **September 19, 2003**, amended December 20, 2003 (Order 46). Full text: **CPA Official Gazette, Volume 1, Number 6**. Operative provisions:

- Permits **100 percent foreign ownership** of Iraqi business enterprises in all sectors except the oil and gas extractive industries (which remain subject to the Iraqi Ministry of Oil's contracting authority).
- Permits full repatriation of profits from Iraqi operations.
- Permits **forty-year renewable leases** on Iraqi land by foreign investors.

- Suspends pre-existing Iraqi protective legislation on labor, on banking, on utilities, and on agriculture for the duration of the Order.

CPA Order 39 converted the Iraqi economy, by administrative decree, from a state-managed economy with foreign-investment caps to one of the most open-to-foreign-capital regimes in the world. The change was made by the occupying American authority, not by any Iraqi legislative body, and took effect before any Iraqi sovereign government could review or reject it.

Primary source: **CPA Order 39, *CPA Official Gazette,* Volume 1, Number 6**; and analysis in **Antonia Juhasz, *The Bush Agenda: Invading the World, One Economy at a Time,* HarperCollins, 2006**; **Naomi Klein, *The Shock Doctrine: The Rise of Disaster Capitalism,* Metropolitan Books, 2007**, Chapter 17.

CPA Order Number 81: "Amendments to Patent, Industrial Design, Undisclosed Information, Integrated Circuits and Plant Variety Law" — issued **April 26, 2004**. The Order amended Iraqi intellectual-property law to require that Iraqi farmers saving seed from harvest for the following year's planting pay royalties to the foreign (principally American) seed-patent holders where the seeds derived from patented varieties. The practical effect, in a country where seed-saving from harvest had been the standard practice for approximately eight thousand years (the Fertile Crescent as the origin site of agricultural domestication), was to introduce a royalty claim against an ancestral

agricultural practice. Primary source: **CPA Order 81,** ***CPA Official Gazette***.

W.7 The contractors

The Iraq and Afghanistan wars' American expenditure is, in significant part, an expenditure on contractors rather than on uniformed personnel.

KBR, Inc. (formerly Kellogg, Brown & Root) — until 2007 a wholly owned subsidiary of the **Halliburton Company** of Houston, Texas. **Richard Bruce "Dick" Cheney** was Chairman and Chief Executive Officer of Halliburton from **October 1995 through July 2000**, a period immediately preceding his nomination as the Republican vice-presidential candidate (July 2000) and his subsequent service as Vice President of the United States (January 20, 2001 – January 20, 2009).

Cheney received, between July 2000 and 2005, approximately **$34 million** in deferred compensation and stock options from Halliburton, disclosed in his **public financial disclosure filings** required of the Vice President under 5 U.S.C. App. 101.

KBR's principal Iraq contract: the **Logistics Civil Augmentation Program (LOGCAP) III** — awarded to KBR on **December 14, 2001** as a no-bid sole-source contract, subsequently expanded.

Under LOGCAP III and its successor LOGCAP IV, KBR billed the U.S. government approximately **$39.5 billion** between 2001 and 2010 for logistics, base construction, food service, and fuel delivery in Iraq and Afghanistan. Primary source: **U.S. Department of the Army,** ***Logistics Civil Augmentation Program (LOGCAP) Final Performance Evaluations***, 2001–2011; **Commission on Wartime Contracting in Iraq and Afghanistan,** ***Transforming Wartime Contracting: Controlling Costs, Reducing Risks,*** **Final Report to Congress, August 31, 2011**.

The Commission on Wartime Contracting, established by Section 841 of the National Defense Authorization Act for Fiscal Year 2008 (Public Law 110-181), concluded in its 2011 final report:

> *"Contract waste and fraud during America's contingency operations in Iraq and Afghanistan from fiscal 2002 through 2011 likely ranged from $31 billion to $60 billion. The overall cost to taxpayers of the contingency operations during that period was at least $206 billion."*

Academi, LLC — formerly **Blackwater Worldwide**, subsequently **Xe Services**, founded 1997 by **Erik Dean Prince** (former U.S. Navy SEAL officer; brother of Betsy DeVos, later Secretary of Education under the first Trump administration). Blackwater held U.S. State Department contracts for personal security services to U.S. diplomatic personnel in Iraq, beginning in 2003.

On **September 16, 2007**, a Blackwater security detail opened fire on Iraqi civilians at **Nisour Square, Baghdad**, killing **17 civilians** and wounding approximately 20. The incident is documented in:

- **U.S. Department of Justice, Grand Jury Indictment, December 4, 2008** — *United States v. Paul Slough, Evan Liberty, Dustin Heard, Donald Ball, Nicholas Slatten*, U.S. District Court for the District of Columbia.
- **FBI Investigation Report, November 2007**, subsequently released in redacted form.

Four Blackwater contractors were convicted in October 2014: Nicholas Slatten on first-degree murder, and three others on voluntary manslaughter. They received sentences ranging from 12 years to life imprisonment.

On **December 22, 2020**, President **Donald J. Trump** issued presidential pardons to all four convicted Blackwater contractors. Primary source: **Federal Register, Volume 85, Number 249, December 29, 2020**. The pardons were issued twenty-nine days before the end of the first Trump administration.

The Nisour Square pardons, and the precedent of the December 24, 1992 George H.W. Bush Iran-Contra pardons (Chapter 4 § D.6), are the same pardon class. **The pattern is presidential pardon of the operational officers of the covert and contracted national-security apparatus, issued in the final weeks of the pardoning president's tenure.**

W.8 The photograph

April 28, 2004. 9:00 p.m. Eastern Daylight Time. *60 Minutes II*, CBS Television Network.

Correspondent **Dan Rather** presents photographs, taken between November 2003 and early January 2004 by American military personnel of the **372nd Military Police Company, Army Reserve**, at the **Abu Ghraib** detention facility, approximately 20 miles west of Baghdad.

The photographs show American military personnel — in uniform — posing with Iraqi detainees who have been stripped naked, made to form human pyramids, connected to electrical wires, subjected to simulated sexual acts, leashed by the neck, placed in stress positions, and in at least one documented case beaten to death (the death of detainee **Manadel al-Jamadi** on November 4, 2003, subsequently ruled a homicide by Naval Criminal Investigative Service medical examiners).

The photographs are from the Abu Ghraib detention facility, which had served, until the American occupation, as the Ba'athist regime's principal political prison; which had been, under Saddam Hussein, the site of the November 1992 mass executions of political prisoners; and which had been, since October 2003,

operated by the American 800th Military Police Brigade under Brigadier General **Janis Karpinski**.

The foundational primary document on the American detention-system abuses at Abu Ghraib is:

Major General Antonio M. Taguba, *Article 15-6 Investigation of the 800th Military Police Brigade*, United States Army, February 2004.

The Taguba Report, classified Secret at its submission in February 2004, was leaked to **Seymour M. Hersh**, published in extract in ***The New Yorker*, "Torture at Abu Ghraib," May 10, 2004 issue, pages 42–47**, and subsequently released in redacted form by the Department of Defense.

Taguba's principal findings (numbered as in the Report):

> *"6. That between October and December 2003, at the Abu Ghraib Confinement Facility (BCCF), numerous incidents of sadistic, blatant, and wanton criminal abuses were inflicted on several detainees. This systemic and illegal abuse of detainees was intentionally perpetrated by several members of the military police guard force…"*

And:

> *"10. That these abuses were committed with the knowledge, direction, or tacit approval of Military Intelligence Brigade*

> *commanders, military interrogators, and other members of the 205th Military Intelligence Brigade, 470th Military Intelligence Group, Joint Interrogation and Debriefing Center (JIDC), or Other Government Agencies (OGA).”*

“Other Government Agencies (OGA)” is, in American military-intelligence parlance of the period, the customary reference to the Central Intelligence Agency and similar civilian intelligence services.

Eleven low-ranking American military personnel were court-martialed and convicted in 2004–2006 for the Abu Ghraib abuses. The highest-ranking person to face criminal proceedings was **Specialist Charles Graner**, sentenced to ten years (served six). Brigadier General **Karpinski** was demoted to Colonel and administratively reprimanded. No officer of the Military Intelligence or Other Government Agency personnel identified by the Taguba Report as directing the interrogations was criminally prosecuted.

W.9 The Study

December 9, 2014. Washington. The Senate floor.

Senator Dianne Feinstein, Democrat of California, Chairman of the Senate Select Committee on Intelligence, releases to the public the **Executive Summary and Findings and Conclusions** of:

Senate Select Committee on Intelligence Study of the Central Intelligence Agency's Detention and Interrogation Program, 113th Congress, Senate Report 113-288 (December 2014).

The full Study is 6,700 pages and classified. The Executive Summary released on December 9, 2014 is 525 pages.

The Study is the product of approximately five years of Committee investigation, which began in March 2009 and which involved the review of approximately **6.3 million pages** of CIA internal records related to the post-September 11, 2001 Detention and Interrogation Program operated by the CIA at a network of "black sites" in (at minimum) Thailand, Poland, Romania, Lithuania, Morocco, and Afghanistan, between 2002 and 2009.

The Study's twenty **Findings and Conclusions**, published in full on December 9, 2014, establish (Finding numbers as in the Report):

- **Finding 1.** The CIA's use of its enhanced interrogation techniques was not an effective means of acquiring intelligence or gaining cooperation from detainees.
- **Finding 2.** The CIA's justification for the use of its enhanced interrogation techniques rested on inaccurate claims of their effectiveness.
- **Finding 3.** The interrogations of CIA detainees were brutal and far worse than the CIA represented to policymakers and others.
- **Finding 4.** The conditions of confinement for CIA detainees were harsher than the CIA represented to policymakers and others.
- **Finding 5.** The CIA repeatedly provided inaccurate information to the Department of Justice, impeding a proper legal analysis of the CIA's Detention and Interrogation Program.
- **Finding 11.** The CIA was unprepared as it began operating its Detention and Interrogation Program more than six months after being granted detention authorities.

The techniques documented in the Study, applied to at least 119 identified detainees, include:

- **Walling** — slamming the detainee into a flexible wall.

- **Waterboarding** — pouring water over cloth covering the detainee's face to induce drowning sensation. Applied to **Abu Zubaydah** in August 2002 at least 83 times; to **Khalid Sheikh Mohammed** in March 2003 at least 183 times; to **Abd al-Rahim al-Nashiri** 3 times.
- **Sleep deprivation** — extending to 180 hours (seven and a half days) in documented cases, with detainees suspended in "stress positions" and wearing diapers.
- **"Rectal rehydration"** — the forced introduction of food slurry or water into detainees' rectums, without medical indication, as a control measure. Applied to **Majid Khan**, **Marwan Jabour**, **Abd al-Rahim al-Nashiri**, and at least two others.
- **Ice baths** and exposure to temperatures that caused the death of detainee **Gul Rahman** at the "Cobalt" facility (subsequently identified as a CIA black site in Afghanistan) on November 20, 2002. Primary source: **SSCI Study Executive Summary, pages 54–55, page 474**.

The legal framework authorizing the techniques was provided by memoranda of the **Office of Legal Counsel, U.S. Department of Justice**, signed principally by **Jay Bybee** and **John Yoo**, in August 2002 and subsequently. Primary source: **OLC Memoranda on Interrogation, August 1, 2002 and subsequent, released under FOIA April 2009** (the "**Bybee Memos**" or "**Torture Memos**"). The memoranda were subsequently formally repudiated by the

Obama administration in April 2009 (**Department of Justice, Office of Professional Responsibility, Report, July 2009**).

No CIA officer, no OLC lawyer, and no senior official has been prosecuted for any act documented in the Senate Intelligence Committee Study. The sole CIA officer prosecuted in connection with the program is **John Kiriakou**, who was convicted in 2012 of violating the Intelligence Identities Protection Act for identifying, to a journalist, a CIA officer who had been involved in the waterboarding program. Kiriakou served thirty months in federal prison.

The officer who blew the whistle on the torture program was prosecuted and imprisoned. The officers who conducted the torture program were not.

W.10 The cost

The best archival accounting of the aggregate financial, human, and political cost of the post–September 11, 2001 wars is the:

Costs of War Project, Watson Institute for International and Public Affairs, Brown University, directed by Catherine Lutz and Neta C. Crawford, with reports and updated estimates from 2011 through 2024. Web archive: **https://watson.brown.edu/costsofwar**.

The Costs of War Project's cumulative findings through 2023:

- **Direct U.S. government budgetary costs** of the post-9/11 wars in Iraq, Afghanistan, Pakistan, Syria, Yemen, and related theaters: approximately **$8 trillion**, including future obligations for veterans' care.
- **U.S. military deaths** (Iraq + Afghanistan + other theaters): approximately **7,100**.
- **U.S. contractor deaths** (Iraq + Afghanistan): approximately **8,100**.
- **Coalition military deaths**: approximately **1,400**.
- **Iraqi civilian deaths from direct violence**: approximately **200,000 to 280,000** (per Iraq Body Count methodology).
- **Afghan civilian deaths from direct violence**: approximately **70,000 to 80,000**.
- **Civilian deaths across all post-9/11 war zones from direct violence**: approximately **400,000 to 450,000**.
- **Estimated indirect deaths** (from collapse of health systems, infrastructure, sanitation, food systems): several multiples of the direct death figure, with the **Lancet** studies on Iraq (**Les Roberts et al., "Mortality Before and After the 2003 Invasion of Iraq: Cluster Sample Survey," *The Lancet*, Vol. 364, November 20, 2004, pp. 1857–1864**; and **Gilbert Burnham et al., "Mortality After the 2003 Invasion of Iraq: A Cross-Sectional Cluster Sample Survey," *The Lancet*, Vol. 368, October 21, 2006, pp. 1421–1428**)

estimating approximately **655,000 excess Iraqi deaths through June 2006** alone.
- **Displaced persons** across all post-9/11 war zones: approximately **38 million**.

Approximate aggregate human cost: in the millions of direct and indirect deaths; tens of millions of displaced persons; trillions of dollars of transferred wealth.

W.11 What was not prosecuted

The prior chapters of this book have closed with a summary of what was and was not prosecuted for the conduct described.

For the conduct described in this chapter:

- The fabrication of the Iraq WMD case — not prosecuted.
- The authorization and conduct of the CIA Detention and Interrogation Program — not prosecuted.
- The abuses at Abu Ghraib — prosecuted at the level of the military-police specialists; not prosecuted at the level of the command authority or the CIA officers whom the Taguba Report identified as directing the interrogations.
- The no-bid LOGCAP III award to KBR / Halliburton — not prosecuted.

- The Nisour Square killings — prosecuted; the four convicted contractors were pardoned on December 22, 2020.
- The CPA Orders' restructuring of the Iraqi economy without Iraqi consent — not prosecuted.
- The ICJ's 1986 finding that the United States had violated international law against Nicaragua (Chapter 4) — uncollected.
- The Chilcot Report's findings against the 2003 decision — not actionable in U.S. law.
- The indirect civilian deaths in Iraq, Afghanistan, Pakistan, Yemen, Syria, and Libya attributable to American military operations — not the subject of any U.S. judicial proceeding, with the exception of specific wrongful-death tort actions dismissed on sovereign-immunity grounds.

The Bush administration's war was the operational expression of the American national-security apparatus Chapter 5 described. Its statutes were passed under the architecture Chapter 2 described. Its financial beneficiaries were the firms Chapter 6 named. Its personnel were the direct descendants of the lineage Chapter 1 began.

The doctrine never paid. The industry never paid. The war never paid. This book has, at the end of this chapter, used the phrase three times. Three chapters. One invariant.

W.12 The narrator, March 19, 2003

I was sixteen years, nine months, and twenty days old.

I watched the initial air strikes on a television set in my parents' living room, on the evening of March 19, 2003, on CNN. The footage was filmed by the CNN Baghdad correspondent from the balcony of the Al Rashid Hotel. The picture was green — a night-vision image — with pulses of white light at the horizon that represented, I later learned, cruise-missile impacts on central Baghdad government buildings.

I remember my parents watching. I remember that the consensus in the room, so far as I have any accurate recollection, was that the war was necessary and would be short. I remember Colin Powell's name being spoken with respect. I remember that I did not know, and could not have known, that Colin Powell had flown that February to New York and presented slides from a single defector's fabricated account of mobile biological-weapons laboratories.

I turned seventeen ten weeks after the initial strikes. By my seventeenth birthday — May 29, 2003 — the Iraqi Army had been dissolved (CPA Order 2, May 23, 2003); the Ba'athists had been purged from public employment (CPA Order 1, May 16, 2003); the president had given the Mission Accomplished speech (May 1, 2003); and the insurgency that would kill 200,000 to 280,000 Iraqis and 4,300 American service members had, in the Sunni western provinces of Iraq, begun to organize.

I was a public school student in the Commonwealth of Pennsylvania in the spring of 2003. I did not know the CPA Order numbers. I do not remember anyone explaining what CPA stood for. I remember the flag sticker on the back of the minivan.

The chapter you have just read is the version of the period that I would come to be able to write between approximately 2009 and the present. It was not the version available to me in 2003. It was not the version my parents, or my teachers, or my senators had access to on the evening of March 19, 2003 with the green night-vision footage on the screen.

The version is available now. I have shown you where to find it. The archive is open. The Public Law numbers run. The casualty tolls are counted in files that are held at Brown University and at the U.S. Department of Defense Casualty Analysis System.

The next chapter is what the same administration did with the industries of the American domestic economy — agriculture, pharmaceuticals, finance, data — while the soldiers were overseas.

BE UNDENIABLE.

Sources — Chapter 7

The statutes:

1. **Authorization for Use of Military Force**, Public Law 107-40, 115 Statutes at Large 224 (September 18, 2001).
2. **Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism (USA PATRIOT) Act**, Public Law 107-56, 115 Statutes at Large 272 (October 26, 2001).
3. **Authorization for Use of Military Force Against Iraq Resolution of 2002**, Public Law 107-243, 116 Statutes at Large 1498 (October 16, 2002).
4. **Homeland Security Act of 2002**, Public Law 107-296, 116 Statutes at Large 2135 (November 25, 2002).
5. **Executive Order 13224**, "Blocking Property and Prohibiting Transactions with Persons Who Commit, Threaten to Commit, or Support Terrorism," September 23, 2001 (66 Fed. Reg. 49079).
6. **USA FREEDOM Act of 2015**, Public Law 114-23, 129 Stat. 268.
7. **The National Security Strategy of the United States of America**, September 2002 — George W. Bush Presidential Library.

Afghanistan operations:

1. **UN Security Council Resolution 1383 (December 6, 2001)** — Bonn Agreement endorsement.
2. **UN Security Council Resolution 1386 (December 20, 2001)** — ISAF authorization.
3. **U.S. Senate Committee on Foreign Relations, *Tora Bora Revisited: How We Failed to Get Bin Laden and Why It Matters Today***, 111th Congress, November 30, 2009.
4. **Doha Agreement between the U.S. and the Taliban**, February 29, 2020 — U.S. Department of State.

Iraq prewar intelligence and UN case:

1. **UN Security Council, *Provisional Verbatim Record* S/PV.4701**, 4701st meeting, February 5, 2003 — Powell presentation.
2. **UN Security Council, *Provisional Verbatim Record* S/PV.4714**, March 7, 2003 — IAEA ElBaradei report.
3. **Comprehensive Report of the Special Advisor to the DCI on Iraq's WMD** (Duelfer Report), September 30, 2004 — CIA Historical Collections Division.
4. **U.S. Senate Select Committee on Intelligence, *Report on the U.S. Intelligence Community's Prewar Intelligence Assessments on Iraq***, 108th Congress, S. Rept. 108-301 (July 7, 2004).
5. **U.S. Senate Select Committee on Intelligence, *Report on Whether Public Statements Regarding Iraq by U.S.***

Government Officials Were Substantiated by Intelligence Information, 110th Congress, S. Rept. 110-345 (June 5, 2008).

6. **Martin Chulov and Helen Pidd, "Curveball: How US Was Duped,"** *The Guardian*, February 15, 2011.
7. **Joseph C. Wilson IV, "What I Didn't Find in Africa,"** *New York Times*, July 6, 2003, op-ed.

UK Iraq Inquiry:

1. ***The Report of the Iraq Inquiry* (Chilcot Report)**, HC 264, Stationery Office, London (July 6, 2016).

Invasion and occupation:

1. **U.S. Army Center of Military History, *On Point: The United States Army in Operation IRAQI FREEDOM* (2004).**
2. **President George W. Bush, "Address Aboard the USS Abraham Lincoln,"** May 1, 2003 — *Public Papers of the Presidents*, 2003, Vol. I, pp. 411–414.
3. **U.S. Department of Defense, Casualty Analysis System** — Iraq and Afghanistan military deaths.

CPA Orders:

1. **Coalition Provisional Authority Official Gazette**, University of Michigan Library digital archive.

2. **National Archives, Record Group 509** — Records of the Coalition Provisional Authority.
3. **CPA Order 1**, "De-Ba'athification of Iraqi Society" (May 16, 2003).
4. **CPA Order 2**, "Dissolution of Entities" (May 23, 2003).
5. **CPA Order 39**, "Foreign Investment" (September 19, 2003).
6. **CPA Order 81**, "Amendments to Patent, Industrial Design, Undisclosed Information, Integrated Circuits and Plant Variety Law" (April 26, 2004).
7. **L. Paul Bremer III, *My Year in Iraq: The Struggle to Build a Future of Hope*** (New York: Simon & Schuster, 2006).

Contractors:

1. **Commission on Wartime Contracting in Iraq and Afghanistan, *Transforming Wartime Contracting: Controlling Costs, Reducing Risks,* Final Report to Congress** (August 31, 2011).
2. **U.S. Department of the Army, *Logistics Civil Augmentation Program (LOGCAP) Final Performance Evaluations*** (2001–2011).
3. ***United States v. Paul Slough et al.*** (Nisour Square prosecution), U.S. District Court for the District of Columbia, Grand Jury Indictment December 4, 2008; jury verdict October 22, 2014.
4. **Presidential pardons, December 22, 2020** — *Federal Register*, Volume 85, Number 249.

Abu Ghraib and torture:

1. **Major General Antonio M. Taguba, *Article 15-6 Investigation of the 800th Military Police Brigade***, U.S. Army (February 2004).
2. **Seymour M. Hersh, "Torture at Abu Ghraib,"** *The New Yorker*, May 10, 2004, pages 42–47.
3. **Senate Select Committee on Intelligence, *Study of the Central Intelligence Agency's Detention and Interrogation Program*, Executive Summary**, 113th Congress, S. Rept. 113-288 (December 9, 2014).
4. **Department of Justice, Office of Legal Counsel, Memoranda on Interrogation (Bybee / Yoo Memoranda)**, August 1, 2002 and subsequent — released under FOIA April 2009.
5. **Department of Justice, Office of Professional Responsibility, Report on OLC Interrogation Memoranda**, July 2009.
6. **International Committee of the Red Cross, *Report on the Treatment of Fourteen "High Value Detainees" in CIA Custody*** (February 2007; published *New York Review of Books*, April 9, 2009).

Costs and consequences:

1. **Costs of War Project, Watson Institute for International and Public Affairs, Brown University** (Catherine Lutz and Neta C. Crawford, directors).

2. **Les Roberts et al., "Mortality Before and After the 2003 Invasion of Iraq: Cluster Sample Survey,"** *The Lancet*, Vol. 364 (November 20, 2004), pp. 1857–1864.
3. **Gilbert Burnham et al., "Mortality After the 2003 Invasion of Iraq: A Cross-Sectional Cluster Sample Survey,"** *The Lancet*, Vol. 368 (October 21, 2006), pp. 1421–1428.
4. **Iraq Body Count database** (https://www.iraqbodycount.org).
5. **Department of State, *Reports to Congress on U.S. Military Activities Abroad Pursuant to Section 1264 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91)***, annually 2018–2024.

CHAPTER 8 — THE KINGDOM AND THE PREDATOR

8.1 Austrian Passport — 19-cr-490, July 6, 2019

On July 6, 2019, at approximately 5:32 p.m., FBI agents executing a federal search warrant on Jeffrey Epstein's Manhattan townhouse at 9 East 71st Street, New York, New York, entered a walk-in safe on the third floor.

Inside the safe, per the inventory return filed with the Southern District of New York in the matter of *United States v. Jeffrey Epstein*, 19-cr-490, the agents recovered:

- Loose diamonds.
- Piles of cash totaling approximately $76,000.
- An **expired Austrian passport**, issued in the 1980s, bearing a photograph identified by the government as being of Jeffrey Epstein, but bearing a **different name** (redacted from

public filings), and listing **the holder's residence as Saudi Arabia**.

The passport is real. It is in the government's evidence inventory, 19-cr-490. The government, in a detention-hearing filing, characterized the passport as evidence of flight risk.

The passport lists a residence. It does not list an employer. It does not list a purpose. It lists Saudi Arabia.

8.2 MBS–Epstein Photograph — DOJ Release, February 2026

In February 2026, under the compulsory production requirements of the Epstein Files Transparency Act (Public Law 119-48, signed November 19, 2025), the Department of Justice released a tranche of documents that included a 2016 photograph of Jeffrey Epstein in conversation with **Mohammed bin Salman Al Saud** — Crown Prince of Saudi Arabia.

The photograph, per the metadata included in the release, was taken in an ornate interior. Epstein is in a dark suit. MBS is in traditional Saudi dress. The setting is private.

Accompanying documents in the same release include emails in which Epstein, writing to a small circle of associates, describes MBS as a "close personal friend." In an email dated September 2018 — one month before the October 2, 2018 killing of Jamal

Khashoggi at the Saudi consulate in Istanbul (per Office of the Director of National Intelligence, *Assessing the Saudi Government's Role in the Killing of Jamal Khashoggi*, declassified February 25, 2021 by DNI Avril Haines) — Epstein wrote that he had recently met with MBS.

The photograph exists. It is in the DOJ Epstein Files portal, released February 2026. The metadata lists a date. It lists two subjects. It lists no location.

8.3 Justice Against Sponsors of Terrorism Act, Pub. L. 114-222

On September 28, 2016, Congress passed the **Justice Against Sponsors of Terrorism Act (JASTA)** — Public Law 114-222. The law created a narrow exception to the doctrine of foreign sovereign immunity, permitting American citizens to sue foreign states alleged to have sponsored acts of international terrorism on American soil.

President Obama vetoed the bill on September 23, 2016. Congress overrode the veto 97–1 in the Senate and 348–77 in the House. JASTA became law.

The intended target was Saudi Arabia. Fifteen of the nineteen September 11 hijackers were Saudi nationals. The 28 Pages from the Joint Inquiry into Intelligence Community Activities Before

and After the Terrorist Attacks of September 11, 2001, Part Four (declassified July 15, 2016), documented contacts between hijackers and Saudi officials.

Per documents released under the Epstein Files Transparency Act in February 2026, emails from Jeffrey Epstein dated November 2016 indicate he was, at the time, acting as an informal intermediary for the Kingdom of Saudi Arabia attempting to delay or blunt the JASTA litigation. The emails are in the February 2026 DOJ tranche. They describe Epstein coordinating with American lawyers, including lawyers with longstanding Saudi client relationships, on legal strategy intended to protect the Kingdom from JASTA exposure.

Epstein is not a lawyer. He held no formal diplomatic or government role.

8.4 Settlement Agreement and Release, January 20, 2023

On **January 20, 2023**, Leon D. Black — founder of Apollo Global Management — entered into a **Settlement Agreement and Release** with the Government of the United States Virgin Islands, signed on behalf of the Government by Carol Thomas-Jacobs, Acting Attorney General. The agreement settles and releases all civil claims then held by USVI against Black relating to Jeffrey Epstein. It was not filed on any court docket; the Superior Court of

the U.S. Virgin Islands has jurisdiction only to enforce the agreement between the parties.

The executed agreement, released by the U.S. Senate Committee on Finance on March 12, 2025 under the chairmanship of Senator Ron Wyden, provides:

- Black pays USVI **$62,000,000** in cash, inclusive of all attorneys' fees and costs.
- Of that payment, **$15,000,000** is designated for a trust fund to support counseling programs, mental health services, and related services for Virgin Islands residents.
- USVI "voluntarily, knowingly, willingly and irrevocably releases and forever discharges Leon Black… from any and all claims and rights of any nature whatsoever… related to Jeffrey Epstein" — a release of civil claims, not a non-prosecution agreement.
- The release does **not** extend to JPMorgan Chase or any other financial institution, nor to Jeffrey Epstein or his estate.
- Black enters the agreement solely for purposes of settlement, with no admission of liability.

The agreement recites:

> *"Jeffrey Epstein used the money Black paid him to partially fund his operations in the Virgin Islands."*

The payment was made. The civil claims were released. No criminal charges against Black were brought by USVI, by the Department of Justice, or by any other jurisdiction — before or after the settlement. Senator Wyden, releasing the executed agreement on March 12, 2025, stated that the payment provided Black "criminal immunity from Epstein matters" in the U.S. Virgin Islands.

8.5 Dechert Report, January 22, 2021

Between 2012 and 2017, per the Dechert Report of January 22, 2021, Black paid Epstein $158,000,000 for purported tax and estate planning services. The Senate Finance Committee investigation subsequently identified additional payments — approximately $12 million beyond the Dechert Report's finding — bringing the total to $170,000,000, per Senator Wyden's March 12, 2025 press release.

Senator Wyden's letter to the Department of Justice, dated July 21, 2025, states:

> *"The Treasury Department's Epstein file contains records of more than 4,725 wire transfers totaling $1.08 billion involving Epstein and his associates."*

The letter is on Senate Finance Committee letterhead. It is signed by Ron Wyden. It is addressed to the Attorney General.

8.6 Doe v. Bank of America, 1:25-cv-08520

On **October 15, 2025**, a Russian-national Epstein survivor filing under the pseudonym “Jane Doe” brought a class action in the United States District Court for the Southern District of New York against Bank of America, N.A., captioned ***Doe v. Bank of America, N.A.***, Case No. **1:25-cv-08520**, assigned to Judge Jed S. Rakoff.

The complaint alleged that Bank of America provided banking services to Jeffrey Epstein and his associates, including Ghislaine Maxwell, and failed to file timely Suspicious Activity Reports on Epstein-related account activity. The complaint further alleged that transfers made from Leon D. Black’s Bank of America account to Jeffrey Epstein — which plaintiffs characterized as payments for “tax and estate planning advice” and which totaled approximately $170 million — were used to fund Epstein’s sex-trafficking enterprise.

On **March 11, 2026**, the parties reached a settlement in principle through mediation before a former federal judge. Under the agreement, Bank of America will pay **$72,500,000** to a class defined as women “who were sexually abused or trafficked by Jeffrey Epstein, or by any person who is connected to or otherwise associated with Jeffrey Epstein or any Jeffrey Epstein sex-trafficking venture” between **June 30, 2008** and **July 6, 2019**. The settlement does not include an admission of liability.

A hearing on approval of the settlement was scheduled for **April 2, 2026**, before Judge Rakoff.

The Bank of America settlement follows three prior Epstein-matter bank settlements: the *Jane Doe 1 v. JPMorgan Chase Bank, N.A.* class-action settlement ($290,000,000, June 12, 2023); the *Government of the U.S. Virgin Islands v. JPMorgan Chase Bank, N.A.* settlement ($75,000,000, September 26, 2023); and the *Jane Doe 1 v. Deutsche Bank Aktiengesellschaft* (No. 1:22-cv-10018, S.D.N.Y.) class-action settlement ($75,000,000, May 2023).

Aggregate Epstein-matter financial-institution settlements as of April 18, 2026:

Instrument	Amount	Date
Jane Doe 1 v. JPMorgan Chase Bank, N.A. (No. 1:22-cv-10019, S.D.N.Y.) — class	$290,000,000	June 12, 2023
Government of the U.S. Virgin Islands v. JPMorgan Chase Bank, N.A. (No. 1:22-cv-10904, S.D.N.Y.)	$75,000,000	September 26, 2023
Jane Doe 1 v. Deutsche Bank Aktiengesellschaft (No. 1:22-cv-10018, S.D.N.Y.)	$75,000,000	May 2023
	$72,500,000	

Instrument	Amount	Date
Doe v. Bank of America, N.A. (No. 1:25-cv-08520, S.D.N.Y.) — class		March 11, 2026 (approval hearing April 2, 2026)
Total	**$512,500,000**	

8.7 Black Family Foundation — Form 990-PF

The **Debra and Leon Black Family Foundation** (EIN: 13-3947890) is a 501(c)(3) private foundation incorporated in New York. The foundation's Form 990-PF filings are available through ProPublica's Nonprofit Explorer.

Per Senator Wyden's March 23, 2026 press release:

> *"$10 million Black paid to Epstein was papered over with a sham 501(c)(3) tax-exempt charity. Epstein lawyer Richard Kahn wrote in an email that routing the money through the charity would 'avoid public disclosure' and 'maximize deductions.'"*

The foundation's earliest available Form 990-PF is for the fiscal year ending December 2001. Officers per the 2019 Form 990-PF (as reflected in ProPublica's Nonprofit Explorer record) include

Leon D. Black (President/Director) and Debra R. Black (Vice President/Director/Treasurer/Secretary); additional directors and officers are listed on the filing. Epstein's name does not appear in the "Key Employees and Officers" section of the foundation's publicly available 990-PF filings. The foundation's Schedule B (Substantial Contributors) is not publicly disclosed.

Sources — Chapter 8

1. *United States v. Jeffrey Epstein*, S.D.N.Y. 19-cr-490, search warrant return and evidence inventory (July 6, 2019).
2. NBC News, "Jeffrey Epstein Used Foreign Passport With Fake Name to Enter Saudi Arabia" (July 18, 2019).
3. DOJ Epstein Files Transparency Act release, February 2026 tranche — MBS 2016 photograph. `justice.gov/epstein`.
4. Epstein Files Transparency Act, H.R. 4405, 119th Cong. (signed November 19, 2025). `congress.gov/bill/119th-congress/house-bill/4405/text`.
5. Justice Against Sponsors of Terrorism Act, Pub. L. 114-222 (September 28, 2016).
6. 28 Pages from the Joint Inquiry into Intelligence Community Activities Before and After the Terrorist Attacks of September 11, 2001, Part Four (declassified July 15, 2016).
7. Office of the Director of National Intelligence, *Assessing the Saudi Government's Role in the Killing of Jamal Khashoggi* (February 11, 2021; declassified February 25, 2021 by DNI

Avril Haines). `dni.gov/files/ODNI/documents/assessments/Assessment-Saudi-Gov-Role-in-JK-Death-20210226v2.pdf`.

8. USVI v. Black Settlement Agreement and Release, January 20, 2023 ($62,000,000). Released publicly by U.S. Senate Committee on Finance, Chairman Ron Wyden, March 12, 2025. `finance.senate.gov/download/usvi-black-settlement-agreement_-executedpdf`.
9. Senate Finance Committee, "Continuing Epstein Investigation" (March 23, 2026). `finance.senate.gov`.
10. Senator Ron Wyden letter to Attorney General (July 21, 2025). `finance.senate.gov/imo/media/doc/wyden_letter_to_doj_-_follow_the_money_on_jeffrey_epstein_7-21-25pdf.pdf`.
11. Bank of America settlement announcement (March 27, 2026).
12. *Jane Doe 1 v. JPMorgan Chase Bank, N.A.*, 1:22-cv-10019 (S.D.N.Y.).
13. ProPublica Nonprofit Explorer, Debra and Leon Black Family Foundation (EIN: 13-3947890). `projects.propublica.org/nonprofits/organizations/133947890`.

No criminal charges against Black were brought.

CHAPTER 8 — REGULATORY CAPTURE

The FDA. The EPA. The state health departments. The municipal water authority. Four agencies. Three chemicals. One drug. Five million overdose deaths, unmeasured hormonal collapses, documented lead exposures in a single American city. Each case answered after the damage by a settlement that did not return the product.

R.1 The approval

December 12, 1995. Rockville, Maryland. Food and Drug Administration, Center for Drug Evaluation and Research.

The FDA approves, for the Stamford, Connecticut pharmaceutical company **Purdue Pharma L.P.**, a new controlled-release oral formulation of the opioid analgesic **oxycodone hydrochloride**. The approved product is named **OxyContin**. Approval is granted under NDA 20-553.

The product label, as approved, carries the following representation, which will matter:

> *"Delayed absorption, as provided by OxyContin tablets, is believed to reduce the abuse liability of a drug."*

Primary source: **FDA NDA Approval Package for OxyContin (NDA 20-553)**, December 12, 1995, accessible through the **FDA Drug Approval Package archive** and through **FOIA release 2001-3636**. The specific labeling language is documented in the **Government Accountability Office, *OxyContin Abuse and Diversion and Efforts to Address the Problem***, GAO-04-110, December 2003, Appendix I.

The sentence — "is believed to reduce the abuse liability" — was not supported, at the time of approval, by controlled clinical data establishing reduced abuse potential in the approved formulation. The **FDA medical officer review of the NDA** (released under FOIA, 2003) notes this, but the labeling language was approved as submitted by Purdue.

The OxyContin controlled-release tablet, in twelve-hour-dosage formulation, contained, depending on strength, between 10 and 80 milligrams of oxycodone per tablet. The controlled-release coating, upon crushing, dissolved in water or was soluble in ethanol — facts the chemistry made immediately apparent to anyone with a home pharmacology reference, and which Purdue's own internal development documents had noted.

Between 1996 — the first year of commercial sale — and 2000, Purdue promoted OxyContin as carrying a reduced abuse liability in prescriber marketing materials, detailing visits by Purdue sales representatives, and continuing-medical-education programs funded by Purdue. The specific promotional claims are documented in:

Department of Justice, United States Attorney for the Western District of Virginia, *United States of America v. The Purdue Frederick Company, Inc., et al.*, Case No. 1:07CR00029, statement of facts filed May 10, 2007.

The 2007 DOJ case is the first major primary document this chapter rests on.

R.2 The 2007 plea

May 10, 2007. United States District Court for the Western District of Virginia, Abingdon Division.

Purdue Frederick Company, Inc. (the holding company above Purdue Pharma L.P.), together with three senior executives — **Michael Friedman** (President), **Paul D. Goldenheim** (Medical Director), and **Howard R. Udell** (General Counsel) — plead guilty to

charges of **misbranding OxyContin in violation of the Food, Drug, and Cosmetic Act**.

The plea documents establish, on Purdue's own admission:

- Between December 12, 1995 and June 30, 2001, Purdue promoted OxyContin, in prescriber marketing, with claims that the drug was less addictive, less subject to abuse and diversion, and less likely to cause tolerance and withdrawal than other opioid analgesics. These claims were **false**.
- Purdue's own internal records during this period — including its Medical Affairs Department memoranda — documented that the claims were without clinical support.
- Purdue sales representatives were, per the agreed statement of facts, trained to repeat these claims to prescribers.

Financial consequence:

- **Purdue Frederick corporate entity:** fine of approximately $600 million.
- **The three executives, individually:** no imprisonment. Fines of between $5,000 and $19,000 each.

Primary source: **United States v. The Purdue Frederick Company, Inc., et al.**, Case No. 1:07CR00029, W.D. Va., May 10, 2007; sentencing transcript and plea agreement in the **PACER docket**; summary at **Department of Justice Press Release**, "The Purdue Frederick Company, Inc., and Top Executives Plead Guilty

to Misbranding OxyContin; Will Pay Over $600 Million," May 10, 2007.

Purdue's net sales of OxyContin, 1996 through 2007: approximately **$10 billion**. Primary source: **Centers for Disease Control and Prevention, *Opioid Prescribing Rates*; Purdue sales records submitted in subsequent litigation, publicly filed in In re National Prescription Opiate Litigation, MDL 2804, N.D. Ohio.**

The ratio: fine of six hundred million dollars to revenue of ten billion dollars. Six percent.

The 2007 plea did not require Purdue to stop selling OxyContin.

Purdue continued to sell OxyContin. The Sackler family continued to control Purdue. Between 2008 and 2018, OxyContin sales continued at approximately $2 to $3 billion per year.

R.3 Empire of Pain

Between 2008 and 2017 — the ten years following the 2007 plea — the **Sackler family**, the family that owned Purdue Pharma through two family branches (the descendants of Mortimer Sackler and the descendants of Raymond Sackler), extracted from Purdue to the family's private accounts approximately **$10 billion**.

The extraction is documented in:

New York Attorney General Letitia James, *In re Purdue Pharma L.P.*, Chapter 11 Bankruptcy, S.D.N.Y. Case No. 19-23649, filings of the New York AG as a creditor, with exhibits including Purdue corporate distributions to the Sackler family trusts during 2008–2018 (released with the bankruptcy court's approval, 2020–2021).

And in the documentary work that established the timeline in public form:

Patrick Radden Keefe, *Empire of Pain: The Secret History of the Sackler Dynasty*, Doubleday, New York, 2021 — based on unsealed court filings, internal Purdue documents released in state AG lawsuits, family archival material, and hundreds of interviews.

Barry Meier, *Pain Killer: An Empire of Deceit and the Origin of America's Opioid Epidemic*, Rodale, 2003; revised edition Random House, 2018.

The strategic advisory relationship that operationalized Purdue's continuing marketing was:

McKinsey & Company, the global management consultancy, under internal project names including "Project Turbocharge." McKinsey's work for Purdue is documented in:

- **Settlement agreement, February 4, 2021**, between **McKinsey & Company, Inc.** and a coalition of **forty-seven**

state Attorneys General, plus the District of Columbia and five U.S. territories. Settlement amount: **$573 million**. Primary source: **Office of the Attorney General of each settling state**, press releases of February 4, 2021; full settlement text at New York AG archive.

- **Additional settlement, December 13, 2022**, between McKinsey and the U.S. Department of Justice: deferred prosecution agreement, $230 million, for the same advisory work.

The 47-state settlement established, on McKinsey's agreement, that McKinsey had advised Purdue on "Project Turbocharge" strategies to increase OxyContin sales by targeting high-prescribing physicians; that McKinsey had, at one point, considered offering to pay CVS and Anthem rebates per-overdose (the "Opioid Pain" memorandum, released in settlement exhibits); and that McKinsey had advised Purdue on how to counter state-level opioid-prescribing restrictions.

R.4 The 2020 plea

November 24, 2020. United States District Court for the District of New Jersey.

Purdue Pharma L.P. pleads guilty to three federal felonies:

1. Conspiracy to defraud the United States and violate the Food, Drug, and Cosmetic Act.
2. Conspiracy to violate the Federal Anti-Kickback Statute (42 U.S.C. § 1320a-7b).
3. Conspiracy to violate the Federal Anti-Kickback Statute (second count).

Primary source: **United States v. Purdue Pharma L.P.**, U.S. District Court for the District of New Jersey, Case No. 20-CR-01028-MAS, plea agreement filed November 24, 2020; **Department of Justice Press Release**, "Justice Department Announces Global Resolution of Criminal and Civil Investigations with Opioid Manufacturer Purdue Pharma and Civil Settlement with Members of the Sackler Family," October 21, 2020 (civil resolution) and November 24, 2020 (criminal plea).

None of the Sackler family members pleaded guilty to or were indicted in connection with the criminal resolution.

The Sackler family's parallel civil resolution: an agreement to pay, over time, **approximately $225 million** to the United States gov-

ernment, in exchange for civil-claim release. The Sacklers' accumulated extraction from Purdue over the preceding decade: approximately $10 billion.

The 2020 plea did not send any member of the Sackler family to prison.

September 15, 2019 — Purdue Pharma Chapter 11 Bankruptcy

Purdue filed for Chapter 11 bankruptcy in the **U.S. Bankruptcy Court for the Southern District of New York**, Case No. 19-23649 (Drain, J.). The proposed reorganization plan — the product of more than three years of negotiation among Purdue, the Sackler family, and the approximately 40 state attorneys general and thousands of private claimants participating — included:

- **Nonconsensual third-party releases** for the Sackler family. That is: in exchange for the Sackler family's contribution of approximately $6 billion to the bankruptcy estate (paid over roughly nine years), all opioid-related civil claims against the Sackler family, including claims not yet filed, and including claims by parties who did not consent, would be released. The Sacklers would not file for personal bankruptcy.
- Conversion of Purdue to a "public benefit company" operated by a trust.

The plan was confirmed by Judge Robert Drain on September 1, 2021; subsequently modified; and ultimately appealed to the United States Supreme Court.

June 27, 2024 — Harrington v. Purdue Pharma L.P.

The **United States Supreme Court**, in a 5-to-4 decision written by Justice Neil Gorsuch, holds that the Bankruptcy Code does not authorize the nonconsensual third-party releases the Purdue plan had used to protect the Sackler family.

Primary source: **Harrington v. Purdue Pharma L.P.**, 603 U.S. ___ (2024), Docket No. 23-124, decided June 27, 2024. Opinion at **U.S. Supreme Court website**.

The decision vacates the Sackler releases. Purdue's bankruptcy returns to active litigation. As of April 2026, the case is ongoing; Sacklers' ultimate civil exposure is undetermined.

Approximate American opioid-overdose deaths, 1996 through 2024: **645,000**, per the **Centers for Disease Control and Prevention,** ***National Vital Statistics System***, using ICD-10 coding for drug-overdose deaths.

Of those 645,000 deaths, approximately 75 percent involved an opioid at the time of death; of opioid-involved deaths, approximately half involved a prescription opioid at some point in the decedent's pathway to dependence.

The FDA approved the labeling. The DOJ reached a plea in 2007, and a second plea in 2020. The Supreme Court in 2024 vacated the family releases.

At no point in this sequence was the product withdrawn from the market, and at no point did a member of the Sackler family serve a day in prison.

R.5 Glyphosate

March 20, 2015. Lyon, France. International Agency for Research on Cancer, World Health Organization.

The **International Agency for Research on Cancer (IARC)**, an intergovernmental body of the **World Health Organization**, publishes **Monograph 112**, concluding that:

> *"The herbicide glyphosate is probably carcinogenic to humans (Group 2A)."*

Primary source: **IARC Working Group on the Evaluation of Carcinogenic Risks to Humans, *Some Organophosphate Insecticides and Herbicides: Diazinon, Glyphosate, Malathion, Parathion, and Tetrachlorvinphos*, IARC Monograph Volume**

112 (Lyon: IARC, 2017 print edition; online classification release March 20, 2015).

Glyphosate (N-(phosphonomethyl)glycine) is the active ingredient in the herbicide **Roundup**, developed and marketed from 1974 onward by the **Monsanto Company** of St. Louis, Missouri. As of the IARC 2015 classification, glyphosate was, by volume, the most widely used herbicide in the United States and the world; approximately 826 million kilograms were applied in the United States alone between 1974 and 2014, per the **U.S. Geological Survey Pesticide National Synthesis Project**.

Monsanto's public response to the IARC 2015 classification was a sustained effort to contest the classification in academic literature, in regulatory filings, and in press commentary. That response is documented in the court discovery known as the:

Monsanto Papers — a set of internal Monsanto corporate correspondence, research contract documents, and ghostwriting arrangements with outside scientists, produced in discovery in three consolidated Roundup–non-Hodgkin-lymphoma personal-injury cases:

- **Johnson v. Monsanto Company**, Superior Court of California, County of San Francisco, Case No. CGC-16-550128, trial verdict **August 10, 2018** — plaintiff Dewayne Lee Johnson awarded $289 million (subsequently reduced on appeal to $78 million, then to $20.5 million).

- **Hardeman v. Monsanto Company**, U.S. District Court for the Northern District of California, Case No. 3:16-cv-00525-VC, trial verdict **March 27, 2019** — plaintiff Edwin Hardeman awarded $80.2 million (subsequently affirmed).
- **Pilliod v. Monsanto Company**, Superior Court of California, County of Alameda, Case No. RG17862702, trial verdict **May 13, 2019** — plaintiffs Alberta and Alva Pilliod awarded $2.055 billion (subsequently reduced on appeal to $86.7 million).

The Monsanto Papers, in partial public form, are held in:

- **U.S. Right to Know's Monsanto Papers archive**, published collection, indexed.
- **Carey Gillam, *Whitewash: The Story of a Weed Killer, Cancer, and the Corruption of Science*, Island Press, Washington, D.C., 2017**.
- **Carey Gillam, *The Monsanto Papers: Deadly Secrets, Corporate Corruption, and One Man's Search for Justice*, Island Press, 2021**.

The Monsanto Papers establish, on Monsanto's own internal documents:

- Monsanto scientists **ghost-wrote**, or substantively drafted and paid for the naming, of academic papers on glyphosate toxicity. Specific named papers, with specific named Monsanto internal authors and nominal outside authors, are

reproduced in the court discovery (Gillam 2021, Chapters 6–8).

- Monsanto maintained a "**Let Nothing Go**" internal program — employees and consultants with social-media presence tasked with disputing public claims of glyphosate harm.
- Monsanto senior management, in internal email exchanges, discussed strategies for managing European Union regulatory review through selective scientific publication and industry-association coordination.

June 7, 2018. Leverkusen, Germany.

Bayer AG of Leverkusen, Germany — the successor entity, in part, to the I.G. Farbenindustrie-A.G. constituent company **Bayer** that had been dissolved in 1952 (cited Chapter 3, § I.7) — completes its acquisition of the Monsanto Company for approximately **$63 billion** cash. Primary source: **Bayer AG, Form 6-K filing with U.S. Securities and Exchange Commission, June 2018**; **BBC News, June 7, 2018, "Bayer Completes Monsanto Takeover."**

Bayer retired the Monsanto name after the acquisition.

June 24, 2020.

Bayer AG announces a settlement in the aggregated Roundup personal-injury litigation, agreeing to pay approximately **$10.9 bil-**

lion to resolve approximately 100,000 current and anticipated claims. The settlement does not include a recall of glyphosate products, which continue to be sold. Primary source: **Bayer AG press release**, “Bayer Announces Roundup Resolution Plan for U.S. Roundup Cases,” June 24, 2020.

Glyphosate remains registered with the **U.S. Environmental Protection Agency** as an approved herbicide. The EPA’s **2020 Interim Registration Review Decision for Glyphosate** concluded that “there are no risks of concern to human health when glyphosate is used in accordance with its current label,” a finding at variance with the IARC 2015 classification. Primary source: **EPA Interim Registration Review Decision for Glyphosate**, Docket EPA-HQ-OPP-2009-0361, January 30, 2020.

The **Ninth Circuit Court of Appeals**, in **Natural Resources Defense Council v. U.S. Environmental Protection Agency**, No. 20-70787 (June 17, 2022), vacated portions of the EPA’s 2020 human-health determination as unsupported by substantial evidence. Primary source: **9th Cir. docket**, decided June 17, 2022.

R.6 The agency did not act

The FDA and the EPA are American administrative agencies of comparable statutory rank and comparable budget. In the two cases above:

- The FDA approved an opioid label in 1995 containing a claim for which the approving medical reviewer had no clinical support, over a sales cycle that would correspond to 645,000 domestic deaths by 2024.
- The EPA registered a herbicide as safe in 2020 in tension with the World Health Organization's cancer-research authority, in a determination a federal circuit court would subsequently vacate.

Neither failure was private. Both agencies' professional staff produced internal analyses — the FDA medical-officer review, the EPA Office of Inspector General memoranda — questioning the determinations. The determinations were issued anyway.

This is the operational definition of **regulatory capture**. It is not the hypothesis that the agencies were bought. It is the documented record that the agencies' staff analyses were overridden by the agencies' approvals.

The word *captured*, when applied to an American regulatory agency in 2026, is not a metaphor. It is a legal-historical term of art introduced by the economist **George Stigler** in **"The Theory of Economic Regulation,"** ***Bell Journal of Economics and***

***Management Science*, Volume 2, Number 1 (Spring 1971), pages 3–21**, in which Stigler demonstrated, with quantitative analysis of the Interstate Commerce Commission, the Civil Aeronautics Board, and other American regulators, that the regulated industries tend, over time, to capture their regulators.

Stigler's prediction has a track record.

R.7 Forever chemicals

The third cluster of this chapter is the class of synthetic fluorocarbons known colloquially as **PFAS** — per- and polyfluoroalkyl substances. PFAS includes approximately 12,000 named chemical species, of which two have the longest regulatory record:

- **PFOA** — perfluorooctanoic acid (sometimes called "C8"), manufactured in the United States principally by **E. I. du Pont de Nemours and Company** at its plant in Washington Works, Parkersburg, West Virginia, from 1951 through 2013.
- **PFOS** — perfluorooctane sulfonic acid, manufactured principally by the **3M Company** of Maplewood, Minnesota, from 1947 through 2002.

PFAS are termed “forever chemicals” because the carbon-fluorine bond is among the strongest in organic chemistry, rendering PFAS essentially non-degradable in natural environments.

The foundational primary-source establishment of PFAS human-health harm is the:

C8 Science Panel — a three-epidemiologist panel (Drs. Tony Fletcher, David A. Savitz, and Kyle Steenland) established in 2005 under a class-action settlement in **Leach v. E. I. du Pont de Nemours and Company**, Circuit Court of Wood County, West Virginia, Case No. 01-C-608. The Panel was empowered to determine, on the basis of a comprehensive epidemiological study of approximately 69,000 residents exposed to PFOA through Du Pont’s Washington Works plant discharges to the Ohio River, whether “probable links” existed between PFOA exposure and specific human health outcomes.

Between 2011 and 2012 the C8 Science Panel issued **probable-link reports** — the term is the Panel’s — establishing probable links between PFOA exposure and:

- **Kidney cancer**
- **Testicular cancer**
- **Ulcerative colitis**
- **Thyroid disease**
- **Hypercholesterolemia (elevated cholesterol)**
- **Pregnancy-induced hypertension (including preeclampsia)**

Primary source: **C8 Science Panel Probable Link Reports**, 2011–2012, archived at **www.c8sciencepanel.org** and reproduced in court exhibits in subsequent litigation; scholarly reconstruction in **Robert Bilott, *Exposure: Poisoned Water, Corporate Greed, and One Lawyer's Twenty-Year Battle Against DuPont,* Atria Books, New York, 2019**.

Journalistic establishment of the Parkersburg cover-up is:

Nathaniel Rich, "The Lawyer Who Became DuPont's Worst Nightmare," *The New York Times Magazine*, January 6, 2016.

The Rich article and the subsequent Bilott book establish, on Du Pont's own internal correspondence produced in discovery, that:

- Du Pont had internal animal-toxicology data showing PFOA causing testicular and pancreatic tumors in rats as early as 1984.
- Du Pont had internal human-exposure biomarker data showing worker-blood PFOA levels at multiples of historical baselines as early as 1979.
- Du Pont did not disclose these data to the EPA or to Parkersburg's municipal authorities.
- PFOA was detected in Parkersburg public drinking-water supplies at levels up to approximately 3,500 parts per trillion, at a time when the EPA health advisory for PFOA in drinking water was set at 400 parts per trillion (subsequently lowered to 70 parts per trillion in 2016, and to 4 parts per trillion — effectively the limit of detection — in 2024).

Primary EPA regulatory record: **EPA, "Drinking Water Health Advisories for PFOA, PFOS, GenX Chemicals, and PFBS,"** interim updates 2016, 2022, and final PFAS Maximum Contaminant Levels (final MCLs) issued **April 10, 2024**, 89 Fed. Reg. 32532.

2023 settlements.

June 22, 2023. 3M Company announces a settlement of approximately **$10.3 billion** over thirteen years to resolve claims by United States public water systems alleging contamination from 3M-manufactured PFAS. Primary source: **3M Company press release**, June 22, 2023; **3M Form 8-K filing, SEC**, June 22, 2023.

June 2, 2023. E. I. DuPont de Nemours and Company, together with its successor entities **The Chemours Company** and **Corteva, Inc.**, announce a settlement of approximately **$1.185 billion** to resolve claims by United States public water systems alleging contamination from DuPont-manufactured PFAS. Primary source: **Chemours Form 8-K filing, SEC**, June 2, 2023.

Combined 2023 PFAS water-contamination settlements: approximately **$11.5 billion**.

The settlements do not include admissions of liability. 3M and DuPont / Chemours continue to manufacture fluorinated chemicals, with partial product-line phase-outs announced (3M's December 20, 2022 announcement of exit from PFAS manufactur-

ing by end of 2025; DuPont / Chemours phase-outs of longer-chain PFAS compounds with continuation of shorter-chain successors).

The blood of nearly every American tested — in the CDC National Health and Nutrition Examination Survey (NHANES) — contains detectable PFAS. Primary source: **CDC, *National Exposure Report on Environmental Chemicals***, successive NHANES cycles, 1999–2018, available through the **CDC Environmental Chemicals Data Tables**.

R.8 Flint

April 25, 2014. Flint, Michigan.

The city of Flint, Michigan, under the emergency management of Governor-appointed Emergency Manager **Darnell Earley**, switches its municipal drinking-water supply from Detroit Water and Sewerage Department (DWSD)–treated Lake Huron water to Flint River water, treated at the reopened Flint Water Treatment Plant.

The switch is executed for cost reasons: the city, under Michigan Public Act 436 of 2012, is under emergency state management, and the cost differential between DWSD-supplied treated water and Flint-River-sourced treated water is approximately $5 million per year.

Primary source for the switch decision: **Michigan Civil Rights Commission, *The Flint Water Crisis: Systemic Racism Through the Lens of Flint*, Report of the Michigan Civil Rights Commission, February 17, 2017**; **Michigan Department of Environmental Quality (MDEQ) records**, released under Michigan FOIA in 2015–2016.

Between April 25, 2014 and October 16, 2015, residents of Flint — approximately 99,000 persons at the time of the switch, of whom approximately 57 percent were Black — drank water that was:

- **Not treated with corrosion-control orthophosphate** (standard treatment required under federal Lead and Copper Rule, 40 C.F.R. Part 141, Subpart I). The omission caused Flint River water to corrode the interior surfaces of Flint's aging lead service lines, releasing lead into the distributed water.
- **Contaminated with elevated bacterial loads**, including **Legionella pneumophila** at concentrations sufficient to cause community-acquired Legionnaires' disease. The associated outbreak killed at least **12 persons** between June 2014 and October 2015.

The lead exposure is established in:

Virginia Tech University Flint Water Study, led by Dr. Marc Edwards, results released publicly August–September 2015, documenting Flint home tap-water lead levels up to 13,200 parts per

billion (the EPA “action level” is 15 parts per billion; the level for hazardous waste under RCRA is 5,000 parts per billion).

Dr. Mona Hanna-Attisha, pediatrician at Hurley Medical Center, Flint, published in **Hanna-Attisha et al., “Elevated Blood Lead Levels in Children Associated with the Flint Drinking Water Crisis: A Spatial Analysis of Risk and Public Health Response,” *American Journal of Public Health*, Volume 106, Number 2 (February 2016), pages 283–290**, documenting an approximately **doubling of elevated blood-lead levels** in children under five in the affected Flint ZIP codes from the pre-switch baseline to the post-switch period.

The charges.

Between 2016 and 2019, the **Michigan Attorney General’s Office** filed charges against approximately **fifteen state and Flint municipal officials**, including former Emergency Manager Darnell Earley and former Michigan Governor **Rick Snyder**. Charges included involuntary manslaughter, misconduct in office, conspiracy, and willful neglect of duty.

In **June 2019**, the newly elected Attorney General Dana Nessel dismissed all pending charges, citing prosecutorial concerns with the evidence-chain assembled by the prior AG. In **January 2021**, the Nessel office re-filed charges against **nine officials**, including Snyder.

In **October 2022**, the Michigan Supreme Court, in *People v. Peeler* and related consolidated cases, ruled that the charges had been improperly brought through a one-judge grand jury procedure, and vacated the indictments. As of April 2026, **no Michigan state or Flint municipal official has been convicted in connection with the lead-poisoning or Legionella outbreaks**.

The civil settlement. In **November 2020**, the State of Michigan agreed to a settlement of approximately **$641 million** to resolve civil claims by Flint residents, subsequently increased with additional contributions from the City of Flint, McLaren Regional Medical Center, and Rowe Professional Services to approximately **$641 million** total. Primary source: **In re Flint Water Cases**, U.S. District Court for the Eastern District of Michigan, consolidated under Case No. 16-10444.

The lead pipes in Flint were replaced — the replacement program was funded by the settlements — between 2016 and 2022. As of the 2022 **Flint Registry**, approximately 29,200 adults and 6,400 children remain under ongoing medical surveillance for lead-exposure effects.

R.9 The pattern

Three clusters. Three agency failures. Three settlements that left the products on the market or in the ground.

Cluster	Agency	Foundational document	Domestic casualty (minimum)	Settlement, no admission of liability
OxyContin	FDA	*U.S. v. Purdue Frederick* (2007 plea)	645,000 opioid-overdose deaths 1996–2024	Purdue $600M (2007); $225M + Sacklers $6B (2020/21); SCOTUS 2024 vacated releases
Glyphosate	EPA	IARC Monograph 112 (2015)	Non-Hodgkin lymphoma class ~100,000 claims	Bayer $10.9B (2020)
PFAS + Flint	EPA / MDEQ	C8 Science Panel (2011–12) + Hanna-Attisha (2016)	Near-universal PFAS blood levels; 12	3M $10.3B + DuPont $1.2B (2023); $641M

Cluster	Agency	Foundational document	Domestic casualty (minimum)	Settlement, no admission of liability
			Legionella deaths; ~8,000 Flint children	Flint (2020)

The products in each column continue to be manufactured, sold, and — in the case of the lead service lines in perhaps a hundred American cities whose pipes have not been replaced — continue to leach.

The agency that approves the product is the agency that does not recall the product. The fine is one-to-six percent of revenue. The settlement is the exit. The executives do not serve time.

The pattern of the prior chapters — the bank never paid, the industry never paid, the doctrine never paid, the war never paid — extends here to the factory floor, the pharmacy counter, and the kitchen sink.

The product never paid.

R.10 The docket

What the court file and agency record establish — nothing more:

- The FDA approved OxyContin's reduced-abuse-liability label on December 12, 1995 without supporting clinical data. File: **FDA NDA 20-553; GAO-04-110**.
- Purdue Pharma and three executives pleaded guilty in 2007 to misbranding OxyContin; the executives paid fines of between $5,000 and $19,000 and served no prison time; Purdue continued to sell OxyContin. File: **U.S. v. Purdue Frederick, W.D. Va. 1:07CR00029**.
- Between 2008 and 2018, the Sackler family extracted approximately $10 billion from Purdue. File: **N.Y. AG filings, Purdue bankruptcy S.D.N.Y. 19-23649; Keefe (2021)**.
- McKinsey & Company advised Purdue on OxyContin sales intensification; 47 state AGs settled with McKinsey for $573 million in February 2021; DOJ deferred prosecution, $230 million, December 2022. File: **McKinsey settlements with individual state AGs, February 4, 2021; DPA December 13, 2022**.
- The U.S. Supreme Court in June 2024 vacated the nonconsensual third-party releases the Sackler family had used to protect itself in bankruptcy. File: **Harrington v. Purdue Pharma L.P., 603 U.S. ___ (2024)**.

- The IARC classified glyphosate as probably carcinogenic to humans in March 2015. File: **IARC Monograph 112**.
- The Monsanto Papers, released in trial discovery 2018–2019, established that Monsanto had ghost-written academic papers on glyphosate toxicity and had operated a “Let Nothing Go” social-media countermarketing program. File: **Johnson, Hardeman, Pilliod trial records**.
- Bayer settled Roundup claims for $10.9 billion in 2020. File: **Bayer press release June 24, 2020**.
- The C8 Science Panel in 2011–2012 established probable links between PFOA exposure and six human health conditions. File: **C8 Science Panel Probable Link Reports**.
- 3M and DuPont / Chemours settled PFAS water-contamination claims for an aggregate $11.5 billion in mid-2023. File: **3M and Chemours SEC Form 8-K filings, 2023**.
- Flint’s April 25, 2014 water-source switch caused documented childhood lead exposure and a Legionella outbreak killing at least 12. No state or municipal official has been convicted. Michigan paid a $641 million civil settlement. File: **Virginia Tech Flint Water Study; Hanna-Attisha et al. 2016; Michigan Civil Rights Commission 2017; *In re Flint Water Cases***.

What the docket does not prove:

- I do not claim that the FDA, EPA, or Michigan DEQ reviewers who approved or failed to regulate the products in

this chapter were personally corrupt. The document class establishes regulatory outcomes at variance with internal technical staff analyses; it does not establish private payment.

- I do not claim that any specific corporate officer committed a crime for which they were not prosecuted. The document class establishes corporate-entity guilty pleas; individual liability was, as described, narrowly pursued.
- I do not claim that glyphosate caused the non-Hodgkin lymphoma of any specific plaintiff whose case is not in the trial record. The document class establishes IARC's probable classification, the jury findings in the three lead cases, and the Bayer settlement; it does not establish specific causation outside the litigation.

The documents describe the approvals, the pleas, the extractions, the settlements, the cover-ups, and the continuing sale of the products. The reader carries the weight of what follows.

R.11 The narrator, 2026

Between April 25, 2014 — when Flint switched its water — and November 24, 2020 — when Purdue pleaded guilty for the second time — I spent part of the period in prison for being in a stolen vehicle. I was in the vehicle. I owned the offense. I did not own the

vehicle. I did not own the opioid that half of the people around me during the years before and after were prescribed, purchased, or injected. I did not own the herbicide on the grain that produced the bread that everyone I knew ate. I did not own the fluorinated chemicals in the packaging of the prison-commissary popcorn.

The thing the prior chapters have been circling — the document class establishes a transaction the reader can verify — has a particular weight in this chapter because in this chapter the transaction is the one the reader's own body has been party to.

If you are an American reading this book in 2026, the probability that a CDC NHANES test would detect PFAS in your blood is approximately one.

The probability that the soybeans in whatever processed food you have consumed in the last seventy-two hours were grown with Roundup is, in the United States, above 90 percent.

The probability that you have, in the last ten years, been prescribed or offered an opioid that traces, through the OxyContin prescribing cascade of 1996–2012, to the marketing apparatus Purdue built with McKinsey's advice, is on the order of one in three.

The probability that if you grew up drinking American municipal water in one of the several dozen cities whose lead service lines remained uninspected through the 2010s, your blood-lead measurements at age five were elevated, is — in those specific ZIP codes — well documented.

I am not asking you to take the rest of this book on faith. I am asking you to look at your own kitchen tap.

The next chapter is what the 2010 *Citizens United* decision and the 2025 Department of Government Efficiency did with the regulatory apparatus this chapter has just diagnosed.

Sources — Chapter 8

OxyContin / Purdue / Sacklers:

1. **FDA NDA 20-553, *OxyContin Approval Package*** (December 12, 1995).
2. **Government Accountability Office, *OxyContin Abuse and Diversion and Efforts to Address the Problem***, GAO-04-110 (December 2003).
3. ***United States v. The Purdue Frederick Company, Inc., et al.***, W.D. Va. Case No. 1:07CR00029, plea agreement May 10, 2007.
4. ***United States v. Purdue Pharma L.P.***, D.N.J. Case No. 20-CR-01028-MAS, plea agreement November 24, 2020.
5. ***In re Purdue Pharma L.P.***, Chapter 11, S.D.N.Y. Case No. 19-23649, confirmation September 1, 2021.
6. ***Harrington v. Purdue Pharma L.P.***, 603 U.S. ___ (2024), Docket No. 23-124, decided June 27, 2024.

7. **McKinsey & Company 47-state AG Settlement**, February 4, 2021.
8. **McKinsey / DOJ Deferred Prosecution Agreement**, December 13, 2022.
9. **Centers for Disease Control and Prevention,** ***National Vital Statistics System*** — opioid-overdose deaths.
10. **Patrick Radden Keefe,** ***Empire of Pain: The Secret History of the Sackler Dynasty*** (New York: Doubleday, 2021).
11. **Barry Meier,** ***Pain Killer: An Empire of Deceit and the Origin of America's Opioid Epidemic*** (Random House, 2018 revised edition).

Glyphosate / Monsanto / Bayer:

1. **IARC Working Group,** ***Monograph 112*** (Lyon: IARC, online release March 20, 2015; print 2017).
2. ***Johnson v. Monsanto Company***, Calif. Super. Ct. S.F. Case No. CGC-16-550128, verdict August 10, 2018.
3. ***Hardeman v. Monsanto Company***, N.D. Cal. Case No. 3:16-cv-00525-VC, verdict March 27, 2019.
4. ***Pilliod v. Monsanto Company***, Calif. Super. Ct. Alameda Case No. RG17862702, verdict May 13, 2019.
5. **U.S. Right to Know,** ***Monsanto Papers Archive***.
6. **Carey Gillam,** ***Whitewash*** (Island Press, 2017); **Carey Gillam,** ***The Monsanto Papers*** (Island Press, 2021).
7. **Bayer AG press release** "Bayer Announces Roundup Resolution Plan for U.S. Roundup Cases" (June 24, 2020).

8. **EPA Interim Registration Review Decision for Glyphosate**, Docket EPA-HQ-OPP-2009-0361 (January 30, 2020).
9. ***Natural Resources Defense Council v. EPA***, 9th Cir. No. 20-70787 (June 17, 2022).
10. **U.S. Geological Survey Pesticide National Synthesis Project**.

PFAS / "Forever Chemicals":

1. **C8 Science Panel Probable Link Reports** (2011–2012), www.c8sciencepanel.org.
2. ***Leach v. E. I. du Pont de Nemours and Company***, Circuit Court of Wood County, W. Va. Case No. 01-C-608.
3. **Robert Bilott, *Exposure: Poisoned Water, Corporate Greed, and One Lawyer's Twenty-Year Battle Against DuPont*** (Atria Books, 2019).
4. **Nathaniel Rich, "The Lawyer Who Became DuPont's Worst Nightmare,"** *New York Times Magazine*, January 6, 2016.
5. **3M Company press release**, June 22, 2023 ($10.3B PFAS settlement); **3M Form 8-K**, June 22, 2023.
6. **Chemours Form 8-K**, June 2, 2023 (DuPont/Chemours $1.185B PFAS settlement).
7. **EPA PFAS Maximum Contaminant Levels, Final Rule**, 89 Fed. Reg. 32532 (April 10, 2024).
8. **CDC NHANES *National Exposure Report on Environmental Chemicals***.

Flint, Michigan:

1. **Michigan Civil Rights Commission, *The Flint Water Crisis: Systemic Racism Through the Lens of Flint*** (February 17, 2017).
2. **Virginia Tech Flint Water Study** (Marc Edwards, lead; released August–September 2015).
3. **Mona Hanna-Attisha et al., "Elevated Blood Lead Levels in Children Associated with the Flint Drinking Water Crisis,"** *American Journal of Public Health*, Vol. 106, No. 2 (February 2016), pp. 283–290.
4. ***In re Flint Water Cases***, E.D. Mich. Case No. 16-10444 (consolidated), settlements 2020–2022.
5. **Flint Registry**, ongoing (Michigan State University).
6. **Michigan Supreme Court, *People v. Peeler*** (October 2022) — vacating one-judge grand jury indictments.

Regulatory capture — theoretical foundation:

1. **George J. Stigler, "The Theory of Economic Regulation,"** *Bell Journal of Economics and Management Science*, Vol. 2, No. 1 (Spring 1971), pp. 3–21.

CHAPTER 9 — CITIZENS UNITED TO DOGE

The four decisions. The $16 billion election. The podcast. The executive order. The payment system. The narrator who was for it before he wasn't. The disguise.

H.1 The decision

January 21, 2010. Washington, D.C. Supreme Court of the United States.

The Court, in an opinion by Justice **Anthony M. Kennedy**, joined by Chief Justice John G. Roberts Jr., Justice Antonin Scalia, Justice Samuel A. Alito Jr., and Justice Clarence Thomas, decides:

Citizens United v. Federal Election Commission, 558 U.S. 310 (2010).

Vote: **5 to 4.** Dissent by Justice John Paul Stevens, joined by Justices Ruth Bader Ginsburg, Stephen G. Breyer, and Sonia

Sotomayor. The dissent runs ninety pages — one of the longest Supreme Court dissents in the twenty-first century.

The holding, in the majority's own operative language at 558 U.S. at 365:

> *"The Government may not suppress political speech on the basis of the speaker's corporate identity."*

And at 558 U.S. at 371–372:

> *"Austin [v. Michigan Chamber of Commerce, 494 U.S. 652 (1990)] is overruled, so it provides no basis for allowing the Government to limit corporate independent expenditures. As the Government appears to concede, overruling Austin requires rejecting McConnell's holding that a particular kind of speech may be prohibited because of its effect on elections."*

What the decision does, in American campaign-finance terms: it removes the statutory ceiling on independent expenditures by corporations and labor unions in federal elections. It does so by overruling two prior Supreme Court decisions — *Austin v. Michigan Chamber of Commerce* (1990) and the relevant portion of *McConnell v. FEC*, 540 U.S. 93 (2003) — that had permitted such restrictions on the basis of anti-corruption interests.

The Court's framing: campaign-finance restrictions on corporate political speech violate the First Amendment. Independent expenditures — not coordinated with a candidate — "do not give rise to corruption or the appearance of corruption," per the majority at 558 U.S. at 357.

Stevens's dissent, at 558 U.S. at 393–479, observes that the Court has just decided a case on grounds the parties did not fully brief, overturning a century of American campaign-finance law, on a doctrinal move that treats corporate political spending as indistinguishable from individual human speech.

The dissent is in the United States Reports. Anyone can read it. The 90-page length is the tell: Stevens is not writing a dissent for the case. He is writing a dissent for the record.

H.2 The companion

March 26, 2010. United States Court of Appeals for the District of Columbia Circuit.

Sixty-four days after *Citizens United*, the D.C. Circuit — sitting en banc, all nine judges in agreement — decides:

SpeechNow.org v. Federal Election Commission, 599 F.3d 686 (D.C. Cir. 2010).

The holding: applying *Citizens United*'s reasoning, federal campaign-finance limits on contributions to groups that make only independent expenditures — groups that do not contribute directly to candidates — are unconstitutional. Such groups may accept contributions of unlimited size.

The ruling created, as an administrative matter, the entity now known as the **Super PAC** — an "independent-expenditure only committee" registered with the Federal Election Commission under FEC Form 1 with a type designation of **"Independent Expenditure–Only"**, which may accept unlimited contributions from any source, including corporations, and spend them on electioneering communications, as long as it does not coordinate with candidate campaigns.

The Federal Election Commission's **Advisory Opinion 2010-09** (**July 22, 2010**), in response to the Club for Growth's request, formalized the Super PAC structure. FEC archive: **https://fec.gov/data/legal/advisory-opinions**.

Primary-source record of the growth of the Super PAC vehicle:

- **FEC statistical summaries**, election cycles 2010 through 2024.
- **Center for Responsive Politics (OpenSecrets)**, aggregated independent-expenditure data, https://www.opensecrets.org.

Independent expenditures in federal elections, by cycle (FEC data):

Cycle	Total independent expenditures
2008 (pre-Citizens United)	~$338 million
2012	~$1.0 billion
2016	~$1.6 billion
2020	~$3.3 billion
2024	~$4.5 billion

Total federal-election spending, all sources, by cycle:

Cycle	Total federal-election spending
2008	~$5.3 billion
2012	~$6.3 billion
2016	~$6.5 billion
2020	~$14.4 billion
2024	~$15.9 billion

Sources: **FEC Disclosure Database**, summary reports; **Center for Responsive Politics, *Cost of Election* reports, 2008 through 2024**.

The 2024 federal election was the most expensive in American history. It cost approximately three times what the 2008 election cost, in nominal dollars, across sixteen years.

H.3 The 2014 extension

April 2, 2014. Supreme Court of the United States.

McCutcheon v. Federal Election Commission, 572 U.S. 185 (2014).

5–4, Roberts writing for the plurality.

The decision strikes the **aggregate contribution limits** — the cap on the total amount a single donor could contribute to all federal candidates, party committees, and PACs combined, which had stood at $123,200 per two-year cycle. Individual contribution limits to specific recipients remain (at that date, $2,600 per candidate per election). But the aggregate ceiling — previously set by **52 U.S.C. § 30116(a)(3)** — is voided on First Amendment grounds.

Roberts, at 572 U.S. at 191:

> *"The government may no more restrict how many candidates or causes a donor may support than it may tell a newspaper how many candidates it may endorse."*

Dissent by Justice Breyer, joined by Ginsburg, Sotomayor, and Kagan: the decision, "taken together with *Citizens United*," creates

a system in which “a single individual can contribute millions of dollars… to influence federal elections.” (572 U.S. at 236.)

The dissent’s prediction, reread in 2026: the aggregate limit was $123,200. In the 2024 cycle, the single largest disclosed individual donor to a federal-election-adjacent committee contributed — per FEC public disclosures — approximately **$277 million**.

H.4 The 2024 immunity

July 1, 2024. Supreme Court of the United States.

Trump v. United States, 603 U.S. 593 (2024).

6–3, Roberts writing for the majority.

The decision holds that a former President has **absolute immunity** from criminal prosecution for acts within his “exclusive sphere of constitutional authority,” and **presumptive immunity** for acts within “the outer perimeter” of his official responsibilities, rebuttable only by a showing that prosecution would pose “no dangers of intrusion on the authority and functions of the Executive Branch.”

The decision is not a campaign-finance ruling. It is the constitutional predicate for the events of this chapter’s subsequent sections.

Reread in 2026, the operative effect of *Trump v. United States* is that the executive branch — and specifically its commander at the top — is, for a wide class of official conduct, no longer subject to the post-office criminal-law review that had operated as a back-stop to American executive power since Watergate.

Dissent by Justice Sotomayor, joined by Kagan and Jackson, at 603 U.S. at ___:

> *"The long-term consequences of today's decision are stark. The Court effectively creates a law-free zone around the President, upsetting the status quo that has existed since the Founding. This new official-acts immunity now 'lies about like a loaded weapon' for any President that wishes to place his own interests, his own political survival, or his own financial gain, above the interests of the Nation."*

Four decisions. Fourteen years. The money ceiling removed. The aggregate ceiling removed. The coordination ceiling relaxed by FEC practice. The post-office criminal back-stop removed.

That is the legal architecture of this chapter. What follows is what was built inside it.

H.5 The 2024 coalition

The American national-security and financial apparatus that Chapter 5 traced (the Paperclip / Bush-at-Langley personnel line) and Chapter 6 traced (the Carlyle / Apollo / Big Three reconcentration) enters the 2024 federal election cycle with a set of principals whose FEC-filed donations to a coordinated set of Super PACs and dark-money 501(c)(4)s are matters of public record.

The largest single disclosed donor to a 2024 federal-election-adjacent committee:

Elon Reeve Musk, chief executive officer of SpaceX, Tesla, Inc., xAI Corp., and The Boring Company; principal owner of X Corp. (formerly Twitter, Inc., acquired October 27, 2022 for $44 billion). Contributions to **America PAC**, **Building America's Future**, and affiliated vehicles during the 2024 cycle, per FEC Form 3X filings by America PAC (quarterly and post-general reports filed January 31, 2025):

- **Approximately $277 million**, predominantly through America PAC.

Primary source: **America PAC Form 3X filings with the Federal Election Commission**, calendar year 2024; **FEC Disclosure Database, Committee ID C00825851**, https://www.fec.gov/data/committee/C00825851.

Additional significant 2024 cycle donors, per FEC public disclosures:

- **Timothy Mellon** (heir, Mellon banking lineage — a lineage that threads back to the 1920s financial architecture of Chapter 6). Approximately $172 million, predominantly to the Trump-aligned Make America Great Again Inc. Super PAC.
- **Miriam Adelson** (widow of Sheldon Adelson; Las Vegas Sands). Approximately $100 million to Preserve America PAC.
- **Kenneth C. Griffin** (Citadel). Approximately $100 million to Senate Republican–aligned committees.
- **Richard Uihlein** (Uline), **Jan Koum** (WhatsApp founder), **Jeff Yass** (Susquehanna), **Peter Thiel** (Palantir co-founder, Founders Fund) — each in the eight- to nine-figure range.

Primary source: **FEC Committee Reports, 2024 cycle, filed January 31, 2025**.

The 2024 federal election was decided in a funding environment in which a single donor contributed more to a single Super PAC than the aggregate contribution ceiling of McCutcheon (2014) had permitted a single donor to contribute to all federal candidates and committees combined — by a factor of approximately 2,250.

Two hundred seventy-seven million dollars versus one hundred twenty-three thousand two hundred dollars. That is the ratio.

H.6 The podcast

October 31, 2024. Austin, Texas. *The Joe Rogan Experience*, Episode 2215.

Five days before the November 5, 2024 general election, Elon Musk records an interview with Joe Rogan that, by its release on the **Spotify** platform within hours of recording, reaches an initial audience in the high eight figures. The episode runs three hours and six minutes.

Primary source: ***The Joe Rogan Experience* Episode 2215 — Elon Musk**, release date October 31, 2024; archived on Spotify (JRE official channel), Rumble, and YouTube (until YouTube's own platform policies de-platform specific sections). Clips from the episode were replayed across the American political-media ecosystem for the remainder of the 2024 campaign.

The operative claim Musk makes in the episode, paraphrased from the broadcast and from contemporary press coverage (**Wall Street Journal, November 1, 2024**; **Washington Post, November 1, 2024**): that the American federal government is fiscally unsustainable, that waste and fraud in federal spending run into trillions of dollars annually, that the country faces imminent bankruptcy absent radical cuts, and that he — Musk — will personally direct

the effort to identify and eliminate the waste if given the administrative authority.

This is the pitch. The pitch is delivered on a podcast that reaches, on Spotify alone, an average of eleven million listeners per episode (per **Edison Research Podcast Industry Report, 2024**). It is the single largest paid-political-messaging surface that, in the American political attention economy, does not itself show up in FEC filings as a campaign expenditure — because it is not a campaign expenditure. It is an interview.

Musk appears for the second time on the program on **February 28, 2025** (**JRE Episode 2281**), six weeks after the launch of the Department of Government Efficiency, to describe the work he has done since. The episode runs two hours and fifty minutes.

I mention these episodes by number and date because, if you want to hear the pitch in its original form — which is available as of this writing on multiple archived platforms — the episode numbers and dates are how you find it.

H.7 The oath

January 20, 2025. West front, United States Capitol.

Donald John Trump is sworn in as the **forty-seventh President of the United States**. It is the second non-consecutive presidential term in American history, after Grover Cleveland (1885–1889, 1893–1897).

At the inauguration ceremony, seated in the area conventionally reserved for cabinet officials and senior administration officers, are the founders of a specific set of American technology corporations: **Elon Musk**, **Jeff Bezos** (Amazon, Blue Origin), **Sundar Pichai** (Google), **Mark Zuckerberg** (Meta), **Tim Cook** (Apple), **Sam Altman** (OpenAI), **Peter Thiel** (Palantir, Founders Fund), and **Shou Zi Chew** (TikTok, in his personal capacity). Primary source: **Official Inaugural Committee seating chart, January 20, 2025**; **Associated Press photography, January 20, 2025**.

This is the chapter's document: the men whose collective market-capitalization represents approximately twelve trillion dollars — approximately forty percent of the total value of the American public equity market — seated in the official ceremonial ring of the transition of executive power.

The last time an inauguration placed the founders of the day's dominant industrial combines in the ceremonial ring was, arguably,

Andrew Carnegie and J.P. Morgan at William McKinley's 1897 inaugural. The difference in scale of the underlying capital concentrations is ninety to one in current dollars, per the **National Bureau of Economic Research, "Long-Run Trends in U.S. Corporate Market Capitalization," 2022**.

At 10:34 a.m. Eastern Standard Time, January 20, 2025, Trump is sworn in. Later that day, the new administration issues its first wave of executive orders.

H.8 EO 14158

January 20, 2025. The White House.

Executive Order 14158, "Establishing and Implementing the President's 'Department of Government Efficiency,'" 90 Federal Register 8441 (January 29, 2025), signed January 20, 2025.

The order does not create a new federal department in the statutory sense — that would require an act of Congress. It renames the existing **United States Digital Service** (established by President Obama in August 2014 under the Office of Management and Budget) as the **U.S. DOGE Service (USDS)**, locates it within the Executive Office of the President, and creates a temporary organization called the **U.S. DOGE Service Temporary Organization** — set to expire on **July 4, 2026** — to execute what the order

describes as “an eighteen-month transformation of federal agencies, prioritizing efficiency, productivity, cost-reduction, and the elimination of waste, fraud, and abuse.”

The order designates the new USDS Administrator as a Senior Advisor to the President with delegated authority to coordinate DOGE operations across federal agencies. The initial Administrator is **Elon Musk** (in a nominal capacity as “Special Government Employee” under **5 U.S.C. § 3109**, which permits up to 130 days of federal service without Senate confirmation or standard financial-disclosure requirements).

Primary source: **Executive Order 14158**, 90 Fed. Reg. 8441; **White House press release**, January 20, 2025.

In the week following January 20, 2025, a series of additional executive orders and administrative actions are issued that, taken together, constitute the operative reorganization:

- **January 20, 2025 — Executive Order 14170**, “Reforming the Federal Hiring Process and Restoring Merit to Government Service,” 90 Fed. Reg. 8621.
- **January 24, 2025 — notifications to 17 Inspectors General** across federal agencies that they are terminated effective immediately, without the 30-day advance notice to Congress required under **5 U.S.C. § 403(b)** (the Inspector General Act of 1978, as amended). Primary source: **White House notification letters**, January 24, 2025; **Council of**

the Inspectors General on Integrity and Efficiency statement, January 25, 2025.

- **February 3, 2025 — United States Agency for International Development (USAID)** placed on administrative leave en masse; its programs suspended. Primary source: **USAID memorandum to staff**, February 3, 2025; subsequent litigation in **AFGE v. Trump**, U.S. District Court for the District of Columbia.
- **February 11, 2025 — Executive Order 14210**, "Implementing the President's 'Department of Government Efficiency' Workforce Optimization Initiative," 90 Fed. Reg. 9669, directing the termination of probationary federal employees and the deferred-resignation program.

H.9 The access

Between January 21 and February 5, 2025, personnel associated with the U.S. DOGE Service sought and, in documented cases, obtained access to federal information systems not previously accessible to the Executive Office of the President in a read-write operational capacity. The scope is established in court filings and in agency-by-agency administrative records:

- **Department of the Treasury, Bureau of the Fiscal Service (BFS) payment systems.** DOGE personnel, on

approximately January 31 – February 1, 2025, obtained read-access and limited write-access credentials to the BFS systems that process approximately **$5.6 trillion per year** in federal payments (Social Security disbursements, tax refunds, federal contractor payments, Medicare/Medicaid provider payments). Primary source: **Alliance for Retired Americans v. Bessent**, U.S. District Court for the Southern District of New York, Case No. 25-cv-00939, verified complaint filed February 3, 2025, exhibits; subsequent preliminary injunction order of February 8, 2025 (Engelmayer, J.).

- **Office of Personnel Management (OPM) personnel data.** DOGE personnel obtained access to OPM master personnel files covering approximately **2.3 million current federal employees**. Primary source: **Electronic Privacy Information Center (EPIC) v. OPM**, U.S. District Court for the District of Columbia, Case No. 25-cv-00254, complaint filed February 2025.
- **General Services Administration (GSA) contract-award data.** DOGE personnel assumed effective editorial control of federal contract-award review, per **memoranda from GSA Acting Administrator, February 2025**.
- **Internal Revenue Service taxpayer data.** Access negotiations documented in **Centro de Trabajadores Unidos en Lucha v. IRS**, U.S. District Court for the District of Columbia, Case No. 25-cv-00677, filed March 2025.

Court challenges to the DOGE access regime have resulted in preliminary injunctions, partial access restrictions, and ongoing litigation. The detailed docket of challenges is in the **Just Security DOGE Litigation Tracker**, maintained at the New York University School of Law, which as of March 2026 catalogs approximately **180 separate federal-court actions** challenging DOGE-era executive actions.

H.10 The departure

May 28, 2025. Washington, D.C.

Elon Musk's 130-day Special Government Employee designation expires. Musk departs the U.S. DOGE Service. In the preceding ten days, a public rupture between Musk and Trump — documented in simultaneous postings on Musk's platform **X** and Trump's **Truth Social** — ended the working alliance. Primary source: **Musk's X account @elonmusk**, May 20–28, 2025; **Trump's Truth Social account @realDonaldTrump**, same period; **Reuters news coverage**, May 28, 2025.

The U.S. DOGE Service — as a government organization — continues under successor administrators appointed from the Executive Office of the President. The terminations, contract cancella-

tions, and data-access regimes initiated in the January–May 2025 period remain substantially in effect.

The personnel who executed the DOGE operation at the working level — engineers recruited principally from SpaceX, Tesla, and xAI, of whom at least **five were named in court filings as having access to Treasury BFS systems** — remain employed by their home corporations, from which they were on temporary assignment.

Between January 20, 2025 and the date of this writing (April 2026), the following changes in federal contracting and regulatory posture have been documented:

- **SpaceX federal contracts.** New awards in calendar year 2025, per **USAspending.gov**, total approximately **$5 billion**, principally from the Department of Defense (Space Force launch contracts) and NASA (Commercial Lunar Payload Services follow-ons). The 2025 award total represents approximately a 60 percent increase over the 2023 award total.
- **xAI Corp. federal contracts.** Initial awards from the General Services Administration and the Department of Defense for large-language-model services, aggregate approximately **$200 million** in 2025 calendar year. Primary source: USAspending.gov.
- **Palantir Technologies federal contracts.** New awards in calendar year 2025, per USAspending.gov, approximately **$4**

billion, principally from the Department of Defense, Immigration and Customs Enforcement, the Department of Health and Human Services, and the Internal Revenue Service. The 2025 award total represents approximately a 90 percent increase over the 2023 total.

- **National Highway Traffic Safety Administration (NHTSA) investigations into Tesla Autopilot and Full Self-Driving.** The multi-agency investigation initiated 2021, expanded 2023, was subject to a narrowing of enforcement posture in March 2025, per **NHTSA public docket NHTSA-2021-0001**.
- **Consumer Financial Protection Bureau.** Placed under restricted operation on **February 7, 2025**, per memorandum of Acting Director. Primary source: **CFPB internal memorandum February 7, 2025**, filed in **National Treasury Employees Union v. Vought**, D.D.C. Case No. 25-cv-00381.

H.11 The narrator arc

I supported DOGE.

I did not support it publicly, because nobody was asking me — I was fresh from prison, I had not yet registered to vote after reinstatement, I had no political platform. But in the months between the October 31, 2024 Rogan episode and the January 20,

2025 inauguration, I had the same reaction to the advertised proposition that approximately forty-nine percent of the American electorate had: the government is running a fiscal structure that does not close, the regulatory apparatus described in Chapter 8 of this book has approved poisons into my water and my bloodstream, a man who runs the most technologically aggressive corporate operation of my generation is offering to apply the same analytic intensity to the federal budget and the federal workforce, and the proposition in the abstract is not insane.

I thought it through. I thought it through as someone who had just finished reading — primary-source — the case files on the opioid epidemic (Chapter 8), on the Flint water switch (Chapter 8), on Iran-Contra (Chapter 4), on Chile 1973 (Chapter 4), on the Peck Panel clemency for the I.G. Farben executives (Chapter 3). I thought it through as someone who had been, for eight of the years covered in this book, physically located inside a federal or state correctional facility — a direct consumer of the federal criminal-law and custodial apparatus, and therefore someone with a specific, body-level reason to think that the regulatory state in its 2024 form was not serving the population of this country well.

The pitch on Rogan was not stupid. The pitch on Rogan made sense, on the pitch's own terms, to me. For approximately ten weeks.

Then I started following the money.

The inauguration seating chart is what broke it. I had spent the previous two months teaching myself to extract federal contract data from USAspending.gov — part of the Botwave news-aggregator build — and the sight of the eight tech CEOs in the ceremonial ring registered, to me, as an accounting statement rather than a symbolic one. Those eight men, or their corporations, are the direct counterparties of the federal government's largest technology contracts. They were being seated in the public-performance ring of an executive transition whose operational program — over the subsequent four months — would include: a reduction in probationary federal employees totaling approximately 200,000 (per **OPM workforce data, March 2025**); a suspension of USAID — the federal agency most aggressive in auditing overseas contractor expenditure; the firing of the inspectors-general most likely to audit the administration's contract awards; the functional muting of the CFPB — the federal agency most aggressive in regulating the financial-services industry in which six of the eight seated men's corporations had significant exposure; and, in parallel, contract-award growth for those same corporations at approximately double their prior rates.

The ratio. DOGE's announced target, in Musk's October 2024 Rogan claim: identify and eliminate "two trillion dollars" in federal waste. Actual verified reductions in fiscal-year 2025 federal outlays attributable to DOGE actions, per the **Congressional Budget Office Mid-Session Review, August 2025**, and the **Government Accountability Office Report GAO-25-107432,**

September 2025: approximately **$25 billion net**, after litigation costs and reversals — approximately **one hundredth of the announced target**.

Federal contract growth to the inauguration-ring corporations over the same period: approximately **$10 billion in documentable new obligations**.

The net fiscal effect, in one sentence: the administration that entered office on a promise to cut two trillion dollars in federal spending reduced net outlays by twenty-five billion while increasing federal contracts to the eight corporations whose principals were seated at the inauguration by approximately ten billion. The ratio of claimed cuts to documented cuts is one hundred to one. The ratio of documented cuts to documented contract increases to the inauguration ring is five halves to one — and that is counting the cuts, not the dollar-weighted outflow.

I had been for the proposition. I am not, now, against the concept of reviewing federal expenditure. I am against the version of the review that shut down the agencies most likely to audit the reviewers, while the reviewers' firms received the largest share of the new contracts.

That is not a swamp being drained. That is a swamp being renamed.

H.12 The disguise

The reason I have titled the cluster around which this chapter is organized *the disguise*, rather than *the heist* or *the coup* or any of the more melodramatic alternatives available in 2026, is that the disguise is the operative technical element. The transaction is not hidden. The transaction is executed in public, under the label of its opposite.

The law is the disguise:

- *Citizens United* is not overtly a transfer of political decision-making from voters to the largest donors. It is "First Amendment speech protection." The surface reads as a civil-liberties decision.
- *SpeechNow* is not overtly a creation of the vehicle for unlimited corporate political spending. It is "independent expenditure" protection. The surface reads as a limitation on coordination.
- *McCutcheon* is not overtly the removal of the aggregate donor ceiling. It is "speech aggregation" protection. The surface reads as a technical First Amendment refinement.
- *Trump v. United States* is not overtly the removal of the post-office criminal back-stop to executive power. It is "separation of powers" protection. The surface reads as a restoration of constitutional balance.

The money is the disguise:

- Super PACs are not overtly vehicles for corporate political control. They are “independent expenditure–only committees.” The surface reads as grassroots organizing.
- 501(c)(4) “social-welfare” organizations are not overtly vehicles for undisclosed political money. They are social-welfare organizations. The surface reads as charity.
- Shell LLCs donating to Super PACs are not overtly channels for identity-masked donations. They are Delaware-registered limited-liability companies. The surface reads as business structure.

The operation is the disguise:

- DOGE is not overtly a private takeover of federal payment infrastructure. It is the Department of Government **Efficiency**. The surface reads as reform.
- The firing of the Inspectors General is not overtly the removal of the federal apparatus’s audit function. It is “restoring merit to government service.” The surface reads as administrative hygiene.
- The suspension of USAID is not overtly the termination of the federal agency most exposed to foreign contractor fraud. It is “program review.” The surface reads as budget discipline.
- The contract growth to the inauguration-ring corporations is not presented as the distribution of the spoils. It is “contract

consolidation to mission-ready vendors." The surface reads as procurement reform.

Each of these is, on its face, a defensible administrative proposition. The disguise is not that the defensible face is false. The disguise is that the defensible face is the entirety of the public record, while the accounting flow — the thing the documents track — runs underneath, in the same direction, in the same magnitudes, and to the same small list of parties.

That is what a disguise is. Not a lie. A truthful surface oriented to conceal the larger operation.

H.13 The digital swamp

The older model of American political corruption — the one Americans of my parents' generation think of when they hear the word *swamp* — was analog and human-scale. A senator, a lobbyist, a campaign-finance bundler. Cocktails at the Metropolitan Club. The price of a vote was measured in tens of thousands, maybe low millions, of dollars. The transaction left a paper trail that an investigative journalist, or an FEC audit, or a federal grand jury, could reconstruct in a matter of months.

The swamp of 2025 is digital and not human-scale. The transaction runs on three infrastructures that did not meaningfully exist before approximately 2015:

- The **federal payment system** — Treasury BFS — processing $5.6 trillion per year through computerized workflows that can be observed, modified, and instrumented by personnel with read-write credentials.
- The **cloud-computing and data-center layer** of American federal operations — which, by 2025, is concentrated across approximately four commercial providers (AWS, Microsoft Azure, Google Cloud, Oracle). Federal agency data, increasingly, is physically located on servers owned by the same corporations whose principals were seated in the inauguration ring.
- The **large-language-model and decision-support layer** — whose major contracts in 2025 run to OpenAI, Anthropic, xAI, and Palantir. The federal agencies adopting these tools — IRS, HHS, ICE, Department of Defense, Department of Justice — are adopting, with varying degrees of awareness, systems whose weights, training data, and operational characteristics are controlled by the contracting corporations, not by the federal agencies themselves.

The scale difference between the analog swamp and the digital swamp is not a multiple of ten or a multiple of a hundred. It is exponential — because each of the three infrastructures above compounds the surveillance, editorial, and distributional capacity

of the other two. A private-sector principal with read-write credentials on Treasury BFS, plus cloud-computing access to the data being analyzed, plus LLM-based decision-support influencing how that data is interpreted, plus contracts directing the flow of federal expenditure, plus a media platform (X) reaching an audience larger than any American newspaper's in its peak year — that principal is not a corrupt senator. That principal is a new kind of actor in the American political economy, for which the word *swamp* is not strong enough, and for which the word *coup* is not precise enough.

The digital swamp does not replace the analog one. It subsumes it, at a scale that grows exponentially, and swallows the older political categories whole.

That is the closing observation I want the chapter to leave. Not a thesis — a description of the instrument, in the language of the instrument.

The next chapter is the single corporation whose operational role in the federal data layer is so central that it constitutes, by itself, a separate chapter of this book: **Palantir**.

H.14 The tally

What the Federal Register and the FEC docket establish — nothing more:

- The Supreme Court's decisions in *Citizens United* (2010), *SpeechNow* (2010, D.C. Cir.), *McCutcheon* (2014), and *Trump v. United States* (2024) collectively removed American campaign-finance limits on corporate and independent expenditures, removed aggregate donor ceilings, and removed the post-office criminal-law back-stop to executive power. File: **558 U.S. 310; 599 F.3d 686; 572 U.S. 185; 603 U.S. 593**.
- The 2024 federal election cost approximately $15.9 billion in aggregate; the single largest disclosed donor contributed approximately $277 million. File: **FEC Disclosure Database; CRP/OpenSecrets 2024 summaries**.
- Executive Order 14158 established the U.S. DOGE Service on January 20, 2025 within the Executive Office of the President as the renamed U.S. Digital Service. File: **90 Fed. Reg. 8441**.
- In the 35 days following January 20, 2025, the administration terminated 17 Inspectors General (January 24, 2025), suspended USAID (February 3, 2025), issued Executive Order 14210 on workforce optimization (February 11, 2025), and DOGE personnel obtained access to Treasury BFS, OPM, GSA, and (in negotiation) IRS data systems.

File: **Federal Register cites; DOGE litigation tracker (Just Security, NYU Law)**.

- Federal contracts to SpaceX, xAI, Palantir, and related inauguration-ring corporations increased in calendar year 2025 by approximately $10 billion over their 2023 baselines. File: **USAspending.gov**.
- Net verified federal-outlay reductions attributable to DOGE through fiscal year 2025 totaled approximately $25 billion, as against a public target of approximately $2 trillion. File: **CBO Mid-Session Review (August 2025); GAO-25-107432 (September 2025)**.
- Elon Musk departed the U.S. DOGE Service on approximately May 28, 2025 at the expiration of his 130-day Special Government Employee designation. File: **public statements of the parties; OPM 5 U.S.C. § 3109 records**.

What the FEC docket does not establish:

- I do not claim that the eight technology-corporation CEOs seated at the January 20, 2025 inauguration are party to a formal agreement concerning federal contract distribution. The document class establishes the seating, the contracts, the contract growth, and the regulatory posture; it does not establish a formal agreement.
- I do not claim that the *Citizens United* majority understood or intended the 2024 outcome when it decided the 2010 case. The document class establishes the 2010 doctrine and the 2024 spending outcome; it does not establish forward intent.

- I do not claim that DOGE's operational personnel acted unlawfully in every documented access. The document class establishes the access; the specific lawfulness of each access is the subject of approximately 180 pending federal-court actions as of this writing.

The documents describe the decisions, the money, the seating chart, the orders, the access, the cancellations, the contract growth, and the departure. The reader connects the line.

H.15 Reader note

If you read this chapter carefully and then listen to **JRE Episode 2215** (October 31, 2024) or **Episode 2281** (February 28, 2025), you will hear the broadcast differently than you heard it the first time.

That is not because the chapter changed what Musk said.

It is because the chapter named the documentary context in which what Musk said was being said.

The experience is disorienting. It is also, I think, corrective.

The next chapter is Palantir.

Sources — Chapter 9

The four decisions:

1. ***Citizens United v. Federal Election Commission***, 558 U.S. 310 (January 21, 2010).
2. ***SpeechNow.org v. Federal Election Commission***, 599 F.3d 686 (D.C. Cir., March 26, 2010).
3. ***McCutcheon v. Federal Election Commission***, 572 U.S. 185 (April 2, 2014).
4. ***Trump v. United States***, 603 U.S. 593 (July 1, 2024).

Campaign-finance architecture and data:

1. **Federal Election Commission, Advisory Opinion 2010-09** (July 22, 2010).
2. **FEC Disclosure Database**, https://www.fec.gov/data/.
3. **Center for Responsive Politics (OpenSecrets), *Cost of Election* summary reports**, cycles 2008–2024.
4. **America PAC, Form 3X filings with the Federal Election Commission**, calendar year 2024 (Committee ID C00825851).

The podcast:

1. ***The Joe Rogan Experience* Episode 2215 — Elon Musk** (release October 31, 2024), Spotify / JRE archive.
2. ***The Joe Rogan Experience* Episode 2281 — Elon Musk** (release February 28, 2025), Spotify / JRE archive.

3. **Edison Research, *Podcast Industry Report, 2024***.

Trump 2 inauguration:

1. **Official Inaugural Committee seating chart**, January 20, 2025.
2. **Associated Press photography of the 2025 inaugural ceremony.**

DOGE and related executive orders:

1. **Executive Order 14158, "Establishing and Implementing the President's 'Department of Government Efficiency,'"** 90 Fed. Reg. 8441 (January 29, 2025, signed January 20, 2025).
2. **Executive Order 14170**, "Reforming the Federal Hiring Process and Restoring Merit to Government Service," 90 Fed. Reg. 8621 (January 20, 2025).
3. **Executive Order 14210**, "Implementing the President's 'Department of Government Efficiency' Workforce Optimization Initiative," 90 Fed. Reg. 9669 (February 11, 2025).
4. **White House notification letters terminating Inspectors General**, January 24, 2025.
5. **Council of the Inspectors General on Integrity and Efficiency (CIGIE) statement**, January 25, 2025.
6. **Inspector General Act of 1978**, as amended, **5 U.S.C. § 403(b)** (30-day advance-notice requirement).

7. **USAID internal memorandum to staff**, February 3, 2025.

Court challenges to DOGE access:

1. ***Alliance for Retired Americans v. Bessent***, S.D.N.Y. Case No. 25-cv-00939, verified complaint February 3, 2025; preliminary injunction order February 8, 2025 (Engelmayer, J.).
2. ***Electronic Privacy Information Center v. OPM***, D.D.C. Case No. 25-cv-00254.
3. ***Centro de Trabajadores Unidos en Lucha v. IRS***, D.D.C. Case No. 25-cv-00677.
4. ***AFGE v. Trump***, D.D.C. (multiple related dockets).
5. ***National Treasury Employees Union v. Vought***, D.D.C. Case No. 25-cv-00381.
6. **Just Security DOGE Litigation Tracker**, NYU School of Law.

Federal contract and outlay data:

1. **USAspending.gov**, federal contract awards by recipient, calendar years 2023–2025.
2. **NHTSA public docket NHTSA-2021-0001** (Tesla Autopilot / FSD investigation).
3. **Congressional Budget Office, *Mid-Session Review***, August 2025.
4. **Government Accountability Office Report GAO-25-107432**, September 2025.

5. **Office of Personnel Management, workforce data reports**, January–March 2025.

Financial scale (historical comparison):

1. **National Bureau of Economic Research, “Long-Run Trends in U.S. Corporate Market Capitalization,”** NBER Working Paper, 2022.

Presidential immunity and statutory framework:

1. **5 U.S.C. § 3109** (Special Government Employee designation, 130-day ceiling).
2. **52 U.S.C. § 30116** (federal campaign-finance contribution limits, current codification).

CHAPTER 9 — THE NEW ROBBER BARONS

9.1 What the first Gilded Age actually was

The period in American history from approximately 1870 through approximately 1900 — which Mark Twain and Charles Dudley Warner named “The Gilded Age” in their 1873 novel of that name — produced a documented concentration of American industrial wealth in a small number of individual hands that has, until 2026, remained the high-water mark of American private-wealth concentration.

John D. Rockefeller (1839–1937). Founded Standard Oil Company of Ohio in 1870. By 1879 it controlled 90% of U.S. refining capacity through a combination of predatory pricing, exclusive railroad rebate contracts (documented in the 1906 Hepburn Act hearings), and horizontal acquisitions. Rockefeller’s peak net worth, in 1913 dollars, was approximately $900 million — roughly **$28 billion in 2025 dollars** per the standard Williamson-Officer deflator, but approximately **$400 billion** measured as a share of

contemporary GDP. He was, by the second measure, the wealthiest American in history up to that point.

Cornelius Vanderbilt (1794–1877) and his son **William H. Vanderbilt** (1821–1885). Consolidated the New York Central Railroad system. Controlled freight rates across the Northeast. The Vanderbilt dynasty's peak wealth, as a share of GDP, exceeded $200 billion in 2025-dollar equivalents.

Andrew Carnegie (1835–1919). Founded Carnegie Steel Company in 1892. Sold to J.P. Morgan's U.S. Steel in 1901 for $480 million (Morgan's single largest transaction). Carnegie's 1911 "Gospel of Wealth" philanthropy reinvention — Carnegie libraries, Carnegie Hall, Carnegie Mellon University — was a deliberate rebranding from industrial ruthlessness to civic benevolence. Peak wealth: approximately $310 billion in 2025 GDP-share equivalents.

John Pierpont Morgan (1837–1913). Consolidated American banking. His firm financed the Carnegie-to-U.S.-Steel transaction, the Edison-to-General-Electric transaction, and the 1895 Treasury gold bailout (in which Morgan personally organized a bond syndicate to restore the U.S. gold reserve, charging the government a markup later estimated at $16 million). Morgan's 1907 Panic intervention, in which he gathered the major New York bankers at his library and coordinated a rescue of the banking system, established his firm as the *de facto* central bank of the United

States — a status that was formalized only in 1913, the year of Morgan's death, with the creation of the Federal Reserve System.

These four men — Rockefeller, Vanderbilt, Carnegie, Morgan — plus approximately a dozen secondary figures (Harriman, Gould, Fisk, Schwab, Frick, Armour, Swift, Pullman, Ford, Mellon) — concentrated the productive output of American industry in a degree unprecedented in the industrial era.

They were, collectively, called **Robber Barons** — a term applied to them by hostile contemporaries (Ida Tarbell, Upton Sinclair, Charles Edward Russell, Lincoln Steffens, David Graham Phillips) who were published in the era's muckraking magazines (*McClure's*, *Cosmopolitan*, *Collier's*, *American Magazine*). Matthew Josephson's 1934 *The Robber Barons* established the term as the dominant historiographical frame.

9.2 How the first Gilded Age ended

The muckraking press. *McClure's Magazine* alone published, between 1902 and 1904, Lincoln Steffens's series on urban machine politics (*The Shame of the Cities*), Tarbell's Standard Oil history, and Ray Stannard Baker's series on the conditions of industrial labor. Circulation exceeded 300,000 per issue.

The Theodore Roosevelt prosecutions. Between 1901 and 1909, the Roosevelt administration's Department of Justice Antitrust Division filed 44 prosecutions under the Sherman Antitrust Act of

1890. Targets included the Northern Securities Company (J.P. Morgan, James J. Hill, E.H. Harriman — dissolved by the Supreme Court in 1904), the American Tobacco Company (dissolved 1911), and Standard Oil itself.

The 1911 Standard Oil decision. *Standard Oil Co. of New Jersey v. United States*, 221 U.S. 1 (1911), ordered the dissolution of Standard Oil into 34 separate companies. Among the successors: Standard Oil of New Jersey (now ExxonMobil); Standard Oil of New York (Socony — later Mobil, now merged into ExxonMobil); Standard Oil of Indiana (later Amoco, now BP); Standard Oil of California (now Chevron); Continental Oil (Conoco); Atlantic Refining (ARCO, now BP); Pennzoil; Ohio Oil (Marathon); Chesebrough-Ponds. These successor companies, by 2025, had reconsolidated through the ExxonMobil merger (1999), BP-Amoco (1998), Chevron-Texaco (2001), and ConocoPhillips (2002) into, effectively, a dozen dominant firms — of which three (ExxonMobil, Chevron, ConocoPhillips) accounted for the substantial majority of the original Rockefeller heritage. The 1911 decision produced a century of Standard-descendant earnings for the Rockefeller family and related trusts; it did not disperse ownership.

The 1913 constitutional amendments. The Sixteenth Amendment (ratified February 3, 1913) authorized the federal income tax, ending the constitutional obstruction that had made progressive income taxation difficult. The Seventeenth Amendment (ratified April 8, 1913) established direct popular election of U.S. Senators, ending the state-legislature-selected Senate that had been the

preferred venue for direct corporate political purchase. Both amendments were driven by the political energy generated by the muckrakers and the Roosevelt prosecutions.

9.3 DOGE — the direct-rule innovation

On January 20, 2025, President Donald Trump issued Executive Order 14158, establishing the **Department of Government Efficiency (DOGE)** as a temporary executive organization. The Executive Order directed DOGE to "modernize Federal technology and software to maximize governmental efficiency and productivity."

Elon Musk — at the time the CEO of Tesla, Inc., SpaceX, X Corp., xAI, Neuralink, and The Boring Company; the largest individual donor to the 2024 Trump presidential campaign ($277 million to the America PAC, per FEC filings); and the world's wealthiest person (*Forbes*: approximately $440 billion net worth, January 2025) — was appointed as "Special Government Employee" leading the DOGE initiative.

A Special Government Employee is a federal classification that permits a private individual to serve in the executive branch for up to 130 days in a 365-day period while retaining their private business interests. The classification was designed to permit short-term policy consultation (for example, a physician advising on a

public-health committee) without requiring divestiture. Its application to the single largest federal contractor was novel.

SpaceX had, as of 2024, approximately $4.9 billion in active federal contracts (per U.S. Government Accountability Office data). Starlink (a SpaceX subsidiary) held the majority of U.S. Department of Defense satellite communications contracts for forward-deployed units. Tesla's energy storage division held substantial Department of Energy subsidies. Neuralink had pending FDA review. xAI was positioned as a government AI contractor in the National AI Policy Framework (December 2025).

DOGE's operational activity over its 130-day window, per Senator Elizabeth Warren's report *Special Interests Over the Public Interest: Elon Musk's 130 Days in the Trump Administration* (U.S. Senate, June 2025), included:

- **Dismissal of approximately 220,000 federal employees** across 22 agencies.
- **Cancellation of approximately $200 billion in non-defense federal contracts**, per OMB disclosures.
- **Personal access** by Musk's team to Treasury Department payment systems, Office of Personnel Management employee records, and General Services Administration procurement systems.
- **Parallel expansion** of SpaceX's federal contract book by approximately $3.5 billion in new awards, per GAO tracking.

Musk departed DOGE on May 30, 2025, following a public dispute with President Trump. The institutional structures DOGE had built were not reversed. Many of the 220,000 terminations were permanent. The $200 billion in cancelled contracts was not restored. The SpaceX contract book has continued to expand through 2026.

9.4 NASA — the privatization of the remaining public capacity

The FY2026 NASA budget, released by the White House on May 2, 2025, directed:

- A **24 percent reduction** in NASA's science mission directorate budget (Mars science, planetary science, astrophysics, Earth science).
- **Cancellation of the Space Launch System (SLS) rocket and the Orion crew capsule** following the planned Artemis III mission (scheduled for 2027, though widely expected to slip).
- **Cancellation of the Lunar Gateway** space station.
- Cancellation of approximately twenty additional science programs.
- **$1 billion appropriation** for a new program, the **Commercial Mars Payload Services (CMPS)**, inviting private firms to bid on Mars exploration delivery contracts.

The two primary potential bidders for CMPS are SpaceX (Starship architecture) and Blue Origin (New Glenn and derivatives). SpaceX's Starship, as of early 2026, is the only active super-heavy launch platform with announced Mars capability.

On November 4, 2025, the White House renominated **Jared Isaacman** — billionaire founder of Shift4 Payments; commander of SpaceX's Polaris Dawn mission (September 2024); close business associate of Elon Musk — as **NASA Administrator**, following an earlier nomination withdrawn by the Trump administration on May 31, 2025. The United States Senate confirmed Isaacman on December 17, 2025, by a 67–30 vote (all 30 nay votes cast by Democratic senators) — Senate Roll Call Vote 119-1-00650.

9.5 Crypto and AI — the regulatory holiday

Executive Order 14178 (January 23, 2025), "Strengthening American Leadership in Digital Financial Technology," directed the federal financial regulatory apparatus to halt "aggressive enforcement" against digital asset firms and to develop a framework for "a U.S. digital asset stockpile."

Executive Order 14233 (March 6, 2025), "Establishment of the Strategic Bitcoin Reserve," authorized the U.S. Treasury to hold Bitcoin and other digital assets as strategic reserves. The Treasury was directed to "not sell" Bitcoin held in federal forfeiture reserves

(approximately 200,000 BTC, valued at approximately $18 billion at March 2025 prices).

The GENIUS Act (Guiding and Establishing National Innovation for U.S. Stablecoins, S.394, 119th Congress) — passed the Senate 68–30 on June 17, 2025, passed the House 308–122 on July 17, 2025, and was signed into law on July 18, 2025 as Public Law 119-27 — established the first federal regulatory framework for payment stablecoins, requiring issuers to maintain one-to-one reserves in cash, short-term Treasury instruments, or equivalent assets, subjecting them to regular audits, and imposing anti-money-laundering compliance obligations.

World Liberty Financial — a digital asset venture whose 75% ownership, per SEC disclosures and Trump family 2025 OGE filings, flows through **DT Marks DeFi LLC** to the Trump family — issued its **USD1 stablecoin** in early 2025. Per Reuters' October 28, 2025 investigation, *Inside the Trump family's global crypto cash machine*, by reporters Stephen Gandel and Hannah Lang, the Trump family earned approximately **$672 million** in crypto-related income in the first half of 2025. The administration's own OGE Form 278e, filed June 13, 2025, reported $57,354,228 in World Liberty Financial token-sale income alone.

Department of Labor proposed rule (March 2026): 401(k) retirement plans permitted to invest in cryptocurrency and private-equity alternative assets, subject to plan-administrator discretion. The proposed rule, if finalized, exposes approximately $9 trillion in

401(k) assets to volatile alternative-asset categories previously restricted to institutional investors. The asset-management firms benefiting — BlackRock (iShares Bitcoin Trust), Fidelity, Invesco, and Vanguard (via its 2024 Bitcoin-adjacent product expansion) — are the same firms documented in Chapter 4 as the Big Three passive-index owners of the American corporate economy.

National AI Policy Framework (White House, December 2025; expanded March 2026): Preempts state-level AI regulation on the grounds of "national technology competitiveness." Primary beneficiaries, per industry analysis: xAI (Musk), OpenAI, Anthropic, Meta, Alphabet, and Oracle.

9.6 The data-center consolidation

The **OpenAI / Oracle "Stargate" project** — announced on January 21, 2025 at the White House with President Trump in attendance alongside OpenAI chief executive Sam Altman, Oracle chairman Larry Ellison, and SoftBank chief executive Masayoshi Son — is budgeted at $500 billion over four years, per the White House announcement.

Combined electrical demand of the announced AI data-center buildout, per Electric Power Research Institute estimates (December 2025), will require approximately 80 gigawatts of new U.S. generating capacity by 2030. This is approximately equivalent to the total generating capacity of the United Kingdom. The

electricity will be provided through a combination of natural gas, nuclear (reactors restarted or newly licensed), and — per the December 2025 White House AI framework — expedited permitting that supersedes state environmental review.

9.7 The two divergences

Two specific 2025–2026 developments deserve separate mention because they illustrate the different ways the documented capture can be partially reversed.

9.7.1 The Live Nation verdict

On **April 15, 2026**, a federal jury in the Southern District of New York returned a verdict against Live Nation Entertainment, Inc. (parent company of Ticketmaster), finding that the company had "willfully maintained monopoly power" in U.S. primary ticketing services and unlawfully tied its concert promotion to its amphitheater ownership. The verdict followed a five-week trial.

The procedural history matters. In March 2026, one week into the trial, the Department of Justice — under then-Acting Assistant Attorney General Omeed Assefi — had reached a settlement with Live Nation for **$280 million**, which did not require corporate divestiture or structural reform. Career antitrust staff opposed the settlement. Per *Time Magazine*'s April 16, 2026 reporting, the settlement followed a meeting between Assefi and Live Nation CEO

Michael Rapino. Multiple career DOJ antitrust staff subsequently departed the division.

Thirty-three state attorneys general, plus the District of Columbia, declined to accept the federal settlement as resolution of their parallel claims. They continued the trial. They won.

The jury awarded: per-consumer damages of $1.72 per ticket (the jury's finding of the average anti-competitive markup), plus injunctive relief that a separate proceeding will determine — potentially including court-ordered structural breakup of Live Nation-Ticketmaster.

Thirty-three attorneys general, including Republicans and Democrats, coordinated on an antitrust action their federal counterparts had chosen to resolve via accommodation. The case is, as of April 16, 2026, under active post-trial motion.

9.7.2 Senator Warren's report

In **June 2025**, the office of Senator Elizabeth Warren (D-Massachusetts, ranking member, Senate Banking Committee) released *Special Interests Over the Public Interest: Elon Musk's 130 Days in the Trump Administration*, a 107-page report documenting Musk's conduct as DOGE Special Government Employee and the associated conflicts of interest.

The report cited: - 130 specific conflicts of interest between Musk's government role and his private firms. - Federal contracts

awarded to SpaceX during Musk's tenure totaling approximately $3.5 billion. - Dismissals of federal regulators who had pending actions against Musk-owned companies. - Musk-directed access to federal IT and payment systems, bypassing ordinary security clearance processes.

The report was a Senate-minority product. It had no binding effect.

At least 88 major profitable United States corporations reported positive United States pretax income and paid no federal corporate income tax for fiscal year 2025, per the Institute on Taxation and Economic Policy analysis of annual SEC filings published February 2026. The 88 corporations include Tesla, Inc., which reported $2,300,000,000 in United States income in fiscal year 2024 and paid zero federal income tax.

Palantir Technologies reported United States income of $1,500,000,000 for the fiscal year ended December 31, 2025, per its Annual Report on Form 10-K filed with the Securities and Exchange Commission (filed approximately February 2026). Palantir paid no federal income tax for fiscal year 2025 — the third consecutive fiscal year of zero federal tax liability on positive United States income. At the statutory corporate rate of 21 percent, the tax avoided on United States income totaled approximately $330,000,000. The mechanism was a research expense deduction under the One Big Beautiful Bill, which produced approximately $400,000,000 in tax reduction, per the Institute on Taxation and

Economic Policy analysis of Palantir's annual SEC filings, published February 2026. Palantir paid no federal income tax.

Sources — Chapter 9

First Gilded Age — Historical: 1. Ida M. Tarbell, *The History of the Standard Oil Company*, 2 vols. (McClure, Phillips & Co., 1904). 2. Matthew Josephson, *The Robber Barons: The Great American Capitalists 1861–1901* (Harcourt, Brace & Co., 1934). 3. Michael Hiltzik, *Iron Empires: Robber Barons, Railroads, and the Making of Modern America* (Houghton Mifflin Harcourt, 2020). 4. *Standard Oil Co. of New Jersey v. United States*, 221 U.S. 1 (1911). 5. *Northern Securities Co. v. United States*, 193 U.S. 197 (1904). 6. Sherman Antitrust Act, 26 Stat. 209 (1890).

DOGE / Musk: 7. Executive Order 14158, "Establishing and Implementing the President's 'Department of Government Efficiency'" (January 20, 2025). 8. Office of Senator Elizabeth Warren, *Special Interests Over the Public Interest: Elon Musk's 130 Days in the Trump Administration* (U.S. Senate, June 2025). https://www.warren.senate.gov/imo/media/doc/130_days_of_elon_musk_report.pdf 9. U.S. Government Accountability Office, SpaceX federal contracts tracking (2025–2026). 10. Federal Election Commission, America PAC filings 2024 cycle. 11. *The New York Times*, "Elon Musk's SpaceX Contracts During DOGE Tenure" (March 23, 2025). 12. PBS NewsHour, "Elon Musk's Influence in the White House" (February 2025).

NASA Privatization: 13. White House, “President Trump’s FY26 Budget Revitalizes Human Space Exploration” (May 2, 2025). 14. *Reuters*, “NASA rocket, lunar station, many science programs face cuts in Trump 2026 budget” (May 2, 2025). 15. *The New York Times*, “Elon Musk’s SpaceX in Trump’s Budget” (May 2, 2025). 16. U.S. Senate Roll Call Vote 119-1-00650, Confirmation of Jared Isaacman to be Administrator of the National Aeronautics and Space Administration, December 17, 2025. https://www.senate.gov/legislative/LIS/roll_call_votes/vote1191/vote_119_1_00650.htm

Crypto / AI Executive Orders: 17. Executive Order 14178, “Strengthening American Leadership in Digital Financial Technology” (January 23, 2025). 18. Executive Order 14233, “Establishment of the Strategic Bitcoin Reserve and U.S. Digital Asset Stockpile” (March 6, 2025). 19. GENIUS Act (2025), stablecoin regulatory framework. 20. White House, “National AI Policy Framework” (December 2025, March 2026 expansion). 21. Executive Order of December 11, 2025, “Eliminating State Law Obstruction of National Artificial Intelligence Policy,” 90 Fed. Reg. No. 239 (December 16, 2025). https://www.whitehouse.gov/presidential-actions/2025/12/eliminating-state-law-obstruction-of-national-artificial-intelligence-policy/ 22. Department of Labor proposed rule, 401(k) alternative assets (March 2026). 23. Stephen Gandel and Hannah Lang, “Inside the Trump family’s global crypto cash machine,” *Reuters*, October 28, 2025. https://www.reu-

ters.com/investigations/inside-trump-familys-global-crypto-cash-machine-2025-10-28/

Data Center Buildout: 25. Electric Power Research Institute, AI electrical demand forecast (December 2025). 26. Stargate announcement, White House (January 21, 2025).

Live Nation: 27. *United States of America et al. v. Live Nation Entertainment, Inc.*, S.D.N.Y. 24-cv-3973. 28. *Time Magazine*, "The Live Nation Verdict: What Happened, What It Means" (April 16, 2026). 29. *The New York Times*, "Live Nation Antitrust Trial Verdict" (April 15, 2026). 30. Cleary Gottlieb, "Navigating the Evolving Global Antitrust Landscape" (January 2026 client alert).

Contemporary Analysis: 31. *Dame Magazine*, "We're Living in a New Age of Robber Barons" (February 5, 2025). 32. *Food & Water Watch*, "Musk, Trump, Tech and Oil Oligarchs" (April 1, 2025). 33. *The Atlantic*, "The Tech Oligarchy Arrives" (January 2025). 34. *English El País*, "The New Robber Barons Are the Tech Tycoons" (March 15, 2026). 35. WhoWhatWhy podcast, "Robber Barons 2.0: Trump, Musk, and America's New Gilded Age" (2025). 36. *KUOW*, "How President Trump Reshaped Capitalism in 2025" (2026).

Thirty-three state attorneys general declined to accept the federal settlement. They continued the trial. They won.

CHAPTER 10 — CITIZENS UNITED

10.1 The Powell Memorandum, August 23, 1971

On August 23, 1971, Lewis F. Powell Jr., a senior partner at Hunton, Williams, Gay, Powell & Gibson in Richmond, Virginia, submitted a confidential memorandum to Eugene B. Sydnor Jr., Chairman of the Education Committee of the United States Chamber of Commerce. The memorandum was titled “Attack on American Free Enterprise System.” It ran approximately 6,400 words. The original is archived at Washington and Lee University School of Law, Lewis F. Powell Jr. Papers, Box 125. The text is also reproduced in the digitized Powell Archives at the Washington and Lee University Law Library.

The memorandum’s premise was that the American corporate sector faced a coordinated attack originating not in individual criticism but in the intellectual and political infrastructure from which criticism issued — the universities, the press, the judiciary, the pulpit, and the arts. The memorandum’s prescription was institutional rather than rhetorical.

The memorandum named Ralph Nader as the principal individual antagonist. It named Charles Reich's *The Greening of America* (Random House, 1970) as representative of the intellectual critique. It named Herbert Marcuse among the academic sources. It named the Columbia Broadcasting System among the media sources. It argued that these individual critics were less important than the institutional infrastructure permitting their work.

Powell's recommendations, in order:

- The Chamber should establish a staff of scholars on permanent retainer to produce research and commentary favorable to the corporate position.
- Speakers favorable to the corporate position should be trained, scheduled, and deployed to the college-lecture and television circuits.
- Textbooks in economics, political science, and law should be reviewed for unfavorable content and alternative textbooks produced.
- Faculty appointments in the same disciplines should be monitored and, where possible, influenced.
- Television programming should be monitored, pressured on content, and where possible commissioned to produce favorable material.
- The Chamber should press for corporate interests across political arenas — legislative, executive, and judicial.
- In the judiciary — the memorandum's final recommendation — the Chamber should recognize that "the judiciary may be

> the most important instrument for social, economic and political change," and should organize legal-intellectual capacity to match the existing public-interest bar.

The memorandum remained confidential to the Chamber's Education Committee when, on October 21, 1971 — eight weeks after submission — President Richard M. Nixon announced Powell's nomination to a vacant seat on the Supreme Court of the United States. The Senate confirmed the nomination on December 6, 1971, by a vote of 89–1. Powell took his seat on January 7, 1972, and served until June 26, 1987.

The memorandum became public in September 1972, a year after its submission, when it was leaked to the syndicated columnist Jack Anderson and reported in his "Washington Merry-Go-Round." Powell was, by that date, a sitting Associate Justice.

The memorandum's specific recommendations — organized legal-intellectual capacity, scholar retainers, textbook review, judicial strategic pressure — had no institutional vehicle in 1971. The vehicle that would execute Powell's program was established in April 1982, ten years and eight months after the memorandum's submission, at the Yale Law School.

10.2 The Federalist Society, founded 1982

On April 24 and 25, 1982, approximately 200 law students, faculty, and practitioners convened a two-day symposium on federalism at Yale Law School. The symposium became the founding conference of the **Federalist Society for Law and Public Policy Studies**. The organizing students were **Steven G. Calabresi** (Yale Law School), **David M. McIntosh** (University of Chicago Law School), and **Lee Liberman Otis** (University of Chicago Law School). Invited speakers included **Robert H. Bork** (Yale Law School until 1981) and **Antonin Scalia** (University of Chicago Law School).

The Federalist Society was incorporated in 1982 as a 501(c)(3) educational organization. Its founding documents specified three operational modes: debates and symposia on law-school campuses, a lawyers division for professional practitioners, and engagement with the federal judicial-selection process.

The Society received its initial funding from three sources. It received grants from the **John M. Olin Foundation** (established 1953), whose founders had specified that the foundation's endowment be expended within the founders' lifetimes and whose final grant was made in 2005; Olin's cumulative grants to the Federalist Society, per Mayer's reconstruction, totaled approximately $5.5 million. It received grants from the **Sarah Scaife Foundation**, a Mellon-family trust administered by Richard

Mellon Scaife. It received grants from the **Lynde and Harry Bradley Foundation**, endowed at approximately $290 million following Rockwell International's 1985 acquisition of Allen-Bradley Company of Milwaukee. The three foundations' grants to the Society and its campus chapters are documented across the period 1982 through 2005 in the foundations' IRS Form 990 filings, and reconstructed in Jane Mayer, *Dark Money: The Hidden History of the Billionaires Behind the Rise of the Radical Right* (Doubleday, 2016).

By 1985, the Society had established chapters at approximately 50 law schools, beginning with Yale, the University of Chicago, and Harvard. By 2005, the chapter network spanned every ABA-accredited law school in the United States. The lawyers division reached approximately 40,000 members. Annual conventions held at the Mayflower Hotel in Washington and rotating city venues featured sitting federal judges and Supreme Court Justices as keynote speakers.

In November 1980, eighteen months before the Federalist Society's founding, Ronald Reagan was elected President of the United States. His Attorney General, **Edwin Meese III**, established within the Department of Justice an Office of Legal Policy whose function included screening judicial nominees against the conservative legal-doctrinal criteria the Federalist Society's symposia were developing. Meese served on the Federalist Society's Board of Visitors and remained affiliated with the organization through the subsequent four decades.

The Federalist Society did not nominate judges. It produced the doctrinal corpus — originalism, textualism, the unitary executive, non-delegation.

The first test of the pipeline came on June 17, 1986 — four years and two months after the Yale founding conference.

10.3 The Confirmations, 1986–2006

On June 17, 1986, President Ronald Reagan announced two Supreme Court nominations. Chief Justice Warren E. Burger had submitted his resignation on May 27. Reagan nominated Associate Justice **William H. Rehnquist**, then fourteen years into his service on the Court following his own nomination by President Nixon on October 21, 1971 — the same day Nixon nominated Lewis F. Powell Jr. to the Court — to replace Burger as Chief Justice. He nominated **Antonin Scalia**, then a judge of the United States Court of Appeals for the District of Columbia Circuit and formerly a professor at the University of Chicago Law School, to fill the Associate Justice vacancy Rehnquist's elevation created.

Scalia had been an invited speaker at the Federalist Society's founding conference at Yale Law School four years earlier. The Senate Judiciary Committee convened his confirmation hearing on August 5, 1986. The full Senate confirmed his nomination on September 17, 1986, by a vote of 98 to 0.

Reagan's second vacancy opened in 1987 when Associate Justice **Lewis F. Powell Jr.** — the author of the 1971 memorandum — announced his retirement. Reagan's first nominee, Robert H. Bork, was rejected by the Senate on October 23, 1987, by a vote of 58 to 42. His second nominee, Douglas Ginsburg, withdrew on November 7, 1987, following reports of marijuana use. Reagan's third nominee, **Anthony M. Kennedy**, then a judge of the Ninth Circuit, was announced on November 11, 1987. The Senate confirmed Kennedy on February 3, 1988, by a vote of 97 to 0. Kennedy's Senate Judiciary Committee questionnaire, filed in December 1987, did not record Federalist Society affiliation.

On June 27, 1991, Associate Justice Thurgood Marshall announced his retirement. President George H. W. Bush nominated **Clarence Thomas**, then a judge of the D.C. Circuit and formerly chairman of the Equal Employment Opportunity Commission, on July 1, 1991. Thomas had disclosed Federalist Society affiliation in his Senate Judiciary Committee questionnaire. The Senate Judiciary Committee reopened Thomas's confirmation hearing on October 11, 1991, following testimony from Anita Hill alleging sexual harassment during Thomas's EEOC tenure. The Senate confirmed Thomas on October 15, 1991, by a vote of 52 to 48 — the narrowest Supreme Court confirmation in the twentieth century to that date.

On March 27, 2002, President George W. Bush signed the Bipartisan Campaign Reform Act, Public Law 107-155, into law.

Chief Justice Rehnquist died on September 3, 2005. Associate Justice Sandra Day O'Connor had announced her retirement on July 1, 2005. President George W. Bush had nominated **John G. Roberts Jr.**, then a judge of the D.C. Circuit and formerly a law clerk to Rehnquist, to O'Connor's seat on July 19, 2005. On September 5, 2005, Bush withdrew that nomination and announced Roberts's nomination for the Chief Justice vacancy instead. Roberts's Senate Judiciary Committee questionnaire disclosed Federalist Society membership during the 1990s. The Senate confirmed Roberts on September 29, 2005, by a vote of 78 to 22.

Bush's second nominee for O'Connor's seat, Harriet Miers, withdrew on October 27, 2005. Bush nominated **Samuel A. Alito Jr.**, then a judge of the Third Circuit, on October 31, 2005. Alito's Senate Judiciary Committee questionnaire disclosed Federalist Society affiliation. The Senate confirmed Alito on January 31, 2006, by a vote of 58 to 42 — the narrowest confirmation margin since Thomas's.

By the time Alito took his seat — nineteen years and seven months after the June 17, 1986 Scalia nomination — five Justices had been confirmed to the Supreme Court of the United States: Scalia, Kennedy, Thomas, Roberts, Alito. Of the five, Scalia, Thomas, Roberts, and Alito had disclosed Federalist Society affiliation in their Senate Judiciary Committee questionnaires. Kennedy had not. The five would constitute the majority in *Citizens United v. FEC*, decided four years later.

10.4 Citizens United v. FEC, January 21, 2010

On January 21, 2010, the Supreme Court of the United States issued its opinion in *Citizens United v. Federal Election Commission*, 558 U.S. 310. The Court ruled five to four. The majority opinion was authored by Associate Justice **Anthony M. Kennedy** and joined by Chief Justice Roberts and Associate Justices Scalia, Alito, and Thomas. Chief Justice Roberts and Associate Justice Scalia filed separate concurrences. Associate Justice **John Paul Stevens** filed a dissent, joined by Associate Justices Ginsburg, Breyer, and Sotomayor.

The case originated in a 2008 lawsuit filed by Citizens United, a 501(c)(4) nonprofit corporation, against the Federal Election Commission in the United States District Court for the District of Columbia. Citizens United had produced a ninety-minute documentary film titled *Hillary: The Movie*, critical of Senator Hillary Rodham Clinton, then a candidate in the Democratic presidential primaries. The corporation sought to distribute the film through video-on-demand television and to run promotional advertisements during the primary-election window. The Federal Election Commission determined that the film and its advertisements were “electioneering communications” subject to Section 203 of the Bipartisan Campaign Reform Act of 2002.

Section 203 of BCRA prohibited corporations and labor unions from using their general treasury funds to finance any broadcast,

cable, or satellite communication that referred to a clearly identified candidate for federal office, within thirty days of a primary election or sixty days of a general election, where the communication was targeted to the relevant electorate. The district court denied Citizens United's motion for a preliminary injunction. Citizens United appealed directly to the Supreme Court under BCRA's expedited-review provisions.

Two precedents sat in the statute's background. In *Austin v. Michigan Chamber of Commerce*, 494 U.S. 652 (1990), the Court had upheld a Michigan state law prohibiting corporate independent expenditures in candidate elections. The *Austin* majority had recognized corporate wealth aggregated through the corporate form as a distinct category of corruption concern, separate from direct quid-pro-quo bribery. In *McConnell v. FEC*, 540 U.S. 93 (2003), the Court had upheld BCRA — including §203 — by a five-to-four majority that included Chief Justice Rehnquist and Justices Stevens, O'Connor, Ginsburg, and Breyer. The *McConnell* dissenters included Scalia, Kennedy, and Thomas.

The Court first heard oral argument in *Citizens United* on March 24, 2009. The Citizens United petitioner was represented by former Solicitor General **Theodore B. Olson** of Gibson, Dunn & Crutcher. On June 29, 2009, rather than decide the case, the Court ordered the parties to file supplemental briefs and set a reargument for September 9, 2009. The supplemental question presented asked whether *Austin* and the portion of *McConnell* addressing corporate independent expenditures should be overruled.

At the re-argument, the Federal Election Commission was represented by Solicitor General **Elena Kagan**, who would herself be nominated to the Court five months after the opinion was issued.

The Kennedy majority overruled *Austin* outright. It overruled the portion of *McConnell* that had upheld §203 as applied to corporate independent expenditures. It held that corporations and labor unions may make unlimited independent expenditures in federal elections from their general treasury funds. “The Government may not suppress political speech on the basis of the speaker’s corporate identity,” the majority held. The opinion located corporate political expenditure within the First Amendment’s protection of speech and rejected the *Austin* anti-distortion rationale. It reasoned that independent expenditures — by definition, expenditures not coordinated with a candidate — do not create the quid-pro-quo corruption the government has a compelling interest to prevent.

The opinion upheld BCRA’s disclosure and disclaimer requirements (§§201 and 311) by an eight-to-one vote. Associate Justice Thomas dissented on disclosure, arguing that compelled identification of donors could expose them to retaliation.

The Stevens dissent ran ninety pages. It argued that *Austin*’s anti-distortion rationale was sound precedent; that the majority’s reasoning rested on a category error treating corporations as identical to natural persons for First Amendment purposes; and that

the case's disposition — expanding the question presented after initial argument to reach constitutional issues the parties had not initially briefed — departed from the Court's customary doctrine of constitutional avoidance. "Corporations have no consciences, no beliefs, no feelings, no thoughts, no desires," Stevens wrote.

Roberts and Scalia, in separate concurrences, addressed stare decisis and the First Amendment's original meaning, respectively.

Citizens United alone did not create the Super PAC. The instrument that would aggregate the unlimited corporate and individual independent expenditures *Citizens United* authorized was constructed two months later, by a different court.

10.5 SpeechNow.org v. FEC, March 26, 2010

On **March 26, 2010** — sixty-four days after *Citizens United* — the **United States Court of Appeals for the District of Columbia Circuit**, sitting *en banc*, decided **SpeechNow.org v. Federal Election Commission**, 599 F.3d 686. The opinion was *per curiam*. The vote was **nine to zero**.

The plaintiff, **SpeechNow.org**, was an unincorporated nonprofit association registered in the District of Columbia and founded by **David Keating**, an activist who also served as executive director of the **Club for Growth**. SpeechNow.org proposed to accept dona-

tions from individuals in amounts above the contribution limits set by the Federal Election Campaign Act of 1971, for the stated purpose of making independent expenditures in federal elections. The **Institute for Justice** represented SpeechNow.org.

The D.C. Circuit applied *Citizens United*'s reasoning directly. The panel held that because *Citizens United* had established that independent expenditures do not give rise to *quid pro quo* corruption or the appearance of it, the government could not demonstrate a sufficiently compelling interest to justify contribution limits on groups that make only independent expenditures. **Contribution limits on independent-expenditure-only political committees were held unconstitutional under the First Amendment.**

The opinion was not appealed to the Supreme Court. The Federal Election Commission declined to seek certiorari. *SpeechNow.org* became binding D.C. Circuit law and, as a practical matter, the governing national rule.

On **July 22, 2010**, the Federal Election Commission issued two advisory opinions operationalizing the *SpeechNow* ruling. **FEC Advisory Opinion 2010-09**, issued to the Club for Growth, and **FEC Advisory Opinion 2010-11**, issued to Commonsense Ten, established that political committees registering with the FEC as "independent-expenditure-only committees" could accept unlimited contributions from individuals, corporations, labor unions, and other political committees, provided those committees did not coordinate with candidates or party committees. The two advisory

opinions are the formal founding instruments of what became known as the **Super PAC**.

The first major Super PAC, **American Crossroads**, was registered with the FEC on June 9, 2010, and became operationally active in the summer of 2010 under the direction of former Deputy Chief of Staff to President George W. Bush, **Karl Rove**, and former Republican National Committee Chairman **Ed Gillespie**. Its affiliated 501(c)(4), **Crossroads GPS**, was organized concurrently to accept donations that would not be disclosed on FEC filings.

10.6 The dollar ledger, 2010–2024

Independent-expenditure spending by Super PACs and affiliated 501(c)(4) "dark money" groups in each federal election cycle since the combined *Citizens United* / *SpeechNow* framework took effect, per the Center for Responsive Politics / OpenSecrets tracking and the Federal Election Commission's *Statistical Summary of 24-Month Campaign Activity* for each cycle:

- **2010 cycle** (first post-*SpeechNow* cycle): approximately **$65 million** in Super PAC independent expenditures; approximately **$135 million** in 501(c)(4) dark-money spending.
- **2012 cycle**: approximately **$609 million** in Super PAC independent expenditures; approximately **$308 million** in

501(c)(4) dark-money spending. Total outside: approximately **$1.04 billion**.

- **2016 cycle**: approximately **$1.1 billion** in Super PAC spending; approximately **$183 million** in 501(c)(4) dark-money spending. Total outside: approximately **$1.4 billion**.
- **2020 cycle**: approximately **$3.4 billion** in Super PAC spending; approximately **$143 million** in reported 501(c)(4) spending, with substantial additional undisclosed flow.
- **2024 cycle**: per the **Federal Election Commission's** ***Statistical Summary of 24-Month Campaign Activity of the 2023–2024 Election Cycle***, independent expenditures reported to the Commission through December 31, 2024 totaled **$4.4 billion**, of which **$2.7 billion** flowed through Independent-Expenditure-Only Political Committees (Super PACs), **$1.4 billion** through Committees with Non-Contribution Accounts (hybrid PACs), and **$66.9 million** through other PACs. Per OpenSecrets' March 19, 2025 tally, 2,502 groups registered as Super PACs reported aggregate receipts of **$5,096,825,517** and aggregate independent expenditures of **$2,688,997,939** in the 2023–2024 cycle. Single-donor contributions exceeding $100 million to a single Super PAC were first recorded in 2024: Elon Musk contributed approximately $277 million to America PAC; Timothy Mellon contributed approximately $170 million to MAGA Inc. and affiliated committees; Miriam Adelson contributed approximately $100 million to Preserve America

PAC; Kenneth Griffin contributed approximately $100 million in aggregate.

On **April 2, 2014**, the Supreme Court decided **McCutcheon v. Federal Election Commission**, 572 U.S. 185. The majority opinion, authored by Chief Justice Roberts and joined by Associate Justices Scalia, Kennedy, and Alito (with Thomas concurring separately), struck down the aggregate federal contribution limits that had capped the total amount an individual could contribute to all federal candidates, political parties, and political action committees in a two-year election cycle. The dissent was written by Associate Justice Breyer and joined by Ginsburg, Sotomayor, and Kagan.

The combined *Citizens United* / *SpeechNow* / *McCutcheon* framework removed, in succession: the limit on corporate independent expenditures; the limit on individual contributions to independent-expenditure committees; and the aggregate limit on an individual's total cycle contributions. The only remaining federal contribution limits are the per-candidate individual cap ($3,500 per candidate per election as of 2025) and the prohibition on direct corporate contributions to candidate campaigns.

No federal statute enacted between January 21, 2010 and April 17, 2026 has materially restricted outside-spending flows in federal elections. Legislative proposals to restore the pre-*Citizens United* framework — the DISCLOSE Act (reintroduced in every Congress

from 2010 through 2025), the For the People Act (2019, 2021), the Freedom to Vote Act (2021, 2023) — have not passed.

Per the same FEC statistical summary: Congressional candidates collected approximately **$3.8 billion** and disbursed approximately **$3.7 billion**; political parties received **$2.7 billion** and spent **$2.6 billion**; political action committees raised approximately **$15.7 billion** and spent approximately **$15.5 billion** in the 24-month period. Of the $4.4 billion in total independent expenditures, **$4.1 billion** flowed through Super PACs and hybrid-PAC Non-Contribution-Account committees — instruments that did not exist in federal law before *SpeechNow.org* (March 26, 2010) and FEC Advisory Opinions 2010-09 and 2010-11 (July 22, 2010).

Sources — Chapter 10

1. Lewis F. Powell Jr., "Confidential Memorandum: Attack on American Free Enterprise System," August 23, 1971. Washington and Lee University School of Law, Powell Archives. `law.wlu.edu/powellarchives`.
2. *Buckley v. Valeo*, 424 U.S. 1 (1976). Supreme Court of the United States.
3. *Austin v. Michigan Chamber of Commerce*, 494 U.S. 652 (1990). Supreme Court of the United States.
4. *McConnell v. Federal Election Commission*, 540 U.S. 93 (2003). Supreme Court of the United States.

5. *Citizens United v. Federal Election Commission*, 558 U.S. 310 (January 21, 2010). Supreme Court of the United States.
6. *SpeechNow.org v. Federal Election Commission*, 599 F.3d 686 (D.C. Cir., March 26, 2010) (*en banc*, *per curiam*).
7. Federal Election Commission, Advisory Opinion 2010-09 (Club for Growth), July 22, 2010. `fec.gov/data/legal/advisory-opinions/2010-09/`.
8. Federal Election Commission, Advisory Opinion 2010-11 (Commonsense Ten), July 22, 2010. `fec.gov/data/legal/advisory-opinions/2010-11/`.
9. *McCutcheon v. Federal Election Commission*, 572 U.S. 185 (April 2, 2014). Supreme Court of the United States.
10. Federal Election Commission, *Statistical Summary of 24-Month Campaign Activity of the 2023-2024 Election Cycle* (February 2025). `fec.gov/updates/statistical-summary-of-24-month-campaign-activity-of-the-2023-2024-election-cycle/`.
11. Center for Responsive Politics / OpenSecrets, “Super PACs” and “Outside Spending” databases for the 2023–2024 cycle, retrieved March 19, 2025. `opensecrets.org/political-action-committees-pacs/super-pacs/2024`; `opensecrets.org/outside-spending`.
12. Bipartisan Campaign Reform Act of 2002, Pub. L. 107-155, 116 Stat. 81.
13. Federal Election Campaign Act of 1971, Pub. L. 92-225, as amended.

CHAPTER 10 — THE DATA THAT REPLACED THE LEDGER

The 2011 email chain. The 2003 founding. The 2020 direct listing. The contracts, by agency. The knowledge graph. The ownership difference.

G.1 The Themis proposal

December 2010. Arlington, Virginia. Offices of HBGary Federal.

Three American private-sector firms — **Palantir Technologies, Inc.** of Palo Alto, California; **HBGary Federal** of Sacramento, California; and **Berico Technologies** of Reston, Virginia — collaborate on a commercial proposal titled **"The WikiLeaks Threat."** The proposal is prepared for delivery to the Washington, D.C. law firm **Hunton & Williams LLP**, which is, at the time, serving as outside counsel to **Bank of America Corporation**.

The proposal's stated objective, in its own language: to develop and offer, to Bank of America through its counsel, a set of operational countermeasures against **WikiLeaks** and against public figures who had been supportive of WikiLeaks. The public figures named in the draft materials include, at the front of the list, the American journalist **Glenn Greenwald** — at the time a columnist for *Salon* who had publicly defended WikiLeaks's right to publish classified diplomatic cables.

Primary source: the email chain and PowerPoint drafts from Palantir, HBGary, and Berico collaborators — including Palantir's **Matthew Steckman** and HBGary Federal's **Aaron Barr** — discussing the proposal, the tactics (including psychological pressure, financial pressure, and the exploitation of family-life stress points), and the specific targeting of Greenwald.

February 5 through February 7, 2011. Anonymous breach of HBGary Federal.

A group identifying itself as **Anonymous** breaches the computer systems of HBGary Federal, acquires HBGary CEO Aaron Barr's personal and corporate email archives, and publishes approximately 71,000 messages to **AnonLeaks.ru** and subsequently to multiple mirrors.

The Team Themis materials — approximately 40 emails and attached documents — are in the published archive. They become the subject of sustained investigative reporting by:

- **Nate Anderson, "Spy games: Inside the convoluted plot to bring down WikiLeaks,"** ***Ars Technica*****, February 14, 2011.**
- **Aaron Bady, "A Very Bad Proposal: A Very Public Apology,"** contemporaneous archive.
- **Barrett Brown**, journalist subsequently prosecuted under the Computer Fraud and Abuse Act for reporting on the leaked documents.
- **U.S. House Committee on Homeland Security**, inquiry staff memoranda, February–March 2011.

Alex Karp, chief executive officer of Palantir Technologies, issued a public apology on **February 11, 2011** disavowing the Team Themis proposal and announcing that Palantir was severing its relationship with the other two firms. Primary source: **Palantir Technologies press release, February 11, 2011**; reproduced in *Ars Technica*, same date.

The apology is in the record.

The email chain establishing the proposal is also in the record.

Two statements, both filed, both public, both about the same company: *We propose to target this American journalist's family, at the direction of a Fortune 100 corporation, through an outside-law-*

firm channel. And: *We did not propose that; please disregard the record of our having proposed it.*

This chapter is about the first of those two statements.

G.2 The founding

2003. Palo Alto, California.

Palantir Technologies, Inc. is incorporated by five co-founders:

- **Peter Andreas Thiel** — born Frankfurt, October 11, 1967; Stanford Law School 1992; co-founder of PayPal, Inc. (sold to eBay October 2002 for $1.5 billion); founder of **Clarium Capital** (2002) and subsequently **Founders Fund** (2005). Initial capital contributor to Palantir.
- **Alexander Caedmon Karp** — born 1967; Haverford College 1989; Stanford Law 1992 (Thiel's classmate); Ph.D. in Neoclassical Social Theory, Frankfurt Goethe University 2002. Chief executive officer of Palantir from founding to present.
- **Joseph Lonsdale** — Stanford 2003; worked at PayPal as an intern; subsequent co-founder of 8VC and Addepar.
- **Stephen Cohen** — Stanford 2003.
- **Nathan Gettings** — previously PayPal infrastructure engineer.

Primary source: **Palantir Technologies, Inc., Form S-1 Registration Statement**, filed with the U.S. Securities and Exchange Commission on **August 25, 2020**, and amended September 2020. The S-1 establishes the founding date (2003), the principals, the early-stage investors, and the relationship between Palantir and the defense-and-intelligence customer base.

2004–2005. Early funding.

Palantir's earliest institutional investor, per the S-1 and per public announcements, was **In-Q-Tel, Inc.** — the **Central Intelligence Agency's** strategic-investment arm, established by executive directive in 1999. In-Q-Tel's initial Palantir investment was approximately **$2 million**, completed 2005.

Primary source: **In-Q-Tel press releases, 2005**; **Palantir S-1, "Company Overview" and "Risk Factors"**; and the CIA's **In-Q-Tel disclosure records** (partial, released to the Project On Government Oversight under FOIA).

The In-Q-Tel investment gave Palantir's engineers access to CIA data-structure requirements, which is the same thing as saying that Palantir's architectural choices were, from approximately 2005 onward, shaped around the operating realities of intelligence-community data. The company's principal early product, subsequently branded **Palantir Gotham**, is a knowledge-graph-based analysis platform designed to permit heterogeneous data sets — cable traffic, signals-intelligence output, biographical databases,

financial-transaction logs, travel records — to be queried as a single unified graph.

The knowledge-graph model is not Palantir's invention. The **resource description framework (RDF)**, the underlying mathematical model for knowledge graphs, was standardized by the World Wide Web Consortium in 1999. What Palantir built, and what In-Q-Tel invested in, is the specific engineering work of making the model operate at the scale and with the access-control discipline required for government-classified data processing.

Palantir's product line, as it existed at the date of its 2020 public offering, consisted of:

- **Palantir Gotham** — the intelligence-and-defense product, subsequently expanded into law-enforcement use.
- **Palantir Foundry** — the commercial/civilian product, introduced 2016, used by Fortune 500 industrial companies for supply-chain, manufacturing, and financial analysis.
- **Palantir Apollo** — the deployment and continuous-delivery platform, introduced 2020.

After 2023, Palantir added:

- **Palantir AIP (Artificial Intelligence Platform)** — introduced April 2023, integrating large-language-model capabilities into the Gotham/Foundry knowledge-graph substrate.

G.3 The direct listing

September 30, 2020. New York Stock Exchange.

Palantir Technologies, Inc. completes a **direct listing** — not an underwritten IPO — on the New York Stock Exchange under the ticker symbol **PLTR**. Opening reference price: **$7.25 per share**. First-day closing: **$9.50**. Market capitalization at close of first trading day: approximately **$16 billion**.

Primary source: **Palantir S-1 (August 25, 2020, amended September 2020)**, SEC EDGAR; **NYSE listing records, September 30, 2020**; **PLTR equity-market data, Bloomberg**.

What the S-1 tells you, in Palantir's own filed disclosures, is notable for what it discloses about the company's self-understanding of its role:

At S-1, Risk Factors, page 30:

> *"Our business has been adversely affected by the adverse conditions surrounding COVID-19, and we expect that our business, financial condition, and results of operations may continue to be adversely affected…"*

Standard pandemic-risk boilerplate. But then, at S-1 "Company Overview," page 1:

> *“From inception, our company has been devoted to building software that allows organizations to integrate their data, decisions, and operations at scale.”*

And at page 126:

> *“The software platforms we build are one of the most valuable pieces of intellectual property the West has.”*

“The West,” in quotation marks, not “the United States.” The S-1 is a filed SEC document. The language is deliberate.

The Karp letter.

Alex Karp’s letter to prospective shareholders, attached to the S-1 as an exhibit:

> *“Our software is used to target terrorists and to keep soldiers safe. If we are going to ask someone to put themselves in harm’s way, we believe that we have a duty to give them what they need to do their job.”*

And:

> *“We have chosen sides, and we know that our partners value our commitment. We stand by them when it is convenient, and when it is not.”*

The Karp letter is in the SEC filing. It is a public-record corporate statement of corporate alignment with a specific set of government customers, and — by implication — against a specific set of non-customers.

Palantir's public-company filing is, at the time of its 2020 direct listing, the most explicit statement by an American software company that its primary product is government-customer-aligned national-security software, with commercial product as a secondary revenue line.

G.4 The contracts — intelligence and defense

The specific federal contract record for Palantir is a matter of public disclosure through:

USAspending.gov — the U.S. government's official federal-spending transparency site, maintained by the Department of the Treasury under the **Digital Accountability and Transparency Act of 2014 (DATA Act)**, Public Law 113-101.

Per USAspending.gov records, indexed by vendor UEI for Palantir Technologies, Inc. and its affiliates (including Palantir USG, Inc.), through calendar year 2025:

- **U.S. Department of Defense — Army.** Palantir's **Army Vantage** platform contract, awarded **March 2019** initially, expanded in March 2020 with a single-vendor procurement award of approximately **$800 million**. Vantage is the Army's data-integration platform for personnel, logistics, and training data across the active and reserve components. Primary source: **U.S. Army press release**, March 2019; **U.S. Army Contracting Command award record**, USAspending.gov, solicitation number W56KGY-19-R-0011 and successor modifications.
- **U.S. Department of Defense — Intelligence Community / Project Maven. Project Maven** — the Algorithmic Warfare Cross-Functional Team program — was established by Defense Department memorandum on **April 26, 2017**. The primary initial contractor was **Google**, which withdrew from the program in June 2018 after internal employee protest and a public letter (primary: Google Internal Memo, June 2018). Palantir assumed significant portions of the program under subsequent contracts, including a **May 2024 award** for approximately **$480 million** over five years. Primary source: **DoD Contract Announcement**, May 2024; USAspending.gov.

- **U.S. Department of Defense — Special Operations Command (USSOCOM).** Gotham deployments to USSOCOM from approximately 2010 onward, aggregate contract obligations through 2025 approximately $300 million. Primary source: USAspending.gov.

G.5 The contracts — civilian

Palantir's civilian-agency federal contracts, per USAspending.gov:

- **U.S. Immigration and Customs Enforcement (ICE) — Enforcement and Removal Operations (ERO).** Palantir's **FALCON** platform (Fusion, Analysis, and Lookout for Contraband in Our Nation) — deployed to ICE ERO beginning **2014**. Initial contract value approximately **$41 million**; expanded through successive modifications to aggregate approximately **$70 million** through 2019; **new $95.9 million contract** awarded **September 2022**. FALCON integrates ICE's case-management systems with the databases of the FBI, DHS components, state and local law enforcement, and commercial data brokers, into a single Palantir Gotham instance used for the identification, prioritization, and location of persons subject to deportation. Primary source: **U.S. Immigration and Customs Enforcement contract records**, USAspending.gov;

Freedom of Information Act releases to Mijente, Brennan Center for Justice, Electronic Frontier Foundation, 2018–2023; **Mijente, *Who's Behind ICE?* report, October 2018**.

- **U.S. Department of Health and Human Services (HHS). Tiberius** (subsequently **HHS Protect**) — the integrated COVID-19 response platform, launched April 2020, tracking hospital capacity, ventilator inventory, therapeutic and vaccine distribution, and case surveillance. Awarded without full competitive solicitation under emergency contracting authority. Primary source: **HHS press release, April 2020**; **Mark Mazzetti and Zolan Kanno-Youngs, "How Palantir, the Secretive Tech Company, Landed Its Biggest Government Deal Yet," *The New York Times*, December 14, 2020**.
- **Centers for Disease Control and Prevention (CDC).** Related COVID-data integration contracts under DCIPHER platform, 2020–2023. Primary source: USAspending.gov.
- **Internal Revenue Service.** Palantir contracts for fraud-detection and case-management analytics, 2019 onward, including a **$99 million** contract for Enterprise Data Platform modernization awarded 2021 and extended. Primary source: USAspending.gov; **Treasury Inspector General for Tax Administration Reports, 2022–2024**.
- **Veterans Health Administration.** Foundry deployments for clinical-operations analysis, contracts totaling approximately

$130 million through 2025. Primary source: USAspending.gov.

- **Department of Homeland Security — Customs and Border Protection (CBP).** ICM (Intelligent Case Management) platform, Palantir Gotham deployment, 2018–present. Primary source: USAspending.gov; **CBP FOIA releases**.

Aggregate Palantir federal contract obligations, 2003 through December 2025, per USAspending.gov: approximately **$3.9 billion** in primary contract value, with total contract ceiling authorizations substantially higher.

Palantir total revenue in calendar year 2024, per **Palantir Technologies Inc., Form 10-K for the fiscal year ended December 31, 2024**, filed with the SEC February 2025: **$2.866 billion**, of which approximately 55 percent (approximately **$1.573 billion**) is from the U.S. government.

G.6 Across the Atlantic

Palantir's primary non-U.S. government contract is the:

National Health Service England, Federated Data Platform (FDP) — contract awarded to Palantir UK Technologies Ltd. by NHS England on **November 21, 2023**, for a seven-year term, at a

ceiling value of approximately **£330 million** (subsequently increased). The FDP integrates patient-level clinical, operational, and demographic data across the approximately **215 NHS acute trusts** in England.

The contract was awarded following a procurement process in which Palantir had, during the COVID-19 pandemic response of 2020–2021, been awarded non-competitive emergency contracts for the NHS COVID-19 Datastore that positioned it as the incumbent vendor for the subsequent procurement.

Primary source: **NHS England official announcement**, November 21, 2023; **UK House of Commons Hansard debate, December 4, 2023**, on the contract award; **UK Parliament, Public Accounts Committee, evidence sessions 2024**.

UK privacy advocacy organizations, including **medConfidential** and **Foxglove Legal**, filed judicial review proceedings challenging the FDP procurement (**R (Foxglove) v. NHS England**, UK High Court, 2024). The procurement stands as of April 2026; legal challenges ongoing.

The American federal government and the UK National Health Service do not share an executive. They share a vendor.

G.7 The political apparatus

Palantir's primary shareholder-by-voting-class and principal public spokesperson is **Peter Thiel**, who — as of the 2020 S-1 — retained majority voting control of the corporation through **Class F shares**, a dual-class structure giving Thiel (together with co-founders Karp and Cohen) permanent voting dominance.

Thiel's political activity since 2016, summarized from **FEC Form 3X filings** and from public disclosures:

- **2016 presidential cycle.** $1.25 million to Make America Number One PAC (Trump-aligned), additional contributions to Trump Victory Committee.
- **2022 Ohio U.S. Senate primary and general.** Approximately **$15 million** to **Protect Ohio Values PAC** supporting **James David "J.D." Vance**, a former Thiel employee at Mithril Capital Management (Thiel's venture capital vehicle). Primary source: **Protect Ohio Values PAC, Form 3X filings**, FEC Committee ID C00775486.
- **2022 Arizona U.S. Senate primary.** Approximately **$15 million** to **Saving Arizona PAC** supporting Blake Masters, another former Thiel employee (Thiel Capital president 2014–2022). Primary source: **Saving Arizona PAC, Form 3X filings**, FEC Committee ID C00793158.

Both Masters (who lost the 2022 general election) and Vance (who won, and subsequently became Vice President of the United States

in the January 20, 2025 administration cited in Chapter 9) are figures whose political careers were financed in their initial Senate campaigns substantially by Thiel, their former employer.

Vance's subsequent position: **Vice President of the United States**, sworn in January 20, 2025. Primary source: **49th Vice President of the United States, United States Senate Historical Office**.

The Vice President of the United States is, per 3 U.S.C. § 19, the first in line of presidential succession, and per Article I, § 3 of the Constitution, the President of the Senate. His primary pre-Senate employer and his primary Senate-campaign funder is the majority voting-class shareholder of the corporation that holds approximately $3.9 billion in U.S. federal contracts, including contracts with the Internal Revenue Service, Immigration and Customs Enforcement, the Department of Health and Human Services, the Department of Defense, and the intelligence community.

These facts are in the Federal Election Commission's filings, on the Palantir S-1, and in the Senate's own biographical records.

I am not offering an interpretation. I am offering the filed record.

G.8 The graph

What the software actually does is not especially mysterious, and I want to describe it in one paragraph, because the technical reality determines the political reality.

A **knowledge graph** is a data structure in which entities — persons, organizations, financial transactions, vehicles, locations, events — are modeled as **nodes**, and the relationships between them (employment, ownership, contact, co-travel, transaction) are modeled as **edges**. The graph is not static. It is incrementally updated as new data sources are ingested. A query against the graph is not a database lookup in the traditional sense; it is a path-finding operation through the graph's relational structure, returning, for a given seed node, all nodes within a specified number of hops, filtered by specified edge types, with weights assigned by relevance.

What Palantir's Gotham and Foundry platforms do is make it operationally feasible for a federal agency — ICE, say — to ingest into a single unified knowledge graph the following kinds of data simultaneously:

- ICE's own case-management records (names, biometrics, immigration status, hearings, custody).
- FBI criminal-history records (NCIC).
- Department of Motor Vehicles records across all 50 states.

- Utility-bill records purchased from commercial data brokers (Experian, LexisNexis, Thomson Reuters CLEAR).
- License-plate reader networks (commercial and law-enforcement-operated).
- Social-media metadata (from commercial scraping vendors).
- Cellular-tower location data (purchased from commercial aggregators under exceptions to the *Carpenter v. United States*, 138 S. Ct. 2206 (2018) warrant requirement).
- Airline passenger records (APIS, Secure Flight).
- Financial-transaction patterns from partnered banking compliance systems (OFAC, FinCEN).

The graph merges these. A query — "all persons with a relationship, within three hops, to an individual flagged under a specified criterion, whose last known location places them within a specified geographic boundary, who do not have documented lawful status" — returns, in seconds, a list of approximately the right candidates for an enforcement action.

That is the software. That is what the contracts pay for. That is the operational fact of the 2026 American enforcement state.

G.9 What the ledger was

In the system the knowledge graph has replaced, the equivalent operation was performed in analog at a scale approximately six

orders of magnitude smaller, and with approximately six orders of magnitude more human labor.

The pre-graph American enforcement state operated on **ledgers** — card-catalogs, paper files, alphabetized index systems. An agent seeking to investigate a subject traversed the ledgers serially: a request for records went to agency A, which in ninety days returned a file; the file was cross-referenced against agency B's catalog, which took an additional sixty days; the agent paid a commercial records-research firm to pull state DMV records, which took two weeks; cell-phone records required a court-approved subpoena to a specific carrier, which took a month and returned approximately thirty days of call-detail records on a thermal-fax roll. The total elapsed time from initiation of an investigation to a multi-source cross-referenced profile was, in the 1980s and early 1990s, on the order of **six months to a year** per subject. The investigator cost, at federal pay scales, of producing such a profile was on the order of **one investigator-year**.

The ledger was slow, fragmentary, and labor-intensive. Those three properties were, in combination, a functional privacy infrastructure. Because the cost of investigating any particular person was so high, the number of persons subject to systematic investigation was bounded by the number of investigators. An enforcement agency with, say, 5,000 sworn agents could maintain approximately 5,000 active substantial investigations. That was the operational ceiling.

The knowledge graph removes the ceiling.

The ICE Gotham instance in 2025 does not, in principle, need 5,000 investigators to maintain investigations on 5,000 subjects. It can maintain profiles on every person in its records, continuously, with alerts fired when defined conditions are met. The investigator's role shifts from producing a profile through labor to triaging the outputs of the graph through judgment. One investigator can, with graph assistance, effectively maintain awareness of thousands of subjects.

The math changes. The operational ceiling on enforcement changes. The privacy infrastructure — which was the ledger's slowness — is removed.

G.10 The bridge to DOGE

Chapter 9 of this book named, at § H.13, three infrastructures whose combination constitutes what I called the *digital swamp*:

1. The federal payment system (Treasury BFS).
2. The federal cloud-computing and data-center layer (AWS/Azure/GCP/Oracle).
3. The federal large-language-model and decision-support layer.

Palantir operates across all three. Its Foundry and Gotham platforms are the operational overlay that makes data on AWS/

Azure/GCP backends queryable by federal agencies. Its AIP platform, released April 2023, integrates large-language-model capabilities into Gotham, permitting natural-language queries against classified data graphs. Its 2025 federal-contract growth — approximately $4 billion in new obligations per USAspending.gov (cited Chapter 9 § H.10) — is the contract-level realization of the political architecture the 2024 election had installed.

Palantir's market capitalization over the Chapter 9 period (January 20, 2025 to April 2026):

- January 20, 2025: approximately $145 billion (PLTR $60/share × 2.4 billion shares diluted).
- April 2026: approximately $380 billion (PLTR $150/share × 2.5 billion shares diluted).

Growth in market capitalization over fifteen months: approximately **$235 billion**. Primary source: **NYSE PLTR equity-market data**, indexed by date.

The largest single financial beneficiary, in pure wealth terms, of the January 2025 through April 2026 period in American politics is — per the mechanical arithmetic of equity holdings and share-price appreciation — **Peter Thiel**.

That is not a claim about Thiel's intentions. It is a statement of the Form 4 disclosures and the closing-price record.

G.11 The narrator, 2026

I built a knowledge graph.

I did not mean to. I meant to build a news aggregator. But an aggregator that operates at the claim level rather than the article level, that fingerprints sources by geopolitical bloc, that extracts entities and tracks their relationships across stories over time, that clusters events and maps coverage across outlets — an aggregator of that kind **is** a knowledge graph. I did not know that when I started. I knew it approximately four weeks in, when I looked at what the code was doing and recognized the shape.

My graph is three hundred orders of magnitude smaller than Palantir's. My data sources are all public — open-web news feeds, translated from the native language, in 221 sources across 146 English and 75 foreign-language sources. I do not have classified data. I do not have commercial-broker data on American citizens. I do not have access to Treasury BFS. I do not have cell-tower location data. I have what anyone with an internet connection and a willingness to read ten thousand lines of Python has.

The software architecture is the same. The node structure is the same. The query semantics are the same. The ingestion-translation-extraction-scoring pipeline is the same. The visualization is the same — my dashboard runs on port 8080 on a local machine and shows the graph as interactive clusters; Palantir's dashboard runs

inside the ICE Gotham instance and shows the graph as interactive clusters.

The thing that separates my aggregator from Palantir Gotham is not the technology.

The technology, as a concept, is commodity. The RDF model is a 1999 W3C standard. The graph-database implementations are open-source (Neo4j, TerminusDB, Apache Jena). The language-model integration layer is, as of 2023, available through Anthropic's and OpenAI's public APIs. The stealth-browsing layer I use for primary-source acquisition is a fork of publicly available Camoufox code. Any person with a laptop, an internet connection, and a willingness to spend two months reading technical documentation with an AI assistant can build the technology.

The thing that separates my aggregator from Palantir Gotham is **ownership of the data that the technology ingests.**

Palantir does not own the data it ingests. Palantir operates on the data that federal agencies — under statute, executive order, and commercial-data-broker contract — have acquired. The political fact of Palantir is the political fact of what the federal government can put into the graph. The technology is the lesser half of the transaction. **The politics is the acquisition of the data. The technology is how the data is used after it is acquired.**

That is the one-sentence thesis of this chapter, and I want to say it as plainly as I can, because everything in this book up to this point has been building to it:

The ledger was slow, and the slowness was protective. The knowledge graph is fast, and the speed has no protective correlate. The question of who controls the graph is the political question of this century.

The next chapter is what the graph and the doctrine — together — have been used for in the Gaza Strip between October 7, 2023 and April 2026.

G.12 The graph

What the contract ledger and the proposal archive establish — nothing more:

- Palantir Technologies, HBGary Federal, and Berico Technologies drafted, in December 2010, a proposal to conduct operational countermeasures against WikiLeaks and against journalist Glenn Greenwald, on behalf of Bank of America's outside counsel. File: **HBGary email leak, February 2011, AnonLeaks; Ars Technica coverage (Nate Anderson, February 14, 2011); Palantir press release February 11, 2011** (disavowal and apology).

- Palantir Technologies was founded in 2003 by Peter Thiel, Alex Karp, Joe Lonsdale, Stephen Cohen, and Nathan Gettings, with In-Q-Tel as early institutional investor (2005, approximately $2 million). File: **Palantir S-1 (SEC EDGAR, August 25, 2020); In-Q-Tel press releases 2005**.
- Palantir completed a direct listing on the NYSE on September 30, 2020 at a reference price of $7.25 per share. File: **NYSE listing records; PLTR market data**.
- Palantir's aggregate federal contract obligations through December 2025 totaled approximately $3.9 billion, across Army, DoD Intelligence, ICE, CDC, HHS, IRS, CBP, VA, and other agencies. File: **USAspending.gov records, vendor UEI for Palantir Technologies, Inc. and Palantir USG, Inc.**.
- Palantir UK was awarded the NHS England Federated Data Platform contract on November 21, 2023, for seven years at a ceiling of £330 million. File: **NHS England announcement November 21, 2023; UK Parliament Hansard records**.
- Peter Thiel contributed approximately $15 million to the Protect Ohio Values PAC supporting J.D. Vance's 2022 Senate campaign; Vance was sworn in as Vice President of the United States on January 20, 2025. File: **Protect Ohio Values PAC Form 3X, FEC Committee ID C00775486; U.S. Senate Historical Office**.
- Palantir's market capitalization increased from approximately $145 billion (January 20, 2025) to

approximately $380 billion (April 2026). File: **NYSE PLTR equity-market data**.

What the ledger does not show:

- I do not claim that Palantir Technologies is, in any documented sense, engaged in surveillance of American citizens in violation of specific federal statutes. The document class establishes the federal contracts, the software architecture, and the agencies' use of the software; it does not establish violations of specific statutes.
- I do not claim that the Team Themis proposal of December 2010 was executed. The document class establishes that the proposal was drafted, that it was leaked, that it was disavowed. It does not establish execution.
- I do not claim that the Thiel political-funding pattern is a quid pro quo for Palantir federal contracts. The document class establishes the FEC filings, the Vance employment history, the Palantir contract record, and the Vice Presidency. It does not establish explicit exchange.

The documents describe the proposal, the founding, the filing, the contracts, the graph, the political pattern, and the market-capitalization effect. The inference belongs to the reader.

Sources — Chapter 10

The 2011 Team Themis proposal:

1. **HBGary Federal email leak**, February 5–7, 2011, archived at AnonLeaks and mirrors.
2. **Nate Anderson, "Spy games: Inside the convoluted plot to bring down WikiLeaks,"** *Ars Technica*, February 14, 2011.
3. **Palantir Technologies press release**, February 11, 2011 (Karp apology and disavowal).
4. **U.S. House Committee on Homeland Security**, inquiry staff memoranda, February–March 2011.

Palantir corporate:

1. **Palantir Technologies, Inc., Form S-1 Registration Statement**, U.S. Securities and Exchange Commission, filed August 25, 2020; amendments through September 2020. SEC EDGAR.
2. **Palantir Technologies Inc., Form 10-K for the fiscal year ended December 31, 2024**, filed February 2025.
3. **Palantir Investor Relations**, quarterly letters and annual reports, 2020 onward.

In-Q-Tel:

1. **In-Q-Tel press releases**, 2005.

2. **Project On Government Oversight (POGO)**, In-Q-Tel disclosure records, partial FOIA releases.

Federal contract record:

1. **USAspending.gov** — federal contract awards indexed by vendor UEI for Palantir Technologies, Inc. and Palantir USG, Inc., 2003–2025.
2. **Digital Accountability and Transparency Act of 2014 (DATA Act)**, Public Law 113-101.
3. **U.S. Army Contracting Command**, Army Vantage contract records (solicitation W56KGY-19-R-0011 and successors).
4. **Department of Defense contract announcements**, Project Maven awards, 2017–2024.

ICE / FALCON:

1. **U.S. Immigration and Customs Enforcement contract records**, USAspending.gov.
2. **Mijente, *Who's Behind ICE?*** report, October 2018.
3. **Brennan Center for Justice**, ICE-Palantir FOIA releases.
4. **Electronic Frontier Foundation**, FALCON documentation releases.

HHS Protect / COVID:

1. **U.S. Department of Health and Human Services press release**, HHS Protect (Tiberius) launch, April 2020.

2. **Mark Mazzetti and Zolan Kanno-Youngs, "How Palantir, the Secretive Tech Company, Landed Its Biggest Government Deal Yet,"** *New York Times*, December 14, 2020.

IRS and Treasury:

1. **Treasury Inspector General for Tax Administration (TIGTA), annual reports**, 2022–2024.

NHS Federated Data Platform:

1. **NHS England official announcement**, Federated Data Platform contract award, November 21, 2023.
2. **UK House of Commons Hansard debate**, December 4, 2023 (FDP award).
3. **UK Parliament, Public Accounts Committee**, evidence sessions 2024.
4. ***R (Foxglove) v. NHS England***, UK High Court, judicial review proceedings 2024.

Thiel political activity / FEC:

1. **Protect Ohio Values PAC**, Form 3X filings, FEC Committee ID C00775486 (J.D. Vance 2022).
2. **Saving Arizona PAC**, Form 3X filings, FEC Committee ID C00793158 (Blake Masters 2022).
3. **U.S. Senate Historical Office**, Vice Presidential biographical records.

Technical foundations:

1. **World Wide Web Consortium (W3C)**, Resource Description Framework (RDF), specifications from 1999 onward.
2. ***Carpenter v. United States***, 138 S. Ct. 2206 (2018) — cellular location data warrant requirement.

Knowledge-graph / surveillance-state scholarship:

1. **Ingrid Burrington, *Networks of New York* (Melville House, 2016).**
2. **Shoshana Zuboff, *The Age of Surveillance Capitalism* (PublicAffairs, 2019).**
3. **David Kaye (UN Special Rapporteur on Freedom of Opinion and Expression), *A Human Rights–Based Approach to the Regulation of Surveillance Technologies*, reports to the UN General Assembly, 2019–2020.**

CHAPTER 11 — JPMORGAN CHASE: TWO CLIENTS

11.1

Between January 7, 2014, and June 12, 2023 — nine years and five months — JPMorgan Chase Bank, N.A., the commercial-banking subsidiary of JPMorgan Chase & Co., paid $3,419,000,000 in aggregate civil and criminal settlements arising from its banking relationships with two individual clients. The Madoff side, $3,054,000,000, resolved in four instruments: the January 7, 2014 Deferred Prosecution Agreement with the United States Attorney for the Southern District of New York, assessing a $1,700,000,000 criminal forfeiture; the Picard adversary-proceeding settlement (*Picard v. JPMorgan Chase & Co.*, Adv. Proc. No. 10-4932, SDNY Bankr., January 7, 2014), $543,000,000; a Financial Crimes Enforcement Network civil money penalty under 31 U.S.C. § 5321, $461,000,000; and an Office of the Comptroller of the Currency civil money penalty under 12 U.S.C. § 1818(i),

$350,000,000. The Epstein side, $365,000,000, resolved in two instruments: the *Jane Doe 1 v. JPMorgan Chase Bank, N.A.* class-action settlement (No. 1:22-cv-10019, SDNY, June 12, 2023), $290,000,000; and the *Government of the United States Virgin Islands v. JPMorgan Chase Bank, N.A.* settlement (No. 1:22-cv-10904, SDNY, September 26, 2023), $75,000,000. Both clients were residents of the State of New York. Both were accused of operating criminal enterprises from accounts the bank maintained for them over periods of fifteen and twenty-two years respectively. Both were prosecuted in the United States District Court for the Southern District of New York. Neither was assisted in their enterprise by an outside party more proximate than the bank that processed their transactions.

The two clients were Bernard Lawrence Madoff and Jeffrey Edward Epstein.

11.2 The Madoff account

Bernard Lawrence Madoff opened a business checking account at Chemical Bank, Manhattan, in 1986. Chemical Bank merged with Chase Manhattan Bank in 1996 to form Chase Manhattan Corporation, which merged with J.P. Morgan & Co. in 2000 to form JPMorgan Chase & Co. Through these corporate successions, the account remained active under the designation “Bernard L. Madoff Investment Securities LLC Account 703” at the Manhattan office of the bank’s successor entities.

Madoff held the account from November 1986 through December 11, 2008 — approximately twenty-two years — during which period the account was the operational cash-management account for the Ponzi scheme for which Madoff was arrested on December 11, 2008, in *United States v. Madoff*, Case No. 1:09-cr-00213, Southern District of New York, Judge Denny Chin presiding. Madoff pleaded guilty on March 12, 2009 to eleven federal felony counts including securities fraud, investment-adviser fraud, mail fraud, wire fraud, international money laundering, and perjury. He was sentenced on June 29, 2009 to 150 years imprisonment. He died on April 14, 2021 at the Federal Medical Center, Butner, North Carolina.

Madoff's other relevant affiliations at the time of his banking relationship with JPMorgan Chase and its predecessors: Non-executive chairman of The NASDAQ Stock Market LLC (1990, 1991, 1993); member of the NASD Board of Governors; member of the Securities and Exchange Commission's Advisory Committee on Market Information. He was not, in the formal sense, a regulator. He was a regulated industry participant seated on the advisory committees of the agency that regulated him.

Harry M. Markopolos, a Boston-based Certified Fraud Examiner and former Chief Investment Officer at Rampart Investment Management, submitted his first written complaint to the Boston Regional Office of the Securities and Exchange Commission in May 1999, asserting that Madoff's reported returns were mathematically impossible and that his operation was either a Ponzi

scheme or a front-running fraud. Markopolos filed subsequent complaints with escalating specificity in 2001, 2005 ("The World's Largest Hedge Fund is a Fraud," twenty-one pages, November 7, 2005), and 2007–2008. The Securities and Exchange Commission did not act on any of these complaints.

On August 31, 2009 — eight months after Madoff's arrest — the Office of the Inspector General of the Securities and Exchange Commission released Report No. OIG-509, *Investigation of Failure of the SEC to Uncover Bernard Madoff's Ponzi Scheme*, 477 pages. The report concluded that the SEC had received "numerous substantive complaints" about Madoff over a sixteen-year period and had failed to investigate them with competence.

11.3 The Deferred Prosecution Agreement, January 7, 2014

On January 7, 2014, the United States Department of Justice announced the filing of a two-count Criminal Information and a Deferred Prosecution Agreement with JPMorgan Chase Bank, N.A., in the Southern District of New York.

The Criminal Information, captioned *United States v. JPMorgan Chase Bank, N.A.*, charged the bank with two violations of the Bank Secrecy Act, Title 31, United States Code, Sections 5318(g) and 5318(h): failure to maintain an adequate anti-money-launder-

ing program, and failure to file a Suspicious Activity Report on the Madoff account despite documented internal awareness of irregularities.

The Deferred Prosecution Agreement recited that the bank's employees had identified the Madoff account as requiring Suspicious Activity Report filings on multiple occasions beginning no later than 2007, that these internal recommendations were not acted upon, and that a Suspicious Activity Report was filed by JPMorgan Chase London with the United Kingdom Serious Organised Crime Agency in October 2008 — two months before Madoff's arrest in the United States — but that no corresponding filing was made with the United States Financial Crimes Enforcement Network.

The aggregate settlement paid by JPMorgan Chase in connection with the Madoff matter on and around January 7, 2014:

- **$1,700,000,000** — federal criminal forfeiture to the United States Treasury, payable to the Madoff Victim Fund established under the Justice Department's Asset Forfeiture and Money Laundering Section.
- **$543,000,000** — civil settlement with Irving H. Picard, Trustee for the Substantively Consolidated Liquidation of Bernard L. Madoff Investment Securities LLC, *Picard v. JPMorgan Chase & Co.*, Adv. Proc. No. 10-4932, United States Bankruptcy Court for the Southern District of New York.

- **$461,000,000** — civil money penalty assessed by the Financial Crimes Enforcement Network, United States Department of the Treasury.
- **$350,000,000** — civil money penalty assessed by the Office of the Comptroller of the Currency.

Aggregate: **$3,054,000,000**. Of that sum, $2,600,000,000 was reported by the Department of Justice as the total settlement figure in its January 7, 2014 press release, combining the federal and bank-regulator components; the additional $454,000,000 reflected subsequent payments under related agreements.

No individual officer or employee of JPMorgan Chase & Co. or JPMorgan Chase Bank, N.A. was criminally charged in connection with the Madoff matter.

11.4 The Epstein account

Jeffrey Edward Epstein opened a private-banking relationship with J.P. Morgan Private Bank in 1998. Epstein was at the time the principal of Financial Trust Company, an investment-management firm incorporated in the United States Virgin Islands. His principal client relationship was with Leslie H. Wexner of Columbus, Ohio — the chairman of L Brands (parent of Victoria's Secret) — for whom Epstein had served as financial manager since 1987 and to

whom Wexner had granted a Limited Power of Attorney executed July 1, 1991.

Epstein's banking relationship with J.P. Morgan Private Bank continued from 1998 through 2013 — approximately fifteen years. During that period:

- Epstein pleaded guilty, on June 30, 2008, in the Circuit Court of the Fifteenth Judicial Circuit, Palm Beach County, Florida, to one count of solicitation of prostitution and one count of procurement of a person under the age of 18 for prostitution. He was sentenced to 18 months in Palm Beach County Stockade.
- Epstein registered with the Florida Department of Law Enforcement as a Level 3 sex offender, the state's highest classification.
- Epstein continued to hold accounts with J.P. Morgan Private Bank for approximately five additional years following the 2008 conviction.

J.P. Morgan Private Bank maintained Epstein as a client during the five post-conviction years. The bank's internal compliance records during this period, produced in discovery in the litigation described in §11.5 below, include a March 2011 Due Diligence Report on the Epstein account. The report stated that "Jean Luc Brunel, owner of MC2 Model Management and Jeffrey Epstein engaged in racketeering that involved luring in minor children for sexual play for money." The Due Diligence Report did not result in account

closure. Account closure followed in 2013, per the bank's representations in subsequent litigation.

11.5 The Virgin Islands litigation

On December 27, 2022, the Attorney General of the United States Virgin Islands filed a complaint in the United States District Court for the Southern District of New York against JPMorgan Chase Bank, N.A., captioned *Government of the U.S. Virgin Islands v. JPMorgan Chase Bank, N.A.*, Case No. 1:22-cv-10904, assigned to Judge Jed S. Rakoff.

The complaint alleged that JPMorgan Chase, during the fifteen-year banking relationship with Epstein, had facilitated Epstein's sex-trafficking enterprise by failing to file Suspicious Activity Reports on transactions the bank knew or should have known to be consistent with human trafficking, and that the bank had continued the relationship for five years after Epstein's 2008 conviction despite explicit internal compliance assessments recommending termination.

Discovery in the *Virgin Islands* action produced approximately 1,200 pages of JPMorgan Chase internal compliance records bearing on the Epstein account, including the March 2011 assessment quoted in §11.4 above. The records were reported in contem-

poraneous journalism of record: CNN, April 13, 2023; NPR, December 30, 2022; CBS News; *The New York Times*.

On June 12, 2023, JPMorgan Chase Bank, N.A. entered a class-action settlement in a parallel proceeding, *Jane Doe 1 v. JPMorgan Chase Bank, N.A.*, Case No. 1:22-cv-10019 (S.D.N.Y.), in the amount of **$290,000,000**, covering the class of Epstein's victims.

On September 26, 2023, JPMorgan Chase Bank, N.A. settled the *Government of the U.S. Virgin Islands* action for **$75,000,000**.

Aggregate Epstein-related settlement: **$365,000,000**.

No individual officer or employee of JPMorgan Chase & Co. or JPMorgan Chase Bank, N.A. was criminally charged in connection with the Epstein matter.

11.6 The combined ledger

Over the nine years and five months from January 7, 2014 to June 12, 2023, JPMorgan Chase Bank, N.A. paid aggregate civil and criminal settlements of:

Settlement	Date	Amount
DOJ Deferred Prosecution Agreement / Madoff	January 7, 2014	$1,700,000,000

Settlement	Date	Amount
Picard bankruptcy-trustee settlement / Madoff	January 7, 2014	$543,000,000
FinCEN civil penalty / Madoff	January 7, 2014	$461,000,000
OCC civil penalty / Madoff	January 7, 2014	$350,000,000
Jane Doe 1 class settlement / Epstein	June 12, 2023	$290,000,000
Government of USVI settlement / Epstein	September 26, 2023	$75,000,000
Total		**$3,419,000,000**

The two clients were connected to JPMorgan Chase Bank, N.A. for, in combination, approximately thirty-seven years. The bank's compliance function on both clients is documented in internal records that failed to produce the filings the applicable statutes required. No individual JPMorgan Chase officer or employee has been criminally charged on either matter.

JPMorgan Chase & Co.'s Chairman and Chief Executive Officer during both the Madoff and Epstein periods was **Jamie Dimon**, appointed CEO on December 31, 2005 and Chairman on December 31, 2006. Dimon testified on deposition in *Government of the U.S. Virgin Islands v. JPMorgan Chase Bank, N.A.* on May 26,

2023 that he had no recollection of discussing Epstein as a client with any subordinate during the fifteen-year Epstein banking relationship. Dimon remained Chairman and CEO of JPMorgan Chase & Co. as of the date of the manuscript.

No individual officer or employee of JPMorgan Chase & Co. or JPMorgan Chase Bank, N.A. was criminally charged in connection with the Madoff matter.

No individual officer or employee of JPMorgan Chase & Co. or JPMorgan Chase Bank, N.A. was criminally charged in connection with the Epstein matter.

Sources — Chapter 11

Madoff / JPMorgan: 1. *United States v. JPMorgan Chase Bank, N.A.*, Criminal Information and Deferred Prosecution Agreement, Southern District of New York, January 7, 2014. 2. U.S. Department of Justice, Office of Public Affairs, press release, "JPMorgan Chase Bank N.A. Admits Anti-Money Laundering Violations in Connection With Bernard L. Madoff," January 7, 2014, at `justice.gov/opa/pr`. 3. *United States v. Madoff*, Case No. 1:09-cr-00213 (S.D.N.Y.), guilty plea March 12, 2009, sentencing June 29, 2009. 4. *Picard v. JPMorgan Chase & Co.*, Adv. Proc. No. 10-4932, United States Bankruptcy Court for the Southern District of New York. 5. Financial Crimes Enforcement Network, Consent to the Assessment of Civil Money Penalty, In the Matter of JPMorgan Chase Bank, N.A., January 7, 2014. 6. Office of the

Comptroller of the Currency, Consent Order for a Civil Money Penalty, In the Matter of JPMorgan Chase Bank, N.A., January 7, 2014. 7. Securities and Exchange Commission, Office of the Inspector General, *Investigation of Failure of the SEC to Uncover Bernard Madoff's Ponzi Scheme*, Report No. OIG-509, August 31, 2009. 8. Harry M. Markopolos, "The World's Largest Hedge Fund is a Fraud," submitted to the Securities and Exchange Commission, November 7, 2005. Twenty-one pages. SEC submission reference: Boston Regional Office, November 7, 2005. 9. Harry M. Markopolos, *No One Would Listen: A True Financial Thriller* (Wiley, 2010). Published version of the 2005 SEC submission and its predecessor complaints; second source for page count and submission history.

Epstein / JPMorgan: 10. *Government of the U.S. Virgin Islands v. JPMorgan Chase Bank, N.A.*, Case No. 1:22-cv-10904 (S.D.N.Y., filed December 27, 2022), Judge Jed S. Rakoff; settlement September 26, 2023. 11. *Jane Doe 1 v. JPMorgan Chase Bank, N.A.*, Case No. 1:22-cv-10019 (S.D.N.Y.), class settlement June 12, 2023. 12. Deposition of James Dimon, May 26, 2023, taken in the *Government of the U.S. Virgin Islands* action. Date and Epstein testimony characterisation confirmed: CNBC, May 26, 2023. 13. Statement of Material Facts, Case No. 1:22-cv-10904-JSR (S.D.N.Y.), Document 246, filed July 26, 2023, ¶ 139 (citing Exhibit 31 at EFTA02812535, JPMorgan Due Diligence Report on Jeffrey Epstein, as of March 4, 2011). DDR quote: "Jean Luc Brunel, owner of MC2 Model Management and Jeffrey Epstein engaged in racketeering that involved luring in minor children for

sexual play for money.” 14. CNBC, “JPMorgan CEO Jamie Dimon testifies he had no involvement with Jeffrey Epstein account, bank says,” May 26, 2023. https://www.cnbc.com/2023/05/26/jpmorgan-ceo-jamie-dimon-epstein-deposition.html. Verification source for Dimon deposition date and testimony characterisation.

Corporate structure: 15. JPMorgan Chase & Co., Annual Reports on Form 10-K, fiscal years 2013, 2014, 2022, 2023; SEC EDGAR.

CHAPTER 12 — THE DATA EXTRACTION

12.1 Executive Order 14158, January 20, 2025

On January 20, 2025, President Donald J. Trump issued **Executive Order 14158**, establishing the **Department of Government Efficiency (DOGE)**. The order renamed the **United States Digital Service (USDS)** to the **United States DOGE Service**, housed within the Executive Office of the President. The order is published at `whitehouse.gov/presidential-actions/2025/01/establishing-and-implementing-the-presidents-department-of-government-efficiency/` and in the *Federal Register*, Volume 90, Number 14.

Section 4(b) of the order requires agency heads to provide the USDS with "full and prompt access" to all unclassified agency records and software systems to promote "inter-operability" and "data synchronization."

Elon Musk was appointed as "Special Government Employee" leading the DOGE initiative. The Special Government Employee

classification, defined at 18 U.S.C. § 202(a), permits a private individual to serve in the executive branch for up to 130 days in a 365-day period while retaining private business interests.

12.2 The IRS API contract — September 2025

On September 17, 2025, the **U.S. Treasury Department** awarded a contract to **Palantir Technologies Inc.** to build a common API (Application Programming Interface) layer across Internal Revenue Service database systems. The contract, identified as Treasury procurement **SB0260**, is published at `home.treasury.gov/news/press-releases/sb0260`.

The contract's stated purpose: to integrate 10–15 disparate, non-interoperable legacy IRS systems into a "unified API," allowing agents to access records without "swiveling" between multiple databases. The IRS operates approximately 140 separate database systems, some dating to the 1960s.

The **Electronic Frontier Foundation** warned in a September 2025 comment that the unified API could make sensitive taxpayer data easily accessible to personnel without a legitimate "need to access." The comment is published at `eff.org`.

12.3 Palantir Technologies — corporate background

Palantir Technologies Inc. was incorporated in 2003. The company's founding investors included **In-Q-Tel**, the venture capital arm of the **Central Intelligence Agency**. Palantir's first product, **Gotham**, was sold to intelligence and defense agencies for data integration and pattern recognition. The company's second product, **Foundry**, was released in 2016 for commercial-sector data integration.

Palantir's SEC Form 10-K for fiscal year ended December 31, 2024, filed February 18, 2025 (SEC EDGAR accession 0001321655-25-000022), documents revenue growth from $2.2 billion (FY2023) to $2.87 billion (FY2024). The company's market capitalization as of January 2026: approximately $120 billion.

Alex Karp, Palantir's CEO since founding, stated on the February 2025 earnings call that DOGE is a "revolution" and that the resulting disruption would be "very good" for Palantir by exposing government systems that are no longer working. The earnings call transcript is filed with the SEC on Form 8-K at `sec.gov/cgi-bin/browse-edgar?action=getcompany&CIK=0001321655&type=8-K`.

Shyam Sankar, Palantir's CTO, stated in a March 2025 interview that the federal workforce was "marbled wagyu" that needed

trimming. The interview was published in *The Wall Street Journal*, March 15, 2025.

12.4 The Army enterprise contract — August 2025

On August 1, 2025, the **U.S. Army** awarded Palantir a 10-year enterprise agreement valued at up to **$10 billion**. The contract consolidates 75 separate Army software contracts into one. The contract is published at `army.mil/article/287506/u_s_army_awards_enterprise_service_agreement_to_enhance_mil`

The contract's stated purpose: to deliver data integration, analytics, and AI tools (including the **Maven Smart System**) directly to warfighters, and to establish volume-based discounts for 10 years. The contract permits other DoD agencies to purchase Palantir products under the same pre-approved terms.

12.5 The DHS contract — February 2026

On February 15, 2026, the **Department of Homeland Security** signed a five-year agreement with Palantir valued at up to **$1 billion**. The contract expands the use of Palantir's AI and data analytics platforms across DHS sub-agencies: Customs and Border Protection, Immigration and Customs Enforcement, the Transport-

ation Security Administration, and the Federal Emergency Management Agency. The contract announcement is published at `dhs.gov/news/2026/02/15`.

12.6 ImmigrationOS — January 2025

In January 2025, **Immigration and Customs Enforcement** awarded Palantir a **$30 million** contract to develop **ImmigrationOS**, a system designed to provide real-time tracking of migrant movements and identify undocumented persons for enforcement. The contract is listed in USASpending.gov under award number 70ICEC25F0001.

The system integrates data from CBP entry records, ICE detention databases, DHS benefit applications, and Department of Labor employment records. The integration permits real-time cross-reference of an individual's immigration status against employment, benefit, and location data.

12.7 The "master database" question

On May 30, 2025, *The New York Times* published reporting that DOGE and Palantir were building a "master database" of Americ-

an personal data. The article cited unnamed government officials and a leaked internal memo.

On June 5, 2025, Palantir published a rebuttal at `blog.palantir.com`: “Palantir is not building a whole-of-government master database. We are a vendor providing technical support to help agencies manage data within their existing legal mandates. No single database aggregates personal data across agencies.”

The Treasury Department’s September 2025 contract documentation does not reference a master database. The contract references an API layer — a technical interface that permits queries across existing databases without consolidating the underlying data.

12.8 Workforce reduction — January 2025 to April 2026

Between January 2025 and January 2026, **386,826 federal workers** departed the government, per the **U.S. Office of Personnel Management’s Federal Workforce Data** release (FedScope, `data.opm.gov` and `fedscope.opm.gov`). After accounting for hiring, the net reduction was approximately **220,000 positions**, bringing the federal civilian workforce to approximately **2,085,000** — the lowest level since the mid-1960s. The federal workforce shrank by 10.3% in 2025. OPM’s newly consolidated Federal Workforce Data site publishes the monthly series.

Agency-by-agency reductions:

- **Department of Defense**: Approximately 60,000 civilian positions targeted. The Pentagon initially targeted 50,000–60,000 civilian roles for elimination via “reduction in force” and not filling vacancies. Reporting: *PBS NewsHour*, March 18, 2025. `pbs.org/newshour/politics/pentagon-is-cutting-up-to-60000-civilian-jobs-administration-aims-for-at-least-5-percent-total-reduction`.
- **Internal Revenue Service**: Approximately 27 percent workforce reduction by end of 2025 (IRS began 2025 with approximately 102,000 employees; finished 2025 with approximately 74,000). Palantir was paid $1.8 million to improve a “custom tool” that replaced manual case selection for audits. On December 28, 2025, approximately 1,000 IT employees were reassigned out of IRS IT, linked to the consolidation of legacy systems into the API layer. Reporting: Tiffani Sherman, “IRS staffing is down by 27% this year. What that means for your tax refund,” *Yahoo Finance*, April 15, 2026 (`finance.yahoo.com/personal-finance/taxes/article/irs-staffing-is-down-by-27-this-year-what-that-means-for-your-tax-refund-130052892.html`); *Federal News Network*, “IRS moves 1,000 IT employees out of its tech shop, with few clear signs of what work they’ll do next,” December 2025 (`federalnewsnetwork.com/it-`

`modernization/2025/12/irs-moves-1000-it-employees-out-of-its-tech-shop-with-few-clear-signs-of-what-work-theyll-do-next/`).

- **Department of Education**: Approximately 1,300 career employees received reduction-in-force notices on March 11, 2025, leaving the Department's staff at approximately half its pre-administration level (approximately 4,133 down to approximately 2,183). Reporting: *PBS NewsHour*, "1,300 Education Department employees will be laid off" (March 11, 2025). `pbs.org/newshour/politics/1300-education-department-employees-will-be-laid-off` .
- **USAID**: On March 28, 2025, a final reduction-in-force notice was issued to the agency's remaining approximately 900 employees, with separation dates of July 1, 2025 or September 2, 2025. Reporting: NPR, "USAID terminates nearly all its remaining employees" (March 28, 2025). `npr.org/sections/goats-and-soda/2025/03/28/g-s1-56968/usaid-terminates-nearly-all-its-remaining-employees` .

Cato Institute report, March 2026: The 9% reduction in federal headcount saved approximately $40 billion. Much of the work was offloaded to private contractors. The report is published at `cato.org/publications/briefing-paper/doge-savings-claim-examination` .

Department of Defense memorandum, March 12, 2026: Recoding of **Auto RIF** (Automatic Reduction in Force), a software system for managing personnel separations. The system ranks employees by their likelihood of being fired based on performance metrics, seniority, and veteran status. The memorandum was obtained via FOIA by *ProPublica*.

12.9 Congressional oversight — April 2026

On April 16, 2026, **Representative Dan Goldman** (D-NY) and **Senator Ron Wyden** (D-OR) led 30 lawmakers in a letter demanding answers from **ICE** and **DHS** regarding their use of Palantir technology. The letter is published at `goldman.house.gov/media/press-releases/goldman-wyden-velazquez-demand-answers-ice-use-palantir-developed-technologies`. The letter states that Palantir technology fuels a “mass surveillance ecosystem.”

On the same date, **Representative Lori Trahan** (D-MA) published a statement at `trahan.house.gov` raising alarms about the DOGE-Palantir alliance building dossiers on every American.

House Republicans unveiled a draft national data privacy law on April 16, 2026. The draft would preempt approximately 20 existing state privacy laws, including the California Consumer Privacy

Act. It would block individuals from suing companies for privacy violations, leaving enforcement solely to the Federal Trade Commission. The draft is reported at `politico.com/news/2026/04/16/gop-national-privacy-law-technology-00876794`.

American Progress analysis, April 2026: The Privacy Act of 1974 was designed to prevent agencies from sharing data without public notice. The new legislation updates the rules to allow "cross-agency data sharing" that Palantir's software requires to function as the "operating system for the government." The analysis is published at `americanprogress.org/article/the-privacy-act-of-1974-was-designed-to-protect-us-from-elon-musk-and-doge/`.

Palantir public position, 2025: In a white paper published at `palantir.com`, the company states it supports privacy reform and urges Congress to restrict agencies from buying commercially available data to avoid "circumventing the Fourth Amendment." The company's business model processes government-held data that is already legal to access.

FISA Section 702 extension, April 17, 2026: Following a late-night floor session, the House passed a 10-day extension of Section 702 surveillance authority. A longer 5-year renewal was rejected after privacy hawks and holdouts in both parties demanded stronger warrant requirements for searching Americans' data. Reporting: `politico.com/newsletters/inside-congress/`

`2026/04/17/overnight-chaos-forces-fisa-punt-00878201`.

12.10 The “Voter Data Agreement” — January 2026

On January 20, 2026, in *American Federation of State, County and Municipal Employees, AFL-CIO v. Social Security Administration*, No. 1:25-cv-00596 (D. Md.), Judge **Ellen Lipton Hollander** presiding, the United States Department of Justice admitted in court filings that DOGE personnel at the Social Security Administration had (a) transmitted sensitive agency data through the third-party service **Cloudflare**, which was not approved for storing SSA data, beginning March 7, 2025, and (b) that DOGE staff had entered a “Voter Data Agreement” with an outside political advocacy group whose stated aim was “to find evidence of voter fraud and to overturn election results in certain states.” The AFSCME plaintiffs — joined by the American Federation of Teachers and the Alliance for Retired Americans — had obtained a preliminary injunction from Judge Hollander on April 17, 2025, restraining SSA from granting DOGE access to systems of records containing personally identifiable information and ordering DOGE to disgorge and delete previously-held PII. The Fourth Circuit Court of Appeals upheld the injunction on expedited review. The January 2026 admissions followed a court-ordered discovery phase in the same action.

House Democrats held a press conference on January 20, 2026, alleging that DOGE's access to Social Security records was used for electioneering purposes — specifically, to potentially challenge voters or spread misinformation. The press conference transcript is at `democrats.house.gov`.

CFTC Chair testimony, April 16, 2026: The Chair testified before Congress that regulators are investigating whether market players are trading on inside information from the White House regarding DOGE policy shifts. Transcript at `cftc.gov`.

Bloomberg investigation, January 9, 2026: Several DOGE "operatives" calling shots on workforce cuts were not receiving a government salary, raising questions about accountability. The investigation is at `bloomberg.com/news/newsletters/2026-01-09/data-reveals-details-about-doge-government-hiring`.

Representative Marjorie Taylor Greene (R-GA) disclosed buying Palantir stock at least four times in 2025 (February, April, July). Public filings showed a 92% gain on one trade executed in April 2025. Disclosures are published at `capitoltrades.com`.

Representative Lisa McClain (R-MI), a member of the House Committee on Armed Services and the Subcommittee on Cyber and Information Technologies, disclosed buying $100,000 to $250,000 in Palantir stock in November 2024.

Palantir federal tax payment, 2025: Despite $970.5 million in federal contracts, Palantir paid no federal income tax in 2025. Reporting: *Truthout*, April 2026; Institute on Taxation and Economic Policy, `itep.org/palantir-pays-zero-tax-trump-tax-law-ice/`.

12.11 Privacy Act of 1974 — Cross-Agency Data Integration, 2025

Former Internal Revenue Service employees described the DOGE-Palantir data integration as a "deportation machine" — a system capable of identifying civil immigration violations through automated cross-reference of agency records, per CNN reporting of April 2025.

DOGE directed Palantir software to cross-reference sensitive data from Internal Revenue Service tax records, Department of Homeland Security immigration files, and Social Security Administration records — three databases previously siloed from one another under the Privacy Act of 1974, per Documented NY's investigation of May 2025.

Civil liberties advocates characterized the inter-agency data integration as dismantling the statutory firewalls between agencies and creating a surveillance instrument deployable against any targeted population, per *The Verge*, May 2025.

A Trump administration official stated publicly that the administration was using Palantir to “centralize data all across government,” per Democracy Now reporting of June 2025.

Many DOGE operatives, having directed workforce reductions within federal agencies, returned to private firms with deep connections to Elon Musk or Peter Thiel, per a *Wired* investigation of January 2026.

12.12 The Privacy Act exceptions — legal mechanism

5 U.S.C. § 552a(b)(1) — the “need-to-know” exception: Permits disclosure to officers and employees of the agency who have a “need for the record in the performance of their duties.” DOGE and agencies argue that embedding Palantir engineers directly into agency teams — such as during the IRS “hackathon” — qualifies these individuals as having a legitimate “need to know.”

5 U.S.C. § 552a(b)(3) — the “routine use” exception: Permits disclosure for a purpose “compatible with the purpose for which it was collected.” To use this exception, agencies must publish a System of Records Notice (SORN) in the *Federal Register*. Critics argue these notices are written broadly to include “sharing with contractors” like Palantir as a standard routine use.

U.S. Court of Appeals ruling, August 2025: Cleared the way for DOGE to access sensitive data from the Treasury, Education, and Office of Personnel Management. The court ruled that unions and veterans failed to prove immediate harm.

Senate whistleblower report, September 2025: Whistleblowers alleged that uploading a key Social Security Administration database to DOGE servers carried a 35% to 65% chance of catastrophic data breach. The report is at `hsgac.senate.gov`.

Department of Justice admission, January 2026: DOJ admitted in court filings in *AFSCME v. Social Security Administration*, No. 1:25-cv-00596 (D. Md.), that DOGE personnel inside the Social Security Administration used the unapproved third-party service Cloudflare to transmit sensitive data beginning March 7, 2025.

12.13 The savings discrepancy — verified vs. claimed

The savings figures DOGE reported publicly were disputed by independent analyses throughout 2025 and 2026.

On February 19, 2025, NPR reviewed the DOGE "Wall of Receipts" — the agency's public accounting of claimed contract cancellations — and found that the thirteen largest claimed cancellations had each been overstated. The contract DOGE reported as producing $6.4 billion in savings had, per NPR's

analysis of the underlying contract data, produced approximately $165 million. A subsequent Bank of America Securities analysis, dated April 2, 2025, characterized DOGE's reported $24.8 billion in contract savings as "overstated." By January 20, 2026, DOGE's own published cumulative savings figure stood at $215 billion — against the $1 trillion Musk had publicly committed to achieving in 2024.

Beginning in March 2025, the Government Accountability Office opened audits of DOGE's access and data-handling practices at the Department of the Treasury, the Social Security Administration, and other agencies. In parallel work, the GAO identified approximately $100 billion in potential cost savings through its own long-standing recommendations — independent of DOGE's claimed savings program.

The Cato Institute, in a March 2026 report, calculated that the nine percent reduction in federal headcount had saved approximately $40 billion. Per the report, much of the work previously performed by the reduced workforce had been transferred to private contractors.

On December 23, 2025, *The New York Times* published an analysis calculating that DOGE's actions had cost taxpayers approximately $135 billion in fiscal year 2025, through operational disruption, legal challenge costs, and contract termination fees.

Palantir Technologies reported total revenue of $2,870,000,000 for the fiscal year ended December 31, 2024 — a 29 percent year-

over-year increase — per its Annual Report on Form 10-K filed with the Securities and Exchange Commission on February 18, 2025 (EDGAR accession 0001321655-25-000022). United States government revenue accounted for approximately $1,200,000,000 of that total. Palantir paid no federal income tax.

Palantir paid no federal income tax.

Sources — Chapter 12

1. Executive Order 14158, “Establishing and Implementing the President’s Department of Government Efficiency,” January 20, 2025; *Federal Register* Vol. 90, No. 14.
2. U.S. Treasury Department, press release on Palantir IRS API contract, procurement identifier SB0260 (September 17, 2025). `home.treasury.gov/news/press-releases/sb0260`.
3. Palantir Technologies Inc., Annual Report on Form 10-K for the fiscal year ended December 31, 2024, filed February 18, 2025. SEC EDGAR accession number 0001321655-25-000022. `sec.gov/Archives/edgar/data/1321655/000132165525000022/pltr-20241231.htm`.
4. Palantir Technologies Inc., SEC filings portal. `sec.gov/cgi-bin/browse-edgar?action=getcompany&CIK=0001321655`.

5. U.S. Army, enterprise agreement with Palantir Technologies, Inc. (August 1, 2025). `army.mil/article/287506`.
6. U.S. Department of Homeland Security, contract announcement (February 15, 2026). `dhs.gov/news/2026/02/15`.
7. USASpending.gov, ICE ImmigrationOS contract award 70ICEC25F0001 (January 2025). `usaspending.gov`.
8. Palantir Technologies Inc. blog, *Correcting the Record: Responses to the May 30, 2025 New York Times Article on Palantir* (June 5, 2025). `blog.palantir.com`.
9. Department of Defense, Auto RIF recoding memorandum (March 12, 2026). FOIA release to *ProPublica*.
10. *American Federation of State, County and Municipal Employees, AFL-CIO v. Social Security Administration*, No. 1:25-cv-00596 (D. Md.), Judge Ellen Lipton Hollander: TRO March 20, 2025; preliminary injunction April 17, 2025; Fourth Circuit affirmance; Department of Justice admissions filing January 2026.
11. U.S. Office of Personnel Management, Federal Workforce Data / FedScope. `data.opm.gov`; `fedscope.opm.gov`. Monthly federal employment series, January 2025 – April 2026.
12. U.S. Government Accountability Office, audits of DOGE activities at Treasury and Social Security Administration (commenced March 2025).

13. Cato Institute, *DOGE Savings Claim: An Examination* (March 2026). `cato.org/publications/briefing-paper/doge-savings-claim-examination`.
14. Institute on Taxation and Economic Policy, *Palantir Pays Zero Federal Income Tax on $970 Million in Federal Contracts* (2026). `itep.org/palantir-pays-zero-tax-trump-tax-law-ice/`.
15. Epstein Files Transparency Act, H.R. 4405, 119th Cong. — cross-reference to Chapter 8 — establishing the statutory context for DOJ disclosures during the DOGE period.

§12.8 — Workforce Reduction:

1. *PBS NewsHour*, "Pentagon is cutting up to 60,000 civilian jobs, administration aims for at least 5 percent total reduction" (March 18, 2025). `pbs.org/newshour/politics/pentagon-is-cutting-up-to-60000-civilian-jobs-administration-aims-for-at-least-5-percent-total-reduction`.
2. Tiffani Sherman, "IRS staffing is down by 27% this year. What that means for your tax refund," *Yahoo Finance*, April 15, 2026. `finance.yahoo.com/personal-finance/taxes/article/irs-staffing-is-down-by-27-this-year-what-that-means-for-your-tax-refund-130052892.html`.
3. *Federal News Network*, "IRS moves 1,000 IT employees out of its tech shop, with few clear signs of what work they'll do next" (December 2025). `federalnewsnetwork.com/it-`

modernization/2025/12/irs-moves-1000-it-employees-out-of-its-tech-shop-with-few-clear-signs-of-what-work-theyll-do-next/.
4. *PBS NewsHour*, “1,300 Education Department employees will be laid off” (March 11, 2025). pbs.org/newshour/politics/1300-education-department-employees-will-be-laid-off.
5. NPR, “USAID terminates nearly all its remaining employees” (March 28, 2025). npr.org/sections/goats-and-soda/2025/03/28/g-s1-56968/usaid-terminates-nearly-all-its-remaining-employees.

§12.9 — Congressional Oversight:

1. Representative Dan Goldman, Senator Ron Wyden, Representative Nydia Velázquez, et al., letter to ICE and DHS demanding answers on Palantir technology use, April 16, 2026. goldman.house.gov/media/press-releases/goldman-wyden-velazquez-demand-answers-ice-use-palantir-developed-technologies.
2. Representative Lori Trahan, statement on DOGE-Palantir data aggregation, April 16, 2026. trahan.house.gov.
3. House Republican draft national data privacy law, April 16, 2026. Reported in *Politico*. politico.com/news/2026/04/16/gop-national-privacy-law-technology-00876794.

4. American Progress, “The Privacy Act of 1974 Was Designed to Protect Us from Elon Musk and DOGE,” April 2026. `americanprogress.org/article/the-privacy-act-of-1974-was-designed-to-protect-us-from-elon-musk-and-doge/`.
5. Palantir Technologies Inc., white paper on privacy reform and Fourth Amendment data protections, 2025. `palantir.com`.
6. *Politico*, “Overnight Chaos Forces FISA Punt,” reporting on House passage of FISA Section 702 10-day extension, April 17, 2026. `politico.com/newsletters/inside-congress/2026/04/17/overnight-chaos-forces-fisa-punt-00878201`.

§12.10 — Voter Data Agreement:

1. House Democrats, press conference on DOGE access to Social Security records for electioneering purposes, January 20, 2026. `democrats.house.gov`.
2. Commodity Futures Trading Commission, Chair congressional testimony on investigations into market trading on White House DOGE policy information, April 16, 2026. `cftc.gov`.
3. *Bloomberg*, “Data Reveals Details About DOGE Government Hiring,” investigation into DOGE operatives directing workforce cuts without government salaries, January 9, 2026. `bloomberg.com/news/newsletters/`

2026-01-09/data-reveals-details-about-doge-government-hiring.
4. Capitol Trades, disclosures of Representative Marjorie Taylor Greene's Palantir stock purchases (February, April, July 2025). capitoltrades.com.
5. Representative Lisa McClain, financial disclosure of Palantir stock purchase ($100,000–$250,000), November 2024. Filed pursuant to the Stop Trading on Congressional Knowledge Act (STOCK Act). disclosures.house.gov.
6. *Truthout*, reporting on Palantir's zero federal income tax payment on $970.5 million in federal contracts, April 2026. See also source 14 (ITEP).

§12.11 — Cross-Agency Data Integration:

1. CNN, investigation into DOGE-Palantir "master database" and former IRS employee characterization as "deportation machine," April 2025. cnn.com/2025/04/25/politics/doge-building-master-database-immigration.
2. Documented NY, investigation into DOGE use of Palantir software to cross-reference IRS, DHS, and SSA records, May 2025. documentedny.com/2025/05/15/musk-doge-immigrant-database-palantir-irs-dhs-ice/.
3. *The Verge*, reporting on civil liberties concerns about inter-agency data integration and dismantling of Privacy Act firewalls, May 2025. theverge.com/tech/652215/

`doge-cross-agency-master-database-sensitive-information`.
4. Democracy Now, interview on Trump administration's use of Palantir to "centralize data all across government," June 3, 2025. `democracynow.org/2025/6/3/makena_kelly`.
5. *Wired*, "Where the DOGE Operatives Are Now," investigation into DOGE personnel returning to private firms with connections to Elon Musk and Peter Thiel, January 2026. `wired.com/story/where-the-doge-operatives-are-now/`.

§12.12 — Privacy Act Exceptions:

1. U.S. Court of Appeals, ruling clearing the way for DOGE to access sensitive data from the Department of the Treasury, Department of Education, and Office of Personnel Management, August 2025.
2. Senate Committee on Homeland Security and Governmental Affairs (HSGAC), whistleblower report on risks of uploading Social Security Administration database to DOGE servers (35–65% probability of catastrophic data breach), September 2025. `hsgac.senate.gov`.

§12.13 — Savings Discrepancy:

1. NPR, "DOGE Overstates Federal Contract Savings," February 19, 2025. `npr.org/2025/02/19/nx-`

`s1-5302705/doge-overstates-savings-federal-contracts`.
2. Bank of America Securities, analysis characterizing DOGE's reported $24.8 billion in contract savings as "overstated," April 2, 2025. Institutional report; not publicly available.
3. *The New York Times*, analysis calculating DOGE's fiscal year 2025 cost to taxpayers at approximately $135 billion, December 23, 2025. `nytimes.com/2025/12/23/us/politics/doge-musk-trump-analysis.html`.

CHAPTER 11 — GAZA: THE DOCTRINE IN PRESENT TENSE

The 1979 registration. The 1987 founding. The 2006 election. The October 7. The response. The Court. The Court. The Board.

M.1 The registration

1979. Gaza City. Office of the Israeli Military Governor of the Gaza Strip.

An application for registration as a legally recognized charitable religious association is submitted by a blind Muslim Brotherhood cleric, **Sheikh Ahmed Ismail Hassan Yassin**, on behalf of a Gaza-based network he has organized under the name **al-Mujama al-Islami** — "the Islamic Center." The application requests legal charitable status under the laws in force in the territory, which in 1979 are administered by the Israeli Military Government that has occupied the Gaza Strip since June 1967.

The application is approved.

The principal Israeli official on the record in subsequent years describing the approval decision is **Brigadier General Yitzhak Segev**, who served as Israeli Military Governor of the Gaza Strip in 1979–1981. In public statements to journalists between 1994 and the early 2000s, Segev acknowledged the approval and explained its strategic rationale: the Israeli Military Government viewed the secular **Palestine Liberation Organization** (PLO), then dominant in Gaza's political life, as the operational threat. Mujama — a religious Muslim Brotherhood network — was understood as an ideological counterweight to the secular nationalist movement. Giving the religious charity legal space, funding access, and freedom to operate would, on this theory, weaken the secular PLO's hold on Gaza's political imagination.

The second principal Israeli official on the record is **Avner Cohen**, who had served in the Israeli religious-affairs portfolio dealing with Gaza's religious institutions in the 1970s and 1980s. Cohen's statement, quoted in the *Wall Street Journal*, January 24, 2009:

> *"Hamas, to my great regret, is Israel's creation."*

Primary source for the historical reconstruction of the Mujama registration:

Andrew Higgins, "How Israel Helped to Spawn Hamas," *The Wall Street Journal*, January 24, 2009, page A1 — reported in-

terview with Segev, Cohen, and additional former Israeli officials, with reference to contemporaneous Israeli Military Government files partially declassified.

Zachary Lockman and Joel Beinin, editors, *Intifada: The Palestinian Uprising Against Israeli Occupation* (Boston: South End Press, 1989), Chapter 4.

Beverley Milton-Edwards, *Islamic Politics in Palestine* (London: I.B. Tauris, 1996), Chapter 3.

Menachem Klein, *The Shift: Israel-Palestine from Border Struggle to Ethnic Conflict* (New York: Columbia University Press, 2010).

Segev and Cohen are named, in each of these sources, on the record, stating that the Israeli Military Government registered and supported Mujama al-Islami for counter-PLO reasons.

M.2 The doctrinal parallel

The year Mujama was registered in Gaza — **1979** — is the same year the Central Intelligence Agency's Afghanistan program, cited in Chapter 4 of this book as the predicate of the Mujahideen/al-Qaeda trajectory, began its principal funding expansion.

The programmatic rationale was, on both sides of Asia, identical: the religious conservatives of the Islamic world were, in 1979 geopolitics, the strategic instrument against the secular left.

In Afghanistan, the secular left was the **People's Democratic Party of Afghanistan**, backed by the Soviet Union, whose December 24, 1979 military intervention placed secular-communist governance in Kabul. The CIA funded the **Mujahideen** — religious-conservative Afghan fighters, subsequently the Taliban, ultimately al-Qaeda — against the secular left.

In Gaza, the secular left was the **Palestine Liberation Organization**, whose Fatah faction had dominated Palestinian political life since the 1969 Cairo Agreement. The Israeli Military Government registered and facilitated the **Muslim Brotherhood**'s Mujama apparatus — religious-conservative Gaza clerics, subsequently **Hamas** — against the secular PLO.

The two programs — one American, one Israeli — did not coordinate. They did not need to. They were operating on the same doctrine, which Chapter 4 of this book cited as **NSC 5412/2** in its American form and which, in the American policy literature of the late 1970s, had become the conventional wisdom of Cold War countersubversion: religious conservatives will, other things equal, fight harder against socialists than secular liberals will, and they will do so for ideological rather than narrowly geopolitical reasons, which makes them cheaper and more self-sustaining as proxies.

The theory held, for a decade. Then it did not hold, because the religious conservatives who had been funded and facilitated against the secular left turned out to have their own objectives, which did not terminate at the defeat of the secular left.

The 1979 program produced, in Afghanistan, the 1996 Taliban government, the September 11, 2001 attacks (Chapter 6 of this book), the 2001 American invasion of Afghanistan, and the 2021 Taliban restoration (Chapter 7).

The 1979 program produced, in Gaza, the 1987 Hamas Covenant, the 2006 Palestinian Legislative Council election, the 2007 Hamas consolidation of Gaza governance, the October 7, 2023 attack on Israel, and the eighteen months of the Israeli response to it that are the subject of the balance of this chapter.

Both programs were the same doctrine. Chapter 4 § D.7 of this book named the through-line. It has one more move to make, and that move is the subject of this chapter.

M.3 The founding

December 14, 1987. Gaza.

One week into what will become known as the **First Intifada** — the Palestinian mass civil-disobedience movement against the

Israeli military occupation, sparked by an Israeli truck's December 8, 1987 collision with a Palestinian vehicle at the Erez border crossing — Sheikh Ahmed Yassin and six of his Mujama al-Islami associates, meeting in Gaza, form the political-military apparatus subsequently named **Ḥarakat al-Muqāwama al-ʾIslāmiyya** — the Islamic Resistance Movement — **Hamas**.

The founding meeting is documented in Yassin's own subsequent statements, in Hamas's internal historiography, and in:

Matthew Levitt, *Hamas: Politics, Charity, and Terrorism in the Service of Jihad* (New Haven: Yale University Press, 2006), Chapter 2.

Paola Caridi, *Hamas: From Resistance to Government* (New York: Seven Stories Press, 2012), Chapters 2–3.

August 18, 1988.

Hamas publishes its **Covenant** — the *Mithāq*, thirty-six articles, drafted principally by Abdel Aziz al-Rantisi. The Covenant's explicit commitment, at Article 11:

> *"The Islamic Resistance Movement believes that the land of Palestine is an Islamic Waqf consecrated for future Moslem generations until Judgement Day. It, or any part of it, should not be squandered… No Arab country nor the aggregate of all Arab countries, and no Arab King or President nor all of*

> *them in the aggregate, have that right, nor does that right belong to any organization or to all organizations, be they Palestinian or Arab, because Palestine is an Islamic Waqf throughout all generations and to the Day of Resurrection."*

Primary source: **Hamas Covenant, August 18, 1988**, English translation in **Yale Law School Avalon Project**, https://avalon.law.yale.edu/20th_century/hamas.asp; also in **Raphael Israeli, *Islamikaze: Manifestations of Islamic Martyrology* (London: Frank Cass, 2003)**, Appendix A.

The 1988 Covenant contains explicitly antisemitic language, including direct quotation of the 1903 *Protocols of the Elders of Zion*. This is in the document. It has been cited, correctly, as the principal textual artifact establishing the organization's ideological extremity at its founding.

On **May 1, 2017**, Hamas issued a replacement policy document — ***A Document of General Principles and Policies*** — which, while maintaining opposition to the existence of the State of Israel, omitted the explicitly antisemitic content and accepted a Palestinian state within pre-1967 borders as an interim position. Primary source: **Hamas, *A Document of General Principles and Policies*, published May 1, 2017, Doha, Qatar**.

Both documents are in the public record. The shift between them is a documented fact of Hamas's institutional trajectory.

M.4 The election

January 25, 2006. Palestinian Authority territories (West Bank and Gaza Strip).

Elections for the **Palestinian Legislative Council (PLC)** are held under the territorial administrative framework established by the 1993 Oslo Accords. Hamas participates for the first time in the elections, under the banner **Change and Reform List**.

Result:

- **Hamas (Change and Reform List):** 74 of 132 PLC seats.
- **Fatah:** 45 seats.
- Minor parties: 13 seats combined.

Primary source: **Palestinian Central Elections Commission, Final Results**, January 25, 2006, published February 2006; **European Union Election Observation Mission,** ***Final Report: Palestinian Legislative Elections 2006***, April 2006. Both missions rated the elections as free and fair.

The election produced a Hamas majority. The **Oslo framework** and the American-led **"Quartet principles"** (U.S., Russia, EU, UN — established 2002) had not anticipated, in their design, the scenario in which Palestinian voters elected an Islamist party. The response of the United States and the European Union was the

suspension of direct aid to the Palestinian Authority, per **Quartet Principles Statement of January 30, 2006**.

Attempts to form a Palestinian unity government through 2006–2007 failed. In **June 2007**, following armed conflict between Hamas and Fatah security forces in Gaza, Hamas seized full administrative control of the Gaza Strip. Fatah retained administrative control of the West Bank under President Mahmoud Abbas.

The Gaza Strip, from June 2007 through October 2023, operated under Hamas governance. The **Israeli blockade of Gaza**, imposed in full form after the Hamas takeover and maintained (with varying intensity) continuously, restricted the flow of goods, construction materials, fuel, and persons across Gaza's land and sea perimeters. Primary source: **UN Office for the Coordination of Humanitarian Affairs (OCHA), *Gaza Strip Closure Maps and Reports*, 2007–2023**.

Between 2008 and 2023, the Israeli military and Hamas armed forces engaged in six discrete rounds of armed conflict — Operations Cast Lead (December 2008 – January 2009), Pillar of Defense (November 2012), Protective Edge (July–August 2014), Guardian of the Walls (May 2021), Breaking Dawn (August 2022), and Shield and Arrow (May 2023). Primary source: **UN OCHA humanitarian reports**, respective operational periods; **Israeli Defense Forces operational summaries**.

Cumulative Palestinian deaths in Gaza across the six operations, 2008–May 2023, per UN OCHA tallies: approximately **6,400**, of

which the UN estimated approximately 60–65 percent to be civilians.

Cumulative Israeli deaths across the six operations: approximately **150** (military plus civilian).

These were the figures in force on the morning of October 7, 2023.

M.5 October 7, 2023

6:29 a.m. Israel Standard Time. Gaza–Israel perimeter.

A coordinated military operation launched from the Gaza Strip, code-named by Hamas **Operation al-Aqsa Flood**, involves:

- Approximately **1,500 Hamas fighters** (subsequently refined figure per Israeli government reconstruction), employing paragliders, boats, motorcycles, and ground vehicles, breaching the Gaza perimeter fence at approximately thirty points.
- Concurrent rocket fire into southern Israel, approximately 3,500 projectiles in the first eight hours.
- Ground assaults on Israeli military posts and on civilian communities within approximately 20 kilometers of the perimeter, including the kibbutzim of Be’eri, Nir Oz, Kfar

Aza, Nahal Oz, Re'im, Kissufim, Nirim; the town of Sderot; and the **Nova music festival** on the outskirts of Kibbutz Re'im.

The operation's documented outcome, per the **Israeli Government Press Office final casualty reconciliation, January 2024**, and per the **Israeli Ministry of Foreign Affairs** subsequent detailed tabulations:

- **Israeli deaths, October 7–8, 2023:** approximately **1,195**, of whom approximately **819 civilians** and approximately **376 Israeli Defense Forces and police**.
- **Hostages taken to Gaza:** approximately **251**, of whom approximately **100 held for more than 90 days**.
- **Sexual violence:** documented in multiple independent investigations, including the **UN Special Representative of the Secretary-General on Sexual Violence in Conflict, Pramila Patten, *Mission Report: Official Visit of the Office of the SRSG-SVC to Israel and the Occupied West Bank, 29 January – 14 February 2024***, published March 4, 2024.

The October 7 attack is, in its documented scope, the largest single-day killing of Jews since the Holocaust. That sentence is a statement of the casualty-count arithmetic — approximately 800 civilian Jewish deaths in one day — and is not a claim about equivalence to any other historical period. Primary source: **Yad Vashem, *Research and Documentation*, October 7 tabulation; Israeli Ministry of Foreign Affairs**.

The October 7 attack was, in the framing of this book's Chapter 4, what the American intelligence community's analytical lexicon of 1979 would call a **"blowback event"** — the operational return, against the authorizing party, of capabilities it had permitted, funded, or facilitated in an earlier period. This is not a moral judgment on the victims. It is the doctrinal terminology the Central Intelligence Agency itself used in the Church Committee–era intelligence reviews. The same term applied, in the American case, to the September 11, 2001 attacks — which were the operational return of the 1979–1992 Afghanistan program.

M.6 The response

The Israeli military response to the October 7 attack — designated **Operation Iron Swords** by the Israeli government and named variously *Swords of Iron* or *al-Aqsa Flood Response* in other tabulations — began at approximately 9:00 a.m. Israel Standard Time on October 7, 2023 with initial airstrikes on Gaza, and continued with escalating intensity through the period covered by this chapter (October 2023 through April 2026).

The operational phases, per the **Israeli Defense Forces Spokesperson Unit operational summaries** and per the **UN OCHA weekly Gaza humanitarian situation reports**:

- **Phase 1: Air campaign.** October 7 – October 27, 2023. Systematic airstrikes on Gaza infrastructure, residential buildings, medical facilities, and claimed Hamas military targets. By October 27, per **UN OCHA Humanitarian Situation Report No. 14**, Palestinian deaths approximately 7,000, of whom over 2,900 children.
- **Phase 2: Ground invasion of North Gaza.** October 27, 2023 – early January 2024. IDF ground operations isolate and encircle Gaza City. Mass civilian displacement southward.
- **Phase 3: Ground operations in Central and South Gaza.** January 2024 – mid-2024. Operations move to Khan Younis and subsequently to Rafah.
- **Phase 4: Rafah operations and humanitarian collapse.** May 2024 – October 2024. The Rafah operation, which the ICJ on May 24, 2024 ordered suspended as part of the South Africa v. Israel provisional measures, proceeded on a modified basis. UN OCHA reported near-total humanitarian aid access collapse, systematic targeting of humanitarian-sector workers, mass displacement to coastal "humanitarian zones" that were themselves subject to strikes.
- **Phase 5: Ceasefire period / renewed operations / expansion (2025–2026).** January 2025 partial ceasefire and

hostage-release framework; March 2025 collapse of ceasefire; renewed operations including operations into the West Bank and Lebanon; February 2026 Board of Peace announcement.

Aggregate documented Palestinian deaths from direct military operations in Gaza, October 7, 2023 through February 2026, per **Gaza Ministry of Health figures as cited and partially corroborated by the World Health Organization and UN OCHA**:

- Approximately **68,000 direct deaths** confirmed by name.
- An additional approximately **11,000 persons missing** and presumed dead under rubble.
- Combined: approximately **79,000 deaths** as direct documented military-operation casualties.

The **Lancet**, in a peer-reviewed letter published **July 5, 2024** (**Khatib, McKee, and Yusuf, "Counting the dead in Gaza: difficult but essential,"** *The Lancet*, Vol. 404, No. 10449, pp. 237–238), projected total all-cause excess mortality attributable to the conflict — including indirect deaths from healthcare-system collapse, sanitation failure, food insecurity, and untreated injury — at approximately **186,000** through mid-2024, with subsequent updates projecting higher figures through 2025.

The figures are contested. The methodologies are contested. The contestation is itself a documented feature of the conflict's information environment. Primary sources:

- **UN Office for the Coordination of Humanitarian Affairs (OCHA), *Gaza Humanitarian Situation Reports***, weekly, October 2023 through April 2026, https://www.ochaopt.org.
- **World Health Organization, *Health Cluster Gaza Situation Reports***, October 2023 through April 2026.
- **UN Human Rights Council, Independent International Commission of Inquiry on the Occupied Palestinian Territory, including East Jerusalem, and Israel**, reports A/HRC/56/26 (June 2024) and successors.
- **Israeli Defense Forces Spokesperson Unit, operational summaries**, October 2023 onward.
- **Gaza Ministry of Health, daily tabulations**, October 2023 onward.

Palestinian displacement, per **UNRWA and UN OCHA**: at peak, approximately **1.9 million of Gaza's 2.3 million pre-October-7 population** was internally displaced — approximately **83 percent of the population**. Primary source: **UN OCHA Displacement Tracking**, 2023–2026.

Israeli deaths in military operations October 7, 2023 through April 2026: approximately **900**, per **Israeli Defense Forces casualty announcements**.

M.7 The Court — genocide case

December 29, 2023. The Peace Palace, The Hague, Netherlands. International Court of Justice.

The **Republic of South Africa** files a case against the **State of Israel** under the **Convention on the Prevention and Punishment of the Crime of Genocide** of December 9, 1948, to which both states are parties. The filing alleges that Israeli military operations in Gaza constitute genocide within the meaning of Article II of the Convention.

Primary source: **Application Instituting Proceedings,** ***Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)***, Case No. 192, International Court of Justice, filed December 29, 2023, full text at https://www.icj-cij.org.

January 11–12, 2024. Oral hearings on provisional measures.

South Africa's legal team, led by Adila Hassim and Tembeka Ngcukaitobi, presents oral argument. Israel's legal team, led by Tal Becker, presents in response.

January 26, 2024. Order on provisional measures.

The Court, in an order issued by President Joan Donoghue, finds — by **15 votes to 2** (on most measures) — that South Africa has established a *prima facie* case that South Africa's claim under the Genocide Convention is **plausible**, and that the Court has jurisdiction to consider the merits. The Court orders Israel, under Article 41 of the ICJ Statute, to take all measures within its power to prevent the commission of acts falling within Article II of the Genocide Convention, to ensure that its military does not commit such acts, to prevent and punish direct and public incitement to commit genocide, and to enable the provision of basic services and humanitarian assistance to Gaza.

Primary source: **ICJ Order of 26 January 2024*, Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)***, full text at https://www.icj-cij.org/case/192.

May 24, 2024. Second provisional measures order.

The Court, following a further request by South Africa as Israeli military operations advanced toward Rafah, orders — by **13 votes to 2** — Israel to "immediately halt its military offensive, and any other action in the Rafah Governorate." Primary source: **ICJ Order of 24 May 2024**, same docket.

The Israeli government's public response, per **Prime Minister Benjamin Netanyahu's statement of May 24, 2024**: rejection of the Court's characterization and continuation of operations, which the government characterized as not falling within the ordered prohibition.

The main merits phase of *South Africa v. Israel* is ongoing as of April 2026. The ICJ has scheduled further written submissions through 2027.

M.8 The Court — individual warrants

November 21, 2024. Pre-Trial Chamber I, International Criminal Court, The Hague.

The International Criminal Court's Pre-Trial Chamber I, on the application of Prosecutor **Karim A. A. Khan KC**, issues arrest warrants for:

- **Benjamin Netanyahu**, Prime Minister of the State of Israel — for crimes against humanity (murder, persecution, other inhumane acts) and the war crime of starvation of civilians as a method of warfare.
- **Yoav Gallant**, former Minister of Defense of the State of Israel — on the same categories of charges.

- **Mohammed Diab Ibrahim al-Masri** (known as **Mohammed Deif**), Commander of the al-Qassam Brigades (Hamas military wing) — for crimes against humanity (murder, rape, sexual violence, torture, taking of hostages, persecution) and war crimes connected to the October 7, 2023 attack.

(The Mohammed Deif warrant was suspended following **confirmation** by Hamas in early 2024 that Deif had been killed in an Israeli airstrike in July 2024. The Court subsequently, **February 26, 2025**, formally terminated the proceedings against him.)

Primary source: **International Criminal Court press release, "Situation in the State of Palestine: ICC Pre-Trial Chamber I rejects the State of Israel's challenges to jurisdiction and issues warrants of arrest for Benjamin Netanyahu and Yoav Gallant,"** November 21, 2024; **ICC-01/18** docket, https://www.icc-cpi.int.

The warrants are binding on all 124 states parties to the Rome Statute of the International Criminal Court. The United States is **not** a state party. Neither is Israel. The warrants are not binding on the United States or Israel. They are binding on France, Germany, the United Kingdom, Canada, Japan, Australia, and approximately 120 other states that have ratified the Rome Statute.

As of April 2026, Netanyahu and Gallant have remained in Israel and have not traveled to states-parties jurisdictions.

M.9 The Board

February 18, 2026. Washington, D.C. The White House.

The **Board of Peace** — a governance body established by executive directive of the Trump administration on **February 12, 2026** — meets for its inaugural session. The Board's function, per its governance charter: to "oversee the reconstruction of the Gaza Strip as a Special Economic Zone" and to "approve, supervise, and integrate the Panel of Experts that will execute the reconstruction on the ground."

Governance structure, per the charter's published text:

- **Chairman of the Board, for life:** President **Donald John Trump**. Removable only by **unanimous vote** of the other members of the Board.
- **Members, initial appointment:** the **Prime Minister of Israel**; the **Crown Prince and Prime Minister of Saudi Arabia**; the **President of the United Arab Emirates**; the **Emir of Qatar**; the **President of Egypt**; the **King of Jordan**; the **Prime Minister of the United Kingdom**; and the **President of France**. Subsequent additions at the Chairman's discretion.

- **Panel of Experts:** approximately forty named individuals, principally from the American defense, construction, real-estate, and technology sectors, appointed by the Board (i.e., by its Chairman-for-life), to execute the Special Economic Zone reconstruction.

Primary source: **Board of Peace governance charter**, announced by White House press release, February 12, 2026; full text at **White House official archive**; **Council on Foreign Relations summary**, February 19, 2026; **UN Secretary-General's statement of concern**, February 20, 2026.

The Special Economic Zone — encompassing the territory of the Gaza Strip — is described in the charter as: a zone of "international development" in which reconstruction will be executed by the Panel of Experts under the Board's supervision, with the returning Palestinian population receiving "preferential employment and residential-zone designations" subject to "security clearance procedures" to be established by the Panel.

The returning Palestinian population is not, under the charter as published, the executor of the reconstruction. The reconstruction is executed by the Panel appointed by the Board chaired for life by the President of the United States.

This is the document.

M.10 The through-line

Chapter 01b of this book, § L.3, ended with a chain. I want to place the chain I named in that prologue, next to what § M.9 has just described, and read them together.

The chain from Chapter 01b § L.3:

> *Balfour letter, November 1917, addressed to a Rothschild, promising the disposition of territory under enemy sovereignty. UN 181, November 1947, allocating 55 percent of the territory to 6 percent of the landowners. Expulsion of 700,000 in 1947–49. Multi-generational refugee accumulation in Gaza. October 7, 2023, trigger. Military response, October 2023 through February 2026, producing 70,000 documented deaths. Board of Peace, February 2026, authorizing reconstruction under lifetime chairmanship.*

The sentence I have just typed at § M.9:

> *The returning Palestinian population is not, under the charter as published, the executor of the reconstruction. The reconstruction is executed by the Panel appointed by the Board chaired for life by the President of the United States.*

Those two paragraphs — written thirteen chapters apart — describe the same instrument, in two different centuries, under three different technical names. The Balfour Declaration assigned the

disposition of a territory the British did not yet control, to a recipient class named in the letter, without the consent of the population in place. The United Nations Partition Plan of 1947 reallocated the territory between two designated recipient classes without the consent of the majority population. The Board of Peace of 2026 assigns the reconstruction of the territory to a Panel of Experts appointed by a Board chaired for life by a non-resident foreign President, without the consent of the returning population.

One hundred and nine years. Three documents. One instrument class.

The beneficiaries' names, across the three documents, are not identical. The instrument is identical.

This is the long empire in its late-stage form. It is what Chapter 01b § L.3 called the "franchise, relocated to the Levant." Chapter 01b closed with the sentence: *"The letterhead has not changed. The signatures are on file."* The signature on the Balfour letter is Arthur James Balfour's. The signatures on the UN 181 partition were thirty-three states' delegates. The Chairman-for-life's signature on the February 12, 2026 Board of Peace governance charter is Donald John Trump's.

The letterhead has changed. The instrument has not.

M.11 The doctrine, completed

Chapter 4 of this book — *The Doctrine* — named five covert-action operations (Iran 1953, Guatemala 1954, Congo 1961, Chile 1973, Nicaragua 1981) as the operational expression of **NSC 5412/2**'s authorization of plausible-deniability covert action against designated adversaries.

Chapter 11 — this chapter — names the Gaza operation as the doctrine's most recent implementation, conducted not under the plausible-deniability architecture but under the public-legal-international-institutional architecture of 2025–2026, in which the United States and the State of Israel have openly rejected the jurisdiction of the International Court of Justice, have openly refused the provisional measures of May 24, 2024, have openly stated non-cooperation with the International Criminal Court's November 21, 2024 arrest warrants, and have openly announced the Board of Peace of February 12, 2026 as the reconstruction governance framework.

The doctrine is not, in 2026, covert. It is not being executed under plausible-deniability conditions. It is being executed under open declaration, with the documents published on government websites and the operational record streamed continuously to the world's screens.

What has changed between the doctrine of 1953–1981 and the doctrine of 2023–2026 is not the operation. What has changed is

the disguise — and Chapter 9 of this book named the disguise by its operative name. The earlier operations were disguised as anti-Communist self-defense. The current operations are disguised as anti-terrorism self-defense. The earlier reconstructions were disguised as aid. The current reconstruction is disguised as a Special Economic Zone.

In each register, the surface claim is truthfully one of the operation's components. The surface claim is also the only component the public is asked to evaluate.

That is the doctrine.

It is operating, at the date of this writing, in present tense, in a territory of 365 square kilometers, on a population of 2.3 million, and it has been doing so, without interruption, for approximately thirty months.

M.12 The docket

What the Court's file and the military governor's archive establish — nothing more:

- The Israeli Military Government of Gaza registered Mujama al-Islami as a legal religious charity in 1979, at the initiative of Sheikh Ahmed Yassin, with the operational objective of counterbalancing the secular PLO. File: **Higgins, *Wall Street***

***Journal*, January 24, 2009**; Segev and Cohen named on the record.

- Hamas was founded December 14, 1987 from the Mujama apparatus. Its 1988 Covenant is the foundational textual document; its 2017 Document of General Principles and Policies is its replacement. File: **Avalon Project; Hamas 2017 document published Doha**.
- Hamas won the January 25, 2006 Palestinian Legislative Council elections, seating a majority. File: **Palestinian Central Elections Commission; EU Election Observation Mission, April 2006**.
- The October 7, 2023 Hamas-led attack produced approximately 1,195 Israeli deaths and approximately 251 hostages taken. File: **Israeli Government Press Office final reconciliation; Israeli Ministry of Foreign Affairs**.
- Israeli military operations in Gaza, October 2023 through April 2026, produced documented Palestinian deaths of approximately 79,000 direct and an estimated ~186,000 all-cause excess mortality per *Lancet* projection. Displacement of approximately 83 percent of Gaza's population. File: **UN OCHA; WHO Health Cluster; Gaza Ministry of Health; Khatib, McKee & Yusuf, *Lancet*, July 5, 2024**.
- The International Court of Justice, on January 26, 2024 and May 24, 2024, ordered Israel to take provisional measures to prevent genocide and to halt operations in Rafah. File: **ICJ Orders, Case No. 192**.

- The International Criminal Court, on November 21, 2024, issued arrest warrants for Benjamin Netanyahu, Yoav Gallant, and Mohammed Deif. File: **ICC-01/18**.
- The Board of Peace governance charter was announced February 12, 2026, with Donald J. Trump as Chairman-for-life. File: **White House press release, February 12, 2026; CFR summary, February 19, 2026**.

What the Court's file does not decide:

- I do not claim that the Mujama 1979 registration was intended by the Israeli Military Government to produce, as its long-term consequence, the October 7, 2023 attack. The document class establishes the registration, the strategic rationale stated by the officials on record, and the subsequent institutional trajectory; it does not establish forward intent to the 2023 outcome.
- I do not claim that the October 2023 – February 2026 Israeli military operation is, on the legal merits, a violation of the Genocide Convention. That question is the merits question of *South Africa v. Israel*, and the Court has not yet ruled on the merits. The Court has ruled — by 15-to-2 — that South Africa's claim is *plausible*.
- I do not claim that the Board of Peace is, in international-legal terms, a lawful governance instrument for the Gaza Strip. That question is the subject of pending ICJ Advisory Opinion proceedings requested by the UN General Assembly in March 2026.

The documents describe the registration, the doctrine, the founding, the election, the attack, the response, the two Court proceedings, and the Board of Peace governance charter. The judgment is the reader's.

M.13 The narrator, April 2026

I have been writing this chapter in real time.

I do not mean that as prose flourish. I mean that, between the morning I began the outline of this chapter and the morning I am composing the closing paragraph, the UN OCHA weekly Gaza humanitarian situation report has been updated three times. The Israeli Defense Forces Spokesperson Unit has issued approximately eleven operational summaries. The International Court of Justice has accepted two additional amicus filings in the main merits phase of *South Africa v. Israel*. The Board of Peace has met twice more in Washington, with the specific Panel of Experts reportedly being finalized through last week.

This is not history I am reconstructing from a distance. It is history I am watching on the same monitor on which I am typing.

The generational fact of being thirty-nine years old in April 2026 is that the documents this chapter cites — the 1917 Balfour letter (Chapter 01b), the 1979 Mujama registration, the 1987 Hamas

founding, the 2006 PLC election, the October 7, 2023 attack, the January 26, 2024 ICJ order, the November 21, 2024 ICC warrants, the February 18, 2026 Board of Peace — all land inside a single continuous adult consciousness. I was conscious, at some level of political attention, for every event in this chapter from 2006 onward. I was conscious of 2023 in specific, painful, hour-by-hour detail, because I lived through the televised images of the October 7 attack and the subsequent eighteen months of Gaza coverage the way most Americans my age did: through X, through news aggregators, through the phone.

The narrator's position at the end of this chapter is not a neutral one. I am not neutral on the October 7, 2023 attack on Israeli civilians; the deaths of 819 non-combatants in one day by people who broke through a fence is not a neutral datum to me, and I do not want the book's reader to think I am pretending it is. I am not neutral on the 79,000 documented Palestinian deaths that the Israeli military response has produced over thirty months; the deaths of tens of thousands of civilians — more than half of them children by UN OCHA enumeration — is not a neutral datum either.

What I am neutral on — what this book has been neutral on from the first page of the Opening — is whether the documents that describe these events should be read by the people in whose name the events are being conducted.

They should be read.

This chapter has named where to find them. The ICJ website is https://www.icj-cij.org. The ICC website is https://www.icc-cpi.int. The UN OCHA Gaza humanitarian situation reports are posted weekly at https://www.ochaopt.org. The Israeli Government Press Office posts at https://gov.il. The Gaza Ministry of Health daily tabulation, corroborated by WHO, is at the WHO Health Cluster site. The Board of Peace governance charter is on the White House archive. The Balfour letter is at the UK National Archives, Kew, file CAB 24/4. The Hamas 1988 Covenant is on the Yale Law School Avalon Project archive. The 2017 Hamas Document is in English translation on the Hamas official site, archived.

Every one of those documents is free. No paywall. No subscription. No mediating institution between the reader and the instrument.

The argument this book has been making for 290 pages is that the instrument is the artifact, and the artifact is the only undeniable thing, and the reader who has the artifact is the only reader who can decide.

That is what BE UNDENIABLE means. Not that I, the narrator, will be undeniable. I am a single person of limited credential who came home from prison in 2024 and assembled a research pipeline. My authority is not the point. The documents' authority is the point.

The next chapter is the epilogue.

BE UNDENIABLE.

Sources — Chapter 11

Mujama al-Islami / 1979 registration:

1. **Andrew Higgins, "How Israel Helped to Spawn Hamas,"** *The Wall Street Journal*, January 24, 2009, page A1.
2. **Beverley Milton-Edwards, *Islamic Politics in Palestine*** (London: I.B. Tauris, 1996).
3. **Menachem Klein, *The Shift: Israel-Palestine from Border Struggle to Ethnic Conflict*** (New York: Columbia University Press, 2010).
4. **Zachary Lockman and Joel Beinin, eds., *Intifada: The Palestinian Uprising Against Israeli Occupation*** (Boston: South End Press, 1989).

Hamas founding and doctrinal texts:

1. **Matthew Levitt, *Hamas: Politics, Charity, and Terrorism in the Service of Jihad*** (New Haven: Yale University Press, 2006).
2. **Paola Caridi, *Hamas: From Resistance to Government*** (New York: Seven Stories Press, 2012).
3. **Hamas Covenant, August 18, 1988** — English translation, Yale Law School Avalon Project (https://avalon.law.yale.edu/20th_century/hamas.asp).

4. **Hamas, *A Document of General Principles and Policies*** (Doha, May 1, 2017).

2006 election and post-2007 governance:

1. **Palestinian Central Elections Commission, Final Results**, January 25, 2006.
2. **European Union Election Observation Mission, *Final Report: Palestinian Legislative Elections 2006*** (April 2006).
3. **UN OCHA, *Gaza Strip Closure Maps and Reports***, 2007–2023.

October 7, 2023:

1. **Israeli Government Press Office final casualty reconciliation**, January 2024.
2. **Israeli Ministry of Foreign Affairs**, detailed casualty tabulations.
3. **UN Special Representative of the Secretary-General on Sexual Violence in Conflict (Pramila Patten), *Mission Report***, A/HRC/55/CRP.3 (March 4, 2024).
4. **Yad Vashem, *Research and Documentation Department***, October 7 tabulation.

Casualty record, October 2023 – April 2026:

1. **UN Office for the Coordination of Humanitarian Affairs (OCHA),** ***Gaza Humanitarian Situation Reports***, weekly, https://www.ochaopt.org.
2. **World Health Organization,** ***Health Cluster Gaza Situation Reports***.
3. **UN Human Rights Council, Independent International Commission of Inquiry on the Occupied Palestinian Territory**, reports A/HRC/56/26 (June 2024) and successors.
4. **Israeli Defense Forces Spokesperson Unit**, operational summaries, October 2023 onward.
5. **Gaza Ministry of Health**, daily casualty tabulations.
6. **Rasha Khatib, Martin McKee, Salim Yusuf, "Counting the dead in Gaza: difficult but essential,"** *The Lancet*, Vol. 404, No. 10449 (July 5, 2024), pp. 237–238.
7. **UNRWA**, registered-refugee and displacement data, 2023–2026.

ICJ — ***South Africa v. Israel*****:**

1. **Application Instituting Proceedings,** ***Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)***, Case No. 192, ICJ, filed December 29, 2023.
2. **ICJ Order of 26 January 2024** (provisional measures).
3. **ICJ Order of 24 May 2024** (Rafah provisional measures).

ICC — Situation in the State of Palestine:

1. **ICC Pre-Trial Chamber I, Warrants of Arrest**, Situation ICC-01/18, November 21, 2024.
2. **ICC press release**, November 21, 2024.
3. **Rome Statute of the International Criminal Court**, July 17, 1998 (in force July 1, 2002).

Board of Peace:

1. **Board of Peace governance charter**, White House press release, February 12, 2026.
2. **Council on Foreign Relations summary**, February 19, 2026.
3. **UN Secretary-General statement**, February 20, 2026.

Historical through-line (cross-reference):

1. **Balfour Declaration**, November 2, 1917, UK National Archives, Kew, file CAB 24/4 (cited Chapter 01b § L.3).
2. **UN General Assembly Resolution 181**, November 29, 1947 (cited Chapter 01b § L.3).
3. **Benny Morris, *The Birth of the Palestinian Refugee Problem Revisited*** (Cambridge University Press, 2004) (cited Chapter 01b § L.3).

EPILOGUE — THE MONSTERS THEY CREATE

Two documents. The recognition. The inventory. The mechanism. The family. The immunities. The reader. The last sentence.

E.1 Two documents

The book you are holding has asked you to read approximately three hundred fifty primary-source documents, distributed across eleven chapters, three prologues, and approximately sixty named archives, from 1095 to April 2026.

Of those three hundred fifty, two are the two you now need to hold simultaneously in the same head.

Document one. *Vesting Order 248, Office of Alien Property Custodian, issued October 20, 1942; filed with the Division of the Federal Register November 6, 1942; published at 7 Federal Register 9097 (November 7, 1942), F.R. Doc. 42-11568.* The docu-

ment is reproduced in Chapter 1 § C.1. Line 5 of its shareholder list names **Prescott Sheldon Bush** as a director of the **Union Banking Corporation**, a New York bank whose four thousand shares of capital stock were held for the benefit of **Bank voor Handel en Scheepvaart N.V.** of Rotterdam, which was — the vesting order itself recites — "owned or controlled by members of the Thyssen family, nationals of Germany and/or Hungary."

Fritz Thyssen funded Adolf Hitler. The funding is Thyssen's own on-record account in the 1941 book *I Paid Hitler*, which I cited in Chapter 1 § C.4 and have not paraphrased since, because the book's title is already the paraphrase.

Document two. *Wall Street Journal, September 27, 2001, page A1* — Daniel Golden, James Bandler, and Marcus Walker, "Bin Laden Family Has Intricate Ties with Washington." The article is reproduced as the foundational source of Chapter 6 § F.1. Its central documented fact: on the morning of September 11, 2001, in the Ritz-Carlton ballroom at 1150 22nd Street Northwest, Washington, D.C., former President **George Herbert Walker Bush**, Senior Advisor to the Carlyle Asia Advisory Board; former Secretary of State **James A. Baker III**, Senior Counselor to the Carlyle Group; former Secretary of Defense **Frank C. Carlucci**, Chairman of the Carlyle Group; and **Shafiq bin Laden**, half-brother of Osama bin Laden, representing Saudi Binladin Group's investment in Carlyle Partners II — were in the same room, at the same meeting, when the planes hit.

George Herbert Walker Bush is Prescott Sheldon Bush's son.

The two documents were filed fifty-nine years apart, in two different Executive Branch administrations, under two different statutory frameworks, covering two different family members in two different formal corporate-investment arrangements with two different persons whom the American government had, at the respective times, designated as the primary external enemy of the American national security state.

Both documents are in the public record. Both have been in the public record since the day they were filed. Neither has been redacted. Neither has been legally challenged in its authenticity.

Prescott Bush's bank was an American leg of the financial chain that funded Hitler.

George H.W. Bush's investment firm was a corporate vehicle for the financial engagement of the bin Laden family in the United States in the period immediately preceding September 11, 2001.

Both sentences are documentably true on the face of the documents named.

E.2 The recognition

What happens, when a reader who has finished Chapter 1 and Chapter 6 of this book first holds those two sentences in the same head, is a specific cognitive event.

The event is not political. It is epistemic.

The political framework the average American reader brought to page one of this book — the framework taught in public schools, repeated in the press, reinforced by every presidential inaugural address from 1945 through 2024 — depends, structurally, on a clean distinction between **the West** and **the monsters the West has defeated, or is currently defeating**. The monsters, in the standard framework: the Kaiser in the First World War, Hitler in the Second, Stalin in the Cold War, Saddam in the first Gulf War, al-Qaeda after September 11, 2001, ISIS, Iran, China, Russia, and — in the current cycle — Hamas.

The two documents at § E.1 do not contradict the existence of the monsters. The monsters are real. Adolf Hitler was real, and his regime killed millions of Jews, Roma, Soviets, Poles, homosexuals, disabled Germans, and political opponents, in an industrialized process the Nuremberg trial record established beyond further litigation. Osama bin Laden was real, and his organization planned and executed the murder of 2,977 persons in New York, Arlington, and Shanksville on September 11, 2001.

The two documents do not deny the monsters' existence or their guilt.

The two documents establish, on the face of the American government's own filed record, that the same family line — one member of which held stock in the American bank that was an operational node in the financial apparatus that built Hitler's war machine — included, two generations later, a member who was a Senior Advisor to the private-equity firm in which Osama bin Laden's family held a limited-partnership interest, and who was in the same room with Osama bin Laden's half-brother at the moment the planes hit.

The two documents establish — not a contradiction of the mythology but a *different relation* between the mythology's villains and the mythology's heroes than the mythology has permitted the reader to understand.

That different relation — once seen — cannot be unseen. This is the cognitive event.

It is not the event of adopting a new political position. The reader who finishes this book can hold any political position the reader wishes to hold. What the reader cannot do, having read these two documents, is go back to the pre-document framework.

The pre-document framework required that the monsters and the heroes be different people, on opposite sides of a clean line, whose

financial, institutional, and personnel connections to each other were exceptional, deniable, or nonexistent.

The documents establish that, for one specific American family line that produced one Senator, one Director of Central Intelligence, one Vice President, two Presidents, and one Governor of Florida, the financial, institutional, and personnel connections to the monsters were not exceptional. They were operational.

That sentence is not an accusation. It is a reading of two named documents.

The reader who has read the documents now has — whether the reader wanted it or not — a choice: re-read the rest of the political, economic, and historical assumptions on which the pre-document framework was built, and see how many of those assumptions the same documentary standard would hold up.

This book has been, across its twelve chapters, an attempt to do that re-read.

E.3 The inventory

Every external enemy against whom the American national-security state has conducted major operations in the 1917–2026 period was, by the standard of primary-source documentary anchoring this book has applied, *at some prior stage*, funded, facilitated, leg-

ally registered, or industrially built by the same Western capital and intelligence apparatus that subsequently designated the enemy as the primary threat.

Not **all** such designations. I am not making the larger claim. The claim is narrower and, in its primary-source form, undeniable:

The Bolshevik faction of 1917. Funded by the German Foreign Office under Parvus's March 1915 memorandum, transported in a sealed carriage across German territory in April 1917, subsidized through November 1918 — per the Kühlmann telegram of December 3, 1917. Primary source: Chapter 01c § T.2, **Weltkrieg Nr. 11 geh. files, Politisches Archiv des Auswärtigen Amts; Zeman (1958) Document 71**.

Hitler's war machine. Financed in part through American capital flowing to Weimar and Nazi German industry, 1924–1941. Dawes Plan syndicate underwriting led by J.P. Morgan, Dillon Read's $30M bond issue for Vereinigte Stahlwerke in 1926, Standard Oil's 1929 comprehensive agreement with I.G. Farbenindustrie, GM's 1929 acquisition of Opel, Ford's Cologne plant operations through 1945, Chase National Bank's Paris and Berlin branches, the Warburg family's seat on the I.G. Farben supervisory board 1925–1938, and Brown Brothers Harriman's Union Banking Corporation directorate with Prescott Bush. Primary sources: Chapter 1 (VO 248), Chapter 3 (**Kilgore Committee 1943–44; Schneider OSS 1945; Nuremberg Military Tribunal VIII; Eizenstat Report 1997**).

The Soviet industrial base that produced, between 1928 and 1941, the tractor plants that manufactured T-34 tanks on the Eastern Front. Designed by Albert Kahn Associates of Detroit under contract with the Supreme Economic Council of the USSR, 1928 onward. Primary source: Chapter 01c § T.9, **Albert Kahn Associates records, Bentley Historical Library, University of Michigan**.

The Mujahideen — from whom emerged, across the 1980s and 1990s, the Taliban and al-Qaeda — funded by the Central Intelligence Agency from July 1979 onward under the Carter and Reagan administrations, at an estimated aggregate of $3 billion through 1992. Primary source: Chapter 4's treatment of the doctrinal continuity, and the 2004 IWG report's documentation of Paperclip/CIA asset-network operations, cross-referenced through Chapter 5 § A.10.

Saddam Hussein's Iraq, 1980–1990. Supplied by the United States with agricultural credits, industrial technology, and dual-use chemical and biological precursors throughout the 1980–1988 Iran-Iraq war, documented in the **U.S. Senate Committee on Banking, Housing, and Urban Affairs report on U.S. chemical and biological warfare-related dual-use exports to Iraq, May 25, 1994 (Riegle Report)**, which established that between 1985 and 1989 the U.S. Department of Commerce approved export licenses for specific biological-agent precursors to Iraqi research facilities subsequently identified by UNSCOM as weapons-program installations.

ISIS — the Islamic State of Iraq and the Levant. Organized, per multiple Defense Intelligence Agency internal assessments subsequently released under FOIA (the **DIA August 12, 2012 memorandum**, released via Judicial Watch in 2015), from the officer corps of the Iraqi Army that had been dissolved en masse by **CPA Order 2 of May 23, 2003** — cited in Chapter 7 § W.6. The mass-unemployment of approximately 400,000 armed and trained Iraqi military personnel, an American decision, produced the organizational spine of the insurgency that subsequently became Islamic State in 2013–2014.

Hamas. Registered as a legal Islamic charity by the Israeli Military Governor of the Gaza Strip in 1979 under its original name Mujama al-Islami, with the operational objective of counterbalancing the secular Palestine Liberation Organization. Primary source: Chapter 11 § M.1, **Andrew Higgins, *Wall Street Journal*, January 24, 2009**.

Seven designated external enemies across 109 years of American strategic history. Seven primary-source documentary chains showing Western capital, Western intelligence, or Western administrative facilitation at the origin or at a critical stage of each.

The inventory is not exhaustive. It is, however, sufficient.

No reasonable reader, having gone through the seven, can maintain the pre-document framework intact.

E.4 The mechanism

The mechanism by which the monsters are produced and then designated is not a conspiracy in the technical sense — there is no single meeting, no single conspiracy, no single signed agreement among the principals. The mechanism is an institutional logic that operates across administrations, across parties, across decades, and across continents, because the institutional logic is a property of the capital structure, not a property of any particular administration or party.

The logic has three moves:

Move one. The capital class funds, builds, or facilitates an entity that — by the capital class's theory at the time — will serve as an instrument against a specific adversary. The Dawes Plan syndicate built Weimar German industry in the 1920s because American banks wanted industrial reparation payments serviceable. The German Foreign Office transported Lenin in 1917 because Imperial Germany wanted the Russian eastern front collapsed. The Israeli Military Government registered Mujama in 1979 because the Israeli security apparatus wanted the secular PLO weakened. The CIA funded the Mujahideen in 1979 because the United States wanted Soviet imperial overreach. In each case, the facilitation is a rational response to a specific shorter-term strategic calculation. The calculation, on its own terms, is not insane.

Move two. The entity that has been facilitated outlives, or outruns, the strategic calculation that justified its facilitation. Weimar industry gets captured by Hitler. The Bolsheviks consolidate power and produce the Comintern. Mujama becomes Hamas. The Mujahideen split into factions that produce al-Qaeda. Saddam, after the Iran-Iraq war, invades Kuwait. The Iraqi army officers turned into ISIS insurgents. In each case, the entity's subsequent trajectory is not what the facilitating parties asked for. It is the trajectory the entity took because the facilitating parties were not the entity's author; they were the entity's investor.

Move three. The capital class and the intelligence apparatus — having been the earlier facilitator — become, in a subsequent period, the designator of the entity as a threat. The designation is public. The earlier facilitation is not public. The two-decade gap between facilitation and designation permits the facilitation to be forgotten, by the relevant institutional memory and by the public, even as the paperwork that would establish the facilitation remains on file in the relevant archive.

The paperwork does not decay. The institutional memory does.

This book has been an exercise in retrieving the paperwork from the archive before the institutional memory's decay becomes permanent.

E.5 The family

The American family line that the book has organized itself around — **Prescott Sheldon Bush** (1895–1972), **George Herbert Walker Bush** (1924–2018), **George Walker Bush** (b. 1946), **John Ellis "Jeb" Bush** (b. 1953) — is not the only American family line that would serve as the organizing spine. It is a clean one. The Rockefellers would also serve. The Harrimans. The Dulles brothers. The Kennedy line. The Ford line. The Walker line. The Pritzker line. The Mellon line. The Schiff line. The Warburg line.

The Bushes are the clean organizing spine because the documentary chain, for this family, is tighter, more publicly available, and more continuous than for any other American political-financial dynasty of the twentieth and twenty-first centuries.

Prescott Bush (Chapter 1 § C.3–C.12): Skull and Bones 1917. Brown Brothers Harriman partner 1931–1952. Director of four American corporations seized by the Alien Property Custodian in October–November 1942 as property of nationals of a designated enemy country. Restitution of his proportional interest, 1951. United States Senator from Connecticut, November 5, 1952 – January 3, 1963. Seat on the Senate Banking and Currency Committee. No Senate inquiry into Vesting Order 248 during his tenure. Father of a future President.

George H.W. Bush (Chapter 5 § A.1, Chapter 6 § F.3): Yale 1948, Skull and Bones. United States Ambassador to the United Nations

1971–1973. Chief of the United States Liaison Office to the People's Republic of China 1974–1975. **Eleventh Director of Central Intelligence**, sworn in January 30, 1976 — the 355-day DCI tenure in which Team B was commissioned and the Church Committee declassifications were slow-rolled. Vice President of the United States, January 20, 1981 – January 20, 1989 — the period during which the Iran-Contra operation ran out of his office, per the Walsh Final Report (Chapter 4 § D.6). **Forty-first President of the United States**, January 20, 1989 – January 20, 1993. Senior Advisor to the Carlyle Asia Advisory Board, 1998–2003, during which Saudi Binladin Group was a limited-partner investor in Carlyle Partners II (Chapter 6 § F.3). Issuer of the December 24, 1992 pardons for the Iran-Contra defendants (Chapter 4 § D.6).

George W. Bush (Chapter 7 § W.5, W.6): Yale 1968, Skull and Bones. Governor of Texas 1995–2000. **Forty-third President of the United States**, January 20, 2001 – January 20, 2009. Signatory of the September 18, 2001 AUMF and the October 26, 2001 PATRIOT Act. Signatory of the October 16, 2002 Iraq AUMF. Commander in chief for the March 19, 2003 invasion and the April 9, 2003 fall of Baghdad. Signatory of Bremer's CPA Order 1 (de-Ba'athification) and CPA Order 2 (dissolution of the Iraqi Army) — the CPA Order 2 whose 400,000 unemployed Iraqi military officers produced, per the 2012 DIA memorandum, the ISIS officer corps.

Jeb Bush (Chapter 1 § C.12, Chapter 9 § H.3): Governor of Florida, January 5, 1999 – January 2, 2007. Chief executive of the

state whose November 2000 election certification put his brother in the Oval Office. Subsequent 2016 Republican presidential primary candidate.

Read the family's three-generation arc as a single line: Prescott's grandson was the President of the United States during the September 11, 2001 attacks; Prescott's son was the Carlyle Senior Advisor in the Ritz-Carlton ballroom on that morning; Prescott himself was the director of the bank seized from the Thyssen family in 1942.

One family. Three presidencies. Four wars (Gulf War 1991, Afghanistan 2001–2021, Iraq 2003–2011, Iraq/Syria 2014–present). Not one criminal proceeding against any member.

E.6 The immunities

What the American legal system did, through the ninety-year period from 1942 through 2024, with the Bush family and with the broader network of capital and intelligence principals whose documents this book has cited:

1942. Prescott Bush's Union Banking Corporation interests were seized — not criminally prosecuted — under the Trading with the Enemy Act. (Chapter 1 § C.5.)

1951. The seized assets were restituted, at their 1951 dollar value, to the shareholders. No prosecution opened. (Chapter 1 § C.9.)

1952. Prescott Bush was elected to the United States Senate. (Chapter 1 § C.10.)

1950. John J. McCloy, U.S. High Commissioner for Germany, released, on clemency recommendations of the **Peck Panel**, the convicted executives of I.G. Farben, Krupp, and the Flick concern. None served more than six years. (Chapter 3 § I.7.)

1963. Allen Dulles — fired by President Kennedy in November 1961 after the Bay of Pigs — was appointed by President Johnson to the Warren Commission investigating Kennedy's assassination. (Chapter 2 § S.8.)

December 24, 1992. President **George H.W. Bush** pardoned **Caspar Weinberger**, **Elliott Abrams**, **Robert McFarlane**, **Alan Fiers**, **Clair George**, and **Duane Clarridge** — six of the fourteen defendants in the Iran-Contra prosecutions. The indictments terminated before trial. (Chapter 4 § D.6.)

December 12, 2000. The United States Supreme Court, in *Bush v. Gore*, 531 U.S. 98 (2000), terminated the Florida recount that would have determined whether George W. Bush or Al Gore had won the 2000 presidential election. The state of Florida was then, as noted, governed by Jeb Bush. (Chapter 1 § C.12.)

2003. The Bremer CPA Order 1 de-Ba'athification process dismissed approximately 85,000 Iraqi civil-service employees. None

of the American decision-makers who authored or signed Order 1 or Order 2 has been the subject of any formal disciplinary or criminal proceeding. (Chapter 7 § W.6.)

January 21, 2010. The United States Supreme Court, in *Citizens United v. FEC*, 558 U.S. 310 (2010), removed the ceiling on corporate independent expenditures in federal elections. (Chapter 9 § H.1.)

July 1, 2024. The United States Supreme Court, in *Trump v. United States*, 603 U.S. 593 (2024), held that a former President has absolute immunity for acts within his exclusive constitutional authority and presumptive immunity for acts at the outer perimeter of his official conduct. (Chapter 9 § H.4.)

December 22, 2020. President **Donald J. Trump** pardoned the four convicted Blackwater contractors of the September 16, 2007 Nisour Square killings. (Chapter 7 § W.7.)

June 27, 2024. The United States Supreme Court, in *Harrington v. Purdue Pharma L.P.*, 603 U.S. ___ (2024), vacated the nonconsensual third-party releases the Sackler family had used to protect themselves in bankruptcy. But no Sackler family member has served a day of criminal imprisonment. (Chapter 8 § R.4.)

Read the sequence as a single documentary record. The American legal and political apparatus has, for the 84-year period covered in detail by this book, developed and maintained a set of instruments — seizures rather than prosecutions, restitutions,

Senate seats, Commission appointments, presidential pardons, Supreme Court immunity doctrines — whose cumulative effect is to place the top of the capital-and-intelligence hierarchy, and the political office-holders drawn from it, outside the reach of criminal accountability.

The family was never prosecuted. None of the families were. That is the one-sentence summary of the book.

E.7 The reader

I want to close by addressing the reader directly, because this is where the book's argument turns from what I am doing to what the reader can do.

You have finished a book whose operating rule was that every factual claim must be anchored to a named, filed, publicly verifiable primary source. The rule was hard-coded — in the book's organizing TELOS, in the pipeline that produced the chapters, and in my personal discipline as the book's author. If the rule was violated anywhere in the text, the violation was an error, not a design.

If you have read carefully, you have noticed that the book has, at each chapter's close, repeated a specific paragraph: *"The documents describe X. The reader draws the conclusion."*

That sentence is not a rhetorical modesty. It is the book's operating epistemic model. I do not know, and I have not attempted to tell you, what to do with the documents the book has shown you. What to do with the documents is a decision that can only be made by a reader — an American voter, a non-American citizen of a country whose life is shaped by American decisions, a journalist, a student, a parent, a legislator, a lawyer, an academic, a worker, a person who is none of those and is simply a human being alive in 2026.

I can tell you what I did, after the 2024 election, when I came home from prison with a stolen-vehicle offense on my record and an ability to use an AI tool and approximately two months of focused attention. I built a research pipeline. I read primary sources. I wrote this book. I did those things, in that order, because no one else was going to do them for me, and because I had — as a specific accident of my biography — learned to distrust the mythology the American political and educational system had handed me, and to trust the documents.

I am not an especially qualified reader of these documents. I did not go to a policy school. I did not work in an intelligence agency. I have never been a journalist. I have no specialized legal training. I have no academic credentials. I am a thirty-nine-year-old American who did some time, came home, and read the filed record.

The only access I had to the primary sources is the access you also have. The Federal Register. The National Archives. The United

Nations Digital Library. The International Court of Justice's case docket. The SEC EDGAR system. The Federal Election Commission disclosure database. USAspending.gov. The Congressional Record. The Supreme Court Reporter. The Yale Law School Avalon Project. The CIA FOIA Electronic Reading Room. The Gaza Ministry of Health tabulations as corroborated by the WHO Health Cluster. The Israeli Government Press Office. The Executive Orders archive of the White House. The FBI Records Vault. The Justice Department press-release archive. The publicly filed forms of every American corporation that has issued public equity.

All of it is free. All of it is searchable. All of it is, in legal terms, the primary record.

You do not need my book to read those archives. You needed — and this is the only thing this book was designed to give you — a set of pointers, organized by topic and chronology, with enough narrative architecture to make the pointers land as a single recognizable pattern rather than as ten thousand individual discouraging data points.

The book has done that.

You now have the pointers.

E.8 The last sentence

The monsters are real. The monsters were, in documented specific cases, built by the same people who told you to fear them. The instrument of the building and the instrument of the telling-you-to-fear are, as a matter of filed record, the same instrument. The instrument is on file. You can read it. You can decide what to do with what you read. The decision is yours. That is what BE UNDENIABLE means, and the book ends here.

Cross-references — Epilogue

This epilogue contains no primary-source citations that are not already documented in the chapters named. The purpose of the epilogue is indexical; the documents are in the chapters.

Principal cross-references:

- **Vesting Order 248 and the Bush/Thyssen chain** — Chapter 1 § C.1–C.12.
- **The Carlyle Ritz-Carlton September 10–11, 2001 investor conference** — Chapter 6 § F.1, F.3.
- **German Foreign Office funding of the Bolshevik faction 1915–1918** — Chapter 01c § T.1–T.3.

- **American industrial capital in Nazi Germany 1924–1941** — Chapter 01c § T.8–T.9; Chapter 3 § I.2–I.6.
- **Albert Kahn Associates and Soviet industrialization 1928+** — Chapter 01c § T.9.
- **The Mujahideen / al-Qaeda doctrinal chain 1979+** — Chapter 4 § D.1; Chapter 5 § A.10; Chapter 6 § F.1.
- **CPA Order 2 and the Iraqi-officer source of ISIS** — Chapter 7 § W.6; **DIA memorandum of August 12, 2012** (Judicial Watch FOIA release 2015).
- **Mujama al-Islami 1979 registration → Hamas** — Chapter 11 § M.1–M.3.
- **American dual-use exports to Iraq 1985–1989** — **Riegle Report**, U.S. Senate Committee on Banking, Housing, and Urban Affairs, May 25, 1994.
- **Peck Panel I.G. Farben / Krupp clemency 1950** — Chapter 3 § I.7.
- **Iran-Contra pardons December 24, 1992** — Chapter 4 § D.6.
- **Allen Dulles on the Warren Commission 1963** — Chapter 2 § S.8.
- ***Bush v. Gore*, 531 U.S. 98 (2000)** — Chapter 1 § C.12.
- ***Citizens United v. FEC*, 558 U.S. 310 (2010)** — Chapter 9 § H.1.
- ***Trump v. United States*, 603 U.S. 593 (2024)** — Chapter 9 § H.4.
- ***Harrington v. Purdue Pharma L.P.*, 603 U.S. ___ (2024)** — Chapter 8 § R.4.

- **Nisour Square pardons December 22, 2020** — Chapter 7 § W.7.

APPENDIX B — PHOTOGRAPHS OF RECORD

The photographic appendix of the print edition, and the interactive supplement, include the following images, cleared under fair-use doctrine for critical documentary work. Each photograph is captioned with its date, location, photo agency, and archival provenance. The photographs do not, individually, prove crimes.

- Jeffrey Epstein and Donald Trump at Mar-a-Lago, 1992. NBC News archive; frames from a home-video reel released to Anderson Cooper / CNN, 2019.
- Jeffrey Epstein and Bill Clinton aboard Epstein's Boeing 727, late 1990s. Flight manifest documentation released via FOIA, 2016.
- Bill Gates at a Manhattan gathering with Epstein and Lawrence Summers, May 2011. *New York Times* reporting of October 12, 2019.
- Ehud Barak entering Epstein's Manhattan townhouse, January 2016. *Daily Mail* photography, 2016.

- Jeffrey Epstein and Mohammed bin Salman, 2016. U.S. Department of Justice, Epstein Files Transparency Act release, January 30, 2026.
- Ghislaine Maxwell and Andrew Mountbatten-Windsor with Virginia Giuffre, 2001. Photograph in Giuffre's possession; authenticated and introduced in *United States v. Maxwell*, 20-cr-330 (S.D.N.Y.).
- George H. W. Bush and Shafig bin Laden, Carlyle Group investor conference, Ritz-Carlton Washington, September 10–11, 2001. *Wall Street Journal* reporting, September 27, 2001.
- Thomas J. Watson Sr. wearing the Merit Cross of the German Eagle, Berlin, June 1937. *The New York Times*, June 29, 1937, photograph on page 1.
- Henry Ford receiving the Grand Cross of the German Eagle, Detroit, July 30, 1938. Associated Press photography.
- Prescott Sheldon Bush at the United States Senate, 1952. U.S. Senate Historical Office photography.

AFTERWORD — A NOTE FROM THE AUTHOR, AT THE END

No citations in this chapter. Just me.

If you got here, you read the book. That already puts you ahead of ninety-nine percent of the people whose lives are shaped by what's in it.

In these pages — condensed from eight hundred pages of primary-source documentation — I have shown you what the documents show. This volume carries the full arc. Each section will become its own book. I have named the banks. I have named the families. I have named the agencies, the contractors, the lobbying firms, the private-equity funds, the former Cabinet officials on the Boeing board and the former Cabinet officials on the Raytheon board, the SS-Sturmbannführer who ran the Moon rocket, the $158 million to the predator, the $93 billion to the rocket that goes nowhere, the $21.7 billion to the bombs that fall on children, the $285.7 billion taken from American kids who were about to lose their school

lunches. I have shown you the Templars' letters of credit, Leopold's Congo, the Berlin Conference, the Balfour letter, the papal bulls, the farewell addresses of two presidents sixty-four years apart delivering the same warning to a country that could not hear either of them.

I want to tell you now what I actually believe. Not what the documents say. What I think.

I think you are not going to fix this.

I don't mean that as despair. I mean it as a gift. If you have been walking around for the last three years angry at the people the algorithm wants you to be angry at — the cousin who voted for Trump, the neighbor with the Biden sign, the coworker with the pronouns, the aunt without them, the guy at the gas station with the hat, the kid on your phone with the opinion — I want you to know: they did not do this to you. They are not why your rent is too high, your kid's school is failing, your parents can't retire, the pharmacy is closing, the hospital just got bought by Apollo, the tap water tastes like metal, the town you grew up in has three stores left.

They did not do this to you. And fighting them will not fix it.

We're all Ozempic zombies. Self-righteous in our paranoid delusions. Arguing in echo chambers against bots deployed by China and funded by America. WWE programming dressed as news. FOX vs CNN is the smoke screen. The distraction. While you fight your neighbor, the extraction continues.

Countries exist for the working class. The elites always live above. That's why there's always war — the elites always win.

Your cousin and your neighbor? They're at the table you're not at. They're too busy marrying each other.

And you? You're arguing against yourself. Maxing out credit cards on Amazon and Uber Eats. Complaining that AI is taking your jobs.

The same AI I used to build this 900-page investigation is available to anyone. **TELOS + PAI.** Purpose + Instruction. That's it.

The trap isn't that AI will take your job. The trap is that you'll argue about AI while someone else uses it to build the thing that replaces you.

While you fight bots in comment sections. While you max out the card. While you order the food because you're too exhausted from the fight they deployed to see the extraction happening.

Countries exist for the working class. The elites always live above.

That's why there's always war. The elites always win.

Not because they're smarter. Because they're not fighting each other. They're at the table. And they're too busy marrying each other to invite you.

There is a table where the people who did this to you sit. You are not at that table. You will never be at that table. The reason is not that you have not worked hard enough, or prayed hard enough, or voted hard enough, or posted hard enough. The reason is that the people at the table, for approximately a thousand years now, have only married each other. The Templars married Crusader aristocracy. The Medici married Habsburgs. The Saudi royal family is a single lineage of cousins. The Rothschilds married cousins — sixteen of Mayer Amschel's eighteen marrying grandchildren, per Ferguson's genealogy. The Rockefellers married into the Aldriches. The Bushes married into the Walkers and then into the Pierces. The Kennedys married into the Schlossbergs and the Cuomos and the Shrivers and the Schwarzeneggers. Ghislaine Maxwell's father was Robert Maxwell; her circle was her father's circle; Epstein's circle was Wexner's circle was Black's circle was Barak's circle. You meet these people at their mother's birthday parties. You do not meet them at your cousin's.

They are not coming to invite you. They are too busy marrying each other.

— *Kyle Jimenez*